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Division of Publications
312 Rosa L. Parks Ave., 8th Floor
Nashville, TN 37243
Phone: 615-741-2650
Email: publications.information@tnsos.gov

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Rulemaking Hearing Rule(s) Filing Form

Rulemaking Hearing Rules are rules filed after and as a result of a rulemaking hearing (Tenn. Code Ann. § 4-5-205).

Pursuant to Tenn. Code Ann. § 4-5-229, any new fee or fee increase promulgated by state agency rule shall take effect on July 1, following the expiration of the ninety (90) day period as provided in § 4-5-207. This section shall not apply to rules that implement new fees or fee increases that are promulgated as emergency rules pursuant to § 4-5-208(a) and to subsequent rules that make permanent such emergency rules, as amended during the rulemaking process. In addition, this section shall not apply to state agencies that did not, during the preceding two (2) fiscal years, collect fees in an amount sufficient to pay the cost of operating the board, commission or entity in accordance with § 4-29-121(b).

Agency/Board/Commission: Department of Agriculture
Division: Consumer & Industry Services
Contact Person: Annie Balghiti
Address: Post Office Box 40627, Nashville, Tennessee
Zip: 37204
Phone: 615.253.5828
Email: tda.rulemaking@tn.gov

Revision Type (check all that apply):

☒ Amendment ☒ Content based on previous emergency rule filed on June 28, 2024
☒ New ☐ Content is identical to the emergency rule
☒ Repeal

Rule(s) (ALL chapters and rules contained in filing must be listed here. If needed, copy and paste additional tables to accommodate multiple chapters. Please make sure that **ALL** new rule and repealed rule numbers are listed in the chart below. Please enter only **ONE** Rule Number/Rule Title per row.)

Chapter Number	Chapter Title
0080-04-09	Retail Food Store Sanitation
Rule Number	Rule Title
0080-04-09-.01	Definitions
0080-04-09-.03	Food

Chapter Number	Chapter Title
0080-04-13	Food Manufacturers and Warehouses
Rule Number	Rule Title
0080-04-13-.02	Definitions
0080-04-13-.05	Standards for Manufacturing and Processing

Chapter Number	Chapter Title
0080-06-28	Repealed
Rule Number	Rule Title
0080-06-28-.01	Repealed
0080-06-28-.02	Repealed
0080-06-28-.03	Repealed
0080-06-28-.04	Repealed

0080-06-28-.05	Repealed
0080-06-28-.06	Repealed
0080-06-28-.07	Repealed
0080-06-28-.08	Repealed
0080-06-28-.09	Repealed

Chapter Number	Chapter Title
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Rule Number	Rule Title
0080-10-01-.01	Scope
0080-10-01-.02	Definitions
0080-10-01-.03	License Application and Fees
0080-10-01-.04	Transportation
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Chapter Number	Chapter Title
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New

0080-10
HEMP

Division 0080-10 Hemp is created.

Authority: T.C.A. §4-3-203.

CHAPTER 0080-10-01
HEMP PRODUCERS

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0080-10-01-.01 Scope.

- (1) This chapter applies to any person who possesses rooted hemp or who cultivates cannabis for introduction into commerce.
- (2) The department shall not refund fees for early termination of any license issued under this chapter.
- (3) Licenses under this chapter are not transferable from person to person or location to location.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-01-.02 Definitions.

- (1) Terms in this chapter share those meanings of terms in T.C.A. § 43-27-101, et seq.
- (2) When used in this chapter, unless the context requires otherwise:
 - (a) Act means T.C.A. § 43-27-101, et seq.;
 - (b) Cannabis means any plant or any part of a plant of the genera Cannabis and includes hemp;
 - (c) Certificate of Analysis (COA) means a written document from a laboratory that meets USDA standards for testing of hemp samples, and which communicates the results of those tests performed;
 - (d) Commerce or similar words mean involving payment for an item or payment for services incident to production of the item;
 - (e) Cultivate or similar words mean to foster the growth of plant material and includes growing and cloning;
 - (f) Growing area means a contiguous area in a field, greenhouse, or indoor growing structure containing the same variety or strain of cannabis throughout the area;
 - (g) Harvest means to gather, in any manner, cannabis material from rooted plants and to transport it from the property where it was cultivated;
 - (h) In a manner similarly reliable to post-decarboxylation means a manner sufficient to quantify by percentage the resulting THC of a sample if carboxyl groups are removed from all molecules containing THC within the sample. A manner similarly reliable to post-decarboxylation is shown

by a post-decarboxylation THC value equal to the sum of the sample's THC percentage plus the product of its delta-9 tetrahydrocannabinolic acid (THCa) percentage and 0.877;

- (i) Move, transport, or similar words mean to relocate in any manner an item from one real property to another;
- (j) Person means an individual, partnership, corporation, or any other form of legal entity;
- (k) Sample means to take plant material or the plant material taken from a location used to cultivate cannabis;
- (l) Stop movement order means a written directive issued by the department to prohibit or to limit the movement of plants or plant parts; and,
- (m) USDA means United States Department of Agriculture.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-01-.03 License Application and Fees.

- (1) A hemp producer license is required per person per location for any person who possesses rooted hemp or who cultivates cannabis for introduction into commerce. The hemp producer license authorizes the producer to sell harvested hemp as an unprocessed commodity to wholesalers and distributors. If a hemp producer alters harvested hemp beyond its form as a farm commodity (e.g., by trimming, filtering, or packaging the crop for its component parts) or offers harvested hemp for retail sale, the producer must also have an HDC supplier license and HDC retail license, as appropriate, under Tenn. Comp. R. & Regs. 0080-10-02 and 0080-10-03.
- (2) Applicants for a hemp producer license must submit required information on forms provided by the department, which may include:
 - (a) Name of the applicant;
 - (b) Date of birth of any applicant who is an individual or a partner in a general partnership;
 - (c) Proof of registration in its state of incorporation for any applicant that is a formalized business entity;
 - (d) Contact information for applicant, to include name of person legally responsible for applicant's operations, telephone number, email address, and address of principal place of business;
 - (e) Address of location to be licensed;
 - (f) Acreage and perimeter description for each growing area at the location to be licensed;
 - (g) Global Positioning System coordinates for the central most point of each growing area at the location to be licensed;
 - (h) A nationwide criminal background check, facilitated through the Tennessee Bureau of Investigation, for the person identified as legally responsible for applicant's operations; and,
 - (i) Other information as required by the department.
- (3) Licensees must notify the department of any changes to the contents of their application on file within 30 days after the change takes place, including but not limited to any change of contact information, growing areas, or planting of new hemp crops.
- (4) Applicants must include with their application payment of an annual hemp producer license fee, calculated as follows:

- (a) Cumulative growing areas less than five acres: \$250;
 - (b) Cumulative growing areas of five to 20 acres: \$300;
 - (c) Cumulative growing areas of more than 20 acres: \$350; and,
 - (d) License fees are waived for any accredited college or university that offers programs of study in agricultural sciences and that is seeking licensure for growing areas on its college or university property.
- (5) Hemp producer licenses expire on June 30 of the licensing cycle for which they are issued. Applicants for renewal must submit to the department on or before the following July 1 the hemp producer license fee, application for licensure, and an updated criminal background check for the person identified as legally responsible for applicant's operations. If an applicant for renewal fails to pay the annual license fee by July 16 following expiration, the applicant must also pay a late charge under T.C.A. § 43-1-703 prior to renewal of the applicant's license.
- (6) The department may deny any application for licensure that is not completed in full or that is not completed in conformance with this rule.

Authority: T.C.A. §§ 4-3-203, 43-1-703, and 43-27-104.

0080-10-01-.04 Transportation.

Any licensee moving rooted hemp or other cannabis shall have in their immediate possession a copy of the hemp producers' license(s) from which the cannabis originated and a copy of the certificate(s) of analysis for the growing area and crop that produced the cannabis.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-01-.05 Inspections and Testing.

- (1) Scope. The department may enter any licensed premises during normal business hours for purposes of inspecting and sampling any cannabis or other material and copying records necessary to determine compliance with the Act and this chapter.
- (2) Frequency. The department may conduct inspections as often as necessary to determine compliance with the Act and this chapter.
- (3) Sampling and testing.
 - (a) A sample collected and tested according to protocols issued by either USDA or the department is deemed representative of the growing area from which the sample was obtained.
 - (b) Comingling of sample material from different growing areas invalidates the results of the sample tested.
 - (c) Collection of a sample by a licensee or their agent invalidates the results of the sample tested.
 - (d) Any sample test result less the measurement uncertainty showing a post-decarboxylation value for THC in the plant greater than 0.3% is grounds for destruction or remediation of all cannabis represented by the sample material.
 - (e) Third party.

1. The department may approve third-party samplers for collection of cannabis material and third-party test laboratories to conduct official analysis of samples. The department will accept test results for a third-party collected or tested sample only if the sample was collected and tested in conformance with sampling guidelines and testing requirements issued by either USDA or the department, and for which test results are submitted by the third-party testing laboratory directly to the department.
2. If a sample test result from an approved third-party laboratory is the initial test for a growing area and shows the sample to be within allowable limits, the department may recognize the sample as compliant without further testing. If the sample test is either not the initial test of the crop or is not within allowable limits, the department will re-sample and re-test the growing area prior to determining regulatory compliance.

(f) Department.

1. Sampling by the department must be attended by the licensee or the licensee's authorized representative, if applicable. If the licensee or authorized representative does not appear for scheduled sampling, the department may assess a \$150 travel charge against the licensee for departmental costs in visiting the location to be sampled.
2. The department serves as the reference laboratory for all samples. Its test results of any sample are considered conclusive.
3. Licensees must pay a \$150 laboratory analysis fee for each sample tested by the department.

Authority: T.C.A. §§ 4-3-203, 43-1-703, and 43-27-104.

0080-10-01-.06 Violations.

- (1) In addition to other requirements of the Act and this chapter, persons subject to this chapter must:
 - (a) Maintain areas where cannabis is grown or kept so as to be readily accessible for inspection;
 - (b) Provide adequate lighting necessary for inspection of all cannabis and areas where cannabis may be grown or held;
 - (c) Provide full access to facilities, inventory, records, and invoices necessary to departmental inspection;
 - (d) Give full information as to the source of cannabis currently or previously held in their possession;
 - (e) Identify each growing area with the cultivar and USDA Farm Service Agency (FSA) field and/or subfield number, as applicable;
 - (f) Consent to sampling of all cannabis cultivated by the licensee;
 - (g) Harvest a hemp crop within 30 days of sampling for testing, unless directed otherwise by the department;
 - (h) Report hemp crop acreage to FSA annually and within 30 days of new crops being planted. Reports must meet all FSA requirements, including:
 1. Street address and GPS location of site for each area where hemp will be grown;
 2. Total acreage or square footage dedicated to production of hemp; and
 3. Licensee's hemp producer license number; and,

- (l) Record each transaction in which the licensee sells or introduces rooted hemp into commerce. The licensee must keep the record for two years from the transaction date. The record must include: the name, contact information, and hemp producer license number for any person who purchased or received the cannabis.
- (2) In addition to other requirements of the Act and this chapter, persons subject to this chapter must not:
- (a) Possess or receive rooted hemp without first securing a license from the department;
 - (b) Cultivate cannabis for introduction into commerce without first securing a license from the department;
 - (c) Sell, supply, or move rooted cannabis to any person in this state not licensed under this division of rules;
 - (d) Possess or cultivate cannabis showing a post-decarboxylation value for THC in the plant greater than 0.3%, less measurement uncertainty;
 - (e) Grow more than one variety of cannabis per growing area;
 - (f) Possess rooted hemp outside a licensed growing area unless it is under immediate transport to another licensed growing area or a licensed hemp-derived cannabinoid product manufacturer, distributor, or retailer;
 - (g) Harvest hemp or introduce rooted hemp into commerce prior to:
 - 1. Sampling within the previous 30 days, and
 - 2. Departmental receipt of sample test results showing the sample tested within allowable limits for THC;
 - (h) Interfere with an authorized representative of the department in performance of their duties;
 - (i) Violate any federal or state quarantine of plants, regulated articles, or other material;
 - (j) Sell, offer for sale, move, or allow movement of any apparently infested material;
 - (k) Violate applicable hemp movement regulations of any state or federal agency; or,
 - (l) Violate any departmental order issued under the Act or this chapter, including but not limited to orders to stop movement, destroy, or remediate cannabis.
- (3) A person is responsible for violations of the Act or this chapter when committed by either the person or their agent.
- (4) Each violation of the Act or this chapter is grounds for issuance of stop movement, destruction, or remediation orders for any cannabis held by the violator or their agent, denial or revocation of any license issued by the department, actions for injunction, imposition of civil penalties, and/or pursuit of criminal charges against the violator.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

CHAPTER 0080-10-02
MANUFACTURING AND DISTRIBUTION OF HEMP-DERIVED CANNABINOID PRODUCTS

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0080-10-02-.01 Scope.

- (1) This chapter applies to any person who manufactures or distributes in commerce any HDC product.
- (2) Persons who manufacture or distribute HDC products are subject to all requirements and regulatory authority applicable to the type of product sold, including but not limited to regulation under the Act and this chapter, and T.C.A. title 53, chapter 1, parts 1 and 2, and title 39, chapter 17, part 15, and Tenn. Comp. R. & Regs. 0080-04-13. HDC products are excluded from all regulatory exemptions including but not limited to those afforded under the Food Freedom Act at T.C.A. § 53-1-118.
- (3) The department shall not refund fees for early termination of any license issued under this chapter.
- (4) Licenses under this chapter are not transferable from person to person or location to location.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.02 Definitions.

- (1) Terms in this chapter share those meanings of terms in T.C.A. title 43, chapter 27, parts 1 and 2.
- (2) When used in this chapter, unless the context requires otherwise:
 - (a) Act means T.C.A. § 43-27-201, et seq.;
 - (b) Batch, in addition to its definition under the Act, means an individual production lot of manufactured product;
 - (c) Cannabis means any plant or any part of a plant of the genera Cannabis and includes hemp;
 - (d) Certificate of Analysis (COA) means a written document from a laboratory approved by the department for testing samples under this chapter, and which communicates the results of those tests performed;
 - (e) Commerce or similar words mean involving payment for an item or payment for services incident to production of the item;
 - (f) Distribute means to transport or to introduce into commerce and includes delivery for sale or manufacturing, or holding for subsequent sale or manufacturing;
 - (g) Food means articles used for food or drink for humans or other animals; chewing gum; and articles used for components of food or drink or chewing gum;
 - (h) Hemp-derived cannabinoid (HDC) product means a product that contains or that is labeled to contain a hemp-derived cannabinoid and that is produced, marketed, or otherwise intended to be consumed orally ("ingestible"), inhaled ("inhalable"), or absorbed through the skin ("transdermal"). HDC products also include intermediate products intended for subsequent use as a component in a later finished ingestible, inhalable, or transdermal HDC product. Topical products mean

products solely intended to be applied to the skin or hair and are not intended to be absorbed through transdermal application; topical products are not included within the definition of HDC product even if they contain a hemp-derived cannabinoid;

- (i) In a manner similarly reliable to post-decarboxylation means a manner sufficient to quantify by percentage the resulting THC of a sample if carboxyl groups are removed from all molecules containing THC within the sample. A manner similarly reliable to post-decarboxylation is shown by a post-decarboxylation THC value equal to the sum of the sample's THC percentage plus the product of its delta-9 tetrahydrocannabinolic acid (THCa) percentage and 0.877;
- (j) Manufacture, in addition to its definition under the Act, includes any action that transforms cannabis physically or chemically beyond its principal form as a farm product or that filters, cleans, or trims that product to isolate any of its particular parts or components;
- (k) Move, transport, or similar words mean to relocate in any manner an item from one real property to another;
- (l) Person means an individual, partnership, corporation, or any other form of legal entity;
- (m) Sample means to take material or the material taken from a location used to manufacture or distribute HDC products; and,
- (n) Serving, in addition to its definition under the Act, means an amount of product designated by its manufacturer as reasonably understood to be a single unit of the product for consumption.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.03 License Application and Fees.

- (1) An HDC supplier license is required per person per location for any person who manufactures or distributes an HDC product in commerce.
- (2) Applicants for an HDC supplier license must submit required information on forms provided by the department, which may include:
 - (a) Name of the applicant;
 - (b) Date of birth of any applicant who is an individual or a partner in a general partnership;
 - (c) Proof of registration in its state of incorporation for any applicant that is a formalized business entity;
 - (d) Proof of registration with the Tennessee Department of Revenue;
 - (e) Contact information for applicant, to include name of person legally responsible for applicant's operations, telephone number, email address, and address of principal place of business;
 - (f) Address of location to be licensed;
 - (g) A nationwide criminal background check, facilitated through the Tennessee Bureau of Investigation, for the person identified as legally responsible for applicant's operations; and,
 - (h) Other information as required by the department.
- (3) Licensees must notify the department of any changes to the contents of their application on file within 30 days after the change takes place, including any change of contact information;
- (4) Payment of an annual HDC supplier license fee of \$500 shall be due upon approval of an application and must be paid in full prior to a license being issued. The license fee may be prorated in the initial year of

licensure at the rate of \$50 per each full calendar month remaining in the license period, provided the total fee not exceed \$500. License fees shall not be prorated for any person licensed in the previous licensure year. License fees are waived for any accredited college or university that offers programs of study in agricultural sciences and that is seeking licensure for HDC product manufacturing on its college or university property.

- (5) HDC supplier licenses expire on June 30 of the licensing cycle for which they are issued. Applicants for renewal must submit to the department on or before the following July 1 the HDC supplier license fee and an updated criminal background check for the licensee.
- (6) The department may deny any application for licensure that is not completed in full or that is not completed in conformance with this rule.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.04 Manufacturing.

(1) General requirements.

(a) In production of HDC products, manufacturers shall:

- 1. Assign each product batch a unique batch number;
- 2. Not add nicotine to any HDC product; and
- 3. Not use dimethylsulfoxide in any HDC product.

(2) Inhalable HDC products.

(a) A person shall not manufacture or distribute an inhalable HDC product made with a non-hemp derived cannabinoid ingredient unless the ingredient is listed in, and the concentration and route of the ingredient is authorized under, the federal Food and Drug Administration (FDA) inactive ingredient database at <https://www.accessdata.fda.gov/scripts/cder/iig/index.cfm>.

(b) A person shall not manufacture or distribute an inhalable HDC product in which any of the following substances are used in its manufacture:

- 1. Vitamin E acetate;
- 2. Medium-chain triglycerides;
- 3. Polyethylene glycol;
- 4. Propylene glycol; or,
- 5. 2, 3-butanedione.

(c) A person shall not manufacture or distribute an inhalable HDC product unless its water activity is less than 0.65 and its total combined yeast and mold count is less than 100,000 colony forming units per gram.

(3) Solvents. A person shall not manufacture or distribute an HDC product in which solvents were used in its manufacture. Use of the following substances are allowable exceptions: water, vegetable glycerin, vegetable oils, animal fats, butane, propane, carbon dioxide, ethanol, isopropanol, acetone, heptane, ethyl acetate, and pentane.

(a) If butane, propane, heptane, or pentane is used as a solvent, the solvent must be documented on its COA as at least 99 percent purity.

- (b) If water, vegetable glycerin, vegetable oil, animal fat, carbon dioxide, ethanol, isopropanol, acetone, or ethyl acetate is used as a solvent, the solvent must be food grade according to FDA standards under 21 CFR Part 174.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.05 Sampling and Testing.

(1) Frequencies.

- (a) If an HDC product is created from hemp or hemp products, the HDC supplier licensee must sample and test each batch of the product for conformance with this rule. Once full panel testing required by this rule is conducted on hemp or a hemp product, additional testing in downstream commerce is not required except as provided:
 - 1. After the initial HDC product in commerce conforms to testing under subparagraph (a), if a downstream HDC supplier uses the product as an input to make a new HDC product and during production of the new product the HDC input underwent either a chemical change (e.g. through exposure to heat or solvents) or a reconstitution through addition or removal of other components, the supplier must cause each batch of new HDC product to be sampled and tested for conformance with this rule.
 - 2. After the initial HDC product in commerce conforms to testing under subparagraph (a), if a downstream HDC supplier uses the product as an input to make a new HDC product but does not alter the chemical composition or formulation of the HDC product compared to the input used (e.g. raw flower that is only physically changed through cutting and filtering or bulk orders that are repackaged into smaller units of like product), additional sampling and testing of the resulting product batches are not required and prior test results in commerce of HDCs within the product are presumptively valid. This part shall not limit the department's authority to test any cannabis products for compliance with the Act and this chapter.
- (b) Prior to transport of any HDC product in commerce, HDC suppliers must confirm conformance of the batch to all testing requirements under this rule.

(2) Standards. Tolerances for each required testing analyte are listed below. Any test result exceeding allowable limits is grounds for embargo, recall, remediation, and/or destruction of the entire batch represented by the sample, regardless of whether the test result is discovered through manufacturing testing or subsequent sampling and testing of retail HDC product.

(a) For all HDC products:

- 1. Hemp-derived cannabinoids:
 - (i) Delta-8 tetrahydrocannabinol [Reserved];
 - (ii) Delta-10 tetrahydrocannabinol [Reserved];
 - (iii) Hexahydrocannabinol [Reserved];
 - (iv) Tetrahydrocannabiphorol (THCp) [Reserved];
 - (v) Tetrahydrocannabivarin (THCv) [Reserved]; and,
 - (vi) Tetrahydrocannabinolic acid (THCa):
 - (I) HDC products in commerce to an HDC supplier licensee (sample test result, less the measurement uncertainty, showing a post-decarboxylation THC value $\leq 5\%$);

- (II) HDC products in commerce to any person who is not an HDC supplier licensee (sample test result, less the measurement uncertainty, showing a post-decarboxylation THC value $\leq 0.3\%$);

2. Microbial contaminants:

- (i) Shiga toxin-producing *Escherichia coli* (undetectable in at least one gram);
(ii) *Salmonella* spp. (undetectable in at least one gram);

3. Mycotoxins:

- (i) Aflatoxin B1 (total aflatoxin B1, B2, G1, and G2 $\leq 20 \mu\text{g/kg}$);
(ii) Aflatoxin B2 (total aflatoxin B1, B2, G1, and G2 $\leq 20 \mu\text{g/kg}$);
(iii) Aflatoxin G1 (total aflatoxin B1, B2, G1, and G2 $\leq 20 \mu\text{g/kg}$);
(iv) Aflatoxin G2 (total aflatoxin B1, B2, G1, and G2 $\leq 20 \mu\text{g/kg}$);
(v) Ochratoxin A ($\leq 20 \mu\text{g/kg}$);

4. Residual pesticides:

Residual pesticide	Chemical Abstract Service (CAS) assigned number	Maximum allowable concentration stated in parts per million (ppm)
Abamectin	71751-41-2	0.5 ppm
Acephate	30560-19-1	0.4 ppm
Acequinocyl	57960-19-7	2.0 ppm
Acetamiprid	135410-20-7	0.2 ppm
Aldicarb	116-06-3	0.4 ppm
Azoxystrobin	131860-33-8	0.2 ppm
Bifenazate	149877-41-8	0.2 ppm
Bifenthrin	82657-04-3	0.2 ppm
Boscalid	188425-85-6	0.4 ppm
Carbaryl	63-25-2	0.2 ppm
Carbofuran	1563-66-2	0.2 ppm
Chlorantraniliprole	500008-45-7	0.2 ppm
Chlorfenapyr	122453-73-0	1.0 ppm
Chlormequat chloride	7003-89-6	0.2 ppm
Chlorpyrifos	2921-88-2	0.2 ppm
Clofentezine	74115-24-5	0.2 ppm
Cyfluthrin	68359-37-5	1.0 ppm
Cypermethrin	52315-07-8	1.0 ppm
Daminozide	1596-84-5	1.0 ppm
DDVP (Dichlorvos)	62-73-7	0.1 ppm
Diazinon	333-41-5	0.2 ppm
Dimethoate	60-51-5	0.2 ppm
Ethoprophos	13194-48-4	0.2 ppm
Etofenprox	80844-07-1	0.4 ppm
Etoxazole	153233-91-1	0.2 ppm
Fenoxycarb	72490-01-8	0.2 ppm
Fenpyroximate	134098-61-6	0.4 ppm
Fipronil	120068-37-3	0.4 ppm
Flonicamid	158062-67-0	1.0 ppm
Fludioxonil	131341-86-1	0.4 ppm
Hexythiazox	78587-05-0	1.0 ppm
Imazalil	35554-44-0	0.2 ppm
Imidacloprid	138261-41-3	0.4 ppm

Kresoxim-methy	143390-89-0	0.4 ppm
Malathion	121-75-5	0.2 ppm
Metalaxyl	57837-19-1	0.2 ppm
Methiocarb	2032-65-7	0.2 ppm
Methomyl	16752-77-5	0.4 ppm
Methyl parathion	298-00-0	0.2 ppm
Myclobutanil	88671-89-0	0.2 ppm (prohibited at any concentration for inhalation)
Naled	300-76-5	0.5 ppm
Oxamyl	23135-22-0	1.0 ppm
Paclobutrazol	76738-62-0	0.4 ppm
Permethrins (measured as the cumulative residue of cis- and trans-isomers)	52645-531 (54774-45-7 and 51877-74-8)	0.2 ppm
Phosmet	732-11-6	0.2 ppm
Piperonyl butoxide	51-03-6	2.0 ppm
Prallethrin	23031-36-9	0.2 ppm
Propiconazole	60207-90-1	0.4 ppm
Propoxur	114-26-1	0.2 ppm
Pyrethrins (measured as the cumulative residue of pyrethrin 1, cinerin 1 and jasmolin 1)	8003-34-7(121-21-1, 25402-06-6 and 4466-14-2)	1.0 ppm
Pyridaben	96489-71-3	0.2 ppm
Spinosad	168316-95-8	0.2 ppm
Spiromesifen	283594-90-1	0.2 ppm
Spirotetramat	203313-25-1	0.2 ppm
Spiroxamine	118134-30-8	0.4 ppm
Tebuconazole	107534-96-3	0.4 ppm
Thiacloprid	111988-49-9	0.2 ppm
Thiamethoxam	153719-23-4	0.2 ppm
Trifloxystrobin	141517-21-7	0.2 ppm

5. Heavy metals:

- (i) Arsenic (≤ 0.4 ppm);
- (ii) Cadmium (≤ 0.4 ppm);
- (iii) Lead (≤ 1 ppm);
- (iv) Mercury (≤ 1.2 ppm);

6. Residual solvents and manufacturing chemicals:

Solvent or manufacturing chemical	CAS assigned number	Maximum allowable concentration (ppm)
Acetone	67-64-1	1,000 ppm
Benzene*	71-43-2	2 ppm
Butanes, (measured as the cumulative residue of n-butane and iso-butane),	106-97-8 and 75-28-5	1,000 ppm
Ethanol	64-17-5	1,000 ppm
Ethyl Acetate	141-78-6	1,000 ppm
Heptanes	142-82-5	1,000 ppm
Hexanes* (measured as the cumulative residue of n-hexane, 2-methylpentane, 3-methylpentane, 2,2-dimethylbutane, and 2,3-dimethylbutane)	110-54-3, 107-83-5 and 79-29-8	60 ppm
Methanol*	67-56-1	600 ppm
Pentanes (measured as the cumulative residue of n-pentane, iso-pentane, and neo-pentane)	109-66-0, 78-78-4 and 463-82-1	1,000 ppm
2-Propanol (IPA)	67-63-0	1,000 ppm

Propane	74-98-6	1,000 ppm
Toluene*	108-88-3	180 ppm
Total Xylenes* (measured as the cumulative residue of 1,2-dimethylbenzene, 1,3-dimethylbenzene, and 1,4-dimethylbenzene, and the non-xylene, ethylbenzene)	1330-20-7 (95-47-6, 108-38-3 and 106-42-3 and 100-41-4)	430 ppm
Any other solvent not permitted for use		undetected
*These solvents are not individually approved for use. Due to their possible presence in other solvents that are approved for use, limits have been listed here for concentrations in final products.		

(b) Additional testing requirements for inhalable HDC products:

1. Microbial contaminants:

- (i) *Aspergillus A. fumigatus* (undetectable in at least one gram);
- (ii) *Aspergillus A. flavus* (undetectable in at least one gram);
- (iii) *Aspergillus A. niger* (undetectable in at least one gram);
- (iv) *Aspergillus A. terreus* (undetectable in at least one gram);

2. Heavy metals:

- (i) Arsenic (≤ 0.2 ppm);
- (ii) Cadmium (≤ 0.2 ppm);
- (iii) Lead (≤ 0.5 ppm);
- (iv) Mercury (≤ 0.1 ppm).

(3) Sampling. HDC product manufacturers must draw samples for testing that are representative of each batch.

(4) Testing.

(a) Third-party laboratories.

1. COAs required under this chapter may be supplied by a third-party laboratory provided the laboratory is registered with the department.
2. To register and to maintain registration with the department, a third-party laboratory applicant must:
 - (i) Complete in full an application for registration on forms provided by the department;
 - (ii) Host and notify the department of one landing page for retrieval of all COAs issued by the laboratory through use of quick reference (QR) codes;
 - (iii) For any test method conducted pursuant to this rule, be fully accredited to standards established under International Organization for Standardization (ISO) 17025 by an International Laboratory Accreditation Cooperation recognized accreditation body;
 - (iv) Maintain ISO 17025 accreditation;
 - (v) Test and report analyte(s) using limits of detection and quantitation no greater than the respective tolerance(s) under this chapter for the tested analyte(s);
 - (vi) Test and report hemp-derived cannabinoids under this chapter using a limit of

quantitation ≤ 1 mg/g;

- (vii) Perform and report component testing as detailed under this rule;
 - (viii) Store all samples in a secure manner that reasonably protects them from degradation, contamination, and tampering; and, prior to its disposal, render all sample material unusable;
 - (ix) If available, produce reserve sample material to the department upon request; and,
 - (x) Provide other information as required by the department.
3. Failure to adhere to these requirements or requirements for issuance of COAs under this rule is grounds for denial or revocation of any registration or authorization issued by the department.

(b) COAs.

1. Third-party laboratories must include at a minimum the following on each COA issued:
- (i) The laboratory's name and address as it is registered with the department;
 - (ii) The HDC product manufacturer's name and address;
 - (iii) The batch number of HDC product represented by the sample;
 - (iv) Unique identifying information for the sample, if applicable;
 - (v) Sample history including date received and date range of each test conducted on the sample;
 - (vi) Analytical methods, limits of detection, limits of quantitation, and test results for each analyte evaluated for the sample, regardless of whether the testing conducted is required by this rule; and,
 - (vii) A collective "pass"/"fail" assessment for the entire batch that accounts for either passage of all or failure of any one test conducted on the sample.
2. When reporting quantitative results, third-party laboratories must include in the COA the corresponding units of measurement as required for tolerances under this rule, as well as measurement uncertainties.
3. A result of "< LOQ" for any analyte detected below the limit of quantification (LOQ).
4. A result of "ND" for any analyte that was tested for and not detected.

(c) Failed testing.

1. Retesting. Any sample failure may be re-submitted as follows for confirmation of testing failure.
- (i) If a reserve sample was retained by the same third-party registered laboratory that produced the COA exhibiting a test failure, that laboratory may re-test the reserve sample following the failed test in order to confirm component compliance.
 - (ii) If the re-tested sample passes for the suspect component(s), a new sample from the same batch must be drawn and submitted to a second third-party registered laboratory for complete re-testing of all components listed under this rule. If the second re-testing conforms to all required tolerances, the batch is deemed

compliant with testing requirements and may be transported and distributed in commerce.

- (iii) If a reserve sample is not available from the initial third-party registered laboratory or if a sample fails either of the re-tests, the batch is deemed nonconforming with regulatory requirements.

2. Remedy.

- (i) Microbial contaminants. An HDC supplier is prohibited from transporting or allowing transport of a batch that has failed microbial contaminant testing unless:
 - (I) The batch is further processed by a method that effectively sterilizes the batch, is re-tested, and those test results show conformance with required tolerances;
 - (II) The supplier submits a corrective action plan for effective sterilization of the batch by another licensed HDC supplier, receives written approval of the plan from the department, and places the batch under immediate transport to the approved HDC supplier; or,
 - (III) The batch is rendered unusable.
- (ii) Over-concentrated product. An HDC product manufacturer is prohibited from transporting or allowing transport of a batch that has failed THC concentration testing unless:
 - (I) The batch is further processed by a method that effectively dilutes the batch, is retested, and those results show conformance with required tolerances;
 - (II) The manufacturer submits a corrective action plan for effective dilution of the batch by another licensed HDC supplier, receives written approval of the plan from the department, and places the batch under immediate transport to the approved HDC supplier; or,
 - (III) The batch is rendered unusable.
- (iii) For all other component testing failures, an HDC product manufacturer must render the batch unusable prior to disposition.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.06 Labels.

- (1) HDC product manufacturers must, in addition to labeling requirements under the Act, label each HDC product with the following:
 - (a) Batch number;
 - (b) Name and address of the HDC product manufacturer or distributor;
 - (c) A list of all ingredients, ordered by weight, including direct and indirect additives;
 - (d) A separate allergen statement, stating common name of allergen, if product contains any of the following ingredients: eggs; fish; milk; tree nuts; peanuts; sesame; shellfish; soy; or wheat;

- (e) A QR code that when scanned links the viewer to COA testing results conducted under this chapter. A QR code that does not link to the landing page designated by the testing laboratory as registered with the department shall be considered invalid and a violation of this rule;
 - (f) Serving size of the product and the total number of servings per package of the product (applicable only for ingestible HDC products); and,
 - (g) The numerical count, net weight, or net volume of the product per package. Net weight and net volume must be reported in both standard and metric measurements.
- (2) Warning statements. HDC product manufacturers must include the following warning statement(s), printed in at least six-point, easily legible font on the label panel of associated HDC products, and shall be conspicuous and in distinct contrast (e.g. by typography, layout, color, or embossing) to other information on the package.
- (a) For all HDC products.
 - 1. "Warning: Keep out of reach of children. Must be 21 or older to possess or consume. May be harmful to those who are pregnant or breastfeeding. May impair ability to drive or operate machinery. May contain unidentified substances that are harmful or toxic. This product is not approved by FDA for cure, mitigation, treatment, or prevention of any disease."
 - 2. The word "Warning" must be printed in bold font, all capital letters.
 - (b) Additional warning statement for inhalable HDC products.
 - 1. "Warning: Inhalation of cannabis smoke has been associated with lung injury."
 - 2. The word "Warning" must be printed in bold font, all capital letters.
- (3) A person shall not manufacture or distribute any HDC product labeled as a dietary supplement.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.07 Transportation.

- (1) In addition to transportation requirements under the Act, HDC supplier licensees must make immediately available upon request COAs for any HDC product, including raw product, that is transported in commerce.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.08 Records.

- (1) For each batch of HDC product manufactured or distributed, HDC supplier licensees shall maintain the following for two years:
 - (a) COAs, copies of which shall be submitted to all immediate downstream purchasers of the product;
 - (b) A current copy of safety data sheets for all solvents used in manufacturing the HDC product; and,
 - (c) Invoices and bills of lading for all HDC product distribution conducted by the HDC supplier licensee.
- (2) For any HDC product rendered unusable or disposed pursuant to this chapter, HDC supplier licensees must maintain documentation of the following for two years following disposal:

- (a) Date(s) and manner(s) in which the product was rendered unusable and disposed;
- (b) Batch number; and,
- (c) Total volume of product that was disposed.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.09 Inspections.

- (1) **Scope.** The department may enter any licensed premises or conveyance during normal business hours for purposes of inspecting and sampling any cannabis, HDC product, product lists and labels, or other material and copying records necessary to determine compliance with the Act and this chapter.
- (2) **Frequency.** The department may conduct inspections as often as necessary to determine compliance with the Act and this chapter.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.10 Violations.

- (1) In addition to other requirements of the Act and this chapter, persons subject to this chapter must:
 - (a) Maintain areas and vehicles where HDC products are manufactured or distributed so as to be readily accessible for inspection;
 - (b) Provide adequate lighting necessary for inspection of all HDC products manufactured or distributed;
 - (c) Provide full access to facilities, inventory, records, and invoices necessary to departmental inspection;
 - (d) Give full information as to the source of any cannabis or HDC product currently or previously held in their possession;
 - (e) Consent to sampling of all HDC product manufactured or distributed by the licensee; and,
 - (f) Consent to recall of all associated HDC product batches when subsequent testing of HDC product in commerce indicates a failure of testing requirements under this chapter, or a foodborne outbreak or other illness is causally linked by federal authorities or the department of health to particular HDC product batches.
- (2) In addition to other requirements of the Act and this chapter, persons subject to this chapter must not:
 - (a) Manufacture or distribute HDC products without first securing a license from the department;
 - (b) Manufacture or distribute HDC products that do not meet manufacturing and testing requirements under this chapter;
 - (c) Transport or allow transport of HDC products without a COA issued by a third-party laboratory registered with the department;
 - (d) Interfere with an authorized representative of the department in performance of their duties;
 - (e) Violate any federal or state quarantine of plants, regulated articles, or other material;
 - (f) Sell, offer for sale, move, or allow movement of any apparently infested material; or,

- (g) Violate any departmental order issued under the Act or this chapter, including but not limited to orders for embargo or destruction of HDC product.
- (3) Violation of any workplace safety or environmental protection standard enforced by state or federal authorities is grounds for denial of program inspection and denial or revocation of any license issued by the department.
- (4) A person is responsible for violations of the Act or this chapter when committed by either the person or their agent.
- (5) Each violation of the Act or this chapter is grounds for issuance of embargo or destruction orders for any HDC product held by the violator or their agent, denial or revocation of any license or registration issued by the department, actions for injunction, imposition of civil penalties, and/or pursuit of criminal charges against the violator.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

CHAPTER 0080-10-03
RETAIL SALE OF HEMP-DERIVED CANNABINOID PRODUCTS

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0080-10-03-.01 Scope.

- (1) This chapter applies to any person who sells or offers to sell at retail any HDC product.
- (2) Persons who sell or offer to sell HDC products are subject to all requirements and regulatory authority applicable to the type of product sold, including but not limited to regulation under the Act and this chapter, and T.C.A. title 53, chapter 8, and title 39, chapter 17, part 15, and Tenn. Comp. R. & Regs. 0080-04-09. HDC products are excluded from all regulatory exemptions including but not limited to those afforded under the Food Freedom Act at T.C.A. § 53-1-118.
- (3) The department shall not refund fees for early termination of any license issued under this chapter.
- (4) Licenses under this chapter are not transferable from person to person or location to location.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.02 Definitions.

- (1) Terms in this chapter share those meanings of terms in T.C.A. title 43, chapter 27, parts 1 and 2.
- (2) When used in this chapter, unless the context requires otherwise:
 - (a) Act means T.C.A. § 43-27-201, et seq.;
 - (b) Batch, in addition to its definition under the Act, means an individual production lot of manufactured product;
 - (c) Business for which entry is limited to persons twenty-one (21) years of age or older means a legal establishment that affirmatively restricts access to its buildings or facilities at all times to persons who are twenty-one (21) years of age or older by requiring each person who attempts to gain entry to those buildings or facilities to submit for inspection an acceptable form of identification demonstrating by proof of age that the person is twenty-one (21) years of age or older;
 - (d) Cannabis means any plant or any part of a plant of the genera Cannabis and includes hemp;
 - (e) Certificate of Analysis (COA) means a written document from a laboratory approved by the department for testing samples under Tenn. Comp R. & Regs. 0080-10-02, and which communicates the results of those tests performed;
 - (f) Commerce or similar words mean involving payment for an item or payment for services incident to production of the item;
 - (g) Counter means a physical barrier that necessitates the seller's assistance in order to access product prior to its sale;
 - (h) Food means articles used for food or drink for humans or other animals; chewing gum; and articles used for components of food or drink or chewing gum;

- (i) HDC product means a product that contains or that is labeled to contain a hemp-derived cannabinoid and that is produced, marketed, or otherwise intended to be consumed orally ("ingestible"), inhaled ("inhalable"), or absorbed through the skin ("transdermal"). HDC products also include intermediate products intended for subsequent use as a component in a later finished ingestible, inhalable, or transdermal HDC product. Topical products mean products solely intended to be applied to the skin or hair and are not intended to be absorbed through transdermal application; topical products are not included within the definition of HDC product even if they contain a hemp-derived cannabinoid;
- (j) In a manner similarly reliable to post-decarboxylation means a manner sufficient to quantify by percentage the resulting THC of a sample if carboxyl groups are removed from all molecules containing THC within the sample. A manner similarly reliable to post-decarboxylation is shown by a post-decarboxylation THC value equal to the sum of the sample's THC percentage plus the product of its delta-9 tetrahydrocannabinolic acid (THCa) percentage and 0.877;
- (k) Manufacture, in addition to its definition under the Act, includes any action that transforms cannabis physically or chemically beyond its principal form as a farm product or filters, cleans, or trims that product to isolate any of its particular parts or components;
- (l) Move, transport, or similar words mean to relocate in any manner an item from one real property to another;
- (m) Person means an individual, partnership, corporation, or any other form of legal entity;
- (n) Proof of age means a driver license or other generally accepted means of identification that describes the individual, indicates his or her age, contains a photograph or other likeness of the individual, and appears on its face to be valid. In the case of sales by mail or online orders, proof of age is satisfied by a written, affirmative statement from the addressee that he or she is at least 21 years of age; and,
- (o) Sample means to take material or the material taken from a location where HDC products are sold or offered for sale at retail.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.03 License Application and Fees.

- (1) An HDC retail license is required per person per location for any person who sells or offers for sale an HDC product at retail. Licensed locations must be fixed address facilities but may include temporary locations such as fairs, flea markets, and farmers markets, provided that license fees for temporary locations cannot be prorated on the basis of temporary use. HDC retail licenses are not required for common carriers and delivery services, provided the carrier or service provider is facilitating just-in-time order transactions and is not carrying existing inventory by which to facilitate prospective sales.
- (2) Applicants for an HDC retail license must submit required information on forms provided by the department, which may include:
 - (a) Name of the applicant;
 - (b) Date of birth of any applicant who is an individual or a partner in a general partnership;
 - (c) Proof of registration in its state of incorporation for any applicant that is a formalized business entity;
 - (d) Proof of registration with the Tennessee Department of Revenue;
 - (e) Contact information for applicant, to include name of person legally responsible for applicant's operations, telephone number, email address, and address of principal place of business;

- (f) Address of location to be licensed;
 - (g) Identification of nearest school serving any grades K-12 and the distance from that school to the location to be licensed, in feet measured as a straight line along the shortest route;
 - (h) A nationwide criminal background check, facilitated through the Tennessee Bureau of Investigation, for the person identified as legally responsible for applicant's operations; and,
 - (i) Other information as required by the department.
- (3) Licensees must notify the department of any changes to the contents of their application on file within 30 days after the change takes place, including any change of contact information;
 - (4) Payment of an annual HDC retail license fee of \$250 shall be due upon approval of an application and must be paid in full prior to a license being issued. The license fee may be prorated in the initial year of licensure at the rate of \$25 per each full calendar month remaining in the license period, provided the total fee not exceed \$250. License fees shall not be prorated for any person licensed in the previous licensure year. The HDC retail license fee is waived for any person who also holds an HDC supplier license.
 - (5) HDC retail licenses expire on June 30 of the licensing cycle for which they are issued. Applicants for renewal must submit to the department on or before the following July 1 the HDC retail license fee and an updated criminal background check for the licensee.
 - (6) The department may deny any application for licensure that is not completed in full or that is not completed in conformance with this rule.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.04 Manner of Sale.

- (1) HDC retail licensees shall not sell an HDC product to a purchaser unless the purchaser has provided proof of age showing the purchaser to be at least 21 years of age.
- (2) HDC retail licensees may not offer HDC products for sale through use of vending machines or unstaffed kiosks.
- (3) HDC retail licensees may offer HDC products for sale only if the product is maintained behind the counter, i.e. in a location or manner such that physical assistance from the licensee is necessary in order for the customer to access the product. Behind the counter restrictions do not apply to retail licensees that are businesses for which entry is limited to persons twenty-one (21) years of age or older.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.05 Records.

- (1) For each HDC product offered for sale, HDC retail licensees shall maintain for two years and readily produce upon request:
 - (a) COAs received from their immediate upstream seller of the product; and,
 - (b) Invoices and bills of lading for the licensee's purchase or receipt of the product.
- (2) For any HDC product rendered unusable or disposed pursuant to this chapter, HDC retail licensees must maintain documentation of the following for two years following disposal:
 - (a) Date(s) and manner(s) in which the product was rendered unusable or disposed;

- (b) Batch number; and,
- (c) Total volume of product that was disposed.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-03-.06 Inspections and Testing.

- (1) **Scope.** The department may enter any licensed premises during normal business hours for purposes of inspecting and sampling any cannabis, HDC product, or other material, examining and copying records, and conducting random checks for manner of sale of HDC products as necessary to determine compliance with the Act and this chapter.
- (2) **Frequency.** The department may conduct inspections as often as necessary to determine compliance with the Act and this chapter.
- (3) **Product testing.**
 - (a) Upon purchase of HDC products offered for retail sale, the department may sample and test or cause to be sampled and tested the product for compliance with the Act and Tenn. Comp. R. & Regs. 0080-10-02-.04 and .05. Any test result exceeding allowable limits is grounds for embargo, recall, remediation pursuant to provisions applicable under Tenn. Comp. R. & Regs. 0080-10-02-.05, and/or destruction of the batch of HDC product represented by the sample.
 - (b) A sample collected and tested according to departmental protocols is deemed representative of the HDC product batch from which the sample was obtained.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.07 Violations.

- (1) In addition to other requirements of the Act and this chapter, persons subject to this chapter must:
 - (a) Maintain areas where HDC products are sold, offered for sale, or held for inventory so as to be readily accessible for inspection;
 - (b) Provide adequate lighting necessary for inspection of all HDC products offered or held for retail sale;
 - (c) Provide full access to facilities, inventory, records, and invoices necessary to departmental inspection;
 - (d) Give full information as to the source of any cannabis or HDC product currently or previously held in their possession during the previous two years;
 - (e) Consent to sampling of all HDC product offered or held for retail sale by the licensee; and,
 - (f) Consent to recall of all associated HDC product batches when testing of the product indicates a failure under Tenn. Comp. R. & Regs. 0080-10-02-.04 or .05 or a foodborne outbreak or other illness is causally linked by federal authorities or the department of health to particular HDC product batches.
- (2) In addition to other requirements of the Act and this chapter, persons subject to this chapter must not:
 - (a) Sell or offer for sale HDC products at retail without first securing a license from the department;

- (b) Sell or offer for sale HDC products at retail, including raw products, unless they meet manufacturing, labeling, and testing requirements under Tenn. Comp. R. & Regs. 0080-10-02;
 - (c) Interfere with an authorized representative of the department in performance of their duties;
 - (d) Violate any federal or state quarantine of plants, regulated articles, or other material; or,
 - (e) Violate any departmental order issued under the Act or this chapter, including but not limited to orders to hold or dispose of HDC product.
- (3) Violation of any workplace safety or environmental protection standard enforced by state or federal authorities is grounds for denial of program inspection and denial or revocation of any license issued by the department.
- (4) A person is responsible for violations of the Act or this chapter when committed by either the person or their agent.
- (5) Each violation of the Act or this chapter is grounds for issuance of hold or destruction orders for any HDC product held by the violator or their agent, denial or revocation of any license or registration issued by the department, actions for injunction, imposition of civil penalties, and/or pursuit of criminal charges against the violator.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

Amendments

Chapter 0080-04-09 Retail Food Store Sanitation

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0080-04-09-.04 Equipment, Utensils, and Linens	0080-04-09-.08 Compliance and Enforcement

Rule 0080-04-09-.01 Definitions is amended by inserting the following as a newly captioned paragraph (56); renumbering all subsequent paragraphs of the rule such that the rule contains 122 paragraphs; correcting captioning of newly numbered subparagraph 98(b) such that its parts are numbered 1-5 and not (i)-(v); and correcting caption reference of newly numbered subparagraph (111)(b) such that it references 0080-04-09-.04(1)(a) and not 0080-04-09-.04-(1)(a).

(56) "Hemp-derived cannabinoid" has the same meaning as provided under T.C.A. § 43-27-202.

(98) Retail food store.

(b) "Retail food store" does not include:

1. Establishments that handle only prepackaged, non-time/temperature control for safety food, as defined by department rules and regulations;
2. Roadside markets that offer only fresh fruits and fresh vegetables;
3. Food and beverage vending machines;
4. Food service establishments not located within a retail food store; or
5. A person who makes infrequent, casual sales of honey or who packs or sells less than one hundred fifty gallons (150 gals.) of honey per year.

(111) Single-Use Articles.

(b) "Single-use articles" includes items such as wax paper, butcher paper, plastic wrap, formed aluminum food containers, jars, plastic tubs or buckets, bread wrappers, pickle barrels, ketchup bottles, and number 10 cans which do not meet the materials, durability, strength, and cleanability specifications under 0080-04-09-.04(1)(a), (2)(a), (b) for multiuse utensils.

Authority: T.C.A. §§ 4-3-203 and 53-8-104.

Subparagraph 0080-04-09-.03(2)(a) Sources is amended by adding the following as a new part.

8. Hemp. In addition to requirements under this chapter of rules, any person who sells or offers for sale at retail any food product labeled to contain or containing a hemp-derived cannabinoid shall also comply with regulations under Tenn. R. & Regs. 0080-10-03.

Authority: T.C.A. §§ 4-3-203 and 53-8-104.

Chapter 0080-04-13 Food Manufacturers and Warehouses

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0080-04-13-.04 Certificates of Free Sale	0080-04-13-.07 Repealed

Paragraph 0080-04-13-.02(2) is amended by deleting subparagraphs (f)-(g) and inserting the following language:

- (f) Food means those articles as defined under the Act and includes dietary supplements;
- (g) Hemp-derived cannabinoid has the same meaning as provided under T.C.A. § 43-27-202; and,
- (h) Potentially hazardous food has the same meaning as T.C.A. § 53-1-104(1)(D).

Authority: T.C.A. §§ 4-3-203 and 53-1-202.

Rule 0080-04-13-.05 Standards for Manufacturing and Processing is amended by adding the following as a new paragraph.

- (6) Hemp. In addition to requirements under this chapter of rules, any person who manufactures, processes, packs, holds, or transports for introduction in commerce any food product labeled to contain or containing a hemp-derived cannabinoid shall also comply with regulations under Tenn. R. & Regs. 0080-10-02.

Authority: T.C.A. §§ 4-3-203 and 53-1-202.

Repeal

Chapter 0080-06-28
Hemp

Chapter 0080-06-28 Hemp is repealed in its entirety.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

* If a roll-call vote was necessary, the vote by the Agency on these rulemaking hearing rules was as follows:

Board Member	Aye	No	Abstain	Absent	Signature (if required)

I certify that this is an accurate and complete copy of rulemaking hearing rules, lawfully promulgated and adopted by the Department of Agriculture (board/commission/other authority) on 09/16/2024, and is in compliance with the provisions of T.C.A. § 4-5-222.

I further certify the following:

Notice of Rulemaking Hearing filed with the Department of State on: 12/14/2023

Rulemaking Hearing(s) Conducted on: (add more dates). 02/06/2024

Date: 09/26/2024

Signature: 

Name of Officer: Charlie Hatcher, D.V.M.

Title of Officer: Commissioner

Agency/Board/Commission: Department of Agriculture

Rule Chapter Number(s): 0080-04-09; 0080-04-13; 0080-06-28; 0080-10-01; 0080-10-02; 0080-10-03

All rulemaking hearing rules provided for herein have been examined by the Attorney General and Reporter of the State of Tennessee and are approved as to legality pursuant to the provisions of the Administrative Procedures Act, Tennessee Code Annotated, Title 4, Chapter 5.


Jonathan Skrmetti
Attorney General and Reporter

Sept. 27, 2024

Date

Department of State Use Only

Filed with the Department of State on: 9/27/2024

Effective on: 12/26/2024

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Public Hearing Comments

The Department of Agriculture held a public hearing on February 6, 2024. Jay Miller served as hearing officer for the hearing regarding chapters 0080-04-09 Retail Food Store Sanitation, 0080-04-13 Food Manufacturers and Warehouses, 0080-06-28 Hemp, 0080-10-01 Hemp Producers, 0080-10-02 Manufacturing and Distribution of Hemp-derived Cannabinoid Products, and 0080-10-03 Retail Sale of Hemp-derived Cannabinoid Products.

The Department received at hearing both oral and written comments regarding these rules. The Department also received oral comments on March 4, 2024, pursuant to a request of the Tennessee Grower's Coalition under T.C.A. § 4-5-204(c), and the Department received written comments regarding the rules between December 10, 2023, and February 9, 2024. In total the Department received 3,314 submissions from approximately 2,535 commenters. Thus, more than 24% of the submissions may have originated from repeat commenters. Approximately 76% of the submissions were presented using one or more template letters and petitions circulated by the public. Within the submissions received, commenters shared more than 19,000 comments, concerns, questions, or feedback regarding the rules, as further detailed in the attached spreadsheet of summarized comments.

All comments received at hearing and during the comment period have been summarized and included for response in accordance with T.C.A. § 4-5-222 and Tenn. Comp. R. & Regs. 1360-01-02-.05. The Department notes that various comments were submitted by people across the country, e.g., out-of-state businesses that ship product into Tennessee and citizens of neighboring states that report shopping in Tennessee for products affected by these rules. Other comments were submitted by persons admitting to be minors. The Department is not otherwise able to verify in all instances a commenter's residency, age, or identity but nonetheless has not excluded any comments based on those factors. The Department notes, however and consequently, that responses to comments are being provided to an unknown number of comments that originated from persons who are not residents of this state and/or are not an age of majority.

Also, more than 100 additional written submissions were received after close of the publicly noticed comment period on February 9, 2024, and prior to filing of this final rule packet. Those comments received after February 9, 2024, are not included in the attached spreadsheet of summarized comments, but the Department notes that all such comments were submitted using one of several template letters described above, the substance of which are included in this summary and response section.

Stemming from comments and industry feedback, the Department has made various changes to the rules since originally noticing them for public hearing and has incorporated into the rules nearly all suggestions submitted by industry stakeholders for improvement of the rules' effectiveness, efficiency, and practicality in regulating hemp-derived cannabinoid products. The Department acknowledges, however, that the vast majority of comments received are in opposition to the rules and are based in opposition to one specific item industry requested but that was not changed, which is for the Department to forego limits on THCa in hemp-derived cannabinoid products.

The Department appreciates all comments received and persons' engagement to make comments as part of the rulemaking process for betterment of the rules.

Comments received are summarized below along with the Department's response:

Comment: All forms of cannabis, including marijuana and hemp-derived cannabinoids, should be legal for consumption in Tennessee.

Response: The Department notes that a significant number of comments in this area confuse current availability of THCa products in the market as sanctioned by a current state marijuana program, which does not exist.

Others expressly indicate that the products are the state's closest alternative to a legalized marijuana program. The Department understands that THCa converts to THC through the decarboxylation process (e.g., when subjected to heat through smokable flower etc.), and that this conversion induces for the user the same or similar effects to marijuana.

The authority delegated to the Department for promulgation of these rules extends to hemp, hemp concentrate, and HDC products, as they are defined at Tennessee Code Annotated §§ 43-27-101 and 201, et seq.—none of which are intended to be or to approximate marijuana. The legislature, not the Department, retains authority to codify the legality or illegality of cannabis and cannabis products; the Department does not have authority to legalize those products through rulemaking. The Department declines to make this change in the rules.

Commenters also offered the following specific ideas or points regarding this subject:

Comment: Approximately 34 to 40+ other states have legalized cannabis programs of some sort, either medical or recreational.

Response: As of June 2024, according to the National Conference of State Legislatures, 38 states have either a comprehensive medical cannabis program or an adult/medical use regulated cannabis program. Tennessee is not one of the 38, and the Department cannot legalize through rulemaking that which is not legal in state statute.

Comment: States that offer legalized marijuana programs benefit financially from marijuana markets.

Response: The Department notes that various states have implemented tax schedules/projections related to legalized marijuana programs and that those revenues may add to those states' tax bases. See e.g., <https://cdor.colorado.gov/data-and-reports/marijuana-data/marijuana-tax-reports>. However, the Department does not opine on the stability of those revenues or whether they are sufficient to meet regulatory needs and public health effects of having a state marijuana program. Most central to this comment though, marijuana is not legal in Tennessee, and the Department cannot legalize marijuana through rulemaking.

Comment: Not legalizing marijuana is a waste of public tax dollars, presumably either as to enforcement and/or regulation of lesser THC alternatives like hemp.

Response: The Department expects policy concerns re tax dollars and their use for enforcement and regulation of hemp and hemp products were considered by the legislature during passage of laws that authorize this rulemaking. The Department stands committed to administer those laws as it was charged in passage of T.C.A. §§ 43-27-101 and 201, et seq.

Comment: THC is legal at the federal level and therefore there should not be limits on THC and THCa content of hemp products.

Response: Under the federal Controlled Substances Act, tetrahydrocannabinols in hemp are

exempted from the federal Schedule I controlled substances list. However, that exemption does not apply to cannabis with a THC concentration greater than 0.3% on a dry weight basis. State law conforms to the federal definition of hemp and exemption of hemp from the state-controlled substances act (i.e., the TN Drug Control Act). Consequently, limits for THC and THCa are applicable to hemp products.

Comment: Tennessee should legalize marijuana for medical applications.

Response: The legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana through rulemaking, even for medical use. The Department declines to make this change in the rules.

Comment: Most consumers support legalizing marijuana.

Response: The Department is aware of various polls and/or reports of polls indicating Americans' support for or against legalization of marijuana. However, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment: The potential effects of legalized marijuana are outweighed by the impact of purchasing and consuming illegal marijuana.

Response: It is assumed from this comment that commenters are supporting a policy consideration that the negative effects of legalizing marijuana are outweighed by positive benefits of protecting consumers from dangers associated with purchasing marijuana from illegal sources. The Department expects that public health considerations for or against legalization of marijuana were considered by the legislature during passage of laws that authorize this rulemaking. Regardless, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment(s):

- Hemp-derived cannabinoid regulations should follow the same scheme as alcohol and tobacco, both of which are more harmful to Tennesseans than hemp-derived products.
- Regulating the hemp industry in the same way as alcohol is a commonsense solution and ensures all products are safe and enjoyable to consumers.

Response: The Department expects that whether and to what degree regulation of HDCs should mirror regulatory schemes associated with alcohol and tobacco were considered by the legislature during passage of laws that authorize this rulemaking. In promulgating these rules, the Department is serving to administer T.C.A. §§ 43-27-101 and 201, et seq., and its regulation of hemp and HDC products as set out by the Tennessee legislature. The Department notes, however, that the HDC law serves to regulate availability of HDCs according to, among other things: consumer age restrictions, licensing requirements, retail location proximity to schools, and packaging guidelines—all of which also apply to alcohol and/or tobacco.

To the extent this comment supports legalization of high THC products precluded by the HDC law simply because alcohol and tobacco are legal products under regulation, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment: Instead of restricting products, the Department should raise allowable levels of THC to 5-10%.

Response: The amount of THC allowed in hemp and HDC finished products is statutorily prescribed under T.C.A. §§ 43-27-101 and 43-27-201, et seq., as 0.3%, when tested in a manner similarly reliable to post-decarboxylation. The Department is not authorized to raise the allowable limit by rule in contravention of those statutes. The Department declines to make this change in the rules.

Comment: Medical and recreational marijuana should be legalized because those products are safer than hemp-derived cannabinoid products.

Response: The Department is aware that production of various HDC products may entail use of potentially harmful solvents or other chemicals. See e.g., <https://www.fda.gov/consumers/consumer-updates/5-things-know-about-delta-8-tetrahydrocannabinol-delta-8-thc>. The Department is also aware that use of dangerous chemicals in HDC products is a driving factor in the legislature's decision to pass the HDC law to bolster consumer protection. To that end, the Department has promulgated these rules in an effort to establish reasonable tolerances or exclusion of various chemicals from products available in the marketplace.

The Department is also aware of reports from industry that the rules as promulgated may extinguish 70-80% of the market in smokable/inhalable products, e.g., flower that is not otherwise exposed to solvents or harmful chemicals. If that forecast happens, the Department expects the void in the marketplace may actually cause a rise in consumption of other HDC products that are produced through use of potentially harmful solvents or other chemicals.

Ultimately though, and regardless of HDC safety, marijuana is not legal in Tennessee, and the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment: Restricting THCa sales removes the market alternative most closely resembling a legalized marijuana program in Tennessee.

Response: The Department understands that THCa converts to THC when subjected to heat and that this conversion induces for the user the same or similar effects to marijuana. Restrictions placed on HDC products are dictated by the law passed by the state legislature. Pursuant to T.C.A. § 43-27-207 passed by the legislature, the Department is required to test products for THC concentrations in a manner similarly reliable to post-decarboxylation, which captures the conversion of THCa to THC.

The Department also presumes the legislature was aware that passage of this enabling law and its restriction of HDCs could have the effect of removing various products from the marketplace.

Comment: Maintaining the illegality of marijuana increases crime in Tennessee.

Response: The Department understands that legalizing any otherwise criminal behavior may statistically lower crime incidents directly related to the behavior. However, the Department does not opine on crime rates for other crimes that may occur indirectly or incidentally to the behavior. Regardless, whether the policy benefits of legalizing marijuana outweigh its negative effects is

appropriate for legislative consideration re the subject. And ultimately, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment: As proposed, the rules and their limits on THCa, by application of a “total THC” testing standard, directly conflict with T.C.A. § 43-27-201, et seq.

Response: The Department disagrees.

T.C.A. § 43-27-207 requires that Departmental testing methods of HDC products employ liquid chromatography tandem mass spectrometry (LC-MS/MS) in a manner similarly reliable to post-decarboxylation—a chemical process which removes carboxyl groups from molecules and effectively converts THCa into THC. To do so, a “total THC” testing standard is required. When taken alone, LC-MS/MS results differentiate between THC and THCa such that if a “total THC” standard were not accounted for, the results would not be consistent with a manner similarly reliable to post-decarboxylation and the testing method would then be in violation of the statute.

In considering some of the comments received on this subject, the Department has removed from these rules the term “total THC” to better align the rules with specific language and direction of the legislature under the statute. The Department has replaced it with a definition for “a manner similarly reliable to post-decarboxylation” to account for the conversion of THCa to THC during decarboxylation. This definition allows the Department to fulfill both statutory requirements, i.e. using LC-MS/MS to test HDC products and doing so in a manner that is similarly reliable to post-decarboxylation.

Also included under this general summary, various commenters offered the following specific ideas or points regarding the comment:

Comment(s):

- As proposed, the rules and their limits on THCa conflict with the legislative intent behind T.C.A. § 43-27-201, et seq. The Legislature intended for this law to create a safe and scalable market for hemp products and to promote cultivation and sale of THCa. The Tennessee hemp industry was actively involved in crafting this legislation and did not intend the legislation to authorize THCa standards proposed in the rules.
- THCa is clearly defined by the federal and state government as hemp. Please do not adopt total THC and get rid of the USDA THCa regulation.

Response: Absent clear legislative intent, the Department must give plain meaning to each word in T.C.A. § 43-27-201, et. seq. T.C.A. § 43-27-207 requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. It is presumed the General Assembly understood and contemplated this requirement, and its intent is clear—the Department must analyze samples of HDC products and determine the products’ post-decarboxylation THC concentrations. The Department has replaced use of “total THC” under the noticed set of rules with a definition for “in a manner similarly reliable to post- decarboxylation”, which is in line with the language of the statute but will still carry the effect of the previous ‘total THC’ testing standard.

The Department presumes the legislature was knowledgeable the language of the HDC product bill may require removal of currently allowed products from the marketplace.

Additionally, language of the statute that the Department must “employ liquid chromatography tandem mass spectrometry, in a manner similarly reliable to post-decarboxylation, to determine a cannabinoid profile of samples tested, including their THC concentrations,” is exactly the same language used by the legislature in crafting hemp testing requirements. (Compare T.C.A. § 43-27-105 and T.C.A. § 43-27-207.) Since 2021 and implementation of the state’s hemp program under required USDA federal regulations, 7 C.F.R. § 990, that language has been used in Tennessee to hold a ‘total THC’ requirement against Tennessee hemp growers. It is presumed the legislature was aware of the interpretation and application that had been given to this language two years prior to passage of the HDC product law, when the legislature opted to use again the very same language. Therefore, these rules’ application to suppliers and retailers in the same manner as the language is applied to growers is consistent with legislative intent.

The Department further notes that Tennessee hemp growers are already subject to a 'total THC' requirement pursuant to federal USDA requirements for the state's hemp plan. Thus, if THCa standards were not considered in the testing of HDC products, Tennessee growers would not be allowed to grow that which suppliers and retailers would be allowed to sell and distribute. The Department finds this outcome untenable, and for all these preceding reasons, declines to alter testing standards in these rules.

Comment(s):

- As proposed, the rules and their limits on THCa conflict with the regulatory scheme crafted in Tennessee Code. The rules reflect a misinterpretation of T.C.A. § 43-27-201, et seq.
- Clearly the General Assembly made a conscious decision not to include THCa in the 0.3% concentration. The problem with the proposed rule is that it does not comply with this legislative mandate. The rule uses total THC, which is defined as the sum of delta-9 THC and THCa, and that limit is ultra vires and therefore, unenforceable since it is inconsistent with the statute.
- The total THC standard conflicts with the statute that places a concentration limit on hemp-derived cannabinoids containing delta-9 based on their delta-9 content alone. The proposed rules attempt to expand the reach of the hemp statute by instituting a maximum allowable concentration of the sum of a product's delta-9 and THCa content.

Response: Absent clear legislative intent, the Department must give plain meaning to each word in T.C.A. § 43-27-201, et. seq. Under T.C.A. § 43-27-202, THCa is specifically listed in the definition of "hemp-derived cannabinoid." T.C.A. § 43-27-207 requires the Department to test products by liquid chromatography tandem mass spectrometry, in a manner similarly reliable to post-decarboxylation, to determine their THC concentrations.

The definition of post-decarboxylation can be found in federal law, under the federal Domestic Hemp Production Program (7 CFR § 990): "In the context of testing methodologies for THC concentration levels in hemp, means a value determined after the process of decarboxylation that determines the potential total delta-9 tetrahydrocannabinol content derived from the sum of the THC and THCa content and reported on a dry weight basis." This language has become industry-standard and describes the need for THCa to be considered when determining total potential delta-9-THC content. Simply stated, the inclusion of post-decarboxylation methodology requires testing laboratories to factor in potential contributions of acid forms when determining cannabinoid concentrations. THCa loses a carboxyl group, or "decarboxylates," to become delta-9-THC, which means that the concentration of THCa must be included when determining post-decarboxylated delta-9-THC content.

The amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. THCa is an HDC and this cannabinoid converts to delta-9 THC through the decarboxylation process. Hemp that contains greater than 0.3% THC is legally defined as marijuana, which is illegal federally and in Tennessee.

The Department is not authorized to raise the allowable limit of THC or alter the prescribed manner of testing by rule in contravention of its statutory authority.

Comment(s):

- As proposed, the rules and their limits on THCa conflict with the 2018 federal Farm Bill. Hemp product rules should align with federal guidelines and standards.
- The definition of total THC is consistent with the 2018 Farm Bill. Total THC is the standard testing protocol for determining the legality of cannabis products. THCa has been illegal for 5 years. The definition of total THC only enforces that.

- THCa sales are legal and comport with federal law.
- The rules are not what the 2018 Farm Bill meant to do for the people. The department of agriculture is trying to change something that has already been passed. Something that has already been ruled on.

Response: To gain USDA approval, the Department had to establish a program that comports with the 2018 Farm Bill and the subsequent regulations promulgated by the USDA. In 2021, USDA promulgated regulations to implement a total THC testing standard for hemp cultivators. Pursuant to USDA regulation, total THC is the value determined after the process of decarboxylation, or the application of a conversion factor if the testing methodology does not include decarboxylation, that expresses the potential total delta-9 THC content derived from the sum of the THC and THCa content and reported on a dry weight basis. For this reason, hemp growers/producers in Tennessee are subject to 0.3% total THC standard.

Similarly, the HDC products law requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. Intent of this language is clear: the Department must analyze samples of HDC products and determine the products' post-decarboxylation THC concentrations. The Department's definition of "in a manner similarly reliable to post-decarboxylation" is in line with the language of the state statute and conforms with federal requirements in the 2018 Farm Bill and USDA regulations.

Comment: As proposed, the rules and their limits on THCa exceed statutory authority delegated to the department for promulgation of rules.

Response: The amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. The HDC products law requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. THCa converts to delta-9 THC through the decarboxylation process. The Department is not authorized to raise the allowable limit on THC by rule in contravention of its statutory authority.

Additionally, the Department is authorized under T.C.A. § 43-27-211 to promulgate rules for effectuation of the HDC product law and has done so consistent with the statutory provisions detailed above.

Comment: Because cannabis is being decriminalized nationally, making the plant illegal is unconstitutional. As proposed, the rules are unconstitutional.

Response: The cannabis plant is regulated, not made illegal, under Tennessee state law and the Department's rules. The Department's charge in promulgating these rules is to give effect to the HDC law passed by the legislature. It is presumed that national trends may have been considered by the legislature prior to passage of this law.

Comment: As proposed, the rules redefine hemp inconsistent with state and federal statutory provisions centered on concentration of delta-9 tetrahydrocannabinol (THC). Specifically, state law defines hemp as the plant and all of its constituent parts, provided that the delta-9 THC concentration (only) be no more than 0.3%.

Response: The Department agrees hemp is defined in state—and also federal—law; the rules therefore do not contain a definition of hemp. Title 43, Chapter 27 of Tennessee law defines hemp as "the plant *cannabis sativa* L. and any part of that plant, including the seeds thereof and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or

not, with a delta-9 tetrahydrocannabinol (THC) concentration of not more than three-tenths of one percent (0.3%) on a dry weight basis." THCa is an acronym for tetrahydrocannabinolic acid, which is an acid derived from hemp and is therefore contained in the state law's definition of hemp. This definition is also consistent with the federal definition of hemp: "The plant species *Cannabis sativa* L. and any part of that plant, including the seeds thereof and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or not, with a total delta-9 tetrahydrocannabinol concentration of not more than 0.3 percent on a dry weight basis." See 7 CFR 990.1.

However, in determining whether an HDC product meets the 0.3% delta-9 concentration limit, the Department is statutorily required to test "in a manner similarly reliable to post-decarboxylation" to determine THC content in products. This testing method captures THCa as THCa converts to delta-9 THC through the decarboxylation process and therefore must be considered in determining a product's delta-9 content.

Comment(s):

- As proposed, the rules redefine the definition of THC. Because the rules as proposed conflict with the state law definition of hemp, the rules are invalid.
- In proposing rules with a total THC standard, the department exceeded its authority under current Tennessee law and reversed legislation passed by the Tennessee General Assembly.

Response: The Department interprets these comments as consistent with other comments contained in this document which assert the Department's rules redefine hemp and misinterpret the statute as to requirements for THCa. The Department's rules are consistent with state and federal definitions and allowances for THC in hemp and HDC products. Federal law, under 7 CFR § 990, requires a total THC testing standard for hemp production and for state hemp programs, with an acceptable limit of 0.3% or less THC on a dry weight basis. The state HDC products law requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis. The Department cannot by rule raise the allowable limit for THC in hemp or HDC products. That authority is vested in the state legislature.

Comment: T.C.A. § 43-27-201, et seq. imposes limitations on hemp-derived cannabinoid products only to a maximum of 0.3% delta-9 THC. THCa does not contain delta-9, and therefore THCa cannot be used in application of the 0.3% limit. THCa is listed in the statute as an allowable cannabinoid in hemp-derived cannabinoid products. The statute did not limit THCa or any other cannabinoid named in the statute. The Legislature was aware of THCa; had the Legislature intended to limit concentration of THCa it would have done so in the statute.

Response: Under T.C.A. § 43-27-207, the legislature requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. THCa is an HDC that converts to delta-9 THC through the decarboxylation process. The amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation, and THCa products are therefore subject to this 0.3% limit. The state legislature knew its state growers/producers statute employed a total THC testing standard and modeled the HDC law after the growers/producers law without carving out a clear exception re testing allowances or limitations for THCa.

Comment: As proposed, the rules implement a new definition of hemp. That definition is preempted by federal law. That definition is targeted solely at smokable products.

Response: The Department interprets this comment, in part, as consistent with other comments which assert the Department's rules redefine hemp and misinterpret the statute as to requirements

for THCa. As discussed elsewhere in this document, the Department is following both state and federal law re definitions and testing requirements for hemp and HDC products. The Department is aware that smokable (inhalable) HDC products are reportedly popular in Tennessee and will be affected by testing requirements. The testing requirements may affect the majority of smokable (inhalable) products not because the Department is targeting smokable (inhalable) products, but because of the language in the governing statutes. If a smokable (inhalable) product contains THC or THCa and is tested "in a manner similarly reliable to post-decarboxylation" as required by the law, the product will be captured by and subject to the 0.3% THC statutory limit.

Comment: Federal regulations already legalize hemp products, and those regulations are effective for creating a safe hemp products market. Tennessee should follow federal law re cannabis regulation. THCa is legal under federal law.

Response: The Department's rules are consistent with federal and state definitions and allowances for THCa in hemp and HDC products.

Federal law, under 7 CFR § 990, requires a total THC testing standard for hemp production and for state hemp programs, with an acceptable limit of 0.3% or less THC on a dry weight basis. Under this federal law, all cannabis that tests as having a THC concentration level of higher than 0.3 percent on a dry weight basis is defined as marijuana.

Tennessee law, under the state's HDC law, requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis. THCa converts to delta-9 THC through the decarboxylation process.

The Department cannot by rule raise the allowable limit for THC in hemp or HDC products. That authority is vested in the state legislature.

Comment: As proposed, the rules reflect a policy position of the state that is anti-cannabis.

Response: The Department's rules reflect the legislature's directives re regulating hemp and HDC products under T.C.A. §§ 43-27-101 and 201, et seq, and the rules are promulgated in accordance with this statutory authority. Absent clear legislative intent, the Department must give plain meaning to each word in these statutes. The Department expects policy concerns re laws and regulations governing cannabis were considered by the legislature during passage of laws that authorize this rulemaking. Regardless, the Department must adhere to its statutory authority and administer those laws as charged in passage of T.C.A. §§ 43-27-101 and 201, et seq.

Comment: As proposed, the rules incorporate a total THC testing standard that includes THCa and other cannabinoids that are non-psychoactive and which otherwise require considerable manipulation to become illegal THC variants.

Response: The Department interprets this comment as an assertion that while THCa will be captured by the rule's testing standard for THC, not all HDCs will be subject to THC testing limits, including many of the chemically derived and/or non-naturally occurring cannabinoids. The Department agrees. Under T.C.A. § 43-27-207, the legislature requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. The amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. Cannabinoids that do not convert to delta-9 THC when subjected to heat through the decarboxylation process will not be captured by this testing standard or affected by its THC limits.

The Department cannot by rule change the statute's testing requirements. The legislature holds this authority, not the Department.

Comment: Rules should regulate and/or authorize all forms of hemp flower because it is an agricultural product.

Response: The Department's rules for hemp growers/producers and for HDCs regulate hemp flower in accordance with applicable requirements under federal and state law.

Federal law, under 7 CFR § 990, requires a total THC testing standard for hemp production and for state hemp programs, with an acceptable limit of 0.3% or less THC on a dry weight basis. Hemp growers/producers in Tennessee are and have been subject to 0.3% total THC standard in order to be compliant with the state's hemp program.

T.C.A. § 43-27-201, et seq., requires the Department to determine THC concentrations of products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis.

Hemp flower under the Department's rules will remain legal so long as it comports with the above testing requirements; if, when tested, the THC exceeds 0.3%, then the hemp flower would be deemed violative. The Department therefore declines to authorize by rule "all forms of hemp flower" as commenter suggests.

Comment: If rules as written are designed to prevent marijuana being sold as THCa flower, those concerns are already resolved under T.C.A. § 43-27-201, et seq., that requires all goods have a point of origin and shipping manifest that verify authenticity from a USDA licensed hemp farm.

Response: The Department is charged under T.C.A. § 43-27-201, et seq., with administering the statute and promulgating rules for the statute's clarification and application. Under T.C.A. § 43-27-207, the legislature requires the Department to determine THC concentrations of products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis. The law does not carve out exceptions to the testing requirement based on where products originate or whether they have a shipping manifest verifying they were from a USDA licensed hemp farm. Under the Department's rules, therefore, all HDC products manufactured or offered for retail sale in Tennessee, including THCa flower, will be subject to this testing standard and required to have an allowable THC content of 0.3% or less, when tested in a manner similarly reliable to post-decarboxylation.

Comment: THCa is delta-9 THC (THC). Once decarboxylated it converts to THC. Using a total THC testing standard is appropriate because THC and THCa both achieve the same psychoactive end result for users; they are both effectively marijuana.

Response: The Department agrees THCa converts to delta-9 THC through the decarboxylation process. Under T.C.A. § 43-27-207, the legislature requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. The amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation, and THCa products are subject to this 0.3% limit. The Department presumes the state legislature knew the state growers/producers statute employed a total THC testing standard, and the Department notes that the state legislature modeled the HDC law after the growers/producers law without carving out a clear exception re testing allowances or limitations for THCa.

Comment: Inclusion of THCa testing in manufacturing and retail rules is appropriate because that is the standard that applies to hemp growers/producers.

Response: The Department agrees that different testing standards across producers and retailers for the same commodity are untenable. Under T.C.A. § 43-27-207, the legislature requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. THCa converts to delta-9 THC through the decarboxylation process. The amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. The Department presumes the state legislature knew the state growers/producers statute employed a total THC testing standard, and the Department notes the state legislature modeled the HDC products law after the growers/producers law without carving out a clear exception re testing allowances or limitations for THCa at any point in the chain of commerce, notwithstanding the pre-existing provision in T.C.A. § 43-27-103 which allows hemp concentrate with a THC concentration up to 5% to be transported from the location where the concentrate was produced to the location where the concentrate will be reconstituted into consumer products with a THC concentration of 0.3% or less.

Comment: THCa is illegal under federal law. As written, the rules are following federal law.

Response: The Department agrees its rules are consistent with federal definitions and allowances for THC in hemp and HDC products. Federal law, under 7 CFR § 990, requires a total THC testing standard for hemp production and for state hemp programs, with an acceptable limit of 0.3% or less THC on a dry weight basis.

T.C.A. § 43-27-201, et seq., requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis. Because post-decarboxylation testing accounts for THCa conversion to THC, THCa products may be affected by the 0.3% THC limit.

Comment: If it is the department's intent to ground THCa standards on a single line of T.C.A. § 43-27-201, et seq., regarding testing provisions, the position misinterprets the statute as a whole. The statute addresses delta-9 THC as the only marker key to the definition of hemp in multiple provisions, whereas the testing provision is only related to testing and labeling of products for general consumer protection and to alert consumers that the product is an intoxicant. It was the legislative intent of this statute to regulate hemp and THCa as intoxicants.

Response: Under T.C.A. § 43-27-207, the legislature requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. The amount of THC allowed in an HDC finished product is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. THCa is specifically included in the statutory definition of what is a hemp-derived cannabinoid. THCa converts to delta-9 THC when subjected to heat through the decarboxylation process. Products containing THCa are therefore subject to the statutory 0.3% limit. The Department presumes the state legislature knew the state growers/producers statute employed a total THC testing standard, and the Department notes the state legislature modeled the HDC products law after the growers/producers law without carving out a clear exception re testing allowances or limitations for THCa. Absent clear legislative intent, the Department must give plain meaning to each word in T.C.A. §§ 43-27-201, et. seq.

Comment(s):

- If there were litigation about this, the rule of stay in this matter, it's likely that the Department would not be able to back these rules enjoined by the Court. And that doesn't serve the industry, it doesn't serve the Department. Other federal courts across the country have already looked at this question. They have found that any attempt to redefine hemp outside of delta-9 has been preempted by federal law. We don't need that here. We need regulations that work around labeling, about keeping this out of the hands of children, that's what the industry wants to do and that's what we hope you will do throughout the process.

- The purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. The total THC standard is based on one single line of the statute and will result in a ban on all edible hemp products.

Response: Under T.C.A. § 43-27-207, the legislature requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed "in a manner similarly reliable to post-decarboxylation," and absent clear legislative intent, the Department must give plain meaning to each word in T.C.A. § 43-27-201, et seq. The Department is not authorized to raise the allowable limit by rule in contravention of those statutes. HDC products, whether smokable or edible, will still be allowed so long as they are compliant with this testing requirement.

Regarding regulations aimed at consumer safety and preventing access by children, the statute and the Department's rules require testing for safety (e.g., pesticides, heavy metals, etc.), labeling and manufacturing standards (e.g., products may not be formed in the shape of a cartoon character, etc.), child resistant packaging, and that products may not be sold or distributed to a person under the age of 21 years, among other provisions.

Comment: As proposed, the rules and their limits on THCa create an adverse impact on business. Industry reports that a total THC testing standard proposed in the rules is expected to erase 70% to 80% of annual revenues for affected products, approximately \$140 to \$320 million in lost sales of THCa flower, prerolls, and vapes.

Response: The Department does not have past licensing data or other information re Tennessee businesses in this product sector and cannot opine re the strength of industry's prediction on this topic.

The Department notes however industry's diligence in attempting to project a reliable forecast. Industry reports having reviewed financial data received through the Tennessee Department of Revenue since passage of the HDC products law; conducted regional town halls with cannabis businesses across the state; and polled members and leadership of professional organizations in retail and manufacturing sectors of the cannabis products industry, among other things. Based on these efforts, and the Department's understanding that THCa products are popular for their ability to deliver THC-induced intoxication to consumers, the Department does not dispute industry's prediction that these high THC and THCa products may be adversely affected by the rules. However, the Department remains hopeful that the market will adjust to minimize any adverse impacts to the industry as a whole that are created by this law and the corresponding rules.

Also included under this general summary various commenters offered the following specific ideas or points regarding this subject:

Comment(s):

- I would like to speak on the total THC -- or THC rule. The industry in Tennessee has grown substantially and I do believe that with this new rule, it would traumatize a lot of different businesses and industries.
- A small business owner employs 14 staff at his store in a struggling, rural Tennessee town. Without various cannabis product sales, he will have to eliminate one-third of his staff.
- There are people who are investing their entire savings, their entire lives into this industry and are now at a point where they can -- are afraid of losing their entire -- all of this work that we have all done together to create an industry for Tennessee.

These are three example comments where business owners predict and/or detail expected losses if the rules are promulgated as proposed with a total THC testing standard. Essentially, these comments submit that a total THC standard effectively creates a ban on various cannabis products, which will cause hundreds or thousands of established businesses and their owners to lose significant revenue, to slash both in-person and online sales; to cut good paying jobs often in rural and/or economically struggling towns; to lose significant investment and life savings; to default on business loans; to declare bankruptcy; and to close. Highest projection of businesses that will close, according to comments, is 2,000. Highest projection of jobs that will be lost, according to comments, is 6,500—all of which commenters contend hurts families, individuals, and households that own these businesses or that count on paychecks from these businesses, other businesses connected to these businesses, the overall well-being of the local community, the local economy, and the economy of the state.

Response:

It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this document re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC product laws regardless of their effect on products that will be precluded from the market or any associated financial impacts.

In support of this outcome, the Department notes that total THC testing is required under federal law and rule in order for Tennessee to have a state hemp production program. For this reason, the total THC standard has been effective for Tennessee hemp growers/producers since 2021—without significant prior objection from industry or the public. In passing the HDC products law, the Tennessee legislature chose identical testing language for the HDC products law as is used in the hemp producer program. The Department presumes the legislature was aware of the total THC standard when it selected that language and thereby intended an identical standard for HDC products as was and is being employed for hemp growers/producers in Tennessee. This understanding is also appropriate where the legislature has historically expressed intent for hemp legislation that related products do not intoxicate users and that hemp products be used for seed, fiber, and textiles as opposed to intoxicants. Moreover, the legislature expressly considered and accepted in session in 2023 that the HDC products law that authorizes this rulemaking, may potentially remove current products from the marketplace. Finally, and most importantly, where various of the products at issue are handled among growers/producers, manufacturers, and retailers, e.g., raw flower, these rules ensure that the same testing standards apply to the same commodity or product regardless of who possesses it. In other words, the state's federally required total THC testing standard for growers/producers also applies to suppliers and retailers who handle the same product. The Department presumes the state legislature knew the state growers/producers statute employed a total THC testing standard, and the Department notes the state legislature modeled the HDC products law after the growers/producers law without carving out a clear exception re testing allowances or limitations for THCa.

Comment(s):

- As proposed, the rules require a license for each employee of a hemp business. The cost of licensing each employee is overly burdensome and, in most cases, fatal to retail shops.
- Requirement for growers, manufacturers, distributors, and retailers to get a license based on a "per person per location" basis. Ambiguous and could be interpreted to mean that each individual employee at every distinct location must obtain a separate license. Recommend the rule be revised to specify that the "per person" aspect of licensing applies only to business entities rather than individual employees.
- Commenters ask that the department reconsider the rule requiring every employee to have a retail license. Licenses should be treated like liquor license – one main person is responsible for one license per location establishment and not per each person that touches or sells products.

Response: All licenses required by these rules are required "per person per location" for anyone engaging in regulated conduct, e.g., possessing rooted hemp, manufacturing, or distributing HDC products, etc.

The Department interprets and applies the phrase "per person per location" to the person who is ultimately responsible for the operation at issue and not agents of that person conducting the operation on the person's behalf. Consequently, licenses will be required for the business or owner covered by these rules and not each individual employee the business employs for purposes of carrying out its operations.

The phrase "per person per location" is used consistently by the Department in multiple licensing programs and not just those that regulate hemp or HDC product production. The historical practice of the Department is consistent on this point across program areas. "Per person per location" requires additional licenses only when multiple businesses are being operated at the same physical location and/or when one business operates across multiple physical locations. Because this interpretation and application meets the concerns expressed within these comments, the Department elects not to institute a change in the rules re "per person per location" license requirements.

Comment(s):

- The requirement for hemp-derived cannabinoid (HDC) product retailers to list on the license application all HDC products it offers for sale and their trade names is overly burdensome. The requirement to update the HDC product list with the department every 30 days is impossible.
- 0080-10-03-.03(2)(g). Mandates for retailers to submit and update monthly a comprehensive list of all HDC products they intend to sell imposes severe administrative burdens and reduces operational agility. Commenter recommends the Department amend the rules to require retailers to maintain a current list of HDC products that is available for inspection upon request. Would balance the need for regulatory oversight with the practical realities of retail operations, allowing businesses to adapt more readily to changing market conditions and consumer preferences.

Response: The Department agrees. Accordingly, submission of product lists and labels has been removed from all license application requirements under these rules. However, the rules have been amended to expressly include product lists and labels as materials the Department may require and review upon inspection.

Comment: Manufacturing requirements for HDC products (e.g., ingredient, solvent, and adulteration restrictions) at 0080-10-02-.04 are too specific with regard to inhalable products. Besides a total THC standard, the other regulatory standards within the rules as written are too burdensome and will cause approximately 20% of businesses in the industry to close. Should not a free-market capitalist society be allowed to choose what goes into these products and consumers decide whether they will consume them?

Response: Consistent feedback of other comments and review of Tennessee legislative history suggest that product ingredient tolerances and consumer safety were primary reasons for passage of the HDC products law and its requirement for rules re safety and toxicity of HDC products. Tolerances included under this rule were devised consistent with other states' requirements for similar products. The Department expects to monitor reports from other health agencies on the topic and may amend in the future use of various ingredients, solvents, etc.

State and federal regulations routinely restrict or require product makers across industries to use, limit, or exclude ingredients and components in the products they make. For these reasons, the Department declines to amend or eliminate the manufacturing standards suggested by the comment.

Comment: Businesses hurt by a total THC standard in the rules built themselves over the past five plus years on the expectation that the law for hemp products would be interpreted strictly as to delta-9 THC content. Those standards on which the businesses relied were originally put in place by the state.

Response:

It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department is required to carry forward these rules regardless of their effect on products that will be precluded from the market or any associated financial impacts.

Unfortunately, these businesses' expectation of what testing requirements would be under the HDC products law is not consistent with state and federal regulatory provisions for use of post-decarboxylation testing procedures. Those provisions have existed in federal law since 2018, state law since 2019, and state and federal program rules since 2021. Consequently, at the time of this

law's passage in 2023, both industry and the legislature were aware that reference to post-decarboxylation testing requirements in this law—as in other state and federal hemp program requirements—carried a total THC standard. Use of those same testing requirements was dictated by the HDC products law, which authorizes these rules and was supported by industry when it passed in 2023.

Comment: Businesses hurt by a total THC standard in the rules will relocate out-of-state to more cannabis-friendly states.

Response: The Department understands this concern and its gravity. It is never the Department's intention to negatively affect business. The Department notes, however, that relocation of a business for purpose of carrying products over 0.3% THC under post-decarboxylation testing methods may require those businesses to relocate to marijuana friendly states and not simply other hemp-only producing states, because post-decarboxylation testing is required for existence of both state and federal hemp programs.

The Department presumes that potential business loss was contemplated by the legislature during its passage of the laws that require testing in a manner similarly reliable to post-decarboxylation.

Comment(s):

- THCa flower and high content THCa products are profitable. Revenues stemming from high THCa sales demonstrate there is a market for this product, and the people should be allowed access to it.
- The proposed total THC standard will result in no hemp products that anyone actually wants to purchase.

Response: The Department considers these comments to be consistent with arguments in favor of legalizing marijuana and/or to allow prohibited products simply because they are profitable or popular. The Department cannot authorize by rule that which is prohibited by state statute. The Department declines to make this change in the rules.

Comment(s):

- Businesses are concerned that these rules empower regulators to conduct an unreasonable frequency of inspections and that product will be tested, seized, and destroyed without compensation.
- Commenters hope the department is able to regulate hemp-derived cannabinoids in a way that allows retailers some remedy when product is seized and tested.

Response: The Department notes that multiple agencies are authorized under the HDC products law to conduct various inspections of HDC product manufacturers and retailers. The Department responds to this comment only as to the Department's capacity to inspect and not that of other agencies authorized under the law to conduct inspections.

The Department conducts inspections of its licensees, across program areas, once every six months to three years depending on the type of product produced and its risk to public health if adulterated, etc. When necessary as a follow-up to a previous violation or in response to complaints received, the Department also conducts smaller scope inspections of licensees outside the normal frequency of routine inspections. Frequency of inspections may also be accelerated where a firm demonstrates a history of either chronic or egregious violations, but these instances are not representative of licensees as a whole.

In these rules testing of HDC products at retail require payment to the licensee for the product

tested.

Comment(s):

- As proposed, the rules constrict available forms of THC and THCa. Constricting available product lines threatens business.
- THCa flower, vapes, and concentrates are highly sought after and contribute significantly to the gross profits of over 190 Tennessee businesses.

Response: The Department presumes the state legislature was aware that passage of this law and its restriction of HDCs could remove various products from the marketplace.

The Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this document re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC product laws regardless of their effect on products that will be precluded from the market or any associated financial impacts.

Comment: Businesses affected by these rules include dispensaries that operate in multiple states. If Tennessee implements a total THC standard that other states do not employ for HDC products, interstate commerce is affected.

Response: Both Tennessee law and these rules comport with and follow the federal definition of hemp. Tennessee law does not place additional or different restrictions than the federal government on out-of-state businesses regarding the definition of hemp.

Comment: Similar hemp regulations were put in place in Colorado, and the net effect was for Colorado hemp producers to move out-of-state. The Colorado hemp industry is now defunct because of similar rules implemented there.

Response: It is assumed that this comment is specifically in reference to total THC testing standards. Total THC testing standards have been enforced against Tennessee growers/producers since 2021. Industry and growers/producers have reported to the Department that numbers of Tennessee hemp growers/producers are already greatly diminished prior to implementation of these rules; that inhalable THCa flower, etc. in Tennessee is actually coming from other states; and inhalable products are frequently marijuana characterized as hemp.

The Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC product laws regardless of their effect on products that will be precluded from the market or any associated financial impacts.

Comment: Hemp businesses are experts in the products they have for sale and can adequately advise consumers re THC and THCa content of those products. Therefore, regulation of the content of hemp products is unnecessary.

Response: The Department is charged by statute to administer regulation of HDC products consistent with T.C.A. §§ 43-27-101 and 201, et seq., including among other things regulation of those products for their content, potency, safety, and toxicity.

Comment(s):

- Job security and financial benefits of selling THCa are not enough to justify the damage that marijuana and THC drug addiction cause within communities.
- Comments in favor of THCa are doing so with a profit motive that disregards the real effects of drug addiction.
- The safety and wellbeing of people is more important than tax revenue and losing jobs.

Response: The Department expects that financial considerations and others, e.g., public health, criminal justice, enforcement resources, etc., were considered by the legislature during passage of laws that authorize this rulemaking.

Comment(s):

- New hemp laws are anti-small business. Rules should support entrepreneurship in the state. As written, the rules do not support economic opportunities for hemp products. As written, the rules and a total THC standard appear to be the department's direct attempt to shut down the entire Tennessee hemp industry.
- The proposed rules overreach the department's authority and make it impossible for small businesses to actually conduct business. The department has not paved a path for businesses to succeed under this program. The multimillion-dollar market would cease to exist within a year of the proposed rules being implemented. The rules will only serve giant conglomerates who are lobbying states like Tennessee to make laws that will crush small businesses. Killing small businesses is un-American.
- The hemp industry is just starting to grow legs and reach large swaths of the population. The number of sales are sure to rise as time goes on. Some commenters question whether the aim of the proposed rules is to kill the hemp industry or if it is an unintended consequence of the proposed rules.
- The rules were written as an ill-conceived solution to simplify the department's regulation of the hemp industry. The rules should be written to effectively regulate the burgeoning hemp industry.
- Rules "interpreted a piece of straightforward legislation in a brazen attempt to go against the legislative imperative and gut the program." Rules circumvent and distort the law. Rules create a system that is impossible to comply with and cannot be legally adhered to.

Response: Significant numbers of comments seem to confuse the legislature's role with respect to statutes and the Department's role in promulgation of rules. The Department does not pass state laws; that role is reserved to the legislature. The Department may only administer the statute and promulgate rules for the statute's clarification and application.

The Department makes every effort for rules not to impede business any more than is necessary to comport with the statute and to effectuate its purpose. In this rule set, the Department incorporated and even expanded upon almost all suggestions offered by industry for improvement of the rules and their effect on business. For example, the Department:

- Removed all previous movement permit requirements from the producer rules except for the applicable producer's license and certificate of analysis for the hemp being transported.
- Eliminated application requirements for submission of product lists and product labels for manufacturer/distributor and retailer licenses.
- Eliminated additional testing requirements in downstream commerce absent chemical or compositional change to an HDC input.

- Eliminated reserve sample requirements for third-party testing laboratories in manufacturer/distributor rules.
- Amended product label warning requirements for greater brevity and sizing flexibility.
- Eliminated movement restrictions against HDC retail licensees.

The one area where the Department did not incorporate industry recommendations was to allow for testing of HDC products in a manner inconsistent with statutory requirements and legislative intent. For reasons stated throughout this response section re that subject, the Department is unable to make that change in the rules.

The Department has worked with representatives of the Tennessee hemp industry through multiple statutory and regulatory changes since 2015 in effort to implement the legislature's directives and to put forward the least restrictive yet reasonably protective rules possible. The Department has explained to industry since 2019 that federal laws and regulations and now state laws are requiring total THC testing requirements for hemp and HDC products. The Department is promulgating these rules per its authority and legislative direction under T.C.A. §§ 43-27-101 and 43-27-201 et seq. The testing method and limit on THC content in HDC products are statutorily prescribed by the legislature under these laws. The Department is required and is committed to administering the hemp and HDC laws as directed by the legislature.

Comment: As written, testing requirements within the rules will price out small business from competing in the market at both the manufacturer and retail level.

Response: It is never the Department's intention to negatively affect business. Testing requirements under these rules have been reviewed on multiple occasions to target only that testing necessary to effectuate purposes of the HDC statute. The vast majority of comments received suggest the public strongly desires products that are regulated and tested for product safety. Given the nature of that interest and the legislative intent aimed at product safety from harmful chemicals, per batch testing for harmful components is necessary.

However, the Department recognizes that where manufacturing processes are not added to a product in commerce, these concerns do not apply. For that reason, the Department has amended the proposed rules to eliminate required testing of products in downstream commerce absent chemical or compositional changes in use of an HDC input to make the resulting product.

Comment: A total THC standard in the rules will criminalize businesses that carry THCa products.

Response: Rules promulgated by the Department apply for regulation of hemp and HDC products in commerce. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code. The Department expects that criminal enforcement considerations for or against a total THC testing standard were considered by the legislature during passage of the HDC products law.

Comment: Sellers and industry associations intend to file lawsuit(s) re validity of the rules if a total THC standard is implemented.

Response: The Department's aim in promulgating these rules is to comply with the directives of the legislature under T.C.A. §§ 43-27-101 and 201 et seq. and to administer the statutes for construction of a regulatory program for hemp and HDC products. The Department has made the Tennessee Attorney General's Office aware of this comment.

Comment: The Department should wait to implement these rules until a new federal Farm Bill is enacted (presumably in the event the Bill de-schedules marijuana from the federal controlled substances act).

Response: While the federal Farm Bill is historically enacted approximately every four years, the timing of its completion is never a certainty. For example, the current Farm Bill has been anticipated since 2022. Awaiting federal action is not a firm timetable for a state to take action on matters affecting it. Further, even supposing that a federal Farm Bill de-schedules marijuana, that action does not undo the state's controlled substances act, which may also apply.

Ultimately, the Department is charged by statute to administer the state's HDC law and promulgation of these rules is necessary to that end. If the legislature changes the current regulatory framework for hemp and HDC products, the Department stands ready to take action necessary for these rules to align with any new legal standards.

Comment(s):

- The Tennessee hemp industry, businesses, and their consumers are exhausted with an ever-changing regulatory landscape re legal compliance of cannabis products. The lack of regulatory reliability has already led businesses either to close or to move out-of-state.
- Hemp growers and retailers are exhausted and frustrated with the ever-changing regulatory landscape around hemp and hemp products.
- Tennessee hemp regulations change every year. Regulatory uncertainty hampers businesses and sets them up to fail.
- Tennessee needs to decide if it actually wants to support and grow a hemp industry or ban hemp all together. Businesses are exhausted with inconsistency within the regulatory landscape and will eventually close for lack of predictable regulations.

Response: It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet, the Department is required to administer the HDC products law.

Comment: A total THC standard not only adversely affects existing business but also stifles future investment, product innovation, and business expansion. With lesser regulation, the Tennessee hemp industry could grow bigger financial benefits in businesses, jobs, and tax revenue than it already does.

Response: It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC products law regardless of their effect on products that will be precluded from the market or any associated financial impacts.

Comment: As written, the rules will bring about a demise of the Tennessee hemp industry within a year, and the industry will be unable to rebound from the damage (presumably at all and even if the rules later change). The Department should continue regulatory standards as they currently apply to hemp products.

Response: It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC products laws regardless of their effect on products that will be precluded from the market or any associated financial impacts.

Comment: Allowance of high THCa products will allow the Tennessee hemp industry to thrive, which will spur tourism.

Response: It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC products laws regardless of their effect on products that will be precluded from the market or any associated financial impacts or effect on industries, including the tourism industry.

Comment: Some businesses are already holding on additional investment pending decision on the rules and how THC and THCa will be tested in cannabis products.

Response: It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC products laws regardless of their effect on products that will be precluded from the market or any associated financial impacts.

It is the Department's hope that implementation of the enabling law and these rules will bring about certainty and reliability in the market for both industry and consumers.

Comment: 20-25% of retailers will close when licensing requirement go into effect due to reluctance or inability to comply with licensing requirements.

Response: It is unclear from the comment which of the licensing requirements will foreclose this portion of the market. Nonetheless, the Department has made every effort to tailor license requirements to minimum requirements necessary to effectuate the purpose of the HDC law. The Department has also incorporated nearly every recommendation received from industry relative to improvement of these rules, including removal of product lists and product labels requirements as part of the application process.

Comment: As proposed, the rules and their limits on THCa create an adverse impact on Tennessee hemp growers/producers. Tennessee farmers should be allowed to grow THCa flower.

Response: The rules as promulgated do not have an adverse impact on Tennessee growers and producers because THCa limits have been applied to Tennessee growers through a total THC testing standard since 2021; consequently, these rules have no change as to Tennessee growers in that regard. Also, various changes for growers in these rules work to lessen some of their previous regulatory requirements. For example, the rules:

- Eliminate separate requirements for broker and propagator licenses re hemp cultivation; one license for hemp producers is all that is now required.
- Definition of growing area aligns with federal requirements to simplify expectations for varieties grown under the state hemp program.
- Remove redundant or commonly understood definitions to bring about greater brevity and clarity in the rules.
- Remove cross-references in the rule to more clearly identify the amount of applicable license and testing fees, etc.
- Remove requirements for movement permits for transportation of hemp. A copy of the producer's license and certificate of analysis for the applicable hemp is all that is now required.

The Department acknowledges that a total THC testing standard—even though not new to hemp growers—limits both the varieties of cannabis that growers may grow and growers' ability to profit from cannabis production. The Department is bound, however, by federal law and regulation under the 2018 Farm Bill and the USDA final rule for hemp production to apply total THC testing standards against growers in order to have a state-run hemp production program.

Also included under this general summary various commenters offered the following specific ideas or points regarding the comment:

Comment: Rules should create an exemption for CBD oil processors to purchase food grade ethanol without a "drink tax" because the additional costs of 190 proof denatured alcohol with 5% heptane or pentane compared to 200 proof food grade ethanol creates a barrier to organic, kosher, and natural methodology production of HDC products. The rules should also require that all cannabinoid products be derived from non-genetically modified plant sources because genetically modified (GMO) yeasts and algae are capable of producing cannabinoids, and if GMO production is allowed it will eliminate the agricultural role for production of hemp within cannabinoid industries.

Response: The Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer. Regarding creating an exemption by rule for CBD oil processors to purchase food grade ethanol without a "drink tax," the Department does not have rulemaking authority over taxes on or costs of products. As to commenter's suggestion to require by rule that cannabinoid products be derived from non-genetically modified plant sources, the HDC law defines "hemp-derived cannabinoid" as either a cannabinoid derived from hemp or a hemp-derived product, without reference to whether that hemp is genetically modified. For these reasons, the Department declines to adopt commenter's suggested changes to the rules.

Comment(s):

- Hemp is a versatile, low maintenance crop that can be grown easily and at world-class level in Tennessee. Allowing production, processing, and sale of THCa flower will benefit farmers financially, particularly those struggling to replace tobacco revenue.

- A total THC standard effectively creates a ban on hemp, which removes hemp as a diversified crop for farmers to grow and keeps Tennessee farmers from realizing its associated revenue. This loss exists both in current production as a loss and re future production as a missed opportunity.
- Hemp as an available commodity drives versatility of farmers and replaces commodities that are losing market presence, e.g. tobacco.

Response: The Department agrees that Tennessee provides rich soil and an attractive climate for hemp production, and that diversification of crop production is a key component for successful farming. The Department presumes the legislature considered the effects of the hemp and HDC product laws, during their passage, in relation to the versatility of cannabis as a commodity for Tennessee farmers.

However, and as discussed elsewhere in this document, total THC testing is required under federal law and rule in order for Tennessee to have a state hemp production program, and total THC requirements have been enforced against Tennessee growers since 2021. The Department notes that hemp production in states outside Tennessee is also subject to a total THC testing standard due to federal law and regulation.

Comment(s):

- Tennessee has already applied a total THC standard to its hemp farmers, which has caused a majority of Tennessee hemp growers to leave the industry, e.g., the licensing program for growers once boasted thousands of licensees but now accounts for only a few hundred.
- Tennessee hemp growers struggle to keep pace with growers in other states where a total THC standard is not enforced. If THCa sales are allowed at retail, it will leave Tennessee growers out of the industry because growers are not allowed to grow for THCa.
- Raw hemp product currently sold at retail in Tennessee (e.g., THCa flower) is not coming from Tennessee. Retailers are acquiring it out-of-state for sale in Tennessee. It is projected that less than 10% of smokeable hemp offered for sale in Tennessee is actually grown in Tennessee.
- Hemp production in Tennessee was originally brought about to help agriculture and farmers, not retail. Decisions made with respect to the rules should focus on fulfilling that purpose and not be made exclusively to assist retailers.
- Tennessee hemp producers do not support allowing hemp product manufacturers and retailers being allowed to sell high THCa products (e.g., flower) if growers/producers are not authorized to grow it. Hemp growers/producers intend to file lawsuit(s) re validity of the rules if THC testing standards are not uniform across growers and manufactures and retailers.
- A total THC standard will allow out-of-state hemp to flood the Tennessee market because local farmers will not be able to grow good hemp. When the department interpreted THCa as part of total THC for growers, the number of growers in the state dropped below 100 from 4,500. Now the industry looks to out-of-state growers for all THCa flower. All the department is doing is killing the local hemp market and preventing farmers from growing quality hemp.
- When the department interpreted THCa as part of a total THC standard the industry dropped from 4,500 hemp farmers to under 100. A total THC standard kills the industry.
- Either everyone involved in the Tennessee hemp industry should be subject to a total THC standard – growers, manufacturers, distributors, and retailers – or remove the standard for everyone. Without growers, there is no commodity.

Response: The Department agrees a total THC testing standard has been applied to Tennessee hemp farmers since 2021, as required by federal law to have a state-run hemp program, and that the volume of growers in the state hemp program has fallen dramatically since 2017. While total THC testing standards may account for some attrition in the program, the Department expects that other market factors also contributed, e.g., market saturation of available hemp production and underperforming demand for hemp fiber and textiles.

Since retail inspection of hemp sellers is not a historical element of the state hemp program, the Department does not have data and information necessary to opine re percentages of smokable flower at retail that is actually grown in Tennessee. However, given that (1) hemp growers are already accountable to a total THC testing standard; (2) the attractiveness of inhalable flower is that it delivers THC-induced intoxication to the consumer; and (3) THC-induced intoxication does not occur from products that pass a total THC testing standard—the Department agrees in principle that retail inhalable flower in Tennessee is unlikely to be coming from licensed Tennessee growers.

The Department notes that hemp production in states outside Tennessee is also subject to a total THC testing standard due to federal law and regulation.

The Department agrees that hemp production was designed with legislative intent to support agriculture in Tennessee, but also notes that its success is also dependent on the ability to move the commodity through market sales. Ultimately, to be viable as an industry hemp production should benefit all links in the commercial chain. More importantly, the Department agrees that different testing standards across producers and retailers for the same commodity are untenable. The Department presumes the state legislature knew the state growers/producers statute employed a total THC testing standard, and the Department notes the state legislature modeled the HDC products law after the growers/producers law without carving out a clear exception re testing allowances or limitations for THCa.

Comment: Tennessee does not apply a total THC standard to its hemp farmers, and thus a total THC standard would result in farmers not being allowed to sell a crop that was legal to grow. As written, the rules will drive all Tennessee hemp growers out of business.

Response: For reasons stated in the previous response, the Department does not agree with this comment. Total THC testing standards have been applied against Tennessee growers since 2021 and is required under federal law and rule for Tennessee to have a state hemp production program.

Comment(s):

- Implementing a total THC standard will make future hemp crops more difficult to grow. A total THC standard only complicates industry requirements for businesses within the hemp commercial chain.
- The same genetics grown under the Tennessee hemp program prior to 2020 will fail under the proposed rules and be considered an illegal crop subject to destruction.
- 99% of the available hemp strains currently available to commercial and private growers will not pass the post-decarboxylation total THC testing standard. Ultimately, a large portion of the existing market will be removed. A total THC standard makes it impossible for hemp plants grown in Tennessee to test compliant after harvest.

Response: A total THC standard is already applicable against Tennessee hemp growers and has been since 2021. The Department understands that the standard limits the number of varieties and strains capable of being grown and the volume of products that will be available to market.

While a total THC testing standard requires a higher burden for compliance, it also delivers greater consistency within the market for products produced, and reliability among businesses and consumers that available products are legal for sale and use. If testing did not require a total THC

standard, it is possible that products in the commercial chain could pass testing at one point in time only to later fall out of compliance, because of later conversion of THCa to THC, without any significant action having been taken by possessors of the product. That product instability introduces uncertainty for businesses throughout the chain and whether their investments in crops and inventory are stable. It also introduces consumer doubt as to whether available products are legal. Finally, lacking a total THC testing standard introduces uncertainty in enforcement because if products are found to be out of compliance, it is questionable when the product fell out of compliance and whose possession the product was in at that time—none of which can be reliably demonstrated in order for responsible parties to be held accountable for violative product.

Comment: A total THC standard criminalizes growers for producing a crop that was compliant before these rules were proposed.

Response: Hemp crops exceeding a total THC testing standard are not currently compliant with regulation, and that status is unchanged by these rules.

Re criminalization of growers, rules promulgated by the Department apply for regulation of hemp and HDC products in commerce. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code. The Department presumes that criminal enforcement considerations for or against a total THC testing standard were considered by the legislature during passage of the HDC products law.

Comment(s):

- A total THC standard prevents Tennessee farmers not only from participating in local markets but also keeps them from participating in other, more cannabis-friendly states markets and international markets that allow higher percentages of THC in products.
- Removing the total THC standard would allow Tennessee farmers to grow legal, profitable hemp crops. Farmers only have 40 seasons and sometimes only break even; TN should change its laws to support farmers getting more out of this time and save family farms.

Response: The Department agrees that hemp production offers another crop to bolster diversified farming production that can add to farm profitability. It is always the Department's mission to support and promote agriculture and farmers in every way possible. However, and above all else, the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally.

In support of this outcome, the Department notes that total THC testing is required under federal law and rule in order for Tennessee to have a state hemp production program. For this reason, the total THC standard has been effective in the Tennessee hemp grower/producer program rules since 2021—without significant prior objection from industry or the public. This understanding is also appropriate where the legislature has historically expressed intent for hemp legislation that related products do not intoxicate users and that hemp products be used for seed, fiber, and textiles as opposed to intoxicants. Whether to raise allowable THC percentages in hemp products, or for farmers who grow hemp crops, is a decision for state and federal legislators; the Department does not have the authority to raise statutorily prescribed limits through rulemaking, even to support Tennessee farmers.

Comment: Rules should provide traceability and accountability for production of hemp and hemp products.

Response: The rules for both the hemp producers/growers program and for HDC products contain several requirements which address traceability. By following the rules, growers and processors should be able to go one step forward and one step backwards when it comes to traceability, i.e.,

where they obtained product (e.g., flower or a derivative) and where they sent finished product. These rules include record keeping requirements to ensure products have batch numbers and Certificates of Analysis.

Comment: Having a legal cannabis program would foster innovation in agriculture.

Response: The Department understands this comment to be offered in support of legalizing marijuana in the state and responds consistent with similar comments and responses offered in this response packet. The legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana through rulemaking, even for purposes of fostering innovation in agriculture. The Department declines to make this change in the rules.

The Department notes that its hemp grower program is a legal cannabis program for which innovation in agriculture can be explored provided that cannabis grown comports with 0.3% THC limits when tested in a manner similarly reliable to decarboxylation.

Comment: A total THC standard for growers does not comport with federal regulations for hemp production.

Response: Post-decarboxylation testing methods and total THC standards are federally required under the 2018 Farm Bill and the USDA final rule for hemp production.

Comment: A total THC standard is unfair to Tennessee farmers because it is a mid-stream change in the rules after farmers have invested capital and taken on debt to build the Tennessee hemp industry.

Response: The Department has worked with representatives of the Tennessee hemp industry through multiple statutory and regulatory changes since 2015 in effort to implement the legislature's directives and to put forward the least restrictive yet reasonably protective rules possible. The Department has explained to industry since 2019 that federal laws and regulations and now state laws are requiring total THC testing requirements for hemp and HDC products. The Department is promulgating these rules per its authority and legislative direction under T.C.A. §§ 43-27-101 and 43-27-201 et seq. The testing method and limit on THC content in HDC products are statutorily prescribed by the legislature under these laws. The Department is required to administer the hemp and HDC laws and is committed to administering these statutes as directed by the legislature.

Comment: Removing a total THC standard will help save family farms and/or help return unused farmland back into agricultural production.

Response: The Department agrees that hemp production offers another crop that can add to farm profitability or increase agricultural production/use of farmland in Tennessee. It is always the Department's mission to support and promote agriculture in every way possible. However, as discussed elsewhere in this response packet, a total THC testing is required under federal law and rule in order for Tennessee to have a state hemp production program. For this reason, the total THC standard has been effective for Tennessee hemp growers/producers since 2021—without significant prior objection from industry or the public. Whether to raise allowable THC percentages for farmers who grow hemp or to allow farmers to grow other cannabis crops is a decision for state and federal legislators; the Department does not have the authority to raise statutorily prescribed limits through rulemaking, even to support Tennessee farmers. The Department declines to make this change in the rules.

Comment: The rules should allow a pre-harvest test of hemp on the farm to travel with HDC products all the way through their chain of commerce.

Response: The Department agrees in principle for products that do not undergo additional manufacturing processes. Provided that HDC inputs in downstream products have not undergone chemical or compositional changes, additional testing of the product by a new handler should not be required. Changes to these rules have been made accordingly.

This testing exemption does not apply when a manufacturing process has changed a product chemically or through compositional change from when the HDC input was received by the manufacturer. New testing is then required for the new product to ensure its safety and potency within prescribed limits.

Comment: Tennessee is an agricultural state. Hemp is an agricultural product. Rules should not inhibit advancement of hemp industry due to Tennessee's commitment to agriculture.

Response: It is always the Department's mission to support and promote agriculture in every way possible. The Department interprets this comment to apply either to the overall "hemp industry," which would include hemp and HDC products and/or specifically to Tennessee's hemp growers.

The Department is not attempting to inhibit advancement of the overall hemp industry through its rules. The Department's goal is only to carry forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner equal among all Tennesseans—both growers and HDC product suppliers and retailers.

The Department supports agricultural advancements and notes its hemp grower program is a legal cannabis program for which innovation in agriculture can be explored provided that cannabis grown comports with 0.3% THC limits when tested in a manner similarly reliable to decarboxylation.

Comment: Smokeable THCa benefits Tennessee's economy and supports local products made in Tennessee.

Response: The Department supports a market for Tennessee grown products and appreciates that consumers would prefer locally grown hemp products. Industry reports, however, that less than 10% of inhalable (smokable) hemp offered for sale in Tennessee is actually grown in Tennessee. According to industry and multiple commenters, high THCa flower is the retail product most in demand in Tennessee, and as discussed elsewhere in this document, to comport with federal law Tennessee's hemp growers have been subject to a total THC standard since 2021. Under laws charged to the department to administer, the limit for THC in hemp and HDC products is 0.3% when tested in a manner similarly reliable to post-decarboxylation. Whether to raise allowable THC percentages in locally grown or manufactured hemp products is a decision for state and federal legislators.

Comment: Products arriving in Tennessee from outside states are much more difficult to regulate than product grown and manufactured in-state.

Response: The Department disagrees. Under T.C.A. §§ 43-27-101 and 43-27, 201, et seq., the Department has authority to regulate hemp and HDC products produced (grown), manufactured, distributed, or retailed in Tennessee. Hemp and HDC products grown or manufactured outside of Tennessee that are distributed and/or retailed in Tennessee will be subject to the same regulations as those grown or manufactured in-state.

Comment(s):

- Tennessee farmers are doing a great job of raising CBD flower and making sure it is a safe product for Tennesseans.
- Locally grown THCa flower would be safer for consumers than similar products produced out-of-state.

Response: The Department appreciates the commenters' comments and aims with the rules as promulgated to support the safety of products produced by Tennessee farmers.

Comment(s):

- As a diversified crop, hemp can be used to create eco-friendly plastic alternatives and renewable building materials at half the financial and water cost.
- The Tennessee economy and the global supply chain need hemp. Tennessee could benefit by being on the leading edge of hemp cultivation. Department should be developing its use and production. People want hemp; department should not be lumping hemp in with other drug issues/concerns.

Response: The Department is aware that hemp may be used in a diversity of products and industries and supports Tennessee hemp growers being able to move the commodity through market sales and into the global supply chain. The Department aims for these rules to be no more restrictive than necessary to accomplish the objectives and requirements of hemp and HDC law for which the rules were written.

Comment: The likelihood that most hemp varieties will fail a total THC testing standard makes it impossible for growers to acquire insurance for their crops.

Response: A 0.3% total THC standard is already applicable against Tennessee hemp growers and has been since 2021. The Department acknowledges that a total THC testing standard—even though not new to hemp growers—limits both the varieties of cannabis growers may grow and growers' ability to profit from cannabis production. The Department is bound, however, by federal law and regulation under the 2018 Farm Bill and the USDA final rule for hemp production to apply total THC testing standards against growers in order to have a state-run hemp production program. Hemp crops exceeding a total THC testing standard are not currently compliant with either federal or state regulation, and that status is unchanged by these rules.

The Department does not have the authority to increase statutorily prescribed THC limits.

Comment: A total THC standard denies people the opportunity to live off the land.

Response: A 0.3% total THC standard is already applicable against Tennessee hemp growers and has been since 2021. The Department acknowledges that a total THC testing standard—even though not new to hemp growers—limits both the varieties of cannabis growers may grow and growers' ability to profit from cannabis production. The Department is bound, however, by federal law and regulation under the 2018 Farm Bill and the USDA final rule for hemp production to apply total THC testing standards against growers in order to have a state-run hemp production program. Hemp crops exceeding a total THC testing standard are not currently compliant with either federal or state regulation, and that status is unchanged by these rules.

The Department does not have the authority to increase statutorily prescribed THC limits.

Comment: Tennessee's climate and rich soil is ideal for production of cannabis.

Response: The Department agrees that Tennessee provides rich soil and an attractive climate for hemp (cannabis) production, and that its hemp growers have been successful with growing and cultivating cannabis plants to produce legal hemp crops in Tennessee.

To the extent this comment is an argument for legalization of marijuana in Tennessee, the Department does not have the authority to legalize marijuana through rulemaking. The Department declines to make this change in the rules. The legislature, not the Department, has the authority to codify the legality or illegality of marijuana.

Comment: If THCa is sold in the state, it should be grown in the state under traceability and accountability. Growers need the department to protect the growers' place in the hemp commercial chain because the hemp industry is not protecting Tennessee growers.

Response: One of the Department's primary goals with its rules is for safer hemp products on retail shelves in Tennessee. Under the Department's rules the same testing, traceability, and accountability standards will be applied in Tennessee across the hemp commercial chain—from hemp growers to manufacturers to retailers—for the same hemp products, including THCa. By following the rules, these regulated parties should be able to go one step forward and one step backwards when it comes to traceability, i.e., where they obtained product (e.g., flower or a derivative) and where they sent finished product. These rules include record keeping requirements to ensure products have batch numbers and Certificates of Analysis.

Comment: As proposed, the rules and their limits on THCa will drive market consumers to the black market to acquire similar products precluded by the rules.

The Department notes that at least one of the template letters public commenters used to submit comments to the Department specifically contained an argument re the proposed rules and consumer election to enter the "black market."

Response: T.C.A. § 43-27-207 requires the Department to test HDC products for THC concentrations using a method that captures the conversion of THCa to THC. Under the legislation, the amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. THCa, when tested as required, converts to delta-9 THC through the decarboxylation process. The Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer, and therefore is precluded from expanding tolerances for THCa as this comment would recommend.

Also included under this general summary, various commenters offered the following specific ideas or points regarding the comment:

Comment: Demand for high THCa content products will go unchanged by the rules, and consumers will pursue the products whether they are legal or not.

Response: The Department is aware from public comments that THCa flower and other smokable hemp products have for years been popular HDC products sold at retail in Tennessee, in large part due to their high THCa content. The Department acknowledges that allowable legal limits on THCa content in HDC products may not automatically change consumer demand for such products. The Department is not, however, authorized to raise the allowable limit on THC or THCa by rule in contravention of its statutory authority and is required to administer the HDC law regardless of its effect on products that will be precluded from the market.

Comment: Black market purchases are an unknown commodity. They may contain and are not regulated for dangerous substances like fentanyl and other toxins. Consumers want safe and regulated access to hemp, THC, and THCa products. Without access to safe, legal THCa products, consumers are forced to an area of the black market where they feel uncertain about the legitimacy and safety of products.

Response: The Department received many comments re consumers wanting safe and regulated access to hemp and HDC products, and the Department acknowledges personal safety concerns associated with choosing to purchase products from the illicit ("black") market. Safe, legal access to hemp, THC, and THCa products will still be available under the Department's rules. The Department is regulating these products as required by the legislature, including testing for THC content. With consumer safety and assurance re legitimacy of products in mind, the rules also contain requirements as to product labeling and testing for microbial contaminants, mycotoxins, residual pesticides, heavy metals, and residual solvents.

To the extent this comment recommends increase of THC or THCa limits, the Department is not authorized to raise allowable limits on THC or THCa by rule in contravention of its statutory authority and is required to administer the HDC law regardless of its effect on products that will be precluded from the market. Under laws charged to the department to administer, the limit for THC in products is 0.3% when tested in a manner similarly reliable to post-decarboxylation.

Comment: Having legal access to hemp, THC, and THCa products will lower crime rates. Not having legal access to these products will add strain to law enforcement and judicial resources used to enforce marijuana statutes.

Response: The Department does not opine on crime rates or strain on judicial or law enforcement resources that may or may not occur incident to the regulation of HDC products. Under the Department's rules, legal access to hemp, THC, and THCa products is preserved. The Department presumes that policy benefits of marijuana legalization and/or higher tolerances of THC and THCa were considered by the legislature during passage of legislation enabling the hemp and HDC product programs.

Comment: The ability to purchase legal, regulated THCa flower from a store ensures that proper testing was done, and the flower is safe to consume. If consumers are forced to seek out the black market for access to high THCa content products, they will be exposed to greater risk of also acquiring other illicit drugs while they are there, e.g., heroin, methamphetamines, prescription drugs, etc. This increased risk exposes consumers who use THCa to combat drug addiction to greater likelihoods of addiction relapse and overdose.

Response: The Department received many comments expressing these sentiments and the Department acknowledges personal safety concerns associated with choosing to purchase products from the illicit ("black") market. However, the Department is not authorized to raise the allowable limit on THCa by rule in contravention of its statutory authority. T.C.A. § 43-27-207 requires the Department to test HDC products for THC concentrations using a method that captures the conversion of THCa to THC. Under the legislation, the amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. THCa, when tested as required, converts to delta-9 THC through the decarboxylation process. The Department understands from commenters that consumers may use high THCa content products to combat drug addiction but does not opine on whether high THCa content products are more effective for this purpose than products obtainable through legitimate channels.

Comment(s):

- The rules as written do not adequately balance public health with the potential harm caused to individuals and communities by prohibiting access to THCa.
- The rules should increase access to safe THCa flower, not reverse it.

Response: The Department received many comments re consumers wanting safe and regulated access to THCa, in all its forms. The Department is not prohibiting or reversing access to THCa through its rules. Rather, the Department is regulating safe access to legal HDC products, including THCa, in accordance with limitations required by the legislature. The Department does not opine re the effects on public health versus any potential harm to individuals and communities posed by the Department's regulations on THCa. The Department presumes the legislature considered public policy considerations during passage of the laws authorizing this rulemaking.

Comment: Banning THCa products will negatively impact the Tennessee economy, including a reduction in available jobs and tax revenue. Money that would have been spent on legal THCa products will now be directed to illegal underground markets.

Response: The Department is not banning THCa products through its rules. Rather, the Department is regulating access to legal HDC products, including THCa products, in accordance with limitations required by the legislature. The Department expects economic policy was considered by the legislature during passage of laws that authorize this rulemaking. The Department stands committed to administer those laws as it was charged in passage of T.C.A. §§ 43-27-101 and 201, et seq. While it is never the Department's intention to negatively impact the economy, the Department is required to administer the hemp and HDC laws regardless of their effect on available jobs or tax revenue.

Comment: The rules criminalize smokable hemp products and subject manufacturers, retailers, and consumers to criminal penalties for selling or possessing such products. Criminal penalties will force those who want to use products to the black market.

Response: The Department does not opine on whether consumers of inhalable (smokable) hemp products will choose to seek noncompliant hemp products from the illicit ("black") market after the Department's rules go into effect. Re criminalization of suppliers, retailers, or consumers, rules promulgated by the Department apply for regulation of hemp and HDC products in commerce. The Department's rules create regulatory standards for inhalable hemp products, as required by the legislature under T.C.A. § 43-27-201, et seq. Products that do not meet the requirements of these rules would not be compliant with the Department's regulatory program and subject to enforcement measures within the Department's authority. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code.

Comment: Rather than changing existing law, implement regulations that promote safe products, including regulations on product marketing and distribution. Smart regulations will produce a hemp market that serves as an alternative to the black market.

Response: This law establishes requirements as to distribution of HDC products; testing for safety, toxicity, and potency; consumer age restrictions; labeling of products; and specific prohibitions re how HDC products may be advertised, marketed, and sold. The Department is authorized under this law to promulgate rules to effectuate the statutory requirements; this means that rather than changing the law under these statutes, the Department is interpreting and clarifying statutory requirements in order to administer the details of an HDC program, as required under T.C.A. § 43-27-201, et. seq.

Comment: Limiting THCa products forces Tennesseans to the black market where products are untested and sprayed with fentanyl and other toxins. For Tennesseans, the black market is the most dangerous by-product of the cannabis plant. Banning THCa drives consumers to the black markets where the dangers are the exact same as those the statute intends to eliminate (e.g., unknown traces of illicit drugs, pesticides, chemicals, and toxins; fake products; and misbranded THC concentrations).

Response: As discussed elsewhere in this packet, the rules regulate, not ban, THCa products. One of the primary goals of the rules is that consumers have safe access to regulated and tested hemp products. A likely and necessary consequence is that noncompliant and unsafe products will be removed from the marketplace. To the extent THCa products are removed from the marketplace, it is likely because they contain more than 0.3% of delta-9 THC and/or impermissible levels of microbial contaminant, mycotoxins, heavy metals, microbial contaminants, or residual pesticides.

The Department acknowledges personal safety concerns associated with purchasing THCa products on the illicit ("black") market but does not opine on whether consumers will choose to purchase noncompliant THCa products from the illicit market, despite all the risks associated with doing so. The Department is required to administer the hemp and HDC laws passed by the legislature regardless of their effect on products that will be precluded from the market.

Comment: Safe and regulated access to THCa products is important to communities, particularly those who struggle with substance abuse. Banning THCa products will push consumers with addiction to the black market and products that may contain substances like methamphetamine, fentanyl, and opioids that are likely to cause relapse and/or overdose.

Response: The vast majority of comments received by the Department suggest the public strongly desires products that are regulated and tested for product safety. As such, the Department acknowledges personal safety concerns associated with purchasing THCa products on the illicit ("black") market and notes the Department's rules regulate, not ban, these products. As discussed

elsewhere in this document, one of the primary goals with the rules is for Tennesseans to have safe and regulated access to THCa products, which includes testing standards and requirements for accurate labeling re what products contain. The Department presumes the legislature considered that testing standards in the HDC products law may result in removal of various currently available products from the marketplace.

The Department does not opine on whether consumers will seek noncompliant THCa products from the illicit market despite the risks associated with doing so, and expects these concerns were considered by the General Assembly during passage of laws that authorize this rulemaking. Regardless, the Department is required to administer the hemp and HDC laws passed by the legislature regardless of their effect on products that will be precluded from the market.

Comment: Consumers will pursue THCa flower whether it is legal or not, but unregulated, "illegal marijuana" is an unknown commodity with significant health risks.

Response: The Department agrees there are risks associated with consuming illegal products, marijuana included. The Department notes THCa flower will still be legal under the Department's rules so long as the THC content is 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment: Regulating hemp-derived products keeps hemp in Tennessee, keeps hemp-derived products safe, keeps commercial markets flowing, and keeps medicine steadily available. Banning such products presumably has the opposite effects.

Response: The Department received many comments re consumers wanting safe and regulated access to HDC products in Tennessee. The Department is aware consumers use HDCs medicinally. It is not the Department's intent to ban products or stop the flow of commercial markets but to follow its statutory directives to set regulatory standards for the industry to ensure safe and consistent products for consumers in Tennessee.

Comment: The department's misinterpretation of the law implementing limits on THCa will end an established, legal part of local economies and will force consumers back to the black market for THCa purchases.

Response: As discussed elsewhere in this document, absent clear legislative intent, the Department must give plain meaning to each word in T. C.A. § 43-27-201, et. seq. T.C.A. § 43-27-207 requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. Presuming the General Assembly understood and contemplated this requirement, its intent is clear: the Department must analyze samples of HDC products and determine the products' post-decarboxylation THC concentrations. The Department's definition of "in a manner similarly reliable to post-decarboxylation" is in line with the language of the statute. The amount of THC allowed in hemp and HDC products is statutorily prescribed as 0.3%, tested in a manner similarly reliable to post-decarboxylation.

The Department is aware high THCa content products are popular with consumers but does not opine on whether consumers will seek noncompliant THCa from the illicit ("black") market after the Department's rules go into effect. The Department understands that administration of the HDC products law may cause removal of various products currently from the marketplace, but the Department is required to administer the hemp and HDC laws passed by the legislature regardless of these effects. The Department is not authorized to raise the allowable limit by rule in contravention of those statutes.

Comment: Prior to the draft rules, Tennessee was ranked as a top state for cannabis sales because readily available hemp-derived products were able to dry up the black market. As retailers pivot towards products without THCa, consumers will seek such products from other sources including a reinvigorated black market.

Response: The Department is required to administer the hemp and HDC laws passed by the legislature regardless of their effect on products that will be precluded from the market. The amount of THC allowed in hemp and HDC products is statutorily prescribed as 0.3%, tested in a manner similarly reliable to post-decarboxylation. Under the Department's rules, THCa products will still be allowed, so long as they comport with testing standards and statutorily prescribed limits for THC content.

The Department does not opine on whether the illicit ("black") market will be reinvigorated after rules go into effect and expects such a consequence was considered by the General Assembly when it passed the law authorizing passage of these rules. Regardless, the Department does not have the statutory authority to raise the allowable limit on THCa. The Department declines to make this change in the rules.

Comment: Products will still be legal to possess and consume but will be illegal to produce or sell in the state.

Response: The authorizing statute, T.C.A. § 43-27-201 et seq., and the Department's rules set requirements for products containing HDCs. Products that do not meet these requirements will be considered noncompliant and face regulatory enforcement measures.

Hemp that contains greater than 0.3% THC is and has been legally defined as marijuana, which is illegal federally and in Tennessee, is outside of the Department's control, and falls under the federal and state criminal codes which are applicable to anyone selling or possessing marijuana. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code.

Comment: Consumers want safe access to hemp and cannabis; therefore, the department should implement rules banning manufacturers, retailers, and distributors from spraying synthesized compounds onto hemp flower.

Response: The Department is aware of a practice in the industry of spraying hemp flower with chemicals to increase its potential value or desirability with consumers. With consumer safety in mind, the Department's rules set tolerances and labeling requirements as to microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents, and manufacturing chemicals, that these products may contain. Without knowing which synthesized compounds this comment references, the Department is unable to provide additional response.

Comment: Banning THCa products will fuel the illegal drug trade in the state and put money into the hands of bad actors and criminals instead of the state economy.

Response: THCa products are not banned by the Department's rules. These products will still be allowed so long as they meet testing requirements including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

The Department does not opine on whether regulating HDC products will fuel the illegal drug trade in the state or put money into the hands of bad actors and criminals instead of the state economy. The Department expects the General Assembly contemplated this potential outcome and the potential loss of revenue from high THCa products when it drafted legislation capping the amount of THC allowed in hemp and HDC products as 0.3%, when tested in a manner similarly reliable to post-decarboxylation. The Department is not authorized to raise the allowable THC limit by rule in

contravention of its statutory authority, even to prevent the possibility of money being diverted from the state economy.

Comment: Because state and federal law do not classify THCa products as illegal, Tennesseans will continue to legally purchase and possess such products, just without the important consumer protections the statute seeks to impose. The unintended consequence would be an increase in unsafe THCa products within the state.

Response: Pursuant to T.C.A. § 43-27-201, et seq., the Department is required to test products for THC concentrations using a method that captures the conversion of THCa to THC; the amount of THC allowed in hemp and HDC finished products is statutorily prescribed as 0.3%, tested in a manner similarly reliable to post-decarboxylation. All HDC product on retail shelves in Tennessee, including THCa products, will be subject to the same testing standards contained in the Department's rules, which includes not only testing for THC content, but testing for microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents, etc. As such, the Department expects that products that do not meet testing standards under the law will be replaced in the Tennessee marketplace, with compliant, safer products taking their place, thereby achieving the consumer protections the statute seeks to impose.

Hemp that contains greater than 0.3% THC is legally defined as marijuana, which is illegal federally and in Tennessee.

Comment: Tennesseans want access to safe hemp flower and cannabis products that are tested and grown locally. These rules will push the hemp flower market to underground or illegal operations.

Response: One of the Department's primary goals with its rules is that consumers have safe access to regulated and tested hemp (cannabis) products, including hemp flower, and the Department supports a market for Tennessee grown products.

However, and as discussed in more depth elsewhere in this document, Tennessee's hemp growers have been subject to a total THC standard since 2021 in order to comport with federal law. This means most hemp flower on the shelves in Tennessee for the past several years likely has not been locally grown hemp flower. Under the HDC law and the Department's rules, this same THC testing standard will now be applied across hemp growers, suppliers, and retailers for the same hemp products in Tennessee. Bringing regulations for growers, suppliers, and retailers into alignment, through the same testing standard, is likely to give Tennessee hemp growers a market that did not exist before and provide consumers with the locally grown product they want to access. Hemp flower and cannabis products will still be legal so long as they contain less than 0.3% of delta-9 THC and avoid impermissible levels of microbial contaminants, mycotoxins, heavy metals, and/or residual pesticides, and comport with other legal requirements under the HDC law and the rules.

The Department does not opine on whether consumers will seek noncompliant hemp flower and other cannabis products from illicit markets after the Department's rules go into effect. The Department expects the legislature considered this outcome during its passage of the HDC products law. Regardless, the Department does not have statutory authority to raise allowable THC levels in hemp or hemp products.

Comment(s):

- Prior to the proposed rules, THCa was the safest alternative to buying marijuana on the streets, where marijuana is laced with other illicit drugs and where products are sold in high crime areas.
- A segment of consumers support a ban on THCa flower and argue that the industry has

circumvented marijuana laws by using products with high THCa content.

Response: The Department is aware from the many comments submitted for this rulemaking that many consumers in Tennessee have considered high-THCa products as a safe proxy for marijuana. Under T.C.A. §§ 43-27-201, et seq., the Department is required to regulate HDC products, including THCa products, and enforce the statutory testing requirements. The Department agrees THCa is a cannabinoid that converts to delta-9 THC when subjected to heat through the decarboxylation process, and that high THCa flower products will induce intoxication in the user, similar to marijuana. The Department notes THCa products will still be allowed under its rules, but the products must contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department also notes THCa products under the Department's rules will continue to be safer than purchase of unregulated products because regulated products will be subject to testing and labeling requirements, which HDC products in Tennessee have not been subject to previously.

The Department does not have the authority to ban THCa flower, only the authority to regulate it. The Department does not have statutory authority to raise the allowable THC limit in products, to alter the manner of their testing that is prescribed by statute, or to legalize marijuana by rule.

Comment: A total THC standard will push consumers to purchase marijuana over hemp-derived cannabinoid products.

Response: The Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction from the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute. The Department is required to administer the hemp and HDC laws passed by the legislature regardless of whether their effect will drive consumers to buy illegal products instead of regulated HDC products.

The Department is not authorized to raise the allowable THC limit in HDC products or to legalize marijuana by rule. Those questions are appropriate for consideration by the legislature which has the authority to make those changes, not the Department.

Comment: Safe access to cannabis allows people to live productive lives instead of resorting to criminal activity on the black market.

Response: The Department heard from many commenters that they want safe and regulated access to hemp (cannabis) products. All hemp products on retail shelves will be subject to the testing and labeling standards in the Department's rules to help ensure Tennesseans have access to safe and quality hemp products.

To the extent the commenter is making an argument for either a higher allowable THC content in HDC (cannabis) products or for legal medical marijuana as an aid for people to live productive lives, the Department does not have the authority to raise the allowable THC limit in HDC products or to legalize marijuana through its rules. That authority is vested in the legislature.

Comment: Regulated hemp is already weaker in THC than black market options. Legal THC options are better than non-legal options for children.

Response: The Department agrees that the level of THC in regulated hemp products is likely to be lower than unregulated product options. This is because (1) federal law, under 7 CFR 990, requires a total THC testing standard for hemp production and for state hemp programs, with an acceptable limit of 0.3% or less THC on a dry weight basis; and (2) the state's HDC law requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of

0.3% or less on a dry weight basis. Hemp that contains greater than 0.3% THC is legally defined as marijuana, which is illegal federally and in Tennessee.

Re the comment's suggestion that legal THC options are better for children, the Department notes that under the HDC law, products may not be sold or distributed to a person under the age of 21 years. The Department does not have the statutory authority to alter this prohibition or to legalize medical marijuana for children. That authority is with the legislature.

Comment: As proposed, the rules and their limits on THCa will prevent Tennesseans from receiving the medicinal benefits of THCa products.

Response: Limits on the amount of THC in hemp products, including THCa converted to THC through decarboxylation, are set in federal and state law, which lie outside the Department's authority to set. To the extent commenters are asking for legalized medical marijuana through these comments, the Department does not have the authority to legalize medical marijuana. The authority to codify the legality or illegality of marijuana is vested in the legislature.

Also included under this general summary various commenters offered the following specific ideas or points regarding the comment:

Comment: Hemp products are widely recognized as medicine that are irreplaceable to thousands of community members and millions of Americans who utilize the legal hemp industry in place of pharmaceuticals. Banning hemp-derived products alienates individuals who use the products for pain relief.

Response: The Department heard from many commenters that either they or someone they know use hemp products medicinally for a myriad of conditions and are concerned about the Department's "ban" on these products. The Department is regulating not banning hemp products, as required by the HDC law passed by the legislature. Hemp products will still be available to consumers so long as products comply with requirements contained in the HDC law and the Department's rules. The Department does not opine on how consumers use hemp products or the efficacy of these products.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature, not the Department, has the authority to determine the legality or illegality of medical marijuana. The Department cannot do so through rulemaking.

Comment: THCa products help relieve chronic anxiety and depression disorders. In some cases, THCa products can serve as a replacement for addictive pharmaceuticals and substances like alcohol and opioids.

Response: The Department notes the HDC law does not contain exceptions re medicinal use of HDC products. THCa products will still be allowed under the Department's rules so long as they contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, in addition to meeting other legal requirements. Questions of THCa product use to relieve medical conditions and addiction lie outside the Department's expertise; the Department does not opine on the efficacy of THCa to treat medical conditions or addiction.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature has the authority to codify the legality or illegality of marijuana, not the Department.

Comment: Limiting THCa products will take away medication from tens of thousands, if not hundreds of thousands of Tennesseans. THCa is the preferred regulated psychoactive cannabinoid for many patients in the state because it is the most natural of the available cannabinoids.

Response: The Department is aware that many individuals use THCa products medicinally and consider THCa to be the most natural of the HDCs in the marketplace. The Department is also aware from industry feedback that THCa is the most popular consumer product in Tennessee. Pursuant to T.C.A. § 43-27-207, the Department is required to test products for THC concentrations using a method that captures the conversion of THCa to THC. THCa products will still be allowed

under the Department's rules so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The HDC law does not contain exceptions re medicinal use of HDC products, and the Department does not opine on medicinal use of THCa.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature has the authority to codify the legality or illegality of marijuana, not the Department.

Comment: THCA is the most popular microdose cannabinoid as microdosing and the decarboxylated THC flower allows the patient to regulate smaller doses of this method and fastest route of administration in transferring THC to the body C1 and C2 receptors.

Response: The Department does not opine on the practice, effectiveness, or benefits of microdosing THCa or other cannabinoids. The Department is promulgating these rules to regulate hemp and HDC products, including THC delta-9 and THCa, as directed by the legislature under T.C.A. §§ 43-27-101 and 201, et seq.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature has the authority to codify the legality or illegality of marijuana, not the Department.

Comment: THCa serves as an alternative to marijuana and traditional means of mood and comfort control.

Response: The Department received many comments from individuals who reported use of THCa as an alternative to marijuana, citing its calming and/or regulating effect on their mood, as a means for relaxation, or to "deal with everyday life." Under the Department's rules THCa products will still be allowed so long as they meet regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment: THCa products can be used to reduce or eliminate the amount of medication necessary to treat an ailment or chronic condition. Less medication means a reduction in harmful or uncomfortable side effects.

Response: The Department heard from many commenters opining on how use of THCa products reduces or eliminates the need for medications, and that consumers simultaneously benefit from a decrease in medication-induced side effects. The Department does not opine on use of THCa products versus pharmaceuticals to treat ailments or chronic conditions; issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The HDC law does not contain exceptions re medicinal use of THCa products. The Department presumes the legislature considered the effectiveness of all products in the marketplace during their passage of the HDC products law.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department cannot do so through this rulemaking.

Comment: Hemp-derived cannabinoid products serve as alternative for individuals who dislike pills and prefer natural medications over traditional, chemically derived pharmaceuticals that make patients feel disoriented and ill.

Response: The Department heard from many commenters re medicinal use of HDC products. The

Department does not opine on efficacy or use of HDC products versus use of pharmaceuticals. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department presumes the legislature considered medicinal use of HDC products by consumers and the effectiveness of all products in the marketplace during the passage of laws authorizing this rulemaking and notes the HDC law does not contain any exceptions re medicinal use of products.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature retains authority to codify the legality or illegality of marijuana. The Department does not have authority to legalize marijuana, including medical marijuana, through rulemaking.

Comment: Hemp products are helpful post-treatment options for cancer patients struggling with pain and nervousness. THCa is invaluable to recovery and pain management after surgery.

Response: The Department heard from many commenters that hemp products were critical in either helping them personally or someone they know recover from either surgery or cancer treatments by managing pain and nerves. The Department does not opine on use of hemp or THCa products to alleviate conditions caused by cancer or to manage recovery from surgery. Under the Department's rules THCa and other hemp products will still be allowed so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation; the HDC law does not contain exceptions re medicinal use of hemp products.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana, including medical marijuana, through rulemaking.

Comment(s):

- THCa prevents opioid misuse, alleviates opioid withdrawal symptoms, and decreases the likelihood of relapse. THCa flower helps individuals avoid prescription medications that expose them to addiction and harmful side effects.
- THCa is a replacement for pharmaceuticals and can help treat addiction and prevent relapse.

Response: The Department heard from many commenters that THCa was critical in either helping them personally or someone they know avoid use of pharmaceuticals and treat addiction. The Department does not opine on the effectiveness of THCa for these uses. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or Department of Mental Health and Substance Abuse Services. The HDC law does not contain exceptions re medicinal use of THCa. The Department expects the legislature considered public health concerns and the effectiveness of all products in the marketplace for medicinal and addiction treatment during passage of laws authorizing this rulemaking.

To the extent commenters are using hemp products as a proxy for medical marijuana and/or are asking for legalized medical marijuana in Tennessee, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana; the Department does not have authority to legalize marijuana, including medical marijuana, through rulemaking.

Comment: Neither the statute nor the proposed rules do anything to enhance patients' access to hemp-derived products.

Response: The Department received many comments re consumer use of HDC products medicinally for a myriad of conditions. To the extent commenters are asking for enhanced access to

HDC products for medicinal use or as a proxy for medical marijuana, the statute does not address medical or patient use of these products; the Department does not have the authority to modify the statute and address these uses through rulemaking.

To the extent these comments are advocating for medical marijuana in Tennessee, the legislature, not the Department, has the authority to codify the legality or illegality of medical marijuana.

Comment: Some doctors recommend patients take THCa, THC, and CBD to manage pain.

Response: The Department heard from several commenters that their medical professional had suggested or even recommended use of THCa, THC, or CBD to manage pain, in some cases as a substitute for medical marijuana which is illegal in Tennessee. The Department does not opine on doctor-patient advice re recommended use of these products. Under the Department's rules THCa, THC, and CBD products will still be allowed so long as they contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and are compliant with other regulatory requirements.

Comment: Hemp products can stimulate appetite for individuals whose medical conditions or treatment options curb hunger.

Response: The Department received several comments attesting to use of hemp products as an appetite stimulant and/or to combat nausea that prevents individuals from wanting to eat. The Department has also reviewed hundreds of related comments re use of hemp and HDC products medicinally and appreciates that some individuals report beneficial effects from these products but does not otherwise opine on the efficacy or use of these products by those with medical conditions. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The HDC law does not contain exceptions re medicinal use of hemp products. The Department expects the legislature considered public health concerns and the effectiveness of all products in the marketplace for medicinal treatment during passage of laws authorizing this rulemaking.

Comment: THCa products allow individuals to manage pain while still being alert, which is not something that occurs with prescription drugs.

Response: Several commenters reported using THCa products to manage pain because unlike prescription drugs THCa does not affect their cognitive skills or ability to perform tasks of day-to-day life. Under the Department's rules, THCa products will still be allowed so long as they contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, in addition to meeting other regulatory requirements. The Department does not opine on the efficacy of THCa products in managing pain and presumes the legislature considered the effectiveness of all products in the marketplace in their passage of the HDC law. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The HDC law does not contain exceptions re medicinal use of THCa. The Department expects the legislature considered public health concerns and the effectiveness of all products in the marketplace for medicinal and pain treatment during passage of laws authorizing this rulemaking.

Comment: Cannabinoids have anti-viral effects because they block viral replication of COVID and all emerging variants.

Response: The Department does not opine on whether cannabinoids have anti-viral effects. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The HDC law does not contain exceptions re medicinal use of THCa. The Department expects the legislature considered public health concerns and the effectiveness of all

products in the marketplace for medical treatment during passage of laws authorizing this rulemaking. Ultimately, the Department is charged by the legislature with administration of the hemp and HDC product laws, including their prescribed limits for THC within products and the manner of testing required for HDC products.

Comment: The medicinal properties of cannabis changes people's lives and significantly impacts society. Cannabis has medicinal uses that pharmaceuticals do not have and is often safer than prescription drugs.

Response: The Department received many comments asserting the medicinal properties of cannabis, its ability to effectively treat conditions, and how safe and free of side effects cannabis is compared to pharmaceuticals/prescription drugs. The Department does not opine re medicinal properties of cannabis. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department presumes the legislature considered the medical effectiveness of all products in the marketplace during passage of the laws governing this rulemaking.

To the extent these comments are advocating for medical marijuana in Tennessee, the legislature has the authority to codify the legality or illegality of medical marijuana, not the Department.

Comment: Cannabis has been scientifically proven to improve health and longevity. When regulated for safety, hemp products improve focus, reduce the side effects of anxiety and depression, and enhance productivity.

Response: The Department heard from many commenters that they want safe and regulated access to hemp (HDC) products. All HDC products on retail shelves subject to the Department's rules will need to comply with the required testing standards to help ensure Tennesseans have access to safe and quality hemp products. The Department does not opine on mental or physical health benefits of hemp products. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or Department of Mental Health and Substance Abuse Services. The HDC law does not contain exceptions re medicinal use of hemp products. The Department expects the legislature considered public health concerns and the effectiveness of all products in the marketplace for medicinal and mental health treatment during passage of laws authorizing this rulemaking.

Comment(s):

- Cannabis has many medicinal benefits, unlike other, more accessible products, including soft drinks, alcohol, and cigarettes.
- The government is quick to ban anything revolving around marijuana but will not ban anything related to tobacco like cigarettes, cigars, e-cigarettes, and dip. The government should be concerned with larger issues like dangerous drugs rather than regulating THCa and CBD that actually help people.

Response: Passage of laws for legality, illegality, or regulation of these products lie outside the Department's jurisdiction. The Department is charged to administer the hemp and HDC product laws passed by the legislature including their prescription for allowable THC limits and the manner of testing required for HDC products. The Department presumes that when the General Assembly was drafting the HDC products law it considered existing laws related to consumption of soft drinks, alcohol, and tobacco products, including health risks associated with consumption of those products. The Department also expects the legislature considered the impact of the current drug use epidemic on Tennessee as well as public policy concerns for regulation of hemp and HDC products versus other products. Regardless, the Department stands committed to administer T.C.A. §§ 43-27-101 and 201, et seq. as charged by the legislature, and does not opine on health or medicinal benefits of cannabis.

Comment: Hemp products serve as an alternative to prescription medications for individuals who cannot take medications due to genetics, age, underlying health conditions, or co-morbidities, including disabled individuals, children, and patients with kidney disease.

Response: The Department is charged to administer the hemp and HDC product laws passed by the legislature including their prescription for allowable THC limits and the manner of testing required for HDC products. The Department does not opine on health benefits of hemp products and presumes the legislature considered the various consumer uses of hemp products, and the effectiveness of all products in the marketplace on various health conditions, including any health risks associated with use of those products, during their passage of the HDC products law.

Comment: Unlike prescription medications, there is no risk of overdose associated with hemp-derived cannabinoid products and are therefore safer to use. Millions of people can function on small doses of THC, and harmful overdose is practically scientifically impossible.

Response: The Department received several comments expressing this opinion but does not opine on the risk of overdose or comparative safety of HDC products versus prescription medications. The Department is promulgating these rules to regulate HDC products as charged by the legislature under T.C.A. §§ 43-27-201, et seq.

Comment: THCa can control neuropathy symptoms caused by chemotherapy.

Response: The Department heard from several commenters that THCa was either personally beneficial or beneficial for someone they know in treating neuropathy, including neuropathy caused by chemotherapy. The Department does not opine on the efficacy of THCa to treat neuropathy. The Department presumes that in their passage of the HDC products law the legislature considered the various consumer uses of hemp products, and the effectiveness of all products in the marketplace.

To the extent commenters are asking for a legal exception to acquire HDCs specifically for medicinal use or as a proxy for medical marijuana, the statute does not address medical use of these products. The Department does not have the authority to modify the statute or legalize medical marijuana through its rules; that authority is vested in the legislature.

Comment: Cannabinoids are useful to treat chronic pain in children and can stimulate bone health and shorten recovery times when children break bones.

Response: The Department presumes that in their passage of the HDC law the legislature considered the various consumer uses of hemp products, and the effectiveness of all products in the marketplace. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department does not opine on the efficacy of cannabinoids to treat chronic pain in children or to stimulate bone health and shorten healing times of broken bones. The Department also notes that under the HDC law, HDC products may not be sold or distributed to a person under the age of 21 years.

To the extent the commenter is referring to use of medical marijuana to treat children, the Department does not have the authority to legalize medical marijuana through rulemaking. Authority to codify the legality or illegality of marijuana is with the legislature.

Comment: Proposed rules change the current law that allows people to legally acquire hemp products for medicinal needs.

Response: The Department is required under this law to promulgate rules to effectuate the statutory requirements and notes that hemp products will still be accessible so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and meet other regulatory requirements, such as compliance with testing standards for microbial contaminants, mycotoxins, heavy metals, or residual pesticides; labeling standards, etc.

The Department received many comments re consumer use of HDC products medicinally for myriad conditions. To the extent commenters are asking for a legal exception to acquire HDCs specifically for medicinal use or as a proxy for medical marijuana, the statute does not address medical use of these products. The Department does not have the authority to modify the statute or legalize medical marijuana through its rules; that authority is vested in the legislature.

Comment: Hemp-derived products reduce epilepsy patients' dependence on anticonvulsant medications that have negative side effects.

Response: Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department does not opine on whether HDC products treat epilepsy or act as anticonvulsant medications. The Department is promulgating these rules to administer T.C.A. §§ 43-27-201, et seq., as directed by the legislature. The Department notes its rules do not regulate any FDA-approved drugs containing an HDC.

To the extent consumers are asking for medical marijuana, the Department does not have the authority legalize medical marijuana through its rules; the authority to codify the legality or illegality of marijuana is vested in the legislature.

Comment: Hemp-derived products help individuals who struggle with mental health conditions, including PTSD, depression, and anxiety. Individuals who use products feel that they can more fully engage in life and in their communities.

Response: The Department received many comments re use of HDCs to treat PTSD and other mental health conditions. The Department does not opine on the effectiveness of these products to treat mental health conditions. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or Department of Mental Health and Substance Abuse Services. The Department is promulgating these rules to administer T.C.A. §§ 43-27-101 and 201, et seq., as directed by the legislature.

Comment: Banning THCa flower takes away a legal alternative to marijuana that many Tennesseans use to cope with medical conditions. Legal THCa keeps consumers from going to the black market for marijuana to treat medical conditions.

Response: The Department heard from many commenters that either they or someone they know use(s) hemp products medicinally for myriad conditions and are concerned about the Department's "ban" on THCa flower. The Department is regulating, not banning, hemp products, as required by the legislature. THCa flower will still be available to consumers so long as products comply with requirements contained in the HDC law and the Department's rules. The Department agrees the level of THC in regulated THCa flower is likely to be lower than what's found in marijuana or on the illicit ("black") market. The Department presumes the legislature considered the effect of capping THC content to 0.3%, when tested in a manner similarly reliable to post-decarboxylation, including the possibility consumers would try to obtain high THC/THCa-content products illegally, during passage of laws governing this rulemaking. Regardless, the Department cannot by rule increase limits of allowable THC content, negate statutorily required manner of testing HDC products, or legalize medical marijuana in Tennessee. Authority to codify changes in these areas lies with the legislature.

Comment: Consumers are frustrated that medical marijuana is not legal in Tennessee but have been thankful for the legal avenue to THCa to treat medical conditions. They are afraid that without legal sources of THCa, patients turn towards unregulated products that risk exposure to other illicit drugs like fentanyl.

Response: The Department heard from many commenters who believe medical marijuana should be legal in Tennessee. The Department notes THCa products will still be legal so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and are compliant with other requirements under the statute and rules (e.g., compliance with tolerances for pesticide residues, heavy metals, mycotoxins, etc.).

The Department presumes the legislature considered consumer use of hemp products when it drafted the HDC products law—including whether doing so would benefit the illicit (“black”) market or detrimentally affect availability of products for consumers using them medicinally. As discussed in other sections of this response packet, the Department is required to carry forward these rules regardless of their effect on products that will be precluded from the market.

To the extent commenters are advocating for medical marijuana in Tennessee, the legislature, not the Department, has the authority to codify the legality or illegality of medical marijuana. The Department cannot legalize medical marijuana through rulemaking. The Department declines to make this change in the rules.

Comment: Hemp-derived cannabinoids serve as an alternative product to alcohol for consumers who struggle with addiction and substance abuse. Access to hemp-derived cannabinoid products allows these individuals to enjoy social gatherings where alcohol may be present.

Response: The Department heard from many commenters that either they or someone they know who struggles with addiction and substance abuse prefer using HDC products over alcohol on the premise that HDCs provide similar social benefits without being addictive. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Mental Health and Substance Abuse Services. The Department does not opine on the addictive or non-addictive properties of alcohol or HDC products. The Department notes HDC products will still be legally accessible under the HDC product law and these rules so long as the products comply with the associated regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment: Consumers claim that hemp-derived products are as effective as legal medical marijuana. So, if Tennessee is not going to legalize medical marijuana, it should increase access to the next best option, hemp-derived cannabinoid products.

Response: It is unclear what commenter means by “increasing access” to HDC products. The Department is promulgating these rules in accordance with its legislative authority under the HDC product law. The amount of THC allowed in hemp and HDC finished products is statutorily prescribed under T.C.A. §§ 43-27-101 and 43-27-201, et seq. as 0.3%, tested in a manner similarly reliable to post-decarboxylation. Safe access to HDC products will still be available so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, as required by the legislation. The Department expects the General Assembly was aware of and considered public sentiment re legalization of medical marijuana when it passed the laws authorizing this rulemaking.

Comment: The department should not ban hemp and THCa because they could be a cure for cancer.

Response: The Department is regulating, not banning, hemp and THCa products as directed by the legislature under T.C.A. §§ 43-27-101 and 43-27-201, et seq. The Department does not opine on whether hemp or THCa could be a cure for cancer and notes that whether it is or not, the Department must adhere to its statutory directives in promulgating these rules. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Hemp is a cost-effective, legal substitute for many prescription medications. Without access to hemp-based products, consumers will be forced to take expensive medications, less effective drugs with more side effects.

Response: The Department heard from many commenters that hemp-based products are a low cost and safer alternative to prescription medications. With these rules, the Department is regulating HDC products as directed by the legislature. The Department does not opine on whether hemp-based products are as or more effective than prescription medications or have fewer side effects. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department presumes the legislature considered all health concerns and the effectiveness and cost of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment(s):

- THCa helps U.S. veterans cope with military service-related conditions, including PTSD and depression. With THCa veterans can better integrate back into civilian life and handle day-to-day stresses.
- Banning cannabis will negatively affect a large percentage of veterans who rely on cannabis to avoid side effects caused by prescription medications from the VA.

Response: The Department heard from many commenters who either identified themselves as a military veteran or who advocated on behalf of veterans. These commenters expressed that use of hemp products was beneficial in treating PTSD, depression, and other service-related conditions, and was a popular treatment choice with veterans because not only were hemp products effective in treating these conditions, but they did not have the unpleasant side effects of prescription medications. The Department does not opine on the effectiveness of these products to treat military service-related conditions. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health, Department of Veterans Services, or Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking. The Department is required to administer the hemp and HDC laws regardless of their effect on products that will be precluded from the market.

Comment: For persons with Tourette's syndrome, THCa can lessen symptoms and tics to make working in an office environment more comfortable.

Response: Several commenters reported use of HDC products as beneficial in treating conditions associated with Tourette's syndrome. The Department does not opine on the effectiveness of these products to treat Tourette's Syndrome, and notes whether they do or not, the Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Most of the people who speak out against legal cannabis wrongly assume that everyone using the products do so to "get high." This is incorrect because a majority of customers are either elderly people dealing with health concerns or veterans seeking relief for combat related injuries and PTSD.

Response: The Department received significant numbers of comments related to medical use of HDC products by seniors and veterans. The Department does not opine on whether cannabis is effective in treating health concerns or injuries experienced by seniors and veterans, and notes whether it does or not, the Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Veterans Services, Department of Health, or the Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Legal cannabis products serve as alternatives to FDA approved cannabis pills, which are expensive and often out of stock.

Response: The Department does not opine on whether legal cannabis products serve as alternatives to FDA-approved cannabis pills and notes the cost and/or availability of FDA-approved cannabis pills is beyond the Department's control. The Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. Hemp and HDC products will continue to be legal under the Department's rules so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and adhere to other requirements set by the HDC law and the rules.

Comment: THCa is needed in Tennessee so consumers can be independent from big pharmaceutical companies.

Response: The Department does not opine on either the necessity of or use of THCa products to replace pharmaceuticals, and notes the Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. THCa products will continue to be legal under the Department's rules so long as the products comply with regulatory requirements of the HDC products law and these rules, including a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment: THCa and CBD flower are vital to consumers' health and well-being. THCa and smokeable hemp are the only non-opioid treatments that provide pain relief.

Response: The Department does not opine on whether THCa and CBD flower are beneficial to a consumer's health and well-being or effective pain relievers, but notes THCa and CBD flower will continue to be legal under the Department's rules so long as these products comply with regulatory requirements of the HDC products law and rules, including a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment: THC has been approved by the FDA to treat nausea and vomiting caused by cancer chemotherapy as well as weight loss and poor appetite in patients with AIDS.

Response: The Department is aware that the FDA has approved certain cannabis (THC) products for nausea and vomiting caused by chemotherapy, etc. The Department's rules do not attempt to regulate FDA-approved products. The Department does not have rulemaking authority to authorize HDC products with a THC content greater than 0.3%, tested in a manner similarly reliable to post-

decarboxylation. Authority to codify the legality or illegality of medical marijuana lies with the legislature, not the Department.

Comment: THCa, among other cannabinoids, has been shown to have many healing properties and is helpful for treating the symptoms and side effects of the following: abdominal pain, acid reflux, ADD, ADHD, alcoholism, ALS, Alzheimer's, anxiety, appetite, arthritis, autism, bipolar disorder, calmness, cancer, carpal tunnel, chronic illness, chronic joint pain, chronic pain, colitis, Crohn's disease, depression, disc degeneration, diverticulitis, eating disorders, endometriosis, epilepsy, fibromyalgia, GAD, gastrointestinal issues, Huntington's disease, IBS, inflammation, irritability, insomnia, lupus, memory loss, mental health, migraines, mobility issues, MS, muscle aches and body sores, muscle spasms, muscular dystrophy, myoclonus, nausea, nerve pain associated with Type 1 diabetes, neurofibromatosis, neuropathic pain associated with cancer treatment, neuropathy, nicotine addiction, night terrors, OCD, open wounds, orthopedic pain, panic attacks/disorders, paraplegic recovery, Parkinson's, personality disorder, plantar fasciitis, polycystic ovarian syndrome, postural orthostatic tachycardia syndrome, post-partum depression, psoriatic arthritis, PTSD, recovery from exercise, restless leg syndrome, rheumatoid arthritis, schizophrenia, scoliosis, sleep disorders, spasticity, stress, stroke, suicidal ideation, Tourette's syndrome, tremors, and ulcerative colitis.

Response: The above comment is an amalgam of medical conditions commenters submitted to the Department as being treatable by THCa and other HDC products. The Department does not opine on the efficacy of THCa or other HDC products to heal or to treat symptoms and/or side effects of diseases or medical conditions. The Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health, Department of Veterans Services, or Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Physicians recommend patients visit hemp businesses for delta 8 gummies in 25 milligram servings. With the proposed regulations, the gummies will be illegal and there will not be an alternative available.

Response: The Department does not opine on whether delta-8 gummies are recommended for medical treatment. Delta-8 products will continue to be legal so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and comply with other requirements under the HDC law and the Department's rules. 25 mg limits, in the aggregate, of one or more HDCs within edible HDC products is a limit set by statute, and not set by these rules.

Comment: THCa flower lessens the need for antipsychotic medications.

Response: The Department does not opine on whether THCa lessens the need for antipsychotic medications. The Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or the Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Cannabis lessens reliance on pharmaceutical sleep aids like Ambien and Lunesta.

Response: The Department does not opine on the efficacy of cannabis to lessen reliance on

pharmaceutical sleep aids. The Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Many Tennesseans who suffer from addiction and substance abuse use THCa in place of substances like alcohol, opioids, and other prescription medications. Without access to THCa these Tennesseans are at an increased risk for continued addiction, relapse, and overdose.

Response: The Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. The new legislation requires the Department to test HDC products for THC concentrations using a method that captures the conversion of THCa to THC. The amount of THC allowed in HDC finished products is statutorily prescribed as 0.3%, when tested in a manner similarly reliable to post-decarboxylation. THCa, when tested as required, converts to delta-9 THC through the decarboxylation process. THCa products will still be allowed under the Department's rules so long as the products contain a THC content of 0.3% or less, in addition to meeting other regulatory requirements.

Also included under this general summary various commenters offered the following specific ideas or points regarding the comment:

Comment: Tennesseans are heavily against opioids and the harm they cause to the state. The only way to prevent opioid abuse is to keep THCa legal in addition to programs to help individuals who struggle with addiction.

Response: The Department does not opine on the efficacy of THCa as a solution to opioid abuse and addiction issues. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking. Regardless, the Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. THCa will continue to be legal under the law and the Department's rules so long as the products comply with regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment(s):

- It is reckless to take away legal options for pain relief and doing so leaves many people with three options, (1) suffering with no relief, (2) breaking the law to access products to get the same relief that they have legally benefitted from for years, or (3) turning to dangerous and addictive opioids to get the same relief that they can get from THCa.
- Tennessee is infringing upon the rights of honest, hardworking citizens who need hemp-based products for medicinal purposes. This move will only result in more pain for consumers and less money for the state.
- The proposed rules take away a safe, legal option [CBD flower] that has already been legal for years.

Response: The Department understands that administration of the HDC products law may result in removal of various products from the marketplace, but the Department disagrees that regulation of hemp-based products under a lawfully passed statute is equivalent with infringement upon rights. The Department is charged by the legislature with promulgating rules re HDC products and is required to carry forward these rules regardless of their effect on products that will be precluded from the market. HDC products, including THCa and CBD flower, will continue to be legal under the Department's rules so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and adhere to other regulatory requirements, including testing for residual pesticides, microbial contaminants, etc. As such, the Department presumes HDC products that remain in the marketplace once the rules are in effect will be safer than the unregulated products that may have proliferated in the marketplace prior to July 1, 2023.

Comment: Access to THCa keeps consumers from turning to prescription medication or heavily addictive opioids for pain relief, relaxation, antidepressants, and recovery from addiction.

Response: Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or the Department of Mental Health and Substance Abuse Services. The Department notes consumers will still have access to THCa products under the Department's rules so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and comply with other regulatory requirements (e.g., testing for residual pesticides, microbial contaminants, etc.). The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Cannabinoids serve as a legal, non-addictive, non-lethal alternative to alcohol and prescription drugs. When used in place of opioids and other prescription medication, cannabis presents no side effects or risk of overdose. Cannabinoids do not cause liver and kidney damage to the same extent as pharmaceutical medications. Hemp-derived cannabinoid products are more affordable than prescription medications and offer fewer side effects.

Response: The Department does not opine on whether cannabinoids are non-addictive, non-lethal, lack side effects, pose no risk of overdose or liver and kidney damage, or are more affordable than prescription medications. The Department notes that whether they do or not, the Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. HDC products will continue to be legal under the Department's rules so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and meet other regulatory requirements. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or the Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace during their passage of the laws authorizing this rulemaking.

Comment: Alcohol is entirely legal with lenient regulations but is more dangerous than hemp. Alcohol is responsible for 26% of all traffic fatalities in 2019, whereas hemp caused 0 traffic fatalities during the same period.

Response: The Department expects the General Assembly considered Tennessee's existing alcohol laws and was aware of data re alcohol-induced traffic fatalities when it drafted the HDC legislation. The Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. HDC products will continue to be legal under the Department's rules so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and meet other regulatory requirements.

Comment: The total THC standard in the rules only benefits the alcohol market and big pharmaceutical companies. Tennesseans believe in autonomy from the pharmaceutical industry. Opiates cause 80,000 deaths annually in the United States but are not banned. Pharmaceutical lobbyists have too much influence in this country.

Response: As discussed elsewhere in this document, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute. The limits on the amount of THC in hemp products is set in federal and state law, which lie outside the Department's jurisdiction to control and which the Department is bound to follow in promulgating these rules, regardless of associated effects on products in the marketplace or tangential benefits or detriments to other industries.

Comment: Cannabinoids prevent addiction. Recovering addicts rely on THCa heavily to move forward with alcohol and drug-free lives. THCa is a natural product and stops addiction to harmful opiates and other chemicals.

Response: The Department heard from many commenters that THCa and other cannabinoids were critical in either helping them personally or someone they know recover from alcohol or drug addiction. The Department does not opine on use of HDC products to prevent or treat addiction. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or the Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace in their passage of the HDC products law.

Comment: Cannabis may prevent or alleviate alcohol-induced or depression-induced suicidal ideation.

Response: More than one commenter proffered cannabis as a treatment for these conditions. The Department does not opine on use of cannabis to prevent or alleviate suicidal ideation. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or the Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace in their passage of the laws authorizing this rulemaking.

Comment: Tennessee is in a drug use epidemic. The focus of the state should be on addressing the use of and addiction to dangerous drugs, such as meth and opioids, not on cannabis.

Response: The Department agrees drug addiction is a serious issue. The Department presumes the foci of public policy on this topic was considered by the legislature during passage of hemp and HDC product laws that authorized this rulemaking. The Department stands committed to promulgate rules and administer T.C.A. §§ 43-27-101 and 201, et seq. as charged by the legislature.

Comment: Hemp products help people wean off fentanyl and other addictive drugs, aids in the symptoms of withdrawal, and prevents relapse.

Response: The Department received many comments re hemp products helping people in their recovery from drug addiction, including helping them maintain sobriety. The Department does not opine on use of hemp products to wean people off addictive drugs or to aid with withdrawal symptoms and prevent relapse. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or the Department of Mental Health and Substance Abuse Services. The Department presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace in their passage of the HDC products law.

Comment: Consumers fear that hemp products will be banned or overregulated forcing them to ask healthcare providers for pain medications, including opiates.

Response: The Department is regulating, not banning, hemp products and the Department's goal with its rules is to carry forward the plain reading of statutory authority for the laws it is charged to administer and to protect consumers of hemp products. In doing so the Department is promulgating these rules with the most minimally intrusive approach to regulating HDC products while still meeting the requirements of the legislation. The Department's rules are written in accordance with

its directives from the legislature under T.C.A. §§ 43-27-201, et seq. These directives include regulating access to HDC products by, among other things, testing for safety and toxicity, proper labeling of such products, and determining THC concentrations of products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis. The Department does not opine on medicinal use of hemp products, and presumes the legislature considered all health concerns and the effectiveness of all products in the marketplace in their passage of laws authorizing this rulemaking.

Comment: It would be best for Tennesseans if the state allowed hemp products to be sold because making the products available cuts down on illegal use, criminal charges, and anxiety.

Response: The Department is regulating, not banning, hemp products. The Department's rules are written in accordance with its directives from the legislature under T.C.A. § 43-27-201 et seq. These directives include regulating access to HDC products by, among other things, testing for safety and toxicity, proper labeling of such products, and determining THC concentrations of HDC products, with an allowable THC limit of 0.3%, tested in a manner similarly reliable to post-decarboxylation. Hemp products will be allowed under the Department's rule so long as they comply with the HDC law and the Department's rules. The Department does not opine on any criminal actions, illegal use, or anxiety that may or may not occur indirectly or incidentally to the regulation of HDC products, and presumes the legislature considered such potential outcomes when it drafted and passed the legislation authorizing promulgation of these rules.

Comment: Consumers will seek mind-altering substances and/or substances to relax, regardless of whether those substances are legal. It is better to regulate and provide safe access to taxable products.

Response: The Department's rules regulate safe access to HDC products manner in which the Department was direct by the legislature under T.C.A. §§ 43-27-201, et seq. Under these statutes the amount of THC allowed in HDC finished products is statutorily prescribed as 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department understands that products with a THC content of 0.3% or less are less likely to have the mind-altering or relaxation properties consumers seek than products available in the market prior to passage of the HDC product law, and the Department acknowledges that setting allowable limits on THC content in HDC products may not automatically change consumer demand for such products. The Department expects consumer demand for HDC products and any loss of tax dollars as a result of regulation were considered by the legislature during passage of laws authorizing this rulemaking. Regardless, the Department's rules re allowable THC content must adhere to the enabling statute and the Department is required to administer that statute regardless of its effect on products that will be precluded from the market.

Comment: Cannabis replaces narcotics, chemotherapy, and dangerous pharmaceuticals which are all expensive for consumers without medical insurance. Opioid prescriptions can cost families \$800 per month.

Response: The Department does not opine on use of cannabis in lieu of pharmaceuticals or other drugs, the affordability of cannabis compared to products covered by medical insurance, or the availability or cost of medical insurance as those concerns are outside of the Department's authority. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health, Department of Mental Health and Substance Abuse Services, or Department of Commerce and Insurance. The Department expects public health considerations, affordability of health products and services, and consumer use of HDC products were considered by the legislature during passage of laws authorizing this rulemaking.

Comment(s):

- The impact of drug policy on accidental deaths is a crucial aspect of the cannabis debate. The opioid epidemic highlights the deadly consequence of a punitive drug policy. States with legalized marijuana have experienced a decline in opioid-related deaths, which is a different trajectory from those states who continue to criminalize or ban marijuana. Alcohol and tobacco, despite being legal, have their own set of social and health-related challenges. Acknowledging this allows for a more nuanced and comprehensive approach to drug policy.
- Legal cannabis in other states has reduced opioid deaths by 25% and hospital opioid overdose emergencies by 7.6% in first six months of being legal.

Response: The Department expects the opioid epidemic and its impact on Tennessee as well as public health considerations for or against legalization of marijuana, including related data from other states, were considered by the legislature during passage of these laws. Regardless, the legislature, not the Department, retains authority to codify the legality or illegality of marijuana and other drug policies of the state. The Department may only administer the hemp and HDC product statutes and promulgate rules for the statutes' clarification and application, as directed by the legislature.

Comment: Lawmakers should focus on banning products like Kratom which cause serious harm.

Response: Authority to codify the legality or illegality of Kratom lies with the legislature, not the Department.

Comment(s):

- Alcohol is the "gateway drug" that everyone claims marijuana is.
- Drug abuse is devastating and often starts with alcohol or tobacco.

Response: The Department received several comments which raise this issue and/or discuss the legality and ready availability of alcohol and tobacco compared to marijuana, which remains illegal. Such comments are also addressed elsewhere in this document. The Department presumes the legislature considered the concerns raised by commenter during promulgation of laws that authorize this rulemaking. The scope of the Department's rulemaking is to promulgate rules for regulation of hemp and HDC products, in accordance with direction from the legislature. For changes to alcohol or tobacco laws and/or creation of laws legalizing marijuana, the legislature holds that authority, not the Department.

Comment: When cannabis use is not allowed due to employment drug tests, consumers risk addiction to opioids to manage pain.

Response: As discussed elsewhere in this document, the Department is aware consumers report using cannabis to manage pain. Based on the language of T.C.A. § 43-27-210, "Limitations on right to use hemp-derived cannabinoid – Rights of others", the Department presumes that during passage of laws that authorize this rulemaking the legislature considered use of cannabis by consumers and the rights of employers to accommodate or not accommodate an employee's use of HDCs (cannabis) in the workplace. The Department does not have the authority to change this or any provision of the statute or an employer's workplace drug policy.

Comment: As proposed, the rules will ban CBD products, including flower, vapes, and concentrates.

Response: The proposed rules do not ban all products containing cannabidiol ("CBD"). The Department is authorized to regulate HDCs defined by T.C.A. § 43-27-202, which includes, but is not limited to delta-8 THC, delta-10 THC, and THCa. The law makes clear that CBD is not included in the definition of "hemp-derived cannabinoid" and beyond the scope of the Department's regulatory authority. The proposed rules neither implement a threshold nor testing requirements for CBD. However, CBD products that do contain cannabinoids that meet the definition of HDC in a concentration of 0.1% or greater, do fall within the Department's authority to regulate. To the extent that CBD products are removed from the market, it is likely because they contain more than 0.3% of delta-9 THC, tested in a manner similarly reliable to post-decarboxylation, and/or impermissible levels of microbial contaminant, mycotoxins, heavy metals, or residual pesticides.

Also included under this general summary various commenters offered the following specific ideas or points related to this comment:

Comment: The rules ban CBD flower, which is a natural plant product, but do not ban synthetic hemp-derived cannabinoids. Unlike other hemp-derived products CBD does not get consumers high. Anyone who seeks to ban CBD is only doing so because it is considered a "gateway drug." CBD helps thousands of Americans dealing with health problems, including PTSD, stress, anxiety, and sleep disorders. CBD products significantly reduce chronic inflammation and pain. However, without THC, CBD does not alleviate symptoms.

Response: The Department does not opine as to whether CBD is a "gateway drug," and notes the Department is not banning but regulating HDCs as directed by the legislature under T.C.A. §§ 43-27-201, et. seq. These directives include regulating HDCs such as delta-8 and delta-10 that can be synthesized from other cannabinoids. The law makes clear that CBD is not included in the definition of HDC and is beyond the scope of the Department's regulatory authority. However, CBD products that contain cannabinoids that meet the definition of an HDC in a concentration of 0.1% or greater, do fall within the Department's authority to regulate. To the extent that CBD products are removed from the market, it is likely because they contain more than 0.3% of delta-9 THC, when tested in a manner similarly reliable to post-decarboxylation, and/or impermissible levels of microbial contaminant, mycotoxins, heavy metals, or residual pesticides.

Comment: The 12-month expiration period in the rules is not based in science and will make retail sale of CBD products nearly impossible.

Response: The Department assumes this comment is in reference to a 12-month expiration date for HDC products. This provision for an expiration date is in statute at T.C.A. § 43-27-209, not the Department's rules, and requires all products containing an HDC that are sold at retail be labeled with an expiration date. However, neither the statute nor the Department's rules include a specific expiration period of 12 months or any other specific predetermined time period.

Comment: The proposed rules change the allowable amount of CBD in hemp derivatives and flower.

Response: Neither the proposed rules nor these final rules prescribe a maximum amount of CBD that may be present in a product. The Department is authorized to regulate HDCs as defined in T.C.A. § 43-27-202. The law makes clear however that CBD is not included in the definition of HDC and is beyond the scope of the Department's regulatory authority. The proposed rules neither implement a threshold nor testing requirements for CBD.

Comment: Commenters encourage the department to remove any rule that bans smokeable hemp products like CBD flower, concentrates, and vapes.

Response: The proposed rules do not ban inhalable (smokable) hemp products. The Department's rules regulate inhalable products that contain HDCs as defined in T.C.A. § 43-27-202 and the law sets requirements as to what inhalable products may contain. Under the statute, inhalable hemp products shall not contain more than 0.3% delta-9 THC when tested in a manner similarly reliable to post-decarboxylation and/or impermissible levels of mycotoxins, heavy metals, microbial contaminants, or residual pesticides, or fail to meet other requirements under the HDC law and the Department's rules.

Comment: CBD may be used for small, domesticated animals to help with anxiety and pain. Prescription medication for pets can be expensive and damaging to organs.

Response: The Department is promulgating its rules for HDC products pursuant to the legislature's directives under T.C.A. § 43-27-201, et. seq. CBD is not included in the statutory definition of HDC and is beyond the scope of the Department's regulatory authority. To the extent that CBD products are removed from the marketplace, it is likely because in addition to CBD, the products contain more than 0.3% delta-9 THC, when tested in a manner similarly reliable to post-decarboxylation, or fail other testing requirements under the rules. The Department does not opine on use of CBD in domesticated animals.

Comment: A ban on THC or hemp products is government overreach and inconsistent with Tennessee's conservative state policy to protect personal freedoms and liberty.

Response: The Department's rules are consistent with its statutory authority under T.C.A. §§ 43-27-101 and 201, et seq., to regulate, not ban THC or hemp products.

Also included under this general summary various commenters offered the following specific ideas or points related to this comment:

Comment: The legislation and the proposed rules appear to further the interests of the private pharmaceutical industry and continue the proliferation of opioids in rural communities. A ban on hemp indicates Tennessee lawmakers are under the influence of the pharmaceutical industry.

Response: The Department expects that during passage of laws that authorize this rulemaking the General Assembly considered consumer use of HDC products and the impact of opioids on all citizens in Tennessee. The Department is charged under T.C.A. §§ 43-27-101 and 201, et seq., with promulgating rules and administering these laws. As such, the Department's interest in this rulemaking is to regulate, not ban, hemp and HDC products as directed by the legislature. Any concerns or proposed changes re the governing statutes should be directed to the legislature; changes to the governing statutes are beyond the Department's jurisdiction or control.

Comment: Adults should have the freedom and autonomy to use cannabis products. Restricting that freedom shows Tennessee is moving backwards. The only thing that can be accomplished by banning hemp products that offer relief to millions of people is that consumers will break the law in order to get relief.

Response: The Department is aware that 38 states in the Union have either a comprehensive medical cannabis program or an adult/medical use regulated cannabis program. Tennessee is not one of the 38, and the Department cannot legalize through rulemaking that which is not legal in state statute. In promulgating these rules, the Department is following the directives of the legislature under T.C.A. §§ 43-27-101 and 201, et seq., and notes the Department's rules regulate, not ban, cannabis (hemp and HDC) products. The Department expects that during passage of laws that authorize this rulemaking the General Assembly considered the impact regulation would have on products currently in the marketplace. Authority to codify the legality or illegality of marijuana lies with the legislature, not the Department. The Department is required to administer the hemp and HDC product laws regardless of consumer behavior or the laws' effect on products that will be precluded from the marketplace.

Comment: Banning smokable farm products would be a grave disservice to people who use the products medicinally.

Response: While the Department notes its rules regulate, not ban, smokeable (inhalable) products, the Department acknowledges that the allowable THC threshold in the rules may have a greater impact on inhalable products than other types of HDC products. The reason the rule's testing requirements may affect the majority of smokable products is not because the Department is targeting or banning smokable products, but because of the language in the governing law. If an HDC product contains THC or THCa and is tested in a manner similarly reliable to post-decarboxylation as required by the law, the presence of THCa in the product may affect its compliance with the law's 0.3% THC statutory limit. The Department can neither raise the allowable THC limit by rule nor legalize medical marijuana through rulemaking. That authority is reserved for the legislature.

Comment: Banning THC does not represent the values of Tennesseans and would be a blow to freedom and the preservation of rights that the United States stands for. Do not repeat prohibition.

Response: The Department notes it is not banning THC but regulating products containing THC, as required by the legislature. The state HDC law requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis. The Department cannot raise the allowable THC limit in contravention statutory requirements.

Comment: A “total THC” standard places limits on THCa that directly conflicts with the statute and overrides federal regulations. Divergence from state law is likely preempted by federal law.

Response: Federal regulations, under 7 CFR § 990, requires a total THC testing standard for hemp production and for state hemp programs, with an acceptable limit of 0.3% or less THC on a dry weight basis. All cannabis that tests as having a THC concentration level of higher than 0.3 percent on a dry weight basis is defined as marijuana.

As discussed elsewhere in this document, the Department has removed from these rules the term “total THC” in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute, with an allowable THC limit of 0.3% or less on a dry weight basis. This limit includes contributions from any THCa, as it decarboxylates into delta-9 THC.

The Department cannot by rule raise the allowable limit for THCa products. That authority is vested in the state legislature.

Comment: Biased lobbyists pushed for regulation of hemp products in an effort to keep people addicted to alcohol and cigarettes.

Response: The Department notes the law that passed charging the Department to promulgate these rules received Constitutional majority as required by the Tennessee Constitution for enactment of laws. Passage of the law lies within the control of the legislature, not the Department. Any efforts or effects of lobbyists on the laws are outside the Department’s control. The Department may only administer the statute and promulgate rules for the statute’s clarification and application, as directed by the legislature.

Comment: The government only reacts to money and elections. The voting majority are in favor of legalized cannabis, yet each time the issue comes up, cannabis is quietly brushed away. The government pretends to want to hear what the people have to say, but the government has decided the matter years ago.

Response: A large percentage of commenters submitted to the Department that the majority of Tennessee citizens believe cannabis (marijuana) should be legalized. The Department is aware that 38 states in the Union have either a comprehensive medical cannabis program or an adult/medical use regulated cannabis program. Tennessee is not one of the 38, and the Department cannot legalize through rulemaking that which is not legal in state statute. The Department is therefore promulgating these rules in accordance with its directives from the legislature under the governing statutes.

Concerns re passage of laws or legalization of marijuana in Tennessee may be directed to the legislature, which has the authority to codify the legality or illegality of marijuana.

Comment: If state officials support the ban on THCa they are greedy and misinformed. Concerns over hemp can be met with regulation and education instead of prohibition.

Response: The Department is promulgating these rules to comply with the directives of the legislature under T.C.A. §§ 43-27-201, et seq., to administer the statutes and construct a regulatory program for HDC products. As such, the Department's rules will regulate, not ban, hemp products—including THCa—as commenter suggests should be done. In addition, with its rollout of the new regulatory program for HDC products, the Department intends to educate stakeholders before regulating them, as has been the Department's consistent historical practice with all its regulatory programs.

Comment: Cannabis is being decriminalized nationally, so banning cannabis would be unconstitutional. State officials should stop listening to alcohol and tobacco lobbyists and let the market dictate what consumers want.

Response: The Department is promulgating rules to regulate, not ban, cannabis (hemp and HDC) products, as directed by the legislature under T.C.A. §§ 43-27-101 et seq. and 43-27-201, et seq. Any efforts or effects of lobbyists on the laws are outside the Department's control; the Department may only administer the statute and promulgate rules for the statute's clarification and application in accordance with legislative direction. The Department does not pass state laws and is not able to legalize marijuana (cannabis) through its rules. The authority to do so is reserved to the legislature. Changes to cannabis laws in Tennessee must be directed to the legislature, not the Department.

Comment: Cannabis is too beneficial for the rules to make it harder or more costly for consumers to acquire it.

Response: Without more specifics as to what commenter means by "too beneficial," the Department is not able to fully respond to this comment. The Department is promulgating rules for regulated and safe access cannabis (hemp and HDC products) as directed by the legislature under T.C.A. §§ 43-27-101 et seq. and 43-27-201, et seq. The Department does not opine on the benefits of cannabis, but notes that the rules, consistent with legislative intent of the governing statutes, are designed to make available hemp and HDC consumer products that are safer and more consistent products than what has been available in the market prior to passage of these laws. The Department expects the General Assembly considered the effects of these laws and their associated rules on consumer access to products currently in the marketplace during their passage of laws authorizing this rulemaking. The Department stands committed to administer those laws as it was charged by the legislature.

Comment: Decisionmakers in Nashville are operating in their own self-interest. New laws are evidence that the government does not care about Americans. State officials should consider all Americans, not just those with money and influence.

Response: Passage of the hemp and HDC product laws were conducted by the legislature and lie beyond the Department's control. Review of Tennessee legislative history suggests that product ingredient tolerances and consumer safety were primary reasons for passage of the HDC law and its requirement for rules re safety, potency, and toxicity of HDC products. The Department's interest in promulgating these rules is to follow the directives of the legislature under T.C.A. §§ 43-27-101 and 201, et seq, to regulate hemp and HDC products and to do so in a manner that demonstrates consistent and equal application of the law across all stakeholders affected by these rules.

Comment: The hemp industry is being punished for making too much money.

Response: Review of Tennessee legislative history suggests that product ingredient tolerances

and consumer safety were primary reasons for passage of the HDC law and its requirement for rules re safety, potency, and toxicity of HDC products. The Department is promulgating rules to regulate hemp and HDC products as required by the legislature under T.C.A. §§ 43-27-101, et seq., and 43-27-201, et seq., and is doing so in as minimally an intrusive manner as it can for those impacted by the rules while still also meeting the requirements of the legislation.

Comment: The rules are short-sighted and uninformed. The government does not understand the science of cannabis and is making laws without being familiar with the subject matter. Lawmakers are out of touch and ignorant about science and problems facing Tennesseans. Lawmakers should focus on public health and substance abuse problems in the state.

Response: Without specific reference to the "the science" at issue in the comment, the Department is unable to respond fully to this comment. The Department is promulgating rules for hemp and HDC products as required and directed by the legislature under T.C.A. §§ 43-27-101 and 201, et seq. These rules were drafted by Departmental employees versed in various requirements affecting the rules, including food safety and manufacturing, hemp grower requirements, and laboratory standards and testing. During the drafting process the Department also consulted with multiple sister agencies for their relevant crossover expertise and met with industry and stakeholders who offered to lend their subject matter expertise to the Department in development of the rules.

Given that level of outreach and communication with public stakeholders in the rules, the Department was able to amend the rules in the vast majority of instances requested or recommended by industry, including eliminating application requirements for submission of product lists and product labels for manufacturer/distributor and retailer licenses; additional testing requirements in downstream commerce absent chemical or compositional change to an HDC input; reserve sample requirements for third-party testing laboratories in manufacturer/distributor rules; movement restrictions against HDC retail licensees; and amending product label warning requirements for greater brevity and sizing flexibility.

The Department expects the General Assembly considered public health and substance abuse issues in the state, during passage of the governing statutes and sought subject matter expert input during that process. Passage of state laws, including the hemp and HDC product laws governing this rulemaking, lie within control of the legislature, not the Department.

Comment(s):

- Hemp is grown naturally and is outside of man's jurisdiction, therefore, the new laws are unconstitutional.
- Hemp plants and products were used and consumed by the founding fathers.

Response: The Department notes state and federal governing bodies routinely regulate plants and products derived from plants. The Coca plant species, from which cocaine is derived; the Poppy plant, from which opium is derived; and the Peyote cactus, from which peyote is derived, are all examples of other naturally growing plants whose products are regulated by the government. If the commenter is referencing the state statutes as "the new laws" that are unconstitutional, passage of state laws lies within the jurisdiction and control of the legislature, not the Department. The Department may only administer the statutes and promulgate rules for the statutes' clarification and application.

To the extent these comments are proposing marijuana should be legal in Tennessee, the Department does not have the authority to legalize marijuana by rule. The authority to codify the legality or illegality of marijuana lies with the legislature; the Department cannot legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment: The rules should not restrict the sale of hemp-derived cannabinoid products. Rather, the regulations should focus on the presence of additive agents used by some manufacturers that may be harmful to consumers.

Response: The Department is regulating products as directed by the legislature under T.C.A. § 43-27-201, et seq. The Department is aware that production of various HDC products may entail use of harmful solvents or other chemicals. See <https://www.fda.gov/consumers/consumer-updates/5-things-know-about-delta-8-tetrahydrocannabinol-delta-8-thc>.

The Department is also aware that use of dangerous chemicals in HDC products is a driving factor in the legislature's decision to pass the HDC law to bolster consumer protection. To that end, the Department has promulgated these rules in an effort to establish reasonable tolerances or exclusion of various chemicals from products available in the marketplace. To the extent the sale of HDC products are more restricted under the Department's rules, it is either due to products not meeting statutory requirements passed by the legislature within the law, or due to products that are not complying with testing and other safety requirements under the rules.

Comment(s):

- If enacted, the proposed rules will effectively ban products like CBD and THCa flower that are legal in Tennessee. The law is anti-business, anti-tourist, and un-American.
- There are a minimum of a few hundred tourists who visit Nashville and Chattanooga every weekend due to Tennessee's hemp industry. The proposed rules will kill the Tennessee economy. Fully legalizing hemp, and by extension cannabis, could enhance Tennessee's already thriving tourism industry and attract more visitors interested in legal hemp.
- Tennessee is a haven for those seeking legal, natural hemp products consumers can trust.

Response: The Department's rules regulate, not ban, hemp and HDC products. The Department is promulgating these rules in accordance with the directives of the legislature under T.C.A. §§ 43-27-101 and 43-27-201. Passage of state laws, including the hemp and HDC product laws, lies within the jurisdiction and control of the legislature, not the Department. The Department may only administer the statutes and promulgate rules for the statutes' clarification and application. In doing so, it is not the Department's intention to negatively affect business or the tourism industry, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer. The Department presumes the legislature considered effects on state revenues and tourism dollars during passage of laws that authorize this rulemaking. The Department is required to administer the hemp and HDC product laws regardless of their effect on products that will be precluded from the market or any associated impacts to businesses or the tourism industry.

To the extent these commenters are proposing the legalization of marijuana in Tennessee, the authority to codify the legality or illegality of marijuana lies with the legislature. The Department cannot by rule raise legalize marijuana. The Department declines to make this change in the rules.

Comment: If hemp farmers are not allowed to grow THCa, but the rest of the hemp industry is allowed to sell it, hemp farmers will sue the state. The new laws help the drug cartels, not Tennessee farmers.

Response: The Department agrees that different testing standards across producers, manufacturers, distributors, and retailers for the same commodity are untenable. Therefore, as dictated by both the hemp and HDC product laws, the Department interprets application of those laws to provide for a uniform standard of testing for both hemp and HDC products, to be tested by LC-MS/MS employed in a manner similarly reliable to post-decarboxylation. As stated in other sections of this response packet, this standard is consistent with both state and federal definitions and allowances for THC in hemp and HDC products. Federal regulation, under 7 CFR § 990, requires a total THC testing standard for hemp production and for state hemp programs, with an

acceptable limit of 0.3% or less THC on a dry weight basis.

Comment: It is incredulous that the government would legalize THCa last summer and make it illegal this year.

Response: The law that was passed and effective July 1, 2023, statutorily prescribes the amount of THC allowed in hemp and HDC finished products as 0.3%, tested in a manner similarly reliable to post-decarboxylation. Under the law and the Department's rules promulgated in accordance with this law, THCa will continue to be legal so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department is not authorized to raise the allowable THC limit or alter the prescribed manner of testing by rule in contravention of the governing statute.

Comment: The department is not comporting with the legislation's intent to allow hemp products to be marketed, controlled, and sold subject to sales tax.

Response: The Department interprets this comment consistent with other comments which assert the Department is redefining hemp and therefore precluding currently available products from the marketplace. As such, the subject-matter of this comment is also discussed elsewhere in this document in answers to related similar comments received by the Department. T.C.A. §§ 43-27-201 et seq., prescribes the amount of THC allowed in HDC finished products as 0.3%, tested in a manner similarly reliable to post-decarboxylation. Under the law and the Department's rules, hemp and HDC products will continue to be legal so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department is not authorized to raise the allowable THC limit or the prescribed manner of HDC product testing by rule in contravention of the governing statute, and regardless of any loss of taxable products currently in the marketplace. The Department notes Tennessee's legislative history that contemplated hemp for its use in fabrics and textiles and not intended for its intoxicating qualities or use as a product to approximate marijuana, and also expressly considered the HDC product law for its effect to remove currently available HDC products from the market. The Department presumes these matters were considered by the legislature in passage of the laws the Department is charged to administer.

Comment: The proposed limits on THCa is a return to prohibition, which did not work. Banning legal access to THCa restricts legal commerce and empowers an illegal market and criminal organizations. Cannabis prohibition has given rise to powerful and violent drug cartels, perpetuating a cycle of poverty and crime in vulnerable communities. Lawmakers should stop wasting time and money on reversing the inevitable end of prohibition.

Response: The Department's rules regulate, not ban, access to hemp and HDC products. Under the legislation, the amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. THCa, when tested as required, converts to delta-9 THC through the decarboxylation process. The Department expects policy considerations re effects of drug laws on communities, crime rates, and effects on commerce—legal and illegal, etc., as well as legalization of marijuana, were considered by the legislature during passage of laws that authorize this rulemaking. Authority to pass those laws lies with the legislature and not the Department. The Department may only administer the statute and promulgate rules for the statute's clarification and application.

Comment: Legalization of marijuana and hemp products are inevitable. Tennessee would benefit from an early start to setting up a thriving hemp market that will provide income and reduce crime surrounding illegal drug use.

Response: The Tennessee General Assembly, not the Department, has the authority to codify the legality or illegality of marijuana. The Department presumes that crime rates and illegal drug use were considered by the legislature during passage of the HDC product law governing this rulemaking. Under current state law and the Department's rules, hemp products will continue to be legal so long as the products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department does not and cannot raise the allowable THC content or legalize marijuana by rule. The Department declines to make this change in the rules.

Comment: Do not limit availability of hemp products as they help many people. Many states have seen the benefits of hemp products and are actively making these products available to help their citizens. TN should support businesses that provide these products to people that need them.

Response: It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in regulating access to hemp and HDC products as required by the legislature. These requirements include testing for safety and toxicity and allowable THC content. Under these rules, hemp and HDC products will be available in Tennessee so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and pass requirements re microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents, and manufacturing chemicals. To the extent availability to products currently in the marketplace becomes more limited, it is likely because the products contain more than 0.3% of delta-9 THC and/or impermissible levels of microbial contaminant, mycotoxins, heavy metals, residual pesticides, or residual solvents.

The Department expects the General Assembly reviewed other states' laws re HDC products during its passage of the laws governing this rulemaking. Authority to pass the underlying HDC product law lies with the legislature, not the Department. The Department may only administer the statute and promulgate rules for its clarification and application.

Comment: Hemp products have become a significant part of many Tennesseans' lives. The proposed rules move the regulatory goalpost, and it is wrong and irresponsible.

Response: Under the HDC product law the Department is required to promulgate rules to effectuate the statutory requirements and construct a regulatory program for HDC products, as directed by the legislature. The Department drafted these rules in consultation with industry and stakeholders—and in response to public comment. However, and above all else, the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. Absent clear legislative intent, the Department must give plain meaning to each word in T.C.A. §§ 43-27-201, et seq., and the Department stands committed to administer those laws as charged.

Comment: New laws contradict Tennessee's goal to promote agriculture and commerce and do not represent the wishes of Tennesseans. As a state with a robust agricultural industry, it is important that the state continue to embrace the cannabis industry and the economic opportunities it provides.

Response: To the extent this comment expresses disagreement with the HDC law under T.C.A. §§ 43-27-201, et seq., authority to pass the law lies with the legislature and not the Department. The Department may only administer the statute and promulgate rules for its clarification and application.

Comment(s):

- The nation was designed so that citizens can pressure their state leaders, who can then pressure the federal government to make decisions that benefit the people.

- It is not sufficient to argue federal law requires a total THC standard because the US was designed so that citizens can pressure their states and states can pressure the federal government to bring about change.

Response: The Department agrees the democratic process involves citizen participation in their government's decision-making process to effect the will of the people, on both a state and federal level. The rulemaking comments submitted to the Department by Tennessee citizens and responded to in this document, as well as the changes the Department made to its draft of proposed hearing rules based on these comments, are evidence of that democratic process at work.

As discussed elsewhere in this document, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by Tennessee state statute. The Department does not have the authority to raise this allowable THC limit or alter the prescribed manner of testing by rule in contravention of the state statute.

Authority to pass state and federal laws lies with the state legislature and U.S. Congress respectively, not the Department.

Comment: The proposed rules are draconian and regulating THCa is an abuse of power. No agency has the right to tell consumers what they can put into their own bodies.

Response: In order to promulgate rules and enforce regulatory requirements, the Department must be given specific statutory authority and direction from the legislature to do so. In this case, and as discussed elsewhere in this document, the Department is promulgating rules for HDC products as directed by the legislature under T.C.A. §§ 43-27-201, et seq. Under this law, the amount of THC allowed in HDC finished products is statutorily prescribed as 0.3%, tested in a manner similarly reliable to post-decarboxylation. This testing method captures the conversion of THCa to THC.

The Department is not authorized to raise the allowable limit on THCa or alter the prescribed manner of testing by rule in contravention of the hemp or HDC product laws. Authority to pass or alter the provisions of those laws lies with the legislature, not the Department. The Department may only administer the statutes and promulgate rules for their clarification and application.

Comment(s):

- The proposed rules will only benefit rich demographics. Laws criminalizing and banning the use of cannabis historically destroy immigrant communities and communities of color. While the intent of strict drug laws and regulations has been to address drug abuse, they have inadvertently led to the marginalization of communities and perpetuated cycles of violence and incarceration. Drug policy should align with principles of justice, public health, and harm reduction.
- The proposed prohibition on hemp and cannabis is sensational, fact-free fear mongering and racist. Tennessee is in the minority of states that have not legalized cannabis.

Response: The Department's rules for hemp and HDC products are being promulgated in accordance with the directives of the legislature under T.C.A. §§ 43-27-101 and 201 et seq. As such, the Department is regulating, not prohibiting, hemp and HDC products. The Department agrees Tennessee is in the minority of states that have not legalized either medical or recreational marijuana. As of June 2024, according to the National Conference of State Legislatures, 38 states have either a comprehensive medical cannabis program or an adult/medical use regulated cannabis program. Tennessee is not one of the 38, and the Department cannot legalize through rulemaking that which is not legal in state statute.

The Department expects policy considerations re effects of drug laws on public health, communities, and criminal justice, etc., as well as legalization of marijuana, were considered by the legislature during passage of laws that authorize this rulemaking. Authority for passage of those laws lies with the legislature, not the Department. The Department may only administer the statute and promulgate rules for the statutes' clarification and application.

Comment: The testing provisions in the proposed rules are an overstep by the department and the total THC standard will kill the legal hemp industry in Tennessee.

Response: As discussed elsewhere in this document, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute. The Department does not have the authority to raise this allowable THC limit or alter the prescribed manner of testing by rule in contravention of the governing statute.

Comment: Politicizing cannabis regulations is compromising consumers' health.

Response: The Department does not pass state laws; that role is reserved to the legislature. The Department may only administer the statute and promulgate rules for the statutes' clarification and application. The Department is promulgating rules for hemp and HDC products as required and directed by the legislature under T.C.A. §§ 43-27-101, et seq., and 43-27-201, et seq.

Comment: The people getting rich off of THCa are either criminals selling it illegally or states transporting it into Tennessee. The state will never be able to legislate morality, so officials should focus on regulating THCa and allowing Tennesseans to grow and sell the product the public wants and needs to treat a variety of maladies.

Response: The Department does not opine on the efficacy or desirability of using THCa for medicinal purposes or treatments. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health or Department of Mental Health and Substance Abuse Services. The Department does not pass state laws and is not able to affect composition of state laws; that role is reserved to the legislature. The Department may only administer the statute and promulgate rules for the statutes' clarification and application. The Department is promulgating rules for hemp and HDC products as directed by the legislature under T.C.A. §§ 43-27-101, et seq., and 43-27-201, et seq. Under these statutes the amount of THC allowed in hemp and HDC finished products is statutorily prescribed as 0.3%, tested in a manner similarly reliable to post-decarboxylation. This testing method captures the conversion of THCa to THC. All HDC products offered for sale in Tennessee will be subject to this testing requirement.

The Department is not authorized to raise the allowable limit on THC or alter the prescribed manner of testing in contravention of the governing statute. Authority for passage or amendment of that law lies with the legislature, not the Department.

Comment: The proposed rules recategorize cannabis as a Schedule I controlled substance.

Response: The Department's rules for hemp and HDC products are being promulgated as directed by the legislature under T.C.A. §§ 43-27-101, et seq., and 43-27-201, et seq., and are consistent with state and federal provisions for regulation of hemp and HDC products. Currently, under the federal Controlled Substances Act tetrahydrocannabinols in hemp are exempted from the federal Schedule I controlled substances list. However, that exemption does not apply to cannabis with a THC concentration greater than 0.3% on a dry weight basis. State law has enacted provisions that comport with the definition of hemp and exemption of hemp from the state-controlled substances

act. Consequently, limits for THC and THCa are applicable to hemp products. If in the future state laws change re legalization of marijuana, allowable limits of THC in HDC products, or the prescribed manner of testing required by statute, the Department stands ready to amend its rules as necessary to comply with governing statutes.

Comment: As proposed, the regulations of THCa are a “fascist attack on plants.”

Response: State and federal regulations routinely regulate plants and products derived from plants. The Coca plant species, from which cocaine is derived; the Poppy plant, from which opium is derived; and the Peyote cactus, from which peyote is derived, are all examples of naturally growing plants whose products are regulated by the government. If the commenter is referencing the state statutes as the regulations that are a fascist attack on plants, authority to pass those laws lies with the legislature, not the Department. The Department may only administer the statutes and promulgate rules for their clarification and application.

To the extent this comment is proposing marijuana should be legal in Tennessee, the Department does not have the authority to legalize marijuana by rule. The Department declines to make this change in the rules. Authority to codify the legality or illegality of marijuana lies with the legislature, not the Department.

Comment: Regulations should strike a balance between public safety and economic opportunity within the hemp industry.

Response: The Department’s rules were drafted in consultation with industry, stakeholders, and in response to public comment received by the Department. Given that level of outreach and communication with public stakeholders in the rule, the Department was able to amend the rules in the vast majority of instances requested or recommended by industry, including eliminating application requirements for submission of product lists and product labels for manufacturer/distributor and retailer licenses; additional testing requirements in downstream commerce absent chemical or compositional change to an HDC input; reserve sample requirements for third-party testing laboratories in manufacturer/distributor rules; movement restrictions against HDC retail licensees; and amending product label warning requirements for greater brevity and sizing flexibility. In promulgating these rules, the Department is therefore taking the minimal approach necessary to address public safety and support the hemp industry while still adhering to its statutory authority and meeting the requirements of the legislation under T.C.A. §§ 43-27-101, et seq., and 43-27-201, et seq. The Department presumes the legislature considered public safety and economic opportunity concerns during passage of the laws authorizing this rulemaking. The Department is required to administer these laws regardless of their effect on these subjects.

Comment: The proposed rules represent a dumb, “trash” law put forward by the Baby Boomer generation.

Response: The Department is promulgating rules for hemp and HDC products as required and directed by the legislature under T.C.A. §§ 43-27-101, et seq., and 43-27-201, et seq. These rules were drafted in consultation with industry, stakeholders, and in response to public comments received by the Department.

To the extent this comment is expressing frustration with the content of the laws governing the Department’s rules, authority for passage of the hemp and HDC product laws lies with the legislature, not the Department. The Department may only administer the statutes and promulgate rules for the statutes’ clarification and application.

Comment: Tennessee's regressive decisions pertaining to naturopathic holistic treatments is a tragedy to health care. Tennessee needs to recognize scientific data over public ignorance.

Response: The Department's rules are being promulgated in accordance with its statutory authority and legislative directives to administer programs for hemp and HDC products. The Department notes these laws do not contain provisions re regulating naturopathic holistic treatments. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department expects that public health considerations and scientific data related to hemp and HDC products were considered by the legislature during passage of laws that authorize this rulemaking. The Department is required to administer the hemp and HDC product laws as passed by the legislature under T.C.A. §§ 43-27-101, et seq., and 43-27-201, et seq.

Comment: The rules open the door for law enforcement to make mistakes in enforcing the law and rules.

Response: In passage of T.C.A. §§ 43-27-201, et. seq., the legislature directed the Department to promulgate rules to effectuate the statutory requirements and administer a regulatory program for HDC products. In administering the details of this program the Department will conduct regulatory enforcement of the HDC statutes and rules. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code.

Comment: The department is exceeding current federal regulations and pulling the rug out from under a leading and growing industry. Banning THCa will reverse progress, drive investments down, force jobs out of state, and inhibit economic growth.

Response: The Department drafted these rules in consultation with industry and stakeholders and has repeatedly explained to industry since 2019 that federal laws and regulations and now state laws are requiring total THC testing requirements for hemp and HDC products. Compliance with those legal requirements are outside the Department's control and does not equate with intent to negatively affect the entire industry.

It is never the Department's intention to negatively affect business, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer and to do so in a manner that treats Tennesseans equally. To that end, and as discussed in other sections of this response packet re the definition of hemp, the THC testing standard, its prescribed manner of testing in a manner similarly reliable to post-decarboxylation, and its alignment with federal law and requirements for growers, the Department is required to administer the state hemp and HDC product laws regardless of their effect on products that will be precluded from the market or any associated financial impacts.

Comment: Under the new rules, Tennessee will lose an important source of revenue while it turns down additional federal funding.

Response: The Department expects the legislature was aware the HDC products law and its associated regulations would affect available products in the marketplace and considered resulting loss of revenue during passage of laws authorizing this rulemaking. The Department is not aware of any federal funding associated with state implementation or development of a hemp or HDC products program.

Comment: Tennessee is regulating the hemp industry after the state authorized the sale of CBD products. The state should implement laws and regulations that allow citizens to treat diseases and chronic pain.

Response: The Department interprets commenter's reference to the "hemp industry" to mean the HDC products industry. The state law for HDC products under T.C.A. §§ 43-27-201, et. seq., requires the Department to promulgate rules to effectuate the statutory requirements and administer a regulatory program for HDC products. Under this law, the Department is authorized to regulate products containing a hemp-derived cannabinoid, as defined in T.C.A. § 43-27-202. That statutory definition of HDCs includes, but is not limited to, delta-8 THC, delta-10 THC, and THCa. The law makes clear that CBD is not included in the definition of an HDC and is beyond the scope of the Department's regulatory authority. The proposed rules neither implement a threshold nor testing requirements for CBD. However, CBD products that do contain cannabinoids that meet the definition of an HDC in a concentration of 0.1% or greater, do fall within the Department's authority to regulate. If CBD products are removed from the market, it is likely because they contain more than 0.3% of delta-9 THC and/or impermissible levels of microbial contaminants, mycotoxins, heavy metals, residual pesticides, or residual solvents.

Issues re treatment of diseases and chronic pain may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department notes the HDC law does not contain any provisions re medical use of hemp and HDC products. The Department cannot implement such regulations without statutory authority to do so. The authority to pass and/or to make changes to the HDC product law is vested in the legislature, not the Department.

Comment: As proposed, the rules and their limits on THCa will significantly reduce the total revenue Tennessee could realize from fully legalizing hemp-derived cannabinoid products.

Response: It is never the Department's intention to regulate any industry in a manner that results in lost revenue, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department is required to administer the hemp and HDC product laws regardless of their effect on products that will be precluded from the market or any associated financial impacts on state revenue.

In support of this outcome, the Department notes that in passing the HDC law, the Tennessee legislature required Departmental testing methods of these products to employ liquid chromatography tandem mass spectrometry, "in a manner similarly reliable to post-decarboxylation," to determine a cannabinoid profile of samples tested, including their THC concentrations. THCa is a cannabinoid that converts to delta-9 THC through a process called decarboxylation. Hemp or any HDC containing more than 0.3% THC is illegal federally and in Tennessee.

Total THC testing is required under federal law and rule in order for Tennessee to have a state hemp production program. For this reason, the total THC standard has been effective in the Tennessee hemp grower/producer program rules since 2021—without significant prior objection from industry or the public. This understanding is also appropriate where the legislature has historically expressed intent for hemp legislation that related products do not intoxicate users and that hemp products be used for seed, fiber, and textiles as opposed to intoxicants. Whether to raise statutorily prescribed allowable THC percentages in cannabis products or the manner of hemp and HDC product testing lies within the authority of the legislature, not the Department. The Department cannot raise statutorily prescribed limits through rulemaking. The Department declines to make this change in the rules. It is presumed that the legislature, in drafting, deliberating, and voting on the statute, considered the financial impact of the legislation.

Also included under this general summary various commenters offered the following specific ideas or points regarding the comment:

Comment: In banning THCa, the state is turning down billions of dollars in tax revenue. Commenters suggest that between July and November 2023, the state received between \$3.6 and \$6.2 million in tax revenue from the hemp industry. This number could be increased if THCa products were legal. The tax revenue from THCa products could be used to support communities, schools, parks, social services, hospitals, and infrastructure to generate positive change for rural and urban Tennessee.

Response: THCa products are legal under the HDC product law and these rules, so long as they comport with statutorily prescribed requirements and regulations. As discussed elsewhere in this response packet, pursuant to T.C.A. § 43-27-207 passed by the legislature, the Department is required to test products for THC concentrations using a method that captures the conversion of THCa to THC. The allowable THC limit is statutorily prescribed as 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department expects the General Assembly considered the possible loss of products currently in the marketplace due to this testing method, and the subsequent effect on and allocation of state tax revenues, during passage of laws that authorize this rulemaking. The Department stands committed to administer those laws as it was charged in passage of T.C.A. §§ 43-27-201, et seq.

Comment: Banning hemp will bring a decline in tax revenue contrary to the legislature's intent in passing Senate Bill 0378. Allowing a safe, well-regulated hemp industry in the state would increase tax revenue. Additional revenue not only bolsters state finances, but it weakens the grip of criminal organizations that thrive on the illegal drug trade.

Response: The Department's rules do not ban hemp. Rather, hemp and HDC products are being regulated by the Department's rules, as required by the legislature under T.C.A. §§ 43-27-201, et seq. One of the primary goals of the rules is that consumers have safe access to well-regulated hemp products. As such, hemp products will continue to be allowed so long as products comply with regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, as required by the legislation. The Department expects when the legislature was passing these laws legislators considered the effects on tax revenue, state finances, and the illegal drug trade when they capped the allowable THC content in hemp products to 0.3%. The Department stands committed to administer those laws as it was charged in passage of T.C.A. §§ 43-27-201, et seq.

Comment: 70-80% of current retail products are flower products. A ban on THCa flower would harm retailers and reduce tax revenue implemented by the statute. Without revenue from THCa, the Tennessee economy will collapse sending shock waves throughout Tennessee businesses who will lose customers to the black market, neighboring states, and online sales. In other states, THCa is outpacing legal cannabis markets and is driving massive economic growth.

Response: THCa products, including flower, will still be allowed under the Department's rules so long as they contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, in accordance with the governing statute. The Department is aware of reports from industry that the rules as promulgated may extinguish 70-80% of the market in flower products, e.g., flower, vapes, and concentrates. The Department notes from the legislative history: the legislature was aware that passage of this law and its restriction of HDCs could remove various products from the marketplace. The Department expects the legislature considered any resulting loss in tax revenue and potential effect on the state's economy during its passage of laws authorizing this rulemaking.

Comment: According to the National Cannabinoid Report, the current demand for hemp-derived cannabinoids surpassed \$28 billion, supporting 328,000 jobs and generating \$13 billion in wages. The industry contributes more than \$79 billion to the U.S. economy. Commenters suggest these figures are conservative because they exclude contributions from gas stations, grocery stores, and convenience stores. In Tennessee, the hemp industry is reported to generate \$561,215,360 and employ approximately 6,459 people.

Response: The Department is aware based on comments from industry as well as other comments addressed in this response packet of reported amounts in revenue the HDC industry generates. The Department expects the General Assembly was also aware of and considered these numbers during passage of laws authorizing this rulemaking. Authority to pass the hemp and HDC product laws lies with the legislature and not the Department. The Department may only administer the statutes and promulgate rules for their clarification and application.

Comment(s):

- The sales tax on hemp-derived cannabinoid products should be raised to 15% or 35% and the revenue used to combat the most harmful drugs like heroin, fentanyl, and methamphetamines. Consumers support paying higher taxes on products if it means keeping them legal. The hemp industry's willingness to pay higher taxes on hemp products and THCa demonstrate its willingness to collaborate on regulations.
- Consumers would rather pay a 6% tax on regulated, local hemp products that they know are high-quality, safe products.

Response: The sales tax on HDC products is statutorily prescribed by the legislature and cannot be changed by the Department through rulemaking. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Revenue. The Department is not

charged with administration of tax laws or collection of state taxes. The Department expects the legislature considered allowable THC content in HDC products and potential use of tax revenue derived from their sales, during passage of laws authorizing this rulemaking. The Department stands committed to administer the hemp and HDC product laws as it was charged in passage of T.C.A. §§ 43-27-101 and 201, et seq.

Comment: Banning THC content in CBD products will set Tennessee back and cause the state to miss out on millions of dollars in revenue.

Response: The Department is regulating, not banning, THC content in HDC products through this rulemaking. The proposed rules neither implement a THC threshold nor testing requirements for products labeled and marketed as CBD. However, CBD products that contain cannabinoids that meet the statutory definition of "hemp-derived cannabinoid" in a concentration of 0.1% or greater, do fall within the Department's authority to regulate. If CBD products are removed from the market, it is likely because they contain more than 0.3% of delta-9 THC. The Department expects the legislature considered the potential loss of revenue from products removed from the marketplace during passage of the laws authorizing this rulemaking.

Comment: Banning THCa will push consumers to the black market where purchases are not subject to taxation. Black market purchases will financially benefit drug cartels not the Tennessee economy or Tennessee communities.

Response: THCa products will still be allowed under the Department's rules so long as they comply with regulatory requirements, including a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department expects any loss of taxable products or policy concerns re consumers purchasing noncompliant products from the illicit market as a result of regulation were considered by the legislature during passage of laws that authorize this rulemaking. Authority to pass and/or amend the hemp and HDC product laws lies with the legislature, not the Department. The Department may only administer the statutes and promulgate rules for their clarification and application.

Comment: The cannabis industry increases tax revenue and supports economic and agricultural growth throughout the state.

Response: It is always the Department's mission to support and promote agriculture in every way possible. The Department expects the General Assembly was aware of the tax revenue generated from the cannabis industry and its effect on the state economy during passage of laws authorizing this rulemaking. The Department stands committed to administer those laws as it was charged in passage of T.C.A. §§ 43-27-101 and 201, et seq.

Comment(s):

- Sales tax revenue from the hemp industry could be used for Tennessee schools and allow the state to reject federal financial assistance for education.
- Tax revenue could be used to fund treatment centers for opioid addiction.
- Taxes from hemp and THCa sales could finance scholarships, charities, and community needs similar to other states with legal cannabis and the Tennessee lottery.

Response: The Department expects policy considerations re sales tax revenue and ways in which this revenue could benefit the state or affect considerations re federal funding were weighed by the legislature during passage of laws that authorize this rulemaking. The Department does not have the authority to determine how tax revenue is allocated.

Comment: Hemp products bring \$200 million in taxable revenue.

Response: The Department expects the General Assembly was aware of and considered the amount of tax revenue generated from hemp products during passage of laws authorizing this rulemaking. The Department stands committed to administer those laws as it was charged in passage of T.C.A. §§ 43-27-101 and 201, et seq.

Comment: The state should legalize marijuana and increase the tax to 15% to support communities. Colorado has collected over \$1 billion in marijuana tax revenue since legalization in 2014.

Response: The sales tax on HDC products is statutorily prescribed by the legislature and is not within the Department's jurisdiction to change through its rules. The Department expects that during passage of laws authorizing this rulemaking the legislature reviewed the policies, laws, and their outcomes in states that have legalized marijuana. The authority to codify the legality or illegality of marijuana lies with the legislature not the Department. The Department cannot legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment: Proper implementation and enforcement of taxation and compliance with hemp-derived cannabinoid products will not only stabilize the state's economic situation but will also enhance understanding and acceptance of cannabis among all Tennesseans.

Response: The Department's rules implement requirements for HDC products, as authorized by T.C.A. §§ 43-27-201, et seq. Products that do not meet these requirements will be deemed noncompliant and be subject to regulatory enforcement measures. Issues re this tax enforcement may better align with the expertise of other regulatory agencies, e.g. Department of Revenue. The Department is not charged with implementation or enforcement of tax laws or collection of state taxes. The Department stands committed to administer the laws and regulate HDC products as charged in passage of T.C.A. §§ 43-27-201, et seq. The Department expects the legislature considered public policy re the state's economic situation or acceptance of cannabis by Tennesseans when it passed the hemp and HDC laws that the Department is charged to administer.

Comment: Removing a sustainable source of tax revenue in these economically challenging times contradicts sound fiscal policy.

Response: Hemp and HDC products will still be allowed so long as products comply with requirements under the governing statute and the rules. The Department expects the legislature weighed fiscal policy considerations and considered any loss in tax revenue as a result of noncompliant products being removed from the marketplace during the passage of laws governing this rulemaking. The Department stands committed to administer the laws as charged under T.C.A. §§ 43-27-201, et seq.

Comment(s):

- The majority of tax revenue in Tennessee comes from the sale of THCa. If THCa products are banned by the proposed rules, Tennessee will lose all momentum gained by the hemp privilege tax.
- The total THC standard will dramatically reduce tax revenue from the sales tax and the additional 6% hemp product tax.

Response: As discussed elsewhere in this document, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute. This testing method captures the conversion of THCa to THC. THCa products will still be allowed under the Department's rules so long as they contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department expects the legislature was aware when passing the hemp and HDC product laws that capping allowable THC in HDCs could remove various products from the marketplace and result in a corresponding loss in tax revenue. The Department cannot raise the allowable THC content of HDC products or alter the manner of their testing in contravention of the governing statutes.

Comment: As proposed, the rules and their total THC standard will significantly reduce the types of hemp-derived cannabinoid products available in the Tennessee marketplace.

Response: As discussed elsewhere in this document, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered HDC products will be tested to account for a post-decarboxylation value of THC required by statute. The amount of THC allowed in HDC finished products is statutorily prescribed as 0.3%, tested in a manner similarly reliable to post-decarboxylation. Because this testing method captures the conversion of THCa to THC, the Department agrees this testing method may have an effect on the quantity and type of HDC products in the marketplace if products contain more than 0.3% of delta-9 THC. The Department expects that during passage of laws governing this rulemaking the legislature considered the effect of capping the allowable THC content in products would have on the marketplace. The Department cannot raise the allowable THC content in HDC products or alter the required manner of testing in contravention of the governing statutes.

Also included under this general summary various commenters offered the following specific ideas or points regarding this comment:

Comment: The total THC standard bans all THCa products, which are legal in Tennessee. Banning THCa is unfair and unjust and will send young adults to synthetically, chemically-derived, and unsafe products.

Response: As discussed in other portions of this response packet, the Department is promulgating rules for HDC products, including THCa, as directed by the legislature under the HDC products law. Under the Department's rules THCa products will still be allowed so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and meet other statutory and regulatory requirements (e.g., labeling, use of allowable solvents, limits on heavy metals, pesticides, etc.). Removal of noncompliant THCa products from the marketplace may cause a rise in availability and consumption of other HDC products, i.e., delta-8 and other products, in the marketplace. While the commenter is not specific as to what "young adults" means, the Department notes the law authorizing this rulemaking contains consumer age restrictions and specific prohibitions re how HDC products may be advertised, marketed, and sold, which the Department's rules further reinforce. Ultimately, however, if a product and its manner of sale is otherwise compliant with the law, a consumer's choice of product is outside of the Department's control.

Comment: A 0.3% total THC standard will preclude currently compliant strains of Tennessee hemp from being sold into other state markets (e.g., Kentucky).

Response: The Department disagrees. Tennessee hemp growers have been subject to the 0.3% total THC standard since 2021, as total THC testing is required under federal law and rule in order for Tennessee to have a state hemp production program. The Department also notes that hemp grown under USDA approved state-run hemp programs in other states must also comport with this requirement. This standard does not represent a change for Tennessee hemp growers and will therefore have no effect on currently compliant strains of Tennessee hemp being sold into other state markets.

Comment: A 1% total THC standard is necessary for Tennessee hemp growers to remain relevant. Whether pre-harvest 0.3% total THC remains, a 1% dry, post-harvest standard is necessary for biomass to remain a compliant material through storage. Any standard below 1% is not viable for THC or THCa products.

Response: The allowable THC content of 0.3% or less, tested in a manner similarly reliable to

post-decarboxylation, is required under federal law and rule in order for Tennessee to have a state hemp production program. Tennessee hemp growers are and have been subject to this standard since 2021. The Department cannot raise the allowable THC limit by rule in contravention of the governing hemp law and its statutorily prescribed manner of testing.

Comment: Under the proposed total THC standard, all hemp flower and most CBD products will become illegal in Tennessee. Flower makes up 90% of sales. The standard will set Tennessee back years behind other states.

Response: An HDC product's allowable THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, is statutorily prescribed by the legislature. The Department expects the legislature considered the effect of this standard on currently available products in the marketplace during passage of laws authorizing this rulemaking. The Department is required to administer the hemp and HDC product laws passed by the legislature regardless of their effect on products that may be precluded from the market. The Department cannot raise the allowable THC limit by rule in contravention of the governing statutes. The Department declines to make this change in the rules. The Department notes its rules apply for regulation of hemp and HDC products in commerce. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code. The Department expects that criminal enforcement considerations for or against a total THC testing standard were considered by the legislature during passage of the HDC products law.

Comment: The total THC standard will affect THCa which makes up approximately one third of available products. The standard will not affect other products, such as delta-8 and delta-10. Those products will fill the void.

Response: As discussed in other portions of this response packet, THCa products will be allowed under the Department's rules so long as they contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation and comply with other regulatory requirements re tolerances for pesticide residues, heavy metals, mycotoxins, etc. The Department agrees that cannabinoids that do not convert to delta-9 THC through the decarboxylation process, e.g. delta-8 and delta-10, will not be captured by this testing standard or affected by THC limits. As stated elsewhere in this document, the Department is aware of reports from industry that THCa is the most popular HDC product in Tennessee and industry's forecasts that the 0.3% allowable THC standard will preclude many of these products from the marketplace. However, the Department cannot by rule raise the allowable THC content in products or the prescribed manner of HDC product testing in contravention of the HDC product law. Authority to pass and/or amend that law lies with the legislature, not the Department.

Comment(s):

- The proposed total THC standard bans access to cannabis and all forms of smokeable hemp and hemp-derived cannabinoid products, including CBD, THCa flower, delta-8, vapes, topicals, and concentrates. The proposed rules open the door for new research and use of chemicals that are untested, unsafe, and whose legality is questionable at best.
- Restricting THC using the total THC standard is contrary to the legislature's effort to authorize the sale of delta-8, delta-10, and THCa.

Response: The Department's rules regulate, not ban, HDC products. THCa products will still be allowed under the Department's rules so long as they comply with regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. As discussed elsewhere in this document, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered

products will be tested to account for a post-decarboxylation value of THC required by statute. Cannabinoids that do not convert to delta-9 THC through the decarboxylation process will not be captured by this testing standard or affected by its allowable THC content of 0.3% or less. The Department notes, however, that HDC products containing these cannabinoids will still be subject to the rule's other safety and testing requirements (e.g., use of allowable solvents, limits on heavy metals, pesticides, etc.). The Department also notes that under the HDC law topical products are specifically not included in the law's definition of an HDC. The Department is not authorized to raise the allowable THC limit by rule or change testing standards in contravention of those statutes.

The Department is aware that new HDCs are continually being created, discovered, and developed, and expects the legislature was also aware of this during passage of the laws authorizing this rulemaking. The Department's rules do not in themselves open the door for use of any chemical that had not already been allowable in the marketplace. Rather the rules serve to limit use of chemicals, pesticides, etc. in effort to make products in the market safer and more consistent response.

Comment: The definition of acceptable testing methods is a "poison pill" inserted to kill the effects of a positive bill. The total THC standard will kill the industry.

Response: The Department is promulgating these rules as directed by the legislature and notes the statutes authorizing this rulemaking specifically prescribe the testing method and amount of THC allowed in HDC finished products as 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. This is therefore the testing method required under the Department's rules. The Department expects the legislature was aware of the effects this testing standard would have on HDC products in the marketplace when it passed the laws authorizing this rulemaking. The Department is not authorized to raise the allowable THC limit by rule or change testing standards in contravention of the governing statutes, regardless of the effect on products in the marketplace.

Comment: The proposed total THC standard based on THCa's natural conversion to THC is misguided because THCa is non-psychoactive, legal under federal law, and naturally occurring in many legitimate agricultural products.

Response: The statutes authorizing this rulemaking prescribe the testing method and amount of THC allowed in HDC finished products as 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. These statutes require testing of HDC products and substances without reference to whether a product is psychoactive or not. As discussed elsewhere in this document, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes T.C.A. §§ 43-27-101 and 43-27-201 et seq. The end effect of that standard, however, remains unchanged and covered products must be tested to account for a post-decarboxylation value of THC required by statute. The Department is not authorized to raise the allowable THC limit by rule or change testing standards in contravention of those statutes.

Comment: The total THC standard changes the legal definition of hemp and will make it impossible for Tennesseans to access safe cannabis.

Response: The Department disagrees. Tennesseans will have access to safe, regulated hemp products under the Department's rules. All HDC product on retail shelves in Tennessee will be required to meet the same safety and toxicity requirements, which include testing for microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents, and labeling standards.

Comment: Total THC makes it impossible to grow hemp for CBD and precludes farmers from

growing hemp to produce any major cannabinoid (e.g., CBD, CBG, and CBDV).

Response: The content of THC is limited by statute to 0.3%, tested in a manner similarly reliable to post-decarboxylation. Many isomers of delta-9 THC are also included under the statutory definition of HDCs, but they are not included in the 0.3% THC limit. THCa decarboxylates to delta-9 THC over time and as it is heated. State statute requires the Department to use methods similarly reliable to post-decarboxylation for testing. USDA requirements for domestic hemp production also limit total THC to 0.3%, and testing procedures are required to use post-decarboxylation or similarly reliable methods. Hemp growers in Tennessee have already demonstrated their ability to meet these requirements under the current licensing program and have been doing so since 2021. The Department notes the laws authorizing this rulemaking specifically exclude CBD, CBG, and CBDV from the definition of "hemp-derived cannabinoid" and are therefore unaffected by these rules.

Comment: Proposed interpretations of the statute implementing a 0.3% THC standard ignores the delta variant. The nature of cannabinoids is that they change over time as their environment changes. Rules requiring tests on final products will make it nearly impossible for Tennessee farmers to achieve a product that passes.

Response: The content of THC is limited by statute to 0.3%, tested in a manner similarly reliable to post-decarboxylation. Many isomers of delta-9 THC are also included under the statutory definition of HDCs, but they are not included in the 0.3% THC limit. THCa decarboxylates to delta-9 THC over time and as it is heated. State statute requires the Department to use methods similarly reliable to post-decarboxylation for testing. USDA requirements for domestic hemp production also limit total THC to 0.3%, and testing procedures are required to use post-decarboxylation or similarly reliable methods. Hemp growers in Tennessee have already demonstrated their ability to meet these requirements under the current licensing program and have been doing so since 2021.

Comment: The definition of total THC does not account for the loss in weight of other cannabinoids through the use of decarboxylation during testing. The formula provided for total THC lacks proper consideration of the change in sampling, particularly the weight loss from CBDA to CBD and all other cannabinoid acids. Not accounting for this loss may result in inaccurate results and improper legal classification. The proposed rules hinder academic and research initiatives to better understand the cannabis plant and its benefits. The rules restrictions will impact academic institutions across Tennessee.

Response: As discussed elsewhere in this response packet, the Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute.

The Department's rules are not instructive in terms of technical procedures for sample preparation, moisture determination, and cannabinoid profiling. Subsamples for heating (or moisture determination) may be tested separately from analytical portions used for cannabinoid profiling. Other cannabinoids are not accounted for in the post-decarboxylation value of THC, as they do not decarboxylate to form delta-9 THC.

It is unclear to the Department which other aspects of the rules the commenter believes will hinder academic and research initiatives, so the Department is limited in its response. It is never the Department's intent to hinder academic and research initiatives and notes there are no statutory exemptions for academic/research institutions in the HDC law. The Department does not have authority to issue licenses for academics or researchers wishing to work with controlled substances, such as cannabis material that would be deemed noncompliant under the HDC law.

Comment: The total THC standard bans the sale of THCa products but does not prevent consumers from possessing or consuming THCa products. THCa will only be illegal to produce and manufacture, but not to possess. Therefore, consumers will turn to out-of-state businesses for THCa.

Response: The sale of THCa products is not banned by the Department's rules. The amount of THC allowed in hemp and HDC finished products is statutorily prescribed under T.C.A. §§ 43-27-101 and 43-27-201, et seq., as 0.3%, tested in a manner similarly reliable to post-decarboxylation. THCa products will still be allowed under the Department's rules so long as they comply with regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

The HDC product law and the Department's associated rules are for construction of a regulatory enforcement program. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code.

Comment: If the legislature wanted to close the cannabis industry in Tennessee, they could, and they would have done so in clearer fashion than the current statute. Prior testing requirements of the department already assured the safety of Tennessee consumers. There is no evidence that the prior testing method resulted in unsafe products and there is no evidence that the new proposed testing methods would increase safety.

Response: The Department agrees the legislature has the authority to codify the legality or illegality of cannabis products, including hemp and HDC products. In this case, the legislature passed statutes requiring the Department to administer the hemp and HDC products laws and to promulgate these rules. Given that HDC products must meet tolerances as to microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents, and manufacturing chemicals; comply with labeling requirements as to potency; and be produced only using solvents allowed under the rules, the safety of HDC products under the rules' testing requirements will be greater than before the rules' implementation.

Comment: Allowing THCa will alleviate the burden on state employees who are forced to enforce these regulations.

Response: THCa is allowed under the Department's rules so long as THCa products conform with rule requirements. The Department expects considerations re efficient use and availability of resources necessary for state employees to administer and enforce the HDC laws and regulations were weighed by the legislature during passage of laws authorizing this rulemaking. The Department is required by statute to enforce all requirements for the hemp and HDC product regulatory programs, which include provisions other than those affecting THCa content.

Comment: Total THC standard applies a pre-harvest growing test to a final product. This will result in most hemp flower being banned. The proposed rules are trying to get rid of the Tennessee hemp industry.

Response: The Department's rules regulate, not ban, hemp and HDC products. It is never the Department's intention to negatively affect industry, but above all else the Department is committed to fulfilling its role in carrying forward the plain reading of statutory authority for the laws it is charged to administer. The Department is promulgating these rules to regulate the hemp industry(ies), as required by the legislature under T.C.A. §§ 43-27-101 and 43-27-201, et seq. The allowable THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, is statutorily required under state law, and comports with requirements under federal law and rule in order for Tennessee to have a state hemp production program. The Department does not pass state laws; that role is reserved to the legislature. To that end, and as discussed in other sections of this response packet re the definition of hemp and the total THC testing standard, the Department

is required to administer the hemp and HDC product laws in conformance with their statutory requirements.

Comment: A segment of consumers support laws and regulations that restrict both psychoactive and potentially psychoactive products from entering the marketplace.

Response: The Department understands that some hemp and HDC products may have psychoactive effects. The Department is promulgating these rules per its authority and legislative direction under T.C.A. §§ 43-27-101 and 43-27-201 et seq. The testing method and limit on THC content in HDC products are statutorily prescribed by the legislature under these laws. The Department is required to administer the hemp and HDC laws and is committed to administering these statutes as directed by the legislature.

Comment: THC means delta-9 tetrahydrocannabinol. The department should remove the total THC definition and craft regulations based on the language of the statute that uses dry weight basis instead of a potential of hypothetical THC content.

Response: As discussed in more depth elsewhere in this response packet, the Department has removed from these rules the term and therefore the definition for "total THC" in order to craft and align the rules with specific language and direction of the legislature under the enabling statutes. The testing method and limit on THC content in HDC products are statutorily prescribed by the legislature under these laws. The Department is required to administer the hemp and HDC laws and is committed to administering these statutes as directed by the legislature.

Comment: The total THC standard conflates THCa with delta-9 THC. This interpretation of the law deviates from the original legislative intent and restricts access to the products with the highest demand.

Response: The amount of THC allowed in hemp HDC finished products is statutorily prescribed under T.C.A. §§ 43-27-101 and 43-27-201 et seq. as 0.3%, tested in a manner similarly reliable to post-decarboxylation. The Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute.

Comment(s):

- The total THC standard disregards the true intent of the hemp-derived cannabinoid statute which was to test for safety, not for THCa concentrations. A total THC standard forecloses the sale of natural THC and opens the door for the sale of synthetic THC and other cannabinoids.
- Total THC standard forecloses natural THC in the plant and opens [a] loophole wider for synthetic THC and other cannabinoids to enter or dominate the market.

Response: The Department is regulating access to HDC products as required by the legislature, including requirements for product labeling, and testing for safety, toxicity, THC limits, and cannabinoid concentrations, as required under T.C.A. § 43-27-207.

The Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute. THCa is an HDC that converts to delta-9

THC through the decarboxylation process. The Department expects the legislature was aware of the effect testing requirements would have on currently available products in the marketplace during passage of laws that authorize this rulemaking. The Department is not authorized to raise the allowable THC limit or to change prescribed testing standards through rulemaking in contravention of the governing statute.

Comment(s):

- The total THC standard will affect natural, safe smokeable THCa flower, but not edibles, even those including delta-9.
- The statute does not impose nor does it authorize the Department to impose any limits on the cannabinoid content of hemp-derived cannabinoid products, aside from a per serving limit of twenty-five milligrams in the aggregate of one or more hemp-derived cannabinoids. Aside from this serving cap, no hemp-derived cannabinoid content limit exists in the statute. Other statutes establish limits generally to determine whether post-harvest products are hemp or marijuana under state law, but such limits are based solely on the presence of delta-9 THC, excluding all other cannabinoids.

Response: The Department disagrees with both comments. The testing method and limit on THC content are statutorily prescribed under T.C.A. §§ 43-27-101 and 201, et seq. Under these statutes, the amount of THC allowed in hemp and HDC products is 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The post-decarboxylation testing standard applies equally to all products regardless of type (i.e., inhalables, edibles, etc.). THCa is captured by this testing method because it converts to delta-9 through the decarboxylation process. Products containing cannabinoids that do not convert to delta-9 THC through the decarboxylation process will not be captured by this testing standard or affected by the THC limit. Therefore, whether one type of product is affected more than another type of product will be based on whether or not products currently in the marketplace meet the testing requirements, not whether or not the products are inhalable or edible.

Comment: There is no legal or social benefit to "cracking down" on THCa under a total THC standard.

Response: The purpose and scope of the Department's rulemaking is to promulgate rules for hemp and HDC products as required by the legislature, not to "crack down" on any particular product. The testing method and limit on THC content in HDC products are statutorily prescribed under T.C.A. §§ 43-27-201, et seq. The Department has removed from these rules the term "total THC" in order to align the rules with specific language and direction of the legislature under the enabling statutes. However, the end effect of that standard remains unchanged and covered products will be tested to account for a post-decarboxylation value of THC required by statute. THCa is an HDC that converts to delta-9 THC through the decarboxylation process. THCa products will still be allowed under the Department's rules so long as they comply with regulatory requirements, including a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, as required by statute.

Comment(s):

- A segment of commenters requested a higher THC threshold for cancer and AIDS patients because the FDA has approved THC to treat the side effects of these diseases.
- Marijuana should be legal. Tennessee came within one vote of legalizing marijuana. Marijuana is FDA approved.

Response: The Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so. The testing method and limit on THC content in HDC products are statutorily prescribed by the legislature under T.C.A. §§ 43-27-201, et seq. The state HDC law does not authorize the Department to create exceptions for consumer use of

high THC-content HDC products as a substitute for FDA-approved cannabis-derived or cannabis-related products. The Department also does not have authority to legalize either medical or recreational marijuana through rulemaking. The Department declines to make this change in the rules. The legislature, not the Department, retains authority to codify the legality or illegality of marijuana.

Comment: The statute includes the selling of cannabinoids, including THCa which is clearly listed in the allowable list of hemp-derived cannabinoids. The department is misinterpreting the law and is trying to redefine hemp in the rulemaking process.

Response: The Department agrees the definition of "hemp-derived cannabinoid" includes THCa. The Department disagrees that it is "re-defining" hemp through the rulemaking process. The testing method and limit on THC content in HDC products are statutorily prescribed by the legislature under T.C.A. §§ 43-27-201, et seq. THCa products will still be allowed under the Department's rules so long as they meet regulatory requirements, including a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment(s):

- Edibles and delta products (except delta 9) are stronger and more harmful than THCa and delta 9. Edible products are mislabeled and fraudulent. Consumers are in favor of regulating for safety.
- There should be common sense regulation on these products to ensure safety.

Response: The Department presumes the legislature considered concerns re safety of edible HDC products during their passage of laws authorizing this rulemaking. The Department is required to administer the HDC product laws and promulgate rules for their clarification and application. During promulgation of these rules, the Department heard from many commenters they want safe access to regulated HDC products. The Department is aware that production of various HDC products may entail use of harmful solvents or other chemicals, and that products currently in the marketplace are not labelled consistently. To that end, the Department's rules set tolerances as to microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents, and manufacturing chemicals, for all HDC products. Under the rules and the HDC law, products must also meet labeling requirements, including potency statements, ingredient lists, and inclusion of a QR code on every product which links directly to the product's Certificate of Analysis.

Comment: Hemp makes paper. Making cannabis illegal was a decision fueled by a minority of greedy people. THCa should not be banned while delta-8, a synthetic compound, is legally allowed.

Response: The Department expects policy concerns re legalizing cannabis were considered by the legislature during passage of laws that authorize this rulemaking. The Department also expects the legislature was aware of and considered all hemp and hemp products in the marketplace at the same time. The Department stands committed to administer the laws as directed under T.C.A. §§ 43-27-101 and 201, et seq. Under these laws and the Department's rules, THCa products and synthetic compounds, such as delta-8, are legally allowed so long as they (1) contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and (2) comport with other legal requirements, such as labeling, and testing for safety and toxicity.

Authority to codify the legality or illegality of cannabis and/or specific HDC products, e.g. delta-8, lies with the legislature, not the Department.

Comment: As proposed, the rules and their limits on THCa will force Tennesseans to get THCa products from other states resulting in a loss of revenue for Tennessee.

Response: The Department must follow directives of the legislature under T.C.A. § 43-27-201, et. seq. Under T.C.A. § 43-27-202, THCa is specifically listed in the definition of "hemp-derived cannabinoid." T.C.A. § 43-27-207 requires the Department to test HDC products by liquid chromatography tandem mass spectrometry, in a manner similarly reliable to post-decarboxylation, to determine their THC concentrations. The amount of THC allowed in HDC finished products is 0.3%, when tested in a manner similarly reliable to post-decarboxylation. THCa is an HDC and this cannabinoid converts to delta-9 THC through the decarboxylation process. THCa products will still be allowed under the Department's rules so long as they meet regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department expects the General Assembly considered the effects this testing requirement would have on products currently in the marketplace, including any corresponding loss in revenue due to noncompliant products being removed from the marketplace. The Department is required to administer the hemp and HDC product laws as directed by the legislature.

Also included under this general summary various commenters offered the following specific ideas or points related to this comment:

Comment: A ban on THCa products will force consumers to spend money on products in other states. Surrounding states will receive revenue instead of Tennessee. This happened to Ohio when Michigan changed its laws to prosper while Ohio residents went across the border to take advantage of said laws.

Response: These rules serve to regulate, not ban, THCa products. THCa products will continue to be legally available in Tennessee so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and adhere to other requirements set by the HDC law and the rules. The Department expects that during passage of laws which authorize this rulemaking the legislature considered potential consumer behavior in response to the law's cap on allowable THC in products and any resulting loss of state revenue. The Department cannot raise the allowable THC limit in HDC products or the prescribed manner of testing by rule in contravention of the governing statutes.

Comment: Tennessee consumers and businesses will relocate to states with laws friendlier to cannabis and THCa. Losing businesses to other states not only takes capital out of state but also threatens the economic viability of local vendors who support small businesses.

Response: The Department expects the legislature considered potential outcomes, such as relocation of consumers and businesses to states whose cannabis laws are aligned with their interests, and how this may affect associated downstream economic chains in Tennessee, during passage of the laws authorizing this rulemaking. The Department also expects the legislature weighed policy considerations re benefits of legalizing marijuana in Tennessee. The Department does not have authority to pass or amend the hemp and HDC product laws; that authority is reserved to the legislature.

Comment(s):

- Consumers will still purchase and use marijuana and hemp-derived cannabinoids, including THCa, whether legal or not, and will cross state lines to buy the products or will purchase hemp-derived cannabinoid products online. Products purchased this way may not be as safe or regulated as they are in Tennessee.
- Consumers will not stop using THCa, but will seek other states to spend their money in.

Response: Consumers have asserted they want safe access to regulated HDC products. HDC products, including THCa, will continue to be legal in Tennessee so long as products adhere with requirements set by the HDC law and these rules, which include provisions aimed at consumer safety. As such, the Department agrees HDC products purchased in Tennessee may be safer than HDC products purchased in another state as all HDC products sold in Tennessee will be subject to these legal requirements. Ultimately, the Department is charged by the legislature with promulgating rules re HDC products and must adhere to its statutory directives in doing so regardless of potential consumer response. Marijuana has been and continues to be illegal in Tennessee. The Department does not have authority to legalize marijuana through rulemaking. The Department declines to make this change in the rules.

Comment(s):

- Dismantling the growing hemp industry in Tennessee will not affect comparable out-of-state products currently sold in Tennessee. If the regulations are enacted the only products that will be available will be from out-of-state sources. Out-of-state operators will take over the Tennessee hemp industry.
- As proposed, the rules will allow out-of-state operators to flood the hemp-derived cannabinoid industry while prohibiting Tennessee producers and retailers from participating. Out-of-state businesses will have an advantage over Tennessee businesses because out-of-state entities are not subject to Tennessee regulations.

Response: The Department disagrees. All HDC products distributed or sold in Tennessee will be subject to Tennessee's laws and the Department's rules. Moreover, Tennessee-grown hemp has been subject to a total THC standard since 2021; consequently, retail offerings in Tennessee in this niche of the market are already presumably from out-of-state, marijuana-legal states because these products could not legally be grown in Tennessee.

Comment(s):

- People are happier when they are not forced to commute to a neighboring state for legal THCa. As proposed, the rules would make Tennessee consumers criminals if they drove back into the state with illegal hemp-derived cannabinoid products.
- The total THC standard bans the sale of THCa products but does not prevent consumers from possessing or consuming THCa products. THCa will only be illegal to produce and manufacture, but not to possess. Therefore, consumers will turn to out-of-state businesses for THCa.
- The proposed total THC standard will, overnight, criminalize a class of tax paying, hardworking Tennesseans, primarily between the ages of 35 and 75 years old.
- The new law and rules are being implemented to gain law enforcement revenue by turning Tennesseans seeking natural medicine into criminals.
- Appears that the laws are intended to make hemp illegal to justify law enforcement involvement over a harmless plant.

Response: The Department's rules create regulatory standards for hemp and HDC products, as required by the legislature under T.C.A. §§ 43-27-101 and 201, et seq. THCa products will still be legally available in Tennessee so long as they meet regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The HDC law and the Department's associated rules are for construction of a regulatory enforcement program. Products that are not compliant with the Department's program requirements would be subject to enforcement measures within the Department's regulatory authority. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code.

Comment: Tennessee hemp sales are already flooded with out-of-state products. Retailers who currently sell THCa flower are already buying product from out-of-state and presenting false Certificates of Analysis (COAs).

Response: The Department is aware of reports re false COAs attached to HDC products currently in the marketplace. As a means to address this issue, the Department's rules require all products sold in Tennessee to be accompanied by a COA whether product is produced in Tennessee or outside the state. If a product was tested by a third-party laboratory, then for the testing to be valid the COA must have been issued by a third-party laboratory registered with the Department. Based on this comment, the Department has changed in these rules and now requires that registered third-party laboratories are required to host and notify the Department of one landing page for retrieval of all COAs issued by the laboratory through use of the quick reference (QR) code, in effort to add validity to COAs issued for products in the marketplace.

Miscellaneous comments (represented in the attached spreadsheet as “Other”).

Comment: Because states cannot pass laws that affect interstate commerce, the proposed rules will completely drive business online where consumers will be able to legally get products using the U.S. Postal Service without repercussions.

Response: The Department is charged by the legislature with constructing a regulatory program for the manufacture, distribution, and sale of HDC products and has done so with promulgation of these rules. The Department disagrees that all HDC product purchases in the future will be conducted outside of physical retail locations and does not discount industry's ability to create products fit for a consumer market that comply with the Department's rules. To the extent violative product is shipped by carrier into Tennessee, the Department expects to address those matters, as it does when similar circumstances arise in its other regulatory programs, through collaboration with violative firms, appropriate regulatory bodies in sister states, and law enforcement, as necessary.

Comment(s):

- Retail locations should not have to test products. All product testing should be done at the manufacturing stage. Testing products multiple times is redundant and a waste of time.
- Requiring full panel testing for every extract, intermediate, and finished good poses a significant financial burden. Commenter proposes limiting this requirement to the finished product to ensure sustainability for businesses.
- Commenter urges the Department to observe other industries like alcohol or dairy when promulgating the rules because it appears that the Department has overlooked intermediate products like concentrates and raw materials intended for use in a final product. Commenter urges the Department to view these types of materials as bulk ingredients for use in final products instead of products subject to testing standards and other regulations.

Response: The Department agrees in principle that a chief aim of these rules and all regulation is to minimize any unnecessary burden on consumers or industry affected by the regulation. The Department's rules on this issue are consistent with the governing statutes. Under T.C.A. § 43-27-201, et seq., testing is required on all active cannabinoid molecules prior to final production of products, and potency tests must also be conducted on finished goods. In addition, the Department notes that intermediate products are ultimately consumed in the finished product and there is no statutory exception for testing of intermediate or raw ingredients if used as “bulk ingredients.” Pursuant to the statute, suppliers and retailers must contract with third-party laboratories to conduct this required testing, and each batch manufactured must undergo this testing and have a certificate of analysis from the laboratory that performed the testing. In addition, the Department is authorized by statute to conduct random, unannounced inspections and must sample and analyze HDC products in locations where HDC products are produced (manufactured), distributed, or offered for sale in Tennessee. The Department notes that product testing and valid certificates of analysis demonstrating a product's compliance will help retailers demonstrate compliance with legal requirements should nonconforming goods be found in the marketplace.

To help alleviate any additional burden of testing, based on comments the Department has amended these rules to remove additional testing when HDC products in commerce are used as inputs in other finished goods, when those resulting goods do not bring about a chemical or compositional change to the HDC input that was used. In other words, when suppliers or retailers buy in bulk and are simply repackaging hemp or HDC products that have already been tested or are performing only physical alterations to the product (e.g. cutting and trimming), prior testing of the product is considered valid and additional testing will not be required.

Comment: Recommend manufacturers should be required to provide only batch potency testing instead of full panel testing where resulting certificate of analysis would have potency testing from

TDA registered laboratories, backed by full panel testing from supplier USDA laboratories.

Response: The HDC law requires full panel testing on all active cannabinoid molecules prior to final production of products containing an HDC. The Department is aware that in order for a laboratory to be a USDA registered laboratory, a laboratory is not required to perform the same types of testing required under the HDC law and the Department's rules. A TDA-registered third-party laboratory may also be a USDA-registered laboratory, but the statute requires full panel testing to be performed by TDA-registered third-party laboratories. The Department therefore declines to amend its rules as proposed by commenter.

Comment(s):

- The Department must allow for reformulation and remediation for nonconforming products instead of ordering them to be destroyed which is overly burdensome.
- Failed testing procedures are too strict and burdensome. This rule would require entire batches and many compliant products to be destroyed if one product is not maintained properly? How can this be reconciled with the existing market and program? Why is this more strict than regular food safety laws?

Response: The Department agrees and has amended the rules to reflect greater flexibility and opportunity to remediate where violative products may safely be remediated. For example, the rules allow for further processing of raw hemp products at retail that fail testing requirements and provide remediation options for HDC products that fail testing for microbial contaminants and/or cannabinoid concentration. The Department has determined in the interest of consumer safety that HDC product batches with failed tests for heavy metals, mycotoxins, pesticides, and residual solvents may not be remediated under the rules. The Department notes a destruction order is only one of several enforcement actions available to address program violations and that any enforcement action taken by the Department is determined and executed only through reasonable application of the rules in the interest of public safety.

Comment(s):

- Changes to the rules must be made with transparency and in consultation with the industry. Changes to the rules must be made in a fair and balanced manner.
- The proposed rules should balance the perspectives of the hemp industry with those of government regulators. Collaboration is the key to effective rules.

Response: To maximize transparency in this rulemaking process, while drafting the proposed rulemaking hearing rules the Department engaged with more than a dozen industry groups and representatives, entailing numerous meetings; conducted outreach with other state regulatory groups and affected agencies within state government—all designed to gather industry and regulatory feedback on proposed rules and resulting issues of an HDC regulatory program on both consumers and industry. The Department conducted its largest ever rulemaking hearing, gathering more than 19,000 individual comments from the public on proposed rules, and even after public hearing continued to field calls from industry groups and lawmakers re these rules. Every effort has been made to notify the public of this rulemaking and to garner and consider feedback and concerns to hone the best possible rule set within the bounds of statutory requirements. Based on the volume and duration of this public response, it is undoubted that efforts to promulgate these rules has taken shape in a clearly open, fair, and balanced manner.

Based on this feedback, numerous changes—in fact the vast majority of changes recommended by the public and industry groups—have been incorporated into these rules. The Department also modified its hearing rules draft in response to public comments and, where possible, removed requirements industry reported as being overly burdensome. These changes include eliminating application requirements for submission of product lists and product labels for manufacturer/distributor and retailer licenses; additional testing requirements in downstream commerce absent chemical or compositional change to an HDC input; reserve sample

requirements for third-party testing laboratories in manufacturer/distributor rules; movement restrictions against HDC retail licensees; and amending product label warning requirements for greater brevity and sizing flexibility. The one area where the Department did not incorporate industry recommendations was to allow for testing of HDC products in a manner inconsistent with statutory requirements. For reasons stated throughout this response packet re that subject, the Department is unable to make that change in the rules. The Department is continuing to take as fair and balanced an approach in promulgating these rules as it can while still meeting the requirements of the legislation.

Comment: The Department received several comments recommending the licensing fee be increased, e.g., \$5,000, to dissuade untrustworthy pop-up shop retailers.

Response: Licensing fees for the regulatory program for HDC products are set in statute by the legislature. The Department cannot require a licensing fee which conflicts with the statute.

Comment: Access to cannabis is a civil right.

Response: The Department's aim in promulgating these rules is to comply with the directives of the legislature under T.C.A. §§ 43-27-101 and 201 et seq., to administer the statutes and construct a regulatory program for hemp and HDC products. The Department presumes the legislature considered the legality and constitutionality of this regulatory scheme when it passed the relevant statutes.

Comment: Adopting USP <232> within regulations would elevate safety protocols for heavy metal analysis in hemp-derived cannabinoid products and align standards with those broadly recognized and enforced both federally and internationally.

Response: The "USP" referenced by commenter is the U.S. Pharmacopeia. USP <232> states, "This chapter specifies limits for the amounts of elemental impurities in drug products." The HDC law does not legislate HDC products in the frame of being either drug products or medications and therefore the USP is not appropriate for the framework designed by the legislature for regulation of HDC products. The Department further notes that adoption of this standard for HDC products could suggest to consumers that HDC products have satisfied other regulatory requirements for products intended for the diagnosis, cure, mitigation, treatment, or prevention of disease, which—again—exceeds the statutory framework and the Department's authority for regulation of these products. For these reasons, the Department declines to institute a change in the rules re commenter's suggestion to adopt USP <232>.

Comment: The proposed rules hinder academic and research initiatives to better understand the cannabis plant and its benefits. The rules restrictions will impact academic institutions across Tennessee.

Response: It is unclear which aspects of the rules the commenter believes hinder academic and research initiatives, so the Department is unable to respond fully to this comment. It is never the Department's intent to hinder academic and research initiatives. The Department notes that T.C.A. § 43-27-102(a) requires any person who produces hemp in this state to obtain an annual license from the Department. No statutory exemption was created for academic/research institutions. The Department also notes that T.C.A. § 43-27-203(a)(1) requires a person or entity engaging in the business of manufacturing, producing, or selling products containing an HDC in this state to hold a valid license from the Department.

Comment(s):

- Banning hemp is a religious exercise unbefitting of a government operation.
- Stop torturing me. Give us proper representation. Jesus is not my overlord.
- If state officials believe God created the world and all the things in it, why is the state fighting a naturally occurring plant? Cannabis is God's holy herb and is the main ingredient in the holy anointing that God gave to Moses. Banning cannabis is contrary to God's will.

Response: The Department's rules do not ban hemp. The Department is promulgating rules to regulate hemp and HDC products in accordance with the directives of the legislature. State and federal regulations routinely regulate plants and products derived from plants. The Coca plant species, from which cocaine is derived; the Poppy plant, from which opium is derived; and the Peyote cactus, from which peyote is derived, are all examples of other naturally growing plants whose products are regulated by the government.

Comment(s):

- Banning THCa disproportionately affects veterans, seniors, and those struggling with chronic medical conditions.
- Senior citizens who use products medicinally will not be able to figure out how to order products online, so they will forgo using them. Therefore, the rules will disproportionately impact this population.

Response: A relatively large percentage of comments regarding medical use of HDC products specifically referenced medicinal use of products by seniors, veterans, and those with chronic medical conditions. As stated throughout this packet, the Department is not banning THCa. THCa products will still be allowed under the Department's rules so long as they meet regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department presumes the legislature considered the demographics and particular uses of HDC products by consumers and possible effects regulation of products would have on these consumers during its passage of laws governing this rulemaking. The Department cannot, however, raise the allowable THC limit by rule, alter the manner of prescribed testing for HDC products, or carve out medical exceptions in contravention of the governing statutes. The Department is required to administer the HDC law as directed by the legislature.

Comment: Cannabis has bipartisan support from Tennessee voters. As an alternative to banning products, consider increased testing frequencies to control the supply, purity, and concentration of products.

Response: The Department is not banning hemp or HDC products. Rather, the Department is promulgating rules to regulate hemp and HDC products, as directed by the legislature. While it is unclear what commenter means by "purity," in accordance with the governing law the Department's rules require testing of products for THC concentration and for safety and toxicity (e.g., microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents etc.). The governing law does not authorize the Department to otherwise control the supply of products via increased testing frequencies. To the extent this comment is referencing voter support for legalized marijuana in Tennessee, the Department has no authority to legalize marijuana by rule. The Department declines to make this change in the rules. The authority to codify the legality or illegality of marijuana lies with the legislature, not the Department.

Comment: Cannabis is important to Tennesseans and to the ecosystem. Medical research shows cannabis does not harm anybody or anything. Cannabis is part of God's plan and is a plant, not a drug. The negatives effects of THC and THCa are the result of improper use and marketing, not

due to the cannabinoids.

Response: The Department does not opine on results of medical research on cannabis and its effects. The Department notes state and federal regulations routinely regulate plants and products derived from plants. The Coca plant species, from which cocaine is derived; the Poppy plant, from which opium is derived; and the Peyote cactus, from which peyote is derived, are all examples of other plants whose products are regulated by the government. Without knowing what negative effects of THC and THCa the commenter is referring to the Department is not able to fully respond to the remainder of this comment but agrees that proper consumer use and clear labeling are integral factors in working towards consumer safety of products.

Comment(s):

- Assault rifles, alcohol, sugar, cars, tobacco, and lack of education pose greater threats to people than does hemp flower.
- Guns are more dangerous than the oxygen produced by the cannabis plant.

Response: The scope of this rulemaking is regulation of hemp and HDC products. Concerns re assault rifles, alcohol, sugar, cars, tobacco, and lack of education fall outside the scope of these rules and the Department's rulemaking authority under the hemp and HDC product laws.

Comment: The Tennessee Drug Task Force included a marijuana leaf on its logo and a commenter suggested the Department is responsible for the logo design.

Response: The Department had no input or control over design of the Tennessee Drug Task Force logo. That logo and design fall outside the scope of these rules to regulate hemp and HDC products in accordance with statutes passed by the legislature.

Comment: The ban on THCa was driven by ignorance, financial incentives, or re-election concerns.

Response: The Department is not aware that cause for these rules was produced by financial incentives or re-election concerns. The Department drafted these rules in consultation with industry and stakeholders. The one area where the Department did not incorporate industry recommendations was to allow for testing of HDC products in a manner inconsistent with statutory requirements. For reasons stated throughout this response section re that subject, the Department is unable to increase allowable THC limits in HDC products or to alter the manner of prescribed testing in contravention of the governing statutes. Nonetheless, these rules do not ban THCa but rather are a regulatory scheme where THCa products will remain in the marketplace provided they meet regulatory compliance, including THC content under 0.3%, when tested in a manner similarly reliable to post-decarboxylation.

Comment(s):

- Cannabis is a resilient crop for versatile planting. Farmers have enjoyed a state hemp market since the 2018 Farm Bill. Hemp offers positive environmental effects because hemp promotes sustainable farming practices.
- Hemp has demonstrated versatility in various applications, from textiles to healthcare, and its cultivation could be a vital source of income for farmers.

Response: The Department agrees that hemp is a potential resource for diversification of Tennessee crops, and its cultivation can provide a source of income for farmers. The Department presumes the legislature considered the effects of the hemp and HDC product laws, during their

passage, in relation to the versatility of cannabis as a commodity for Tennessee farmers.

Comment: There is a significant risk involved in removing the legal status of THCa. Legal THCa ensures products will be tested for contaminants. If product is illegal, testing will cease entirely subjecting consumers to harmful substances.

Response: The Department agrees that testing of THCa products is important to consumer safety and notes its rules regulate, not make illegal, THCa. Under the rules, THCa products will be subject to testing requirements and will still be allowed so long as products contain a THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation, and meet other requirements, such as testing for permissible levels of mycotoxins, heavy metals, microbial contaminants, residual solvents, and residual pesticides.

Comment: Existing hemp laws are sufficient to protect consumers. Humans have been using hemp for thousands of years. Hemp is a natural plant and there is nothing wrong with it.

Response: Under the HDC products law, the Department is directed by the legislature to promulgate rules re safety and toxicity of HDC products, among other provisions aimed at consumer safety and prevention of youth access, none of which existed or were required in Tennessee before passage of the HDC product law.

The Department notes that state and federal regulations routinely regulate plants and products derived from natural plants. The Coca plant species, from which cocaine is derived; the Poppy plant, from which opium is derived; and the Peyote cactus, from which peyote is derived, are all examples of other naturally growing plants whose products are regulated by the government.

Comment: The goal of the hemp industry and lawmakers was to establish a legitimate, safe, and well-regulated marketplace, not to impose an outright ban on hemp products such as CBD, Delta-8, Delta-9, and THCa which are currently legal in the state as well as federally.

Response: The rules promulgated do not seek to ban HDC products. The HDC law makes clear that CBD is not included in the definition of an HDC and is beyond the scope of these rules. The proposed rules neither implement a threshold nor testing requirements for CBD. However, CBD products that do contain cannabinoids that meet the definition of an HDC in a concentration of 0.1% or greater, do fall within the Department's authority to regulate.

The Department's rules and allowances for THCa in hemp and HDC products are consistent with federal and state definitions. Federal law, under 7 CFR § 990, requires a total THC testing standard for hemp production and for state hemp programs, with an acceptable limit of 0.3% or less THC on a dry weight basis. Under this federal law, all cannabis that tests as having a THC concentration level of higher than 0.3 percent on a dry weight basis is defined as marijuana. Tennessee law, under the HDC law, requires the Department to determine the THC concentrations for products containing an HDC via LC-MS/MS employed in a manner similarly reliable to post-decarboxylation, with an allowable THC limit of 0.3% or less on a dry weight basis. THCa converts to delta-9 THC through the decarboxylation process. Delta-9 and THCa are regulated for THC under both the HDC law and the rules consistent with provisions applicable to hemp growers/producers since 2021—that hemp and HDC products contain a THC limit of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. Hemp that exceeds that limit has been and still is prohibited in Tennessee.

With consumer safety and assurance re legitimacy of products in mind, the Department's rules contain requirements as to product labeling and testing for microbial contaminants, mycotoxins, residual pesticides, heavy metals, and residual solvents.

Comment: Commenter has lived in Connecticut where cannabis products were legal and notes the quality of THCa in Tennessee is not as good as it is in states where cannabis is legal.

Response: It is not clear to the Department what this commenter means by "quality of" or "as good as". To the extent commenter is comparing the potency of THCa in Tennessee to THCa potency in states where marijuana is legal, the Department agrees that THCa compliant with this state's legislation re HDC products is likely to have a lower THC content than THCa in marijuana-legal states.

Comment: Commenters suspect the aim of the rules is to prevent the sale of marijuana as THCa flower and suggests that the concern is met in the statute by chain of custody requirements showing origin and shipping manifest from a USDA licensed hemp farmer.

Response: The Department's aim in promulgating these rules is to comply with the directives of the legislature under T.C.A. §§ 43-27-101 and 201 et seq., to administer the statutes and construct a regulatory program for hemp and HDC products. Under these statutes, the testing method and allowable limit on THC in hemp and HDC products is statutorily prescribed in both the growers/producers law and in the HDC law as 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The HDC law contains transportation requirements referenced by commenter. Each statutory provision carries equal weight and absent clear legislative intent, the Department must give plain meaning to each word in these statutes. The Department must administer these statutes as charged.

For these reasons the Department declines to adopt commenter's suggestion to the extent it requests the Department increase the allowable limit of THC in HDC products or to alter the prescribed manner of testing HDC products in contravention of the governing statute, which the Department cannot do by rule.

Comment: Illicit marketing targets youth which will undo the purpose of the statute.

Response: The HDC statute addresses not only how HDC products may be marketed, but also how they may be advertised and/or offered for sale, with a focus on protection of youth (persons under 21 years of age).

Comment: If the Department wants to regulate the hemp-derived cannabinoid market, it should focus on edibles. There is no reason a single gummy should have 100 mg of hemp-derived cannabinoids.

Response: The Department's purpose in promulgating these rules is to comply with its statutory charge, prescribed by the legislature, to regulate hemp and HDC products. The Department is required to regulate HDCs under T.C.A. §§ 43-27-201, et seq., which regulate all HDC products, not just ingestible (edible) products. The Department does note however, that under the governing statute, an ingestible product (e.g., a gummy) that contains an HDC must not be sold in a serving that contains more than 25 mg, in the aggregate, of one or more HDCs—and thereby is consistent with this commenter's concern that edible gummies not have 100 mg of HDCs.

Comment(s):

- The labeling requirements are unreasonable and may cause market confusion in consumer education.
- Consumers need more guidance on serving size, labeling of THCa flower, and packaging requirements. Commenters ask whether there will be a grandfather clause for products

grown prior to July 1, 2024.

- Commenters appreciate the necessity of enhanced warning labels, but request a grace period for implementation, considering the significant investments already made by companies in pre-existing packaging.

Response: The Department's rules set labeling requirements for HDC products. While it is unclear what particular labeling requirements commenter is concerned will cause confusion, in drafting these labeling requirements, the Department met with industry and stakeholders to receive their feedback and input. The Department incorporated most of their recommendations, including reducing the length and required font size of the warning statement. The HDC law addresses requirements for product serving size and packaging requirements, which apply to all HDC products—regardless of type. The HDC law does not include any “grace period” provisions, with the sole exception of an exemption for retail locations within 1,000 feet of a school that offered HDC products for sale prior to 2024. In addition, as has been the Department's consistent historical practice with all its regulatory programs, with its rollout of the new regulatory program for HDC products the Department intends to educate stakeholders and conduct outreach before regulating them, with a program-specific emphasis on proper labeling and youth access prevention. The Department also notes that these rules will undergo a 90-day notice period with the Secretary of State's Office prior to becoming effective.

Comment: Pesticides and chemicals that cause serious health issues are allowed in food, but it seems anything that takes money away from pharmaceutical companies is not allowed.

Response: The scope of the Department's rulemaking is regulation of hemp and HDC products. The Department's rules set tolerance requirements as to pesticides and other chemicals that may be in HDC products. Regulation of or revenue streams for pharmaceutical companies is outside the scope of these rules and the Department's rulemaking or regulatory authority.

Comment: QR code requirements should require the QR code to direct the consumer to the lab when scanned. This will prevent photo shopped labs from entering the market.

Response: The Department agrees and notes the hearing rules have been amended to require a third-party laboratory to host a landing page for each product's QR code in order to reduce the ability of false Certificates of Analysis in the marketplace.

Comment: Recommend expanding the definition and authorization under 0080-10-02-.05 to accept USDA registered laboratories in addition to TDA registered labs for purposes of sampling or testing requirements.

Response: The governing statute, T.C.A. § 43-27-207, requires HDC suppliers and retailers to contract with a third-party laboratory to provide the product testing required by statute and rule. Under the Department's rules, TDA-registered laboratories must be accredited to the ISO/IEC 17025 standard. This standard ensures the competence, impartiality, and consistency of laboratory operations. USDA-registered labs may or may not be accredited to this same standard. Inclusion of this requirement addresses concerns from other commenters about the quality of test results. A TDA-registered laboratory may also be a USDA-registered laboratory, but the statute requires testing by TDA-registered third-party laboratories. For these reasons, the Department has elected not to institute a change in the rules re accepting test results from USDA registered laboratories unless also satisfying TDA-registered laboratory requirements.

Comment: Proposed rule 0080-10-01-.06(4) references pursuit of criminal charges, but T.C.A. § 43-27-203 does not.

Response: Proposed rule 0080-10-01-.06(4) is in the chapter of hearing rules that apply to Hemp Producers. The governing statutes for that chapter of rules are at T.C.A. §§ 43-27-101 et seq.

Comment: The proposed rules are a misguided attempt to prohibit and vilify hemp.

Response: The Department is promulgating rules as required and directed by the legislature under T.C.A. §§ 43-27-101 and 201, et seq. Regulation of hemp and HDC products do not equate with an attempt by the Department to vilify hemp. If the comment re "prohibition" is in reference to the allowable limit on THC content in products, or support for legalization of marijuana, the legislature, not the Department, has the authority to codify the legality or illegality of marijuana, to raise the allowable limits of THC in hemp and HDC products, and/or to alter the prescribed manner of testing HDC products; the Department does not have the authority to make these changes through rule.

Comment: Some bad actors in the industry are misrepresenting THCa flower as CBD flower. The Department should take steps to save CBD flower and ban THCa.

Response: The Department may only regulate hemp flower (THCa flower and CBD flower) within its scope of authority as granted by the legislature. Under T.C.A. §§ 43-27-201, et seq., the Department is following the directives of the legislature to promulgate rules for all HDC products. Under these rules, all HDC products will be subject to the same testing and labeling requirements and the statutes authorizing this rulemaking require THCa to be regulated in the same manner as other HDCs. THCa flower will continue to be legal under the law and the Department's rules so long as the products comply with regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. CBD is not included in the statutory definition of an HDC and is beyond the scope of the Department's regulatory authority. The proposed rules therefore neither implement a threshold nor testing requirements for CBD. However, CBD products that do contain cannabinoids that meet the definition of an HDC in a concentration of 0.1% or greater, do fall within the Department's authority to regulate. If a CBD product is removed from the market, it is likely because it contains more than 0.3% of delta-9 THC and/or impermissible levels of microbial contaminants, mycotoxins, heavy metals, residual pesticides, or residual solvents.

Comment: As proposed, there are potential discrepancies in the definitions of hemp-derived cannabinoids. The oversight does not fully capture the economic ramifications, particularly if THCa products are considered. Similar legislation in Colorado resulted in many businesses leaving the state. Commenter urges the Department to examine the "local multiplier effect" to evaluate the proposed rules' impact on the Tennessee economy, which operates as follows:

1. Initial Spending: This begins with expenditures at local establishments, boosting their revenue.
2. Recirculation of Money: A significant portion of this revenue remains within the local economy, used for wages, rent, or purchases from local suppliers.
3. Further Spending: This income is then spent locally by employees and businesses, further fueling the local economy.
4. Multiplier Effect: The re-spending of this money within the local economy amplifies its impact, supporting additional economic activities.
5. Enhanced Economic Stability and Growth: This cycle fosters local job creation, broadens the range of services and products available locally, and retains wealth within the community.

Response: The definitions of HDCs are prescribed by statute in T.C.A. § 43-27-202, not by the Department's rules. The Department reads the remainder of this comment to be a concern for the

effect the governing laws may have on local Tennessee economies. The Department presumes the legislature considered the effects of the hemp and HDC product laws on local economies during passage of their respective bills. The Department is charged to administer the laws and promulgate rules for their clarification and application. The authority to change these governing laws lies with the legislature, not the Department.

Comment: The Department intends to employ the post-decarboxylation method during its random and unannounced inspections. This plan could significantly impact flower products.

Response: Under the HDC law, in T.C.A. § 43-27-205, the Department is responsible for conducting random, unannounced inspections of locations where HDC products are manufactured, distributed, or sold. Per T.C.A. § 43-27-207, the Department is required to “[s]ample and analyze products containing a hemp-derived cannabinoid produced, distributed, or offered for sale in this state for cannabinoid concentrations Departmental testing methods *must* employ liquid chromatography tandem mass spectrometry, in a manner similarly reliable to post-decarboxylation, to determine a cannabinoid profile of samples tested, including their THC concentrations.” (Emphasis added.) This statutorily prescribed testing method captures the conversion of THCa to delta-9 THC through the decarboxylation process. The Department agrees that flower products that contain THC or THCa may be impacted by this testing requirement. Flower products will still be allowed so long as they meet regulatory requirements, including THC content of 0.3% or less, tested in a manner similarly reliable to post-decarboxylation.

Comment(s):

- A segment of commenters supports a total ban on THC. These commenters state there is no medical benefit to THC and that THC’s only value is to get consumers high.
- Increased THC consumption leads to cannabis use disorder, cannabis induced psychosis, cannabinoid hyperemesis syndrome, schizophrenia, and other disorders. Chemicals used to concentrate THC in products are the most dangerous elements of THC products. Chemicals used to synthesize delta-8 remain in the product after processing and cannot be used in a manner that guarantees consumer safety.

Response: The scope of the Department’s rulemaking is to regulate hemp and HDC products as directed by the legislature. In doing so, the Department must adhere to its statutory authority. The HDC law under T.C.A. §§ 43-27-201, et seq., allows THC in HDC products so long as the THC content is 0.3% or less, tested in a manner similarly reliable to post-decarboxylation. The Department is aware HDC products may contain harmful chemicals and accounts for this by including testing provisions in the rules that establish reasonable tolerances or exclusion of various chemicals from products available in the marketplace.

Comment: Consuming a THC product that is labeled as not containing THC puts consumers at risk of losing their job because hemp-derived cannabinoid products are presumed to contain THC.

Response: In order to better protect consumers and bolster consumer awareness of products they may consume, the Department’s rules establish affirmative labeling requirements that all HDC products sold in Tennessee must adhere to, including listing all ingredients on a product label, the amount and type of cannabinoid in the products, allergen statements, THC content, and conspicuous warning statements re effects of consumption.

Comment: The Tennessee Bureau of Investigation’s use of a total THC testing standard for legal determinations circumvents legislative guidelines, leads to potential misuse of civil forfeiture laws, and causes undue hardship on compliant businesses.

Response: The Department notes T.C.A. §§ 43-27-201, et seq., specifically granted concurrent jurisdiction to multiple agencies for enforcement of statutory requirements. TBI testing standards and enforcement protocols fall outside the Department's jurisdiction and rulemaking authority. The Department notes that its rules apply for regulation of hemp and HDC products in commerce. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code.

Comment: THCa is not psychoactive when consumed orally making it safer than marijuana if eaten by pets and children.

Response: The Department does not opine on the safety of THCa based on the manner of its consumption or the type of consumer and notes the statutes authorizing this rulemaking require THCa to be regulated in the same manner as other HDCs.

Comment: THCa products are controlled, lab tested, and grown organically. It is used by law abiding professionals and community members.

Response: The Department is aware myriad individuals consume THCa products. THCa products will continue to be allowed under the Department's rules so long as they comport with testing requirements, including 0.3% THC or less, tested in a manner similarly reliable to decarboxylation, and other requirements established by statute and rule. The Department is required by statute to administer the HDC law and regulate THCa and all other HDC products regardless of its effect on products that will be precluded from the market.

Comment: The data out of the states where marijuana is legalized makes it clear there is no public health or safety justification for restricting cannabis.

Response: These rules are being promulgated in accordance with legislation passed by the Tennessee legislature for the regulation of hemp and HDC products in Tennessee. The Department expects the legislature weighed public health and safety considerations during passage of laws authorizing this rulemaking. With consumer safety in mind, the Department's rules contain requirements as to product labeling and testing for microbial contaminants, mycotoxins, residual pesticides, heavy metals, and residual solvents. The Department stands committed to administer those laws as it was charged in passage of T.C.A. §§ 43-27-101 and 201, et seq.

Comment: Consumers support the legislation and want access to safe hemp-derived products for people aged 21 and over. These consumers understand that safe products can come from sensible regulations but wish the Department would not ban THCa.

Response: The Department's rules do not ban THCa. THCa products will continue to be allowed under the Department's rules so long as products comport with testing requirements, including 0.3% THC or less, tested in a manner similarly reliable to decarboxylation, and other requirements established by statute and rule. With consumer safety in mind, the rules also contain requirements as to product labeling and testing for microbial contaminants, mycotoxins, residual pesticides, heavy metals, and residual solvents.

Comment: The language required to be placed on packaging is a stretch and could potentially cause market confusion.

Response: It is not clear to the Department which labeling language the commenter thinks is "a stretch" or could cause and how it would cause market confusion. The Department has received

and incorporated extensive industry feedback on labeling requirements to arrive at warning statements that are clear, concise, minimally intrusive to industry to incorporate, and yet conspicuous for consumer awareness of products they may consume. Additional changes to labeling requirements were incorporated into these rules based on public comment to shorten and to reduce required font size of the statements.

Comment(s):

- Recommend removing hemp-derived cannabinoid products from gas stations, convenience stores, liquor stores, smoke shops, and nicotine vape stores. Keeping hemp-derived cannabinoid products to dispensary style retailers who focus on the products, knowledge, and research will keep consumers safe and grow the industry in a healthier way.
- Synthetic cannabinoids are causing serious harm to consumers and hemp industry. Recommend the department ban all cannabis product sales at gas stations and strongly limit THC-P, THC-JD, THC-H, and THC-B because consumers are getting sick from these products.

Response: T.C.A. §§ 43-27-201 et seq., contains several requirements re manner of retail sale, such as restrictions on retail sale of products within 1000 feet of a school and to persons under 21 years of age. Products must also be maintained behind the counter of a retail establishment in an area inaccessible to a customer. The HDC law does not otherwise contain restrictions on the types of retail establishments allowed to sell products such as commenter proposes, nor does the law require retailers to have specific knowledge of products.

The Department is aware that new HDCs are continually being created, discovered, and developed, and expects the legislature was also aware of this during passage of the laws authorizing this rulemaking. The Department notes the HDC law defines "hemp-derived cannabinoids" to include THCP (THC-P) in its non-exhaustive list of what is an HDC under the law. Importantly, the HDC law does not exclude the cannabinoids THC-JD, THC-H, or THC-B, in its definition of what is not an HDC—and the Department notes the list of what is not a hemp-derived cannabinoid is exhaustive. By default, until and unless the legislature modifies the law to exclude THC-JD, THC-H, or THC-B, the law captures these cannabinoids and requires them, as well as THCP, to be regulated in the same manner as other HDCs.

The Department therefore does not have statutory authority to incorporate commenter's proposals into its rules and declines to change the rules as commenter suggests. Authority to amend the HDC product law according to the proposed comment lies with the legislature, not the Department.

Comment: There are benefits to growing the cannabis plant, including soil enrichment.

Response: The Department is aware of studies and use of hemp plants for phytoremediation but does not otherwise opine on the issue.

Comment: There are three different regulatory bodies involved in regulating cannabis. The history of communications between regulatory offices is weak. We already have the TBI and the Cannabis Task Force operating independently of the Department of Agriculture and the Department of Revenue to oversee cannabis regulation and enforcement. Without having any type of communication tools, the Department is definitely headed towards litigation. In the past, litigation costs the state millions of dollars.

Response: The scope of the Department's rulemaking is for the authority it was delegated under T.C.A. §§ 43-27-201, et seq. These rules set out the Department's roles and responsibilities in accordance with what it was charged under the statute. This law did not contemplate the Department's communication with the Tennessee Bureau of Investigation or the Cannabis Task Force for purposes of this rulemaking. The Department also notes there is nothing in the statutes

that preclude these agencies from communicating with each other and the Department's consistent historical practice with all its regulatory programs is to communicate and cooperate with sister regulatory agencies where interests and jurisdictions run concurrently. The Department stands committed to delivering a program that is legally in conformance with the duties with which it was charged.

Comment: Hemp-derived cannabinoid products are healthier and less damaging than more pharmaceuticals for mental health and physical rehabilitation. The legislation is a misguided attempt at prohibition and vilification of a holistic, healthy, and natural resource.

Response: The Department is aware consumers report using hemp and HDC products medicinally and in lieu of pharmaceuticals. The Department's rules reflect the legislature's directives re regulating hemp and HDC products under T.C.A. §§ 43-27-101 and 201, et seq, and the rules are promulgated in accordance with this statutory authority. The Department may only administer the statute as directed by the legislature and promulgate rules for the statute's clarification and application. Authority to pass the underlying hemp and HDC product laws and/or to amend them lies with the legislature, not the Department.

Comment: To indicate that safe, sustainable uses of the cannabis plant do not exist is absurd. Thirty-eight states have legalized medical marijuana, yet the current administration prefers the company of big tobacco and alcohol companies who create products that people use to self-medicate issues that doctors cannot.

Response: Regulation of tobacco or alcohol falls outside the scope of this rulemaking and the Department's rulemaking authority under the hemp and HDC product laws passed by the legislature. The Department agrees that as of June 2024, according to the National Conference of State Legislatures, thirty-eight states have either a comprehensive medical cannabis program or an adult/medical use regulated cannabis program. Tennessee, however, is not one of the thirty-eight and the Department cannot legalize through rulemaking that which is not legal in state statute. The Department presumes policy considerations re public health and legalization of medical marijuana were made by the General Assembly during passage of laws authorizing this rulemaking. Authority to codify the legality or illegality of marijuana lies with the legislature, not the Department.

Comment: Unfortunately, Tennessee continues to devolve and not just because of this single ruling. The choices made by Tennessee leadership has been detrimental to the long-term growth of the state. If this continues there will be no one left of substance in the state and the decay will be irreversible.

Response: The breadth and lack of detail of this comment falls outside the scope of this rulemaking and the Department's rulemaking authority under the hemp and HDC product laws passed by the legislature. The Department may only administer those statutes and promulgate rules for their clarification and application as directed by the legislature.

Comment: Unregulated, chemically altered, and synthetically produced products have infiltrated the Tennessee marketplace and created elevated environmental and health risks. Ensuring adherence to stringent safety standards is essential to protecting children and all Tennesseans.

Response: The Department is aware that production of various HDC products may entail use of harmful solvents or other chemicals, and that use of dangerous chemicals in HDC products and concern for consumer protection—particularly as to prevention of youth access—was a driving factor in the legislature's decision to pass the HDC law. To that end, the Department's rules include testing requirements that establish reasonable tolerances or exclusion of various chemicals or ingredients from HDC products available in the Tennessee marketplace, among other safety

standards contained in the rules. The Department notes all HDC products manufactured, distributed, or sold in Tennessee will be subject to these standards.

Comment: Commenters advocate for testing regulations that differentiate between naturally occurring THCa and synthetic THC, education for legislators about the scientific merits of THCa, and sensible regulations of THCa that protect businesses and consumers.

Response: The Department is promulgating these rules in accordance with T.C.A. §§ 43-27-101 and 201, et seq. These laws do not differentiate between naturally occurring THCa and synthetic THC. The Department presumes the legislature weighed such considerations during passage of the laws authorizing this rulemaking and sought subject matter expert input during that process. The Department does not pass state laws and is required to administer the HDC laws as directed by the legislature.

Comment: Tennessee accidentally created one of the best cannabis environments in the United States just from stakeholders working together. The proposed rules bring THCa to the forefront and being able to have/grow this specific cannabinoid eliminates trace cannabinoids that neither the industry nor the government has sufficient data on.

Response: Based on the context of this comment in the Department's rulemaking hearing record, the Department interprets this comment as supporting continued availability of THCa in Tennessee by drawing a distinction between THCa as an HDC that may be grown versus HDCs that are synthetically produced. The Department is aware that new HDCs are continually being created, discovered, and developed and agrees there is limited data at this time re the full spectrum of cannabinoids. Under T.C.A. §§ 43-27-201, et seq., the Department is directed by the legislature to promulgate rules for all HDC products, including both THCa and synthetic cannabinoids. To the extent any requirements in the rules as promulgated limit one type of HDC over another, the rules in accordance with the governing statute serve to limit only those cannabinoids that when tested by decarboxylation may produce a THC value greater than 0.3%, which to the Department's knowledge are THC and THCa.

Comment: Without a change to the criminal code, products with more than 0.3% total THC will still be legal to possess and consume. Tennessee businesses just won't be able to sell or manufacture the products in state. Consumers will get the products online because they are federally legal.

Response: The rules promulgated by the Department apply for regulation of hemp and HDC products in commerce. The rules are not a substitute for legal determination of what THC and THCa concentrations are criminalized under Tennessee criminal code. The Department presumes that criminal enforcement considerations for or against a total THC testing standard were considered by the legislature during passage of the HDC products law.

Comment: 0080-10-03-.06(3). A testing failure (e.g., excessive THC content) of a retailer's HDC product is grounds for destruction of the entire batch. As written, the rule could be interpreted to mean that a failed test at one retailer would lead a different retailer's product to be destroyed because they came from the same batch. But this does not consider the natural variability of THC content, the effect of storage conditions on certain types of THC content, and the issue of counterfeit goods. Economic hardship and no due process before requiring product to be destroyed.

Amend to implement a threshold system where a certain percentage of failed tests within a batch triggers the batch unusable for that particular manufacturer, distributor, or retailer, and requires testing of products from the same batch held by any other business. Add provisions for verifying the authenticity of the tested product as genuinely belonging to the reported batch to protect against

repercussions of counterfeit products on legitimate manufacturers.

Response: Under the rules as promulgated, HDC product manufacturers are required to draw samples for product testing in a manner that is representative of each batch. As such manufacturers are empowered to devise the manner of sampling and testing that is necessary to their particular risk tolerances and conducive to the nature of their particular product without the testing protocol being unduly burdensome. This autonomy to industry is preferred to the comment's recommendation of layering multiple testing procedures with an arbitrarily selected percentage of acceptable failures, which may not be suitable across the myriad of products produced in the marketplace and which still may not serve to actually produce a "representative" sample of the batch produced. For these reasons, the Department declines to take up the commenter's recommendation re allowable percentages of failed tests in product sampling. Under the rules manufacturers have the autonomy to devise their own sampling procedures and the accountability for doing so in a manner representative of their product.

When a failed test occurs, trace forward and trace back concerns are triggered to help protect consumer safety. A failed test will trigger public safety concerns and enforcement action to remove or to remediate violative product in the stream of commerce.

Under the rules, changes were made in response to other comments to align COAs for product produced, traceable to the lab that performed tests on the product; those labs are required to be ISO accredited in their testing procedures. For these reasons, these rules address this comment's concerns for accuracy of tests run and authenticity of tests associated with products tested.

Re the commenter's concerns for the natural variability of THC content and the effect of storage conditions on THC content, the Department presumes that these environmental factors may have contributed to the legislature's decision to require testing of HDC products using a manner similarly reliable to post-decarboxylation. As such understanding, the post-decarboxylation value of a product is stable throughout the commercial chain, regardless of variables in how the product is stored from one holder to the next.

For these reasons, the Department appreciates this comment and believes commenter's concerns are adequately addressed in the governing statutes for hemp and HDC products and revisions to the rules as promulgated.

Comment: 0080-10-02-.05 (3) (a) (3) "Third party laboratories must retain a reserve sample of any material not used in the testing process and maintain a reserve sample for 60 days following all completion of testing." This rule is overburdensome. Sample retention is part of a lab's standard operating procedures. The space and equipment cost of storing thousands of samples for 60 days is a burden on laboratory operations. Would require multiple additional cabinets, refrigerators, and freezers, the electricity to power them, the security measures to ensure diversion control, and the space to accommodate them - all in order to house samples that are very likely to ultimately be destroyed. A sample retention requirement of 15 days is more appropriate.

Response: The Department has removed this requirement from the rules.

Comment(s):

- Rules proposed to regulate laboratories amount to a regurgitation of existing regulations throughout the country that have so far failed to reign in testing fraud. Testing fraud is a serious concern throughout the cannabis industry, and the Department has an opportunity to ensure that it does not stand in Tennessee. A simple registration with the Department does little to protect Tennesseans from bad laboratory practices and fraudulent lab reports. Department should only register qualified, ethical laboratories, and only require that producers provide laboratory reports on actual retail products - not research and development batches. By requiring trusted laboratory reports on every HDC product sold in our state - including those supplied by out-of-state manufacturers - we can even the playing field and promote further investment in Tennessee's hemp industry. Currently, the

proposed rules incentivize out of state production and importation into the state as the most efficient way to access Tennessee consumers. As such, the proposed draft of rules poses a dire threat to jobs and the robust economic activity that the HDC industry generates in Tennessee.

- 0080-10-02-.05(1). "Any test result exceeding allowable limits is grounds for destruction of the entire batch represented by the sample." Overburdensome requirement. Manufacturers are regularly engaged in research and development, and out-of-criteria laboratory test results are a normal and expected part of that process. Requiring a producer to destroy an entire batch of material due to a nonconforming internal-facing test is wasteful and undermines profitability.

Response: The Department's rules address commenter's concerns as follows. Under the Department's rules, any laboratory that wishes to register with the Department must be accredited to the ISO/IEC 17025 standard. This international standard for testing and calibration laboratories sets requirements for competence, impartiality, and consistency of operations. To accommodate research and development batches, the Department has amended its rules to require testing of all products "in commerce." The rules require all HDC products sold at retail to have a COA from registered laboratories. Registered third-party laboratories are also required to host and notify the Department of one landing page for retrieval of all COAs issued by the laboratory through use of the quick reference (QR) code required on every HDC product in order to reduce the ability of false Certificates of Analysis ("fraudulent lab reports") to enter the Tennessee marketplace.

Comment: It is unfair that people are being targeted before the rules are enacted and people's livelihoods are being destroyed. People who were on board with regulations beforehand and supported safer regulations who are now instead being punished for following the rules but had no idea of this last-minute change to the rules. The way things have been running up until now has been perfectly fine and many citizens of Tennessee have expressed happiness that they can buy hemp legally instead of something that may be harmful.

Response: The Department is charged pursuant to the legislature to administer the hemp and HDC laws and it is the laws, passed by the legislature, that establish the limit on THC and prescribe the testing method. Those items are not a last-minute change by the Department. The HDC law, T.C.A. §§ 43-27-201, et seq. authorizes this rulemaking and requires the Department to pass rules which include testing for safety, toxicity, and allowable THC content (see elsewhere in this packet for a more in-depth discussion of these requirements). Authority to codify the hemp and HDC product laws lies with the legislature, not the Department. The Department may only administer the statutes and promulgate rules for their clarification and application.

Comment: The proposed rules should not be hidden and the general population should be able to hear about this publicly so that everyone in Tennessee is aware of the law that is trying to be passed under the people's noses without their knowledge. At the very least the Department should allow citizens and businesses time to adjust for new regulations so that everyone can be compliant in their efforts of safe and legal cannabis in the state of Tennessee.

Response: The Department cannot and did not hide these rules and notes this commenter submitted this comment in an appropriate manner directly to the appropriate Departmental rulemaking personnel and within the rulemaking comment period. In fact, during the rulemaking comment period the Department received 3,314 submissions from approximately 2,535 commenters who shared more than 19,000 comments, concerns, questions, or feedback regarding the rules. These numbers include this commenter's submission. This was the largest public hearing and engagement in rulemaking in the Department's history, indicative of a rulemaking process that was both widely known and heavily engaged in by the public.

Under the Tennessee Uniform Administrative Procedures Act (T.C.A. § 4-5-201, et seq.), the Department is legally required to follow a prescribed rulemaking process when promulgating rules. To maximize transparency in this particular rulemaking process, the Department engaged with

industry members in multiple meetings while drafting the proposed rulemaking hearing rules and encouraged these individuals to communicate with their respective stakeholders to receive further feedback and input re the governing statute and possible content of proposed rules. The Department's Public Affairs team issued a public notice on January 8, 2024, regarding the Department's February 6, 2024, rulemaking hearing; this notice was sent to public notices group statewide, was posted on the Department's website, and placed on the Department's public calendar. The Department's rulemaking hearing was attended by 188 participants—the Department's most attended rulemaking ever. The Department also notes multiple media outlets publicized details about this rulemaking both before and after the hearing.

Re allowing citizens and businesses time to adjust for new regulations, the governing law, T.C.A. § 43-27-201, et seq., has been in effect since July 1, 2023, and the Department cannot and does not enforce rules until they are finalized and legally effective in accordance with the rulemaking process required by the Tennessee Uniform Administrative Procedures Act, which includes at minimum a 90-day notice period prior to promulgated rules becoming effective. For all of the above reasons, commenter's concerns with the Department's rules have been appropriately addressed through this rulemaking process.

Comment: Commenters urge the Department reconsider the mandatory use of state-approved testing labs. In one commenter's experience, current turnaround times and accuracy of Tennessee labs do not align with industry standards which could potentially drive reputable companies out of the state.

Response: The governing law under T.C.A. § 43-27-207 requires HDC suppliers and retailers to contract with a third-party laboratory to provide the product testing required by statute and rule. This statute also requires the Department to develop an application process to evaluate and approve qualifying laboratories. These directives from the legislature are mandatory and the Department does not have the authority to either change or ignore them. The Department notes laboratories outside Tennessee are also eligible for registration/approval provided they satisfy the Department's requirements for registration. This provides Tennessee HDC manufacturers and retailers a larger number of laboratories with which they could contract for testing.

Comment: The current exclusion of certain solvents raises concerns about the flexibility required for innovative technologies. Commenter recommended adopting language aligned with the FDA's classification of solvents as Generally Recognized as Safe (GRAS).

Response: It is unclear which exclusion of solvents the commenter is concerned about, and which specific language commenter recommends aligning. To the extent the Department can respond to this comment, the rule's list of allowable solvents was determined after careful consideration and evaluation by the Department of all known solvents used in the manufacture of HDC products. The Department also reviewed regulations in other states re allowable solvents for HDC products before making its final determination. Regarding the rule's exclusion of solvents versus aligning with GRAS for solvents, the Department notes that substances used as food additives are only GRAS when a specific substance has been adequately shown to be safe under the conditions of its intended use. In other words, a substance being deemed GRAS is not a "one size fits all" use from product to product or industry to industry. The FDA has not evaluated HDCs, so adoption of GRAS solvents for HDCs under the Department's rules would not align with the intent of the FDA's classification. For these reasons, the Department declines to adopt commenter's proposal.

Comment: 0080-10-02-.02(2)(i). The draft rules overstep the Department's statutory authority by imposing the 0.3% delta-9 THC concentration limit on intermediate products. State law explicitly allows for hemp concentrates to have up to 5% delta-9 THC concentration, acknowledging that the manufacturing process dilutes these concentrates to legal limits for final consumer products. The Department's rule does not reflect this statutory allowance and could inadvertently criminalize lawful conduct that is a standard industry practice. Commenter recommends the draft rules be amended

to delete the sentence related to intermediate products.

Response: The inclusion of intermediate products in the rule's definition of an HDC does not in itself impose the 0.3% delta-9 THC concentration limit on products; that limit is imposed in the "tolerances" portion of the rule for sampling and testing. Nonetheless, and to accommodate this concern, the Department has amended the rules to note within the testing provisions, the allowable tolerance for THCa when an intermediate product (i.e., "HDC products in commerce to an HDC supplier licensee") is a post-decarboxylation THC value of 5% or less, to account for the statutory allowance under Tennessee law for hemp concentrates. For this reason, the Department declines to remove intermediate products from the definition as recommended by the commenter.

Comment: 0080-10-02-.02(2)(i). Definition of "intermediate products" as "HDC products" serves no necessary purpose because these products are not consumed. It is not necessary to apply a 0.3% delta-9 THC limit to intermediate products, especially given the statutory provisions that accommodate higher concentrations for manufacturing purposes. The current rule does not account for practical aspects of product formulation and could unduly restrict manufacturers' ability to produce a range of legal hemp products. Commenter recommends the draft rules be amended to delete the sentence related to intermediate products. This amendment would ensure the rules do not contradict state law and support the industry's capability to manufacture compliant final products.

Response: The Department notes intermediate products are ultimately consumed in the finished product. The Department also notes the governing statute requires testing (1) of HDC products prior to final production of a product containing an HDC, (2) on finished goods to confirm potency, and (3) of each batch manufactured.

As discussed in response to the comment immediately preceding this one, the inclusion of intermediate products in the rule's definition of an HDC does not in itself impose the 0.3% delta-9 THC concentration limit on products; that limit is imposed in the "tolerances" portion of the rule for sampling and testing. The Department has amended the rules to note the allowable tolerance for THCa as an intermediate product (i.e., "HDC products in commerce to an HDC supplier licensee") is a post-decarboxylation THC value of 5% or less, to account for the statutory allowance under Tennessee law for hemp concentrates. For this reason, the Department declines to adopt commenter's proposal to delete the sentence related to intermediate products.

Comment: 0080-10-01-.03(2)(h); 0080-10-01-.03(5); 0080-10-02-.03(2)(h); 0080-10-02-.03(5); 0080-10-03-.03(2)(h); 0080-10-03-.03(5). Rules require applicants for licenses to submit "[a]n Identity History Summary issued by the Federal Bureau of Investigation" ("FBI") for the person identified as legally responsible for applicant's operations. This request violates federal law, FBI policy, and federal regulations. The requirement that applicants provide their own background check for the purpose of licensure is directly contrary to the FBI's policy and regulations, which restricts dissemination "for the purpose of licensing or employment or any other purpose enumerated in 28 CFR 20.33."

Under those regulations, the processing of criminal background checks by state agencies must be managed by a designated department of the State (in Tennessee, this department resides within the Tennessee Bureau of Investigation) or through a contractor who has agreements with the State and the FBI to process such records in a compliant manner. Commenter recommends a third option, which is consistent with how the ABC in Tennessee processes such checks for its liquor license applicants.

Response: The Department has amended the rules to require nationwide criminal background checks facilitated through the Tennessee Bureau of Investigation.

Comment: 0080-10-01-.06(4); 0080-10-02-.10(5); 0080-10-03-.07(5). The approach to

enforcement in the draft rules for rules violations does not align with the statutory provisions, which specify appropriate punishments for various civil violations and define criminal conduct. To the extent the draft rules therefore permit penalties that are greater than the statute, they are contrary to law and cannot be enforced. The statute's intent and language indicate that certain violations are civil in nature, with corresponding civil penalties, while others are explicitly criminal.

For clarity, the rules must mirror the consequences the statute prescribes for specific violations or simply defer to the statute. The necessity for what could be read as sweeping enforcement authority in the draft rules is not evident, especially given the statute's clear guidance on penalties. The act prescribes the appropriate level of punishment for various violations. The simplest revision to the draft rules is to remove these three provisions.

Response: The Department declines to adopt commenter's suggested rule changes for the following reasons. First, repetition or mirroring in the rules of enforcement actions enumerated in statute would be redundant and unnecessary. Second, the enforcement actions enumerated under T.C.A. § 43-27-206(c) are permissive ("the department of agriculture *is authorized to*" (emphasis added)) and are not exclusive. Moreover, the Department has other statutory authority applicable to regulation of HDC products—outside of the HDC law—with which the rules at issue are consistent. See, e.g., T.C.A. § 4-3-204 ("the department may . . . in addition to or in lieu of any other lawful disciplinary action, assess a civil penalty"); T.C.A. § 39-14-105 (worthless checks punishable as theft); T.C.A. § 53-1-103 (violation of food manufacturing laws a Class C misdemeanor); T.C.A. § 53-1-201 (embargo of manufactured food items); T.C.A. § 53-8-119 (violation of retail food laws a Class C misdemeanor). In addition, elsewhere in the HDC law the Department is granted specific statutory authority to promulgate rules to effectuate the HDC law. See T.C.A. § 43-27-211. The Department's rules re enforcement actions likely to effectuate compliance with statutory and regulatory requirements for HDC products are consistent with this statutory authority.

The Department also notes each enforcement action the Department takes is determined by a reasonable application of the rules for the matter at hand and for necessary protection of public safety. The civil penalties prescribed in the HDC statute allow for a \$1,000 civil penalty for a first violation—without limiting or narrowing what constitutes a first violation worthy of this penalty—and a fourth violation within two years of the first violation allows for license revocation. Taking commenter's proposal re solely implementing enforcement measures enumerated in the HDC statute to its logical end would, e.g., mean a "garden variety" first-time violation would warrant a \$1,000 civil penalty to the exclusion of the Department's other authority to merely issue a written warning.

Although this response in no way constrains the enforcement actions available to the Department, the Department's consistent historical practice—contrary to commenter's concern re the rules permitting penalties that are greater than the statute—is to follow a progressive enforcement model for its regulatory programs. Under this model, first violations typically merit a written warning and education of the violative party by Departmental program staff. Subsequent violations are addressed through further regulatory action correlating with the egregiousness of a violation, or with law enforcement, as necessary. The rules as written reflect this practice and better serve industry by providing the Department a range of available enforcement measures upon which to determine the appropriate remedy for a given violation—from a written warning up to an enforcement action authorized under the HDC law.

Taking all the preceding into account, the Department's rules as promulgated are consistent with and align with the Department's statutory authority and the Department declines to adopt commenter's specific suggestion to remove the referenced provisions.

Comment(s):

- Restriction on growing more than one variety per growing area. The restriction on growing varieties will severely limit the ability to grow drought resistant crops, research crop types, and prevent cross pollination. How does this rule reconcile with the existing hemp program?
- 0080-10-01-.02(2)(e); 0080-10-01-.06(2)(e). Rules will restrict growers to one cannabis

variety per growing area and defines "growing area" as any contiguous land area used for the cultivation of cannabis, irrespective of bifurcation by roads, fencing, or similar structures. The limitation of one variety per growing area is inconsistent with established agricultural practices, land use law, and federal guidelines. Notably, USDA regulations define a "lot" as a continuous area in a field, greenhouse, or indoor growing structure containing the same variety or strain of cannabis throughout the area. Aligning state rules with these federal definitions can help ensure uniformity and prevent confusion, thereby aiding growers in meeting both state and federal compliance standards. Could force growers to choose a single variety for large expenses of land, which could reduce genetic diversity, increase susceptibility to pests and diseases, and limit market responsiveness. In addition, the draft rule does not provide any insight into what, if any, physical barriers can be used to separate growing areas.

- Revise rules to allow for more flexibility in defining growing areas. This could include permitting the cultivation of multiple cannabis varieties within a defined land parcel, provided that adequate measures are taken to prevent cross-pollination and maintain varietal integrity. Alternatively, the draft rule could be amended to define growing area as "a continuous area in a field, greenhouse, or indoor growing structure containing the same variety or strain of cannabis throughout the area," as USDA regulations define "lot."

Response: While the proposed definition in the rulemaking hearing rules was drafted to maximize grower flexibility and autonomy to grow more or less varieties as they desire, the Department agrees with commenter and has amended the rules accordingly to make the grower requirements uniform with USDA requirements for state run hemp programs.

Comment: There is no mention of a culpable mental state in the rules that has been included in prior rules.

Response: This comment refers to the hemp growers/producers rules. The rules' previous language referring to a culpable mental state was removed from the rules because that language was redundant with the governing statute, T.C.A. § 43-27-106, and therefore unnecessary to repeat in the rules.

Comment: The burden of having to keep two years of records seems stricter than many other retail industries. How can businesses reasonably track every sale without having to spend a lot of money on software?

Response: It is never the Department's intent for its requirements to be overly burdensome on businesses. Maintaining records for two years is standard with the Department's food manufacturing program, as well as other standard food manufacturing practices. For example, in the United States, the Food Safety Modernization Act mandates food facilities to maintain records for at least two years to ensure food safety and traceability. Traceability is important because in the event of a foodborne illness outbreak or contamination issue with an HDC product, records allow the Department, and any associated partner agency involved in the response—such as the Department of Health—to trace the origin of ingredients, the production process, and the distribution chain, all of which is crucial in preventing further harm to consumers.

Comment(s):

- No free transportation to other facilities unless it's your own. The transportation restrictions do not seem to take into account the existing industry. How can wholesalers and manufacturers be expected to move products reasonably with these restrictions?
- 0080-10-03-.07(2)(c). The language prohibiting the transport of hemp-derived cannabinoid ("HDC") products except between retail locations under the same ownership lacks consideration of the supply chain's standard operational logistics. This creates ambiguity in

the interpretation that could result in unfeasible restrictions, negatively impacting the industry's distribution networks. Commenter recommends an amendment that clearly allows for the transport of HDC products throughout the supply chain, including but not limited to movements between manufacturers, distributors, and retail locations, irrespective of ownership.

Response: This comment refers to a requirement that was previously applicable only among retailers of HDC products, and therefore the remainder of the comment re movement of HDC products among manufacturers and suppliers is moot. Nonetheless, upon review the Department has amended the rules to remove the requirement among retailers, too.

Comment: The current draft states that certain solvents are excluded from the prohibition on solvent use in HDC product manufacturing. While this is a step in the right direction, commenter proposes a more comprehensive and internationally aligned approach: "A person shall only manufacture or distribute an HDC product in which USP <467> approved solvents were used." This amendment would align our industry with the United States Pharmacopeia (USP) <467> standards, which are not only accepted by the US FDA but also by 39 countries under the European Pharmacopoeia (Ph. Eur. 5.4). This change would ensure that our products meet globally recognized safety standards, enhancing consumer trust and marketability. If the first proposal is deemed too permissive, commenter suggested an alternative that includes a broader range of solvents while still maintaining safety: A person shall not manufacture or distribute an HDC product in which solvents were used in its manufacture. Use of the following substances is excluded from this requirement: acetone, animal fats, butane, carbon dioxide, ethanol, ethyl acetate, heptane, isopropanol, methanol, methylene chloride, pentane, propane, vegetable glycerin, vegetable oils, and water.

Response: The Department's rules contain the proposed language and most of the allowable solvents listed in commenter's second proposal. The Department notes that the U.S. Environmental Protection Agency recently banned most uses of methylene chloride, and that the Department is consistent with most states by not allowing the use of methanol as a solvent. Businesses will have the ability to meet USP <467> standards by choosing solvents that are in the rule's allowable list and in USP <467>. For these reasons, the Department declines to adopt USP <467> or all of the solvents in commenter's second proposal in the Department's rules.

Comment: Amendment to Inhalable HDC Product Regulation (0080-10-02-.04(2)(a)). The current regulation could inadvertently lead to the elimination of vape pens in Tennessee due to its restriction on non-HDC ingredients to those listed in the FDA's inactive ingredient database.

Proposed revision: A person shall not manufacture or distribute an inhalable HDC product made with a non-hemp derived cannabinoid ingredient unless the ingredient is listed in and the concentration of the ingredient is authorized under the federal Food and Drug Administration (FDA) inactive ingredient database or is approved by an equivalent international government agency. This revision would allow for a wider range of FDA-approved flavoring additives commonly used in vape pens, which may not be present in the inactive ingredient database. By including the Substances Added to Food database and recognizing international approvals, we can maintain safety while avoiding unnecessary product bans.

Response: The Department has determined that prohibiting inactive ingredients that have not been approved for inhalation by the Food and Drug Administration (FDA) is necessary for consumer safety. Inactive ingredients allowed in an HDC inhalable product under the rules must be approved by the FDA for their intended use and route, and the concentration must be less than the maximum concentration listed in the FDA Inactive Ingredient database for the intended use. The Department has therefore amended the proposed rules to add that the route must also be approved to provide greater clarity re the requirements.

Regarding commenter's specific proposal for the Department to allow inhalable products to contain FDA-approved flavoring additives used for food products, the Department is aware that flavoring

additives approved for food are not necessarily approved—and more importantly, are not necessarily safe—for inhalation as such additives may be metabolized differently by the body depending on their route of introduction to the body. Vape pens and other inhalables regulated by the Department's rules are not food. Moreover, to the Department's understanding, if a food (flavoring) additive is not approved by the FDA for use in inhalable products, then the Department cannot otherwise authorize it, even if the additive is approved by an equivalent international government agency. As stated previously in this document, it is never the Department's intention to negatively affect business, nor is it the Department's intent through its rules to "ban" any specific type of HDC product, but in the interests of consumer safety, for the above reasons the Department declines to adopt commenter's proposed revision to the rules.

Comment: A commenter with experience in marijuana law enforcement noted that in Colorado, post legalization, crime, suicide, drug use, and adolescent marijuana use all increased. Most states that have legalized THC are now working to limit or re-regulate its products. THC products are extremely harmful to children whose brains do not fully develop until age 25. Commenter is aware personally of at least one case where a man is addicted to delta-8 and has endured personality changes surrounding the addiction; he is no longer able to hold a job due to combative personality and that family moved from Oregon to Tennessee to get away from THC. Eleven states are currently working to totally ban THC products.

Response: The Department notes the HDC products law and the Department's rules require labeling and manufacturing standards (e.g., products may not be formed in the shape of a cartoon character, etc.), child resistant packaging, and that products may not be sold or distributed to a person under the age of 21 years, among other provisions aimed at consumer safety and preventing youth access. The Department expects the General Assembly considered laws and data from other states re marijuana legalization and regulation of HDC products during passage of laws that authorize this rulemaking. The authority to codify the legality or illegality of marijuana and HDC products lies with the legislature, not the Department. The Department may only administer the governing statute and promulgate rules for its clarification and application.

Comment: The Department is overriding federal law and is changing the amount of CBD that can be sold in gummy form. These products are non-psychoactive and free of THC.

Response: The Department is promulgating rules to regulate HDCs as defined in T.C.A. § 43-27-202. The definition of "hemp-derived cannabinoid" includes, but is not limited to delta-8 THC, delta-10 THC, and THCa. This law makes clear that cannabidiol (CBD) is not included in the definition of "hemp-derived cannabinoid" and is beyond the scope of the Department's regulatory authority. The proposed rules neither implement a threshold nor testing requirements for CBD, regardless of the form of product (i.e., CBD gummy, etc.). However, CBD products that contain cannabinoids that meet the definition of an HDC in a concentration of 0.1% or greater, do fall within the Department's authority to regulate. To the extent that CBD products are removed from the market, it is likely because they contain more than 0.3% of delta-9 THC and/or impermissible levels of mycotoxins, heavy metals, microbial contaminants, residual solvents, or residual pesticides.

Comment: GOP politics are dictatorial and fascist that seek to control women and to control industry and do not advance goals to meet public health needs. Studies out of Israel support legalization of THCa. Tennessee should model THC regulation after North Carolina testing criteria.

Response: The Department is promulgating rules for hemp and HDC products as required and directed by the legislature under T.C.A. §§ 43-27-101, et seq., and 43-27-201 et seq. Passage of state laws, including the hemp and HDC product laws governing this rulemaking, lie within control of the legislature, not the Department. The Department expects that legalization concerns, testing criteria in other states, and other policy factors were considered by the legislature prior to passage of laws authorizing this rulemaking. The Department may only administer the statute and promulgate rules for the statute's clarification and application, as directed by the legislature.

Comment: Will rules change when federal law raises the THC level to 1%?

Response: If the Tennessee legislature changes applicable laws, the Department will amend its rules as directed by the legislature.

Comment: Cannabis helps the body maintain homeostasis. There are 114 cannabinoids, we are only talking about one or two. Let's reduce that down to the margin of error and say that the one percent that we are shooting for in the world of THC delta-9 and THCa is for our bodies. It activates every single one of the receptors.

Response: The Department does not opine on the effect cannabis has on the body's homeostasis. Issues re this topic may better align with the expertise of other regulatory agencies, e.g. Department of Health. The Department is promulgating these rules to regulate hemp and HDC products, including THC delta-9 and THCa, as directed by the legislature under T.C.A. §§ 43-27-101 and 201, et seq.

Comment(s):

- Tennessee should be participating in the international hemp market to the same extent it does the international tobacco market (at 1% total THC).
- Rules should align Tennessee's hemp industry with international standards, ensure product safety, and avoid unintended negative impacts on the industry. A total THC standard lets down farmers who cannot participate in other state markets or international markets that allow higher THC tolerances.

Response: The scope of the Department's rulemaking is for the authority it was delegated under T.C.A. §§ 43-27-101 and 201, et seq. These statutes allow a THC content up to 0.3%, tested in a manner similarly reliable to post-decarboxylation; the Department cannot change this THC limit through rulemaking to allow 1% total THC. As noted elsewhere in this document, Tennessee hemp growers (producers) have been subject to the 0.3% total THC standard since 2021, as total THC testing is required under federal law and rule in order for Tennessee to have a state hemp production program. The Department notes that hemp grown under USDA approved state-run hemp programs in other states must also comport with this requirement.

The Department expects the legislature was aware of the international hemp market's THC allowances and the ability of Tennessee hemp growers to be competitive in this market during its passage of laws governing this rulemaking. To the extent the legislature considered and incorporated international standards into the laws governing this rulemaking, then the Department's rules and administration of those laws will align with international standards. The Department's rules adhere to its statutory authority.

Re ensuring product safety, the Department's rules include requirements to increase product safety, such as setting tolerances for microbial contaminants, mycotoxins, residual pesticides, heavy metals, residual solvents, and manufacturing chemicals, that products may contain; labeling standards; and a requirement for a product's QR code to link directly to a landing page hosted by the testing laboratory that produced the product's Certificate of Analysis. All HDC products in Tennessee will be required to meet the same standards under the HDC law and the Department's rules.

Comment: Having to calculate and list the distance to school on applications. Why are retailers burdened with tracking the distance to each school in their area? What constitutes a school? How can retailers be expected to determine what constitutes a school without a clear definition or list?

Response: Under T.D.A. § 43-27-206 of the HDC law, a retail location may not be located within 1,000 feet of a K-12 school as defined under the statute. An applicant for a retail license must satisfy this licensing criteria in order to be eligible for a license. The Department therefore needs evidence or a statement from the applicant either that their retail location is not within 1,000 feet of a K-12 school or that the location qualifies for the statutory exemption because HDC products were offered for sale at that location before January 2024.

Comment: Recommend a 5-10% THC limit, enforce a standard set of labs that do testing to be compliant and build out a simple back-end system with track and trace abilities that makes everyone comply and be able to market this diet weed. You could even make it a standard federal holographic label that is approved by the .gov and this will only help brands become more of a creditable stamp of authority. Also please put a cap on the amount of milliliters of oil per device, it's going to wreck the market.

Response: The allowable THC content in HDC products, and the required testing method, are statutorily prescribed as 0.3%, tested in a manner similarly reliable to post-decarboxylation. The Department is not authorized to raise the allowable THC limit or to change prescribed testing standards through rulemaking in contravention of the governing statute. Re the proposal to enforce a standard set of labs that do testing, T.C.A. § 43-27-207 requires HDC suppliers and retailers to contract with a third-party laboratory to provide the product testing required by statute and rule. The Department's rules provide for traceability of HDC products, as discussed elsewhere, and outline the requirements necessary for a third-party testing laboratory to register with the Department. So long as a testing laboratory complies with these requirements to register and maintain its registration with the Department, the Department does not have the authority to otherwise limit registration to a standard set of labs for the required testing. To the comment re a federal holographic label and a creditable stamp of authority for brands, the Department is not aware of a federal holographic label that is approved for use on HDC product labels or packaging. The Department notes, however, that consumers have asserted they want safe access to regulated HDC products and a business's compliance with licensing requirements—including product labeling, testing, and valid certificates of analysis demonstrating a product's compliance—may assist HDC suppliers and retailers with demonstrating to consumers that their firm provides that safe access to regulated HDC products. The commenter has not provided enough information in their comment re capping the amount of oil in devices for the Department to respond. For these reasons, the Department has elected not to institute changes in the rules as commenter proposes.

Regulatory Flexibility Addendum

Pursuant to T.C.A. §§ 4-5-401 through 4-5-404, prior to initiating the rule making process, all agencies shall conduct a review of whether a proposed rule or rule affects small business.

(1) The type or types of small business and an identification and estimate of the number of small businesses subject to the rule being proposed that would bear the cost of, or directly benefit from the rule being proposed;

The types of small businesses subject to the rule are persons in Tennessee who possess rooted hemp or who cultivate cannabis for introduction into commerce (hemp growers); persons in Tennessee who manufacture or distribute in commerce a product that contains or that is labeled to contain a hemp-derived cannabinoid (manufacturers and distributors); persons in Tennessee who sell or offer to sell at retail a product that contains or that is labeled to contain a hemp-derived cannabinoid (retailers); and third party laboratories who wish to register with the department to conduct required testing for hemp or hemp-derived cannabinoid products.

The Department expects a significant percentage of affected persons subject to the rules will be small businesses.

There are currently 329 hemp growers licensed with the department.

There are approximately 200-400 manufacturers and distributors in Tennessee, based on estimates provided by industry.

There were 2,311 retailers who reported sales of hemp-derived cannabinoid product in January 2024, according to the Tennessee Department of Revenue. The Department estimates this number represents only 50% of the total number of hemp-derived cannabinoid retailers in Tennessee.

There are approximately 350 labs in the United States that could potentially qualify for registration with the Department as a third-party testing lab but estimates only three are located in the state of Tennessee.

(2) The projected reporting, recordkeeping and other administrative costs required for compliance with the rule being proposed, including the type of professional skills necessary for preparation of the report or record;

The proposed rule is not expected to increase administrative costs of hemp growers in that reporting and recordkeeping provisions applicable to that group are unchanged from prior regulation. Because the proposed rules for product manufacturers, distributors, and retailers are promulgated under new legislation, the proposed rules are expected to increase administrative costs for these groups. Depending on these persons' operational size, economy of scale, and available staff and resources, administrative costs for firms within the group may vary.

The Department expects a significant percentage of manufacturers, distributors, and retailers to be small businesses, whose economies of scale may be less able to support rising administrative costs associated with product testing and labeling and reporting and recordkeeping requirements. The estimated administrative cost for hemp-derived cannabinoid product manufacturers, distributors, and retailers cannot be ascertained at this point. While testing and labeling costs for new regulations could be significant, the Department is unable to predict economies of scale and improvements in technology that may benefit some or all of the persons regulated under this rule.

(3) A statement of the probable effect on impacted small businesses and consumers;

The rule for hemp growers modifies existing regulations to update them consistent with current practices and industry standards which the growers are already following, and the probable effect of these updated rule requirements on impacted small businesses and consumers will be minimal.

For manufacturers, distributors, and retailers the probable effect on impacted small businesses and consumers could be significant. Industry estimates 20-25% of retailers will close once licensing requirements go into effect simply due to reluctance and/or inability to comply administratively with licensing requirements. The rules also carry forward testing standards on hemp-derived cannabinoid products for product safety (e.g. tolerances for mycotoxins, heavy metals, pesticide residue, and solvent usage) and statutory requirements that hemp-derived cannabinoid products have a post-decarboxylation THC level of 0.3% or less. The legislature contemplated during passage of the enabling statute that its effect could remove various products from the marketplace.

A supermajority of rule comments received by the Department expressed opposition to the rule capping product at a post-decarboxylation value of 0.3% THC. Industry estimates this testing standard will cause significant economic disruption, job loss, and a drastic decline in state tax revenue. The effect would also be a decrease in the marketplace of the state's most popular hemp-derived cannabinoid products—THCa and flower products—which represents approximately 70-80% of current retail product. Many commenters expressed a belief that consumers would still seek and purchase noncompliant hemp-derived cannabinoid products with a higher THC level, whether via the black market, internet sales from other states, or crossing state lines to obtain product. Industry predicts this will result in an increase in the amount of synthetic hemp-derived cannabinoid products in the marketplace, but also more quality products on the shelves as impacted small businesses comply with regulations. Consumers will benefit from the rules' limits on chemicals or substances, such as pesticides that hemp-derived cannabinoid products may contain; requirements for regular product testing and labeling to better inform the consumer.

(4) A description of any less burdensome, less intrusive or less costly alternative methods of achieving the purpose and objectives of the rule being proposed that may exist, and to what extent the alternative means might be less burdensome to small business;

The rule is tailored in the least burdensome manner possible to small business. The Department received and reviewed 3,314 submissions from approximately 2,535 commenters. Based on these comments, the Department drafted its final rules in as flexible and least restrictive a manner as possible while still adhering to the statutory mandates and purpose of the legislation. For example, the Department heard from small businesses that some of the requirements imposed by the draft rulemaking hearing rule were too burdensome. The Department responded by reducing the type and number of records required for license applications, modifying the warning statement required on product labels, and reducing recordkeeping requirements, while also balancing the Department's regulatory responsibilities under the governing statute.

(5) A comparison of the rule being proposed with any federal or state counterparts; and

The content and format of the rules are modeled on the Department's existing regulations for hemp growers, for food manufacturers and retailers, and other departmental licensing programs. These rules are consistent with the federal Domestic Hemp Production Program (7 CFR 990), which requires a total THC testing standard for hemp production and for state hemp programs. The Department received rule comments from hemp growers asking for the rule to apply the same testing standard to the same hemp-derived product, whether the product were in the hands of a grower, a manufacturer or distributor, or a retailer.

As to state counterparts, the country currently has a patchwork of state laws regarding how hemp-derived cannabinoid products are regulated. Some states regulate these products; some states ban these products entirely; in other states, these products are legal to manufacture in-state but not to sell in-state; and in some states these products are still unregulated. Tennessee's governing statute is very specific regarding how hemp and hemp-derived cannabinoid products must be regulated. The rules written in response to this legislation adhere to the statute's directives. Tennessee's rules for laboratory testing and standards for hemp-derived cannabinoid products are drafted similarly to those of Kentucky.

(6) Analysis of the effect of the possible exemption of small businesses from all or any part of the requirements contained in the rule being proposed.

The rule is tailored in the least burdensome manner possible, given the subject matter. The Department expects a significant percentage of affected persons to be small businesses, whose economies of scale may be less able to support rising administrative costs associated with product testing and labeling and recordkeeping requirements. Unfortunately, those elements are essential to meaningful effect of the program in protecting the public health and welfare. Creating an exception for small business—given the expected percentage of its market share—would render the rule ineffective and may undo its intended safety measures for consumers and legitimacy of products for the hemp industry/marketplace.

Impact on Local Governments

Pursuant to T.C.A. §§ 4-5-220 and 4-5-228, "On any rule and regulation proposed to be promulgated, the proposing agency shall state in a simple declarative sentence, without additional comments on the merits or the policy of the rule or regulation, whether the rule or regulation may have a projected financial impact on local governments. The statement shall describe the financial impact in terms of increase in expenditures or decrease in revenues."

The rule is not expected to have financial impact on local governments.

Additional Information Required by Joint Government Operations Committee

All agencies, upon filing a rule, must also submit the following pursuant to T.C.A. § 4-5-226(i)(1).

- (A)** A brief summary of the rule and a description of all relevant changes in previous regulations effectuated by such rule;

The rules regulate the production and cultivation of rooted hemp, the manufacture and distribution of hemp-derived cannabinoid products, and the retail sale of hemp-derived cannabinoid products, respectively.

The producer rules specify the requirements for growing, testing, and harvesting hemp. Changes from previous regulations for hemp producers include the elimination of separate requirements for broker and propagator license so that only one license for hemp producers is now required; the definition of growing area was amended to align with federal requirements and simplify expectations for varieties grown under the state hemp program; removal of requirements for movement permits for producers' transportation of hemp so that a copy of the producer's license and certificate of analysis for the applicable hemp is all that is now required; removal of cross-references in the rule to more clearly identify the amount of applicable license and testing fees, etc.; and removal of redundant or commonly understood definitions to bring about greater brevity and clarity in the rules.

The manufacturing and distribution rules set standards for hemp-derived cannabinoid product safety, processing methods, sampling and testing, packaging, labeling, and distribution of hemp-derived cannabinoid products.

The retail rules provide details regarding the manner of sale, packaging and labeling requirements, and age restrictions governing retail sale of hemp derived-cannabinoid products.

- (B)** A citation to and brief description of any federal law or regulation or any state law or regulation mandating promulgation of such rule or establishing guidelines relevant thereto;

The Department is authorized under T.C.A. § 4-3-203 to promulgate general rules for administration of its duties. T.C.A. § 43-27-104 is the specific authority to promulgate regulations for the production of hemp in this state. T.C.A. § 43-27-211 is the specific authority to promulgate regulations regarding the sale, manufacture, and distribution of products containing a hemp-derived cannabinoid.

The Department is required under T.C.A. § 43-27-207 to promulgate rules specifying pass/fail action levels for safety and toxicity of hemp-derived cannabinoid products.

- (C)** Identification of persons, organizations, corporations or governmental entities most directly affected by this rule, and whether those persons, organizations, corporations or governmental entities urge adoption or rejection of this rule;

The rules affect multiple groups. These include producers in Tennessee who grow rooted hemp; manufacturers, distributors, retailers, and consumers of hemp-derived cannabinoid products in Tennessee; and third-party laboratories wishing to register with the department and provide their services to Tennessee's hemp-derived cannabinoid industry. These rules will also affect parents and other safety advocates who are concerned about the accessibility of these products to children, as well as product safety.

Proponents of the rules include industry groups who advocate for regulated markets and safety standards for hemp-derived cannabinoid products, including Tennessee Farm Bureau and the Tennessee Bureau of Investigation; and members of the public who have been concerned about the safety of hemp-derived cannabinoid products and their accessibility to children. These proponents will likely support these regulations as legitimizing and stabilizing the market, while safety advocates value a focus on consumer protection.

Opponents include small scale manufacturers and retailers concerned about administrative costs of compliance and product testing. Consumers of hemp-derived cannabinoid products may also oppose the rules as hindering access to previously available products. Prior to these rules there were no regulatory or testing requirements specific to these products.

The majority of comments received strongly oppose implementation of statutory requirements that will curb allowable limits of THCa within currently available hemp-derived cannabinoid products.

- (D) Identification of any opinions of the attorney general and reporter or any judicial ruling that directly relates to the rule or the necessity to promulgate the rule;

The Department did not identify any opinions of the Tennessee Attorney General or judicial rulings that either relate to the rule or the necessity to promulgate the rule. There is, however, ongoing litigation in other states regarding hemp-derived cannabinoid products and the validity of state laws which attempt to regulate them. The Department has noted this for the Office of the Attorney General in their review of these rules for legality and constitutionality.

The Department also notes that on March 20, 2024, twenty State Attorneys General, including Tennessee's, signed onto a letter addressed to the U.S. House of Representatives and the U. S. Senate's Committees on Agriculture, asking them to address vagueness in the 2018 Farm Bill that has led to the proliferation of intoxicating hemp products nationwide.

In addition, on May 13, 2024, the U.S. Department of Justice, Drug Enforcement Administration, published a letter addressing the control status of delta-9 tetrahydrocannabinolic acid (THCA) under the Controlled Substances Act (CSA) and whether delta-9-THC meets the federal definition of "hemp." The letter concluded with the following statement: "[F]or the purposes of enforcing the hemp definition, the delta-9-THC level must account for any delta-9-THCA in a substance. Accordingly, cannabis-derived THCA does not meet the definition of hemp under the CSA because upon conversion for identification purposes as required by Congress, it is equivalent to delta-9-THC."

- (E) An estimate of the probable increase or decrease in state and local government revenues and expenditures, if any, resulting from the promulgation of this rule, and assumptions and reasoning upon which the estimate is based. An agency shall not state that the fiscal impact is minimal if the fiscal impact is more than two percent (2%) of the agency's annual budget or five hundred thousand dollars (\$500,000), whichever is less;

Per the delegating authority, the Department is required to establish a new regulatory program within its Consumer Industry Services Division.

Estimated probable increase in state expenditures includes associated start-up costs for creation of that new regulatory program, such as creating a new database to house and manage the program's data, hiring 16 new employees to conduct and administer the program, providing equipment (such as computers, cell phones, and vehicles for field personnel) to those employees, and conducting confirmatory testing of samples collected under the program. The Department's estimated cost to administer and enforce this program is \$1.3 million.

Estimated probable increase in state revenue is speculative. This is a new program for which affected persons will require a license, and the Department does not have historical data to draw upon in creating an estimate. The Department estimates a probable recurring \$12 million increase in state revenue based the additional 6% retail sales tax imposed by statute, with an additional \$1.1 million probable increase in state revenue generated from licensing fees for the Department's new regulatory program.

This information is pulled, in part, from the fiscal note generated for the General Assembly fiscal review committee at the time the legislation was being drafted. Recurring costs are anticipated consistent with the note, as well.

- (F) Identification of the appropriate agency representative or representatives, possessing substantial knowledge and understanding of the rule;

Jay Miller, General Counsel; Annie Balghiti, Associate Counsel; Patricia Szappanos Hart, Hemp Program Director; Dr. Adam Travis, Ag Lab Administrator.

- (G) Identification of the appropriate agency representative or representatives who will explain the rule at a scheduled meeting of the committees;

Jay Miller, General Counsel; Annie Balghiti, Associate Counsel; Patricia Szappanos Hart, Hemp Program Director; Dr. Adam Travis, Ag Lab Administrator.

- (H) Office address, telephone number, and email address of the agency representative or representatives who will explain the rule at a scheduled meeting of the committees; and

Jay Miller, PO Box 40627, Nashville, TN 37204; (615) 837-5341; Jay.Miller@tn.gov.
Annie Balghiti, PO Box 40627, Nashville, TN 37204; (615) 253-5828; Annie.Balghiti@tn.gov.
Patricia Szappanos Hart, PO Box 40627, Nashville, TN 37204; (615) 837-5070; Patricia.Szappanos-Hart@tn.gov.
Dr. Adam Travis, PO Box 40627, Nashville, TN 37204; (615) 313-4986; Adam.Travis@tn.gov.

(I) Any additional information relevant to the rule proposed for continuation that the committee requests.

None.

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Sequence Number: _____
Rule ID(s): _____
File Date: _____
Effective Date: _____

REDLINE

Rulemaking Hearing Rules are rules filed after and as a result of a rulemaking hearing (Tenn. Code Ann. § 4-5-205).

Pursuant to Tenn. Code Ann. § 4-5-229, any new fee or fee increase promulgated by state agency rule shall take effect on July 1, following the expiration of the ninety (90) day period as provided in § 4-5-207. This section shall not apply to rules that implement new fees or fee increases that are promulgated as emergency rules pursuant to § 4-5-208(a) and to subsequent rules that make permanent such emergency rules, as amended during the rulemaking process. In addition, this section shall not apply to state agencies that did not, during the preceding two (2) fiscal years, collect fees in an amount sufficient to pay the cost of operating the board, commission or entity in accordance with § 4-29-121(b).

Agency/Board/Commission: Department of Agriculture
Division: Consumer & Industry Services
Contact Person: Annie Balghiti
Address: Post Office Box 40627, Nashville, Tennessee
Zip: 37204
Phone: 615.253.5828
Email: tda.rulemaking@tn.gov

Revision Type (check all that apply):

☒ Amendment ☒ Content based on previous emergency rule filed on June 28, 2024
☒ New ☐ Content is identical to the emergency rule
☒ Repeal

Rule(s) (ALL chapters and rules contained in filing must be listed here. If needed, copy and paste additional tables to accommodate multiple chapters. Please make sure that **ALL** new rule and repealed rule numbers are listed in the chart below. Please enter only **ONE** Rule Number/Rule Title per row.)

Chapter Number	Chapter Title
0080-04-09	Retail Food Store Sanitation
Rule Number	Rule Title
0080-04-09-.01	Definitions
0080-04-09-.03	Food

Chapter Number	Chapter Title
0080-04-13	Food Manufacturers and Warehouses
Rule Number	Rule Title
0080-04-13-.02	Definitions
0080-04-13-.05	Standards for Manufacturing and Processing

Chapter Number	Chapter Title
0080-06-28	Repealed
Rule Number	Rule Title
0080-06-28-.01	Repealed
0080-06-28-.02	Repealed
0080-06-28-.03	Repealed

0080-06-28-.04	Repealed
0080-06-28-.05	Repealed
0080-06-28-.06	Repealed
0080-06-28-.07	Repealed
0080-06-28-.08	Repealed
0080-06-28-.09	Repealed

Chapter Number	Chapter Title
0080-10-01	Hemp Producers
Rule Number	Rule Title
0080-10-01-.01	Scope
0080-10-01-.02	Definitions
0080-10-01-.03	License Application and Fees
0080-10-01-.04	Transportation
0080-10-01-.05	Inspections and Testing
0080-10-01-.06	Violations

Chapter Number	Chapter Title
0080-10-02	Manufacturing and Distribution of Hemp-derived Cannabinoid Products
Rule Number	Rule Title
0080-10-02-.01	Scope
0080-10-02-.02	Definitions
0080-10-02-.03	License Application and Fees
0080-10-02-.04	Manufacturing
0080-10-02-.05	Sampling and Testing
0080-10-02-.06	Labels
0080-10-02-.07	Transportation
0080-10-02-.08	Records
0080-10-02-.09	Inspections
0080-10-02-.10	Violations

Chapter Number	Chapter Title
0080-10-03	Retail Sale of Hemp-derived Cannabinoid Products
Rule Number	Rule Title
0080-10-03-.01	Scope
0080-10-03-.02	Definitions
0080-10-03-.03	License Application and Fees
0080-10-03-.04	Manner of Sale
0080-10-03-.05	Records
0080-10-03-.06	Inspections and Testing
0080-10-03-.07	Violations

New

0080-10
HEMP

Division 0080-10 Hemp is created.

Authority: T.C.A. §4-3-203.

CHAPTER 0080-10-01
HEMP PRODUCERS

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<u>0080-10-01-.03 License Application and Fees</u>	<u>0080-10-01-.06 Violations</u>

0080-10-01-.01 Scope.

- (1) This chapter applies to any person who possesses rooted hemp or who cultivates cannabis for introduction into commerce.
- (2) The department shall not refund fees for early termination of any license issued under this chapter.
- (3) Licenses under this chapter are not transferable from person to person or location to location.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-01-.02 Definitions.

- (1) Terms in this chapter share those meanings of terms in T.C.A. § 43-27-101, et seq.
- (2) When used in this chapter, unless the context requires otherwise:
 - (a) Act means T.C.A. § 43-27-101, et seq.;
 - (b) Cannabis means any plant or any part of a plant of the genera Cannabis and includes hemp;
 - (c) Certificate of Analysis (COA) means a written document from a laboratory that meets USDA standards for testing of hemp samples, and which communicates the results of those tests performed;
 - (d) Commerce or similar words mean involving payment for an item or payment for services incident to production of the item;
 - (e) Cultivate or similar words mean to foster the growth of plant material and includes growing and cloning;
 - (f) Growing area means a contiguous area in a field, greenhouse, or indoor growing structure containing the same variety or strain of cannabis throughout the area;
 - (g) Harvest means to gather, in any manner, cannabis material from rooted plants and to transport it from the property where it was cultivated;
 - (h) In a manner similarly reliable to post-decarboxylation means a manner sufficient to quantify by percentage the resulting THC of a sample if carboxyl groups are removed from all molecules containing THC within the sample. A manner similarly reliable to post-decarboxylation is shown

by a post-decarboxylation THC value equal to the sum of the sample's THC percentage plus the product of its delta-9 tetrahydrocannabinolic acid (THCa) percentage and 0.877;

- (i) Move, transport, or similar words mean to relocate in any manner an item from one real property to another;
- (j) Person means an individual, partnership, corporation, or any other form of legal entity;
- (k) Sample means to take plant material or the plant material taken from a location used to cultivate cannabis;
- (l) Stop movement order means a written directive issued by the department to prohibit or to limit the movement of plants or plant parts; and,
- (m) USDA means United States Department of Agriculture.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-01-.03 License Application and Fees.

- (1) A hemp producer license is required per person per location for any person who possesses rooted hemp or who cultivates cannabis for introduction into commerce. The hemp producer license authorizes the producer to sell harvested hemp as an unprocessed commodity to wholesalers and distributors. If a hemp producer alters harvested hemp beyond its form as a farm commodity (e.g., by trimming, filtering, or packaging the crop for its component parts) or offers harvested hemp for retail sale, the producer must also have an HDC supplier license and HDC retail license, as appropriate, under Tenn. Comp. R. & Regs. 0080-10-02 and 0080-10-03.
- (2) Applicants for a hemp producer license must submit required information on forms provided by the department, which may include:
 - (a) Name of the applicant;
 - (b) Date of birth of any applicant who is an individual or a partner in a general partnership;
 - (c) Proof of registration in its state of incorporation for any applicant that is a formalized business entity;
 - (d) Contact information for applicant, to include name of person legally responsible for applicant's operations, telephone number, email address, and address of principal place of business;
 - (e) Address of location to be licensed;
 - (f) Acreage and perimeter description for each growing area at the location to be licensed;
 - (g) Global Positioning System coordinates for the central most point of each growing area at the location to be licensed;
 - (h) A nationwide criminal background check, facilitated through the Tennessee Bureau of Investigation, for the person identified as legally responsible for applicant's operations; and,
 - (i) Other information as required by the department.
- (3) Licensees must notify the department of any changes to the contents of their application on file within 30 days after the change takes place, including but not limited to any change of contact information, growing areas, or planting of new hemp crops.

- (4) Applicants must include with their application payment of an annual hemp producer license fee, calculated as follows:
- (a) Cumulative growing areas less than five acres: \$250;
 - (b) Cumulative growing areas of five to 20 acres: \$300;
 - (c) Cumulative growing areas of more than 20 acres: \$350; and,
 - (d) License fees are waived for any accredited college or university that offers programs of study in agricultural sciences and that is seeking licensure for growing areas on its college or university property.
- (5) Hemp producer licenses expire on June 30 of the licensing cycle for which they are issued. Applicants for renewal must submit to the department on or before the following July 1 the hemp producer license fee, application for licensure, and an updated criminal background check for the person identified as legally responsible for applicant's operations. If an applicant for renewal fails to pay the annual license fee by July 16 following expiration, the applicant must also pay a late charge under T.C.A. § 43-1-703 prior to renewal of the applicant's license.
- (6) The department may deny any application for licensure that is not completed in full or that is not completed in conformance with this rule.

Authority: T.C.A. §§ 4-3-203, 43-1-703, and 43-27-104.

0080-10-01-.04 Transportation.

Any licensee moving rooted hemp or other cannabis shall have in their immediate possession a copy of the hemp producers' license(s) from which the cannabis originated and a copy of the certificate(s) of analysis for the growing area and crop that produced the cannabis.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-01-.05 Inspections and Testing.

- (1) Scope. The department may enter any licensed premises during normal business hours for purposes of inspecting and sampling any cannabis or other material and copying records necessary to determine compliance with the Act and this chapter.
- (2) Frequency. The department may conduct inspections as often as necessary to determine compliance with the Act and this chapter.
- (3) Sampling and testing.
- (a) A sample collected and tested according to protocols issued by either USDA or the department is deemed representative of the growing area from which the sample was obtained.
 - (b) Comingling of sample material from different growing areas invalidates the results of the sample tested.
 - (c) Collection of a sample by a licensee or their agent invalidates the results of the sample tested.
 - (d) Any sample test result less the measurement uncertainty showing a post-decarboxylation value for THC in the plant greater than 0.3% is grounds for destruction or remediation of all cannabis represented by the sample material.

(e) Third party.

1. The department may approve third-party samplers for collection of cannabis material and third-party test laboratories to conduct official analysis of samples. The department will accept test results for a third-party collected or tested sample only if the sample was collected and tested in conformance with sampling guidelines and testing requirements issued by either USDA or the department, and for which test results are submitted by the third-party testing laboratory directly to the department.
2. If a sample test result from an approved third-party laboratory is the initial test for a growing area and shows the sample to be within allowable limits, the department may recognize the sample as compliant without further testing. If the sample test is either not the initial test of the crop or is not within allowable limits, the department will re-sample and re-test the growing area prior to determining regulatory compliance.

(i) Department.

1. Sampling by the department must be attended by the licensee or the licensee's authorized representative, if applicable. If the licensee or authorized representative does not appear for scheduled sampling, the department may assess a \$150 travel charge against the licensee for departmental costs in visiting the location to be sampled.
2. The department serves as the reference laboratory for all samples. Its test results of any sample are considered conclusive.
3. Licensees must pay a \$150 laboratory analysis fee for each sample tested by the department.

Authority: T.C.A. §§ 4-3-203, 43-1-703, and 43-27-104.

0080-10-01-.06 Violations.

(1) In addition to other requirements of the Act and this chapter, persons subject to this chapter must:

- (a) Maintain areas where cannabis is grown or kept so as to be readily accessible for inspection;
- (b) Provide adequate lighting necessary for inspection of all cannabis and areas where cannabis may be grown or held;
- (c) Provide full access to facilities, inventory, records, and invoices necessary to departmental inspection;
- (d) Give full information as to the source of cannabis currently or previously held in their possession;
- (e) Identify each growing area with the cultivar and USDA Farm Service Agency (FSA) field and/or subfield number, as applicable;
- (f) Consent to sampling of all cannabis cultivated by the licensee;
- (g) Harvest a hemp crop within 30 days of sampling for testing, unless directed otherwise by the department;
- (h) Report hemp crop acreage to FSA annually and within 30 days of new crops being planted. Reports must meet all FSA requirements, including:
 1. Street address and GPS location of site for each area where hemp will be grown;
 2. Total acreage or square footage dedicated to production of hemp; and

3. Licensee's hemp producer license number; and,
- (i) Record each transaction in which the licensee sells or introduces rooted hemp into commerce. The licensee must keep the record for two years from the transaction date. The record must include: the name, contact information, and hemp producer license number for any person who purchased or received the cannabis.
- (2) In addition to other requirements of the Act and this chapter, persons subject to this chapter must not:
 - (a) Possess or receive rooted hemp without first securing a license from the department;
 - (b) Cultivate cannabis for introduction into commerce without first securing a license from the department;
 - (c) Sell, supply, or move rooted cannabis to any person in this state not licensed under this division of rules;
 - (d) Possess or cultivate cannabis showing a post-decarboxylation value for THC in the plant greater than 0.3%, less measurement uncertainty;
 - (e) Grow more than one variety of cannabis per growing area;
 - (f) Possess rooted hemp outside a licensed growing area unless it is under immediate transport to another licensed growing area or a licensed hemp-derived cannabinoid product manufacturer, distributor, or retailer;
 - (g) Harvest hemp or introduce rooted hemp into commerce prior to:
 1. Sampling within the previous 30 days, and
 2. Departmental receipt of sample test results showing the sample tested within allowable limits for THC;
 - (h) Interfere with an authorized representative of the department in performance of their duties;
 - (i) Violate any federal or state quarantine of plants, regulated articles, or other material;
 - (j) Sell, offer for sale, move, or allow movement of any apparently infested material;
 - (k) Violate applicable hemp movement regulations of any state or federal agency; or,
 - (l) Violate any departmental order issued under the Act or this chapter, including but not limited to orders to stop movement, destroy, or remediate cannabis.
- (3) A person is responsible for violations of the Act or this chapter when committed by either the person or their agent.
- (4) Each violation of the Act or this chapter is grounds for issuance of stop movement, destruction, or remediation orders for any cannabis held by the violator or their agent, denial or revocation of any license issued by the department, actions for injunction, imposition of civil penalties and/or pursuit of criminal charges against the violator.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

CHAPTER 0080-10-02
MANUFACTURING AND DISTRIBUTION OF HEMP-DERIVED CANNABINOID PRODUCTS

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0080-10-02-.01 Scope.

- (1) This chapter applies to any person who manufactures or distributes in commerce any HDC product.
- (2) Persons who manufacture or distribute HDC products are subject to all requirements and regulatory authority applicable to the type of product sold, including but not limited to regulation under the Act and this chapter, and T.C.A. title 53, chapter 1, parts 1 and 2, and title 39, chapter 17, part 15, and Tenn. Comp. R. & Regs. 0080-04-13. HDC products are excluded from all regulatory exemptions including but not limited to those afforded under the Food Freedom Act at T.C.A. § 53-1-118.
- (3) The department shall not refund fees for early termination of any license issued under this chapter.
- (4) Licenses under this chapter are not transferable from person to person or location to location.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.02 Definitions.

- (1) Terms in this chapter share those meanings of terms in T.C.A. title 43, chapter 27, parts 1 and 2.
- (2) When used in this chapter, unless the context requires otherwise:
 - (a) Act means T.C.A. § 43-27-201, et seq.;
 - (b) Batch, in addition to its definition under the Act, means an individual production lot of manufactured product;
 - (c) Cannabis means any plant or any part of a plant of the genera Cannabis and includes hemp;
 - (d) Certificate of Analysis (COA) means a written document from a laboratory approved by the department for testing samples under this chapter, and which communicates the results of those tests performed;
 - (e) Commerce or similar words mean involving payment for an item or payment for services incident to production of the item;
 - (f) Distribute means to transport or to introduce into commerce and includes delivery for sale or manufacturing, or holding for subsequent sale or manufacturing;
 - (g) Food means articles used for food or drink for humans or other animals; chewing gum; and articles used for components of food or drink or chewing gum;
 - (h) Hemp-derived cannabinoid (HDC) product means a product that contains or that is labeled to contain a hemp-derived cannabinoid and that is produced, marketed, or otherwise intended to be consumed orally ("ingestible"), inhaled ("inhalable"), or absorbed through the skin ("transdermal").

HDC products also include intermediate products intended for subsequent use as a component in a later finished ingestible, inhalable, or transdermal HDC product. Topical products mean products solely intended to be applied to the skin or hair and are not intended to be absorbed through transdermal application; topical products are not included within the definition of HDC product even if they contain a hemp-derived cannabinoid;

- (i) In a manner similarly reliable to post-decarboxylation means a manner sufficient to quantify by percentage the resulting THC of a sample if carboxyl groups are removed from all molecules containing THC within the sample. A manner similarly reliable to post-decarboxylation is shown by a post-decarboxylation THC value equal to the sum of the sample's THC percentage plus the product of its delta-9 tetrahydrocannabinolic acid (THCa) percentage and 0.877;
- (j) Manufacture, in addition to its definition under the Act, includes any action that transforms cannabis physically or chemically beyond its principal form as a farm product or that filters, cleans, or trims that product to isolate any of its particular parts or components;
- (k) Move, transport, or similar words mean to relocate in any manner an item from one real property to another;
- (l) Person means an individual, partnership, corporation, or any other form of legal entity;
- (m) Sample means to take material or the material taken from a location used to manufacture or distribute HDC products; and,
- (n) Serving, in addition to its definition under the Act, means an amount of product designated by its manufacturer as reasonably understood to be a single unit of the product for consumption.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.03 License Application and Fees.

- (1) An HDC supplier license is required per person per location for any person who manufactures or distributes an HDC product in commerce.
- (2) Applicants for an HDC supplier license must submit required information on forms provided by the department, which may include:
 - (a) Name of the applicant;
 - (b) Date of birth of any applicant who is an individual or a partner in a general partnership;
 - (c) Proof of registration in its state of incorporation for any applicant that is a formalized business entity;
 - (d) Proof of registration with the Tennessee Department of Revenue;
 - (e) Contact information for applicant, to include name of person legally responsible for applicant's operations, telephone number, email address, and address of principal place of business;
 - (f) Address of location to be licensed;
 - (g) A nationwide criminal background check, facilitated through the Tennessee Bureau of Investigation, for the person identified as legally responsible for applicant's operations; and,
 - (h) Other information as required by the department.
- (3) Licensees must notify the department of any changes to the contents of their application on file within 30 days after the change takes place, including any change of contact information;

- (4) Payment of an annual HDC supplier license fee of \$500 shall be due upon approval of an application and must be paid in full prior to a license being issued. The license fee may be prorated in the initial year of licensure at the rate of \$50 per each full calendar month remaining in the license period, provided the total fee not exceed \$500. License fees shall not be prorated for any person licensed in the previous licensure year. License fees are waived for any accredited college or university that offers programs of study in agricultural sciences and that is seeking licensure for HDC product manufacturing on its college or university property.
- (5) HDC supplier licenses expire on June 30 of the licensing cycle for which they are issued. Applicants for renewal must submit to the department on or before the following July 1 the HDC supplier license fee and an updated criminal background check for the licensee.
- (6) The department may deny any application for licensure that is not completed in full or that is not completed in conformance with this rule.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.04 Manufacturing.

(1) General requirements.

(a) In production of HDC products, manufacturers shall:

1. Assign each product batch a unique batch number;
2. Not add nicotine to any HDC product; and
3. Not use dimethylsulfoxide in any HDC product.

(2) Inhalable HDC products.

- (a) A person shall not manufacture or distribute an inhalable HDC product made with a non-hemp derived cannabinoid ingredient unless the ingredient is listed in, and the concentration and route of the ingredient is authorized under, the federal Food and Drug Administration (FDA) inactive ingredient database at <https://www.accessdata.fda.gov/scripts/cder/iig/index.cfm>.
- (b) A person shall not manufacture or distribute an inhalable HDC product in which any of the following substances are used in its manufacture:
1. Vitamin E acetate;
 2. Medium-chain triglycerides;
 3. Polyethylene glycol;
 4. Propylene glycol; or,
 5. 2, 3-butanedione.
- (c) A person shall not manufacture or distribute an inhalable HDC product unless its water activity is less than 0.65 and its total combined yeast and mold count is less than 100,000 colony forming units per gram.

- (3) Solvents. A person shall not manufacture or distribute an HDC product in which solvents were used in its manufacture. Use of the following substances are allowable exceptions: water, vegetable glycerin, vegetable oils, animal fats, butane, propane, carbon dioxide, ethanol, isopropanol, acetone, heptane, ethyl acetate, and pentane.

- (a) If butane, propane, heptane, or pentane is used as a solvent, the solvent must be documented on its COA as at least 99 percent purity.
- (b) If water, vegetable glycerin, vegetable oil, animal fat, carbon dioxide, ethanol, isopropanol, acetone, or ethyl acetate is used as a solvent, the solvent must be food grade according to FDA standards under 21 CFR Part 174.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.05 Sampling and Testing.

(1) Frequencies.

- (a) If an HDC product is created from hemp or hemp products, the HDC supplier licensee must sample and test each batch of the product for conformance with this rule. Once full panel testing required by this rule is conducted on hemp or a hemp product, additional testing in downstream commerce is not required except as provided:
 - 1. After the initial HDC product in commerce conforms to testing under subparagraph (a), if a downstream HDC supplier uses the product as an input to make a new HDC product and during production of the new product the HDC input underwent either a chemical change (e.g. through exposure to heat or solvents) or a reconstitution through addition or removal of other components, the supplier must cause each batch of new HDC product to be sampled and tested for conformance with this rule.
 - 2. After the initial HDC product in commerce conforms to testing under subparagraph (a), if a downstream HDC supplier uses the product as an input to make a new HDC product but does not alter the chemical composition or formulation of the HDC product compared to the input used (e.g. raw flower that is only physically changed through cutting and filtering or bulk orders that are repackaged into smaller units of like product), additional sampling and testing of the resulting product batches are not required and prior test results in commerce of HDCs within the product are presumptively valid. This part shall not limit the department's authority to test any cannabis products for compliance with the Act and this chapter.
- (b) Prior to transport of any HDC product in commerce, HDC suppliers must confirm conformance of the batch to all testing requirements under this rule.

(2) Standards. Tolerances for each required testing analyte are listed below. Any test result exceeding allowable limits is grounds for embargo, recall, remediation, and/or destruction of the entire batch represented by the sample, regardless of whether the test result is discovered through manufacturing testing or subsequent sampling and testing of retail HDC product.

(a) For all HDC products:

- 1. Hemp-derived cannabinoids:
 - (i) Delta-8 tetrahydrocannabinol [Reserved];
 - (ii) Delta-10 tetrahydrocannabinol [Reserved];
 - (iii) Hexahydrocannabinol [Reserved];
 - (iv) Tetrahydrocannabiphorol (THCp) [Reserved];
 - (v) Tetrahydrocannabivarin (THCv) [Reserved]; and,

(vi) Tetrahydrocannabinolic acid (THCa):

- (I) HDC products in commerce to an HDC supplier licensee (sample test result, less the measurement uncertainty, showing a post-decarboxylation THC value $\leq$ 5%);
- (II) HDC products in commerce to any person who is not an HDC supplier licensee (sample test result, less the measurement uncertainty, showing a post-decarboxylation THC value $\leq$ 0.3%);

2. Microbial contaminants:

- (i) Shiga toxin-producing Escherichia coli (undetectable in at least one gram);
- (ii) Salmonella spp. (undetectable in at least one gram);

3. Mycotoxins:

- (i) Aflatoxin B1 (total aflatoxin B1, B2, G1, and G2 $\leq$ 20 μ g/kg);
- (ii) Aflatoxin B2 (total aflatoxin B1, B2, G1, and G2 $\leq$ 20 μ g/kg);
- (iii) Aflatoxin G1 (total aflatoxin B1, B2, G1, and G2 $\leq$ 20 μ g/kg);
- (iv) Aflatoxin G2 (total aflatoxin B1, B2, G1, and G2 $\leq$ 20 μ g/kg);
- (v) Ochratoxin A ($\leq$ 20 μ g/kg);

4. Residual pesticides:

<u>Residual pesticide</u>	<u>Chemical Abstract Service (CAS) assigned number</u>	<u>Maximum allowable concentration stated in parts per million (ppm)</u>
Abamectin	71751-41-2	0.5 ppm
Acephate	30560-19-1	0.4 ppm
Acequinocyl	57960-19-7	2.0 ppm
Acetamiprid	135410-20-7	0.2 ppm
Aldicarb	116-06-3	0.4 ppm
Azoxystrobin	131860-33-8	0.2 ppm
Bifenazate	149877-41-8	0.2 ppm
Bifenthrin	82657-04-3	0.2 ppm
Boscalid	188425-85-6	0.4 ppm
Carbaryl	63-25-2	0.2 ppm
Carbofuran	1563-66-2	0.2 ppm
Chlorantraniliprole	500008-45-7	0.2 ppm
Chlorfenapyr	122453-73-0	1.0 ppm
Chloromequat chloride	7003-89-6	0.2 ppm
Chlorpyrifos	2921-88-2	0.2 ppm
Clofentezine	74115-24-5	0.2 ppm
Cyfluthrin	68359-37-5	1.0 ppm
Cypermethrin	52315-07-8	1.0 ppm
Daminozide	1596-84-5	1.0 ppm
DDVP (Dichlorvos)	62-73-7	0.1 ppm
Diazinon	333-41-5	0.2 ppm
Dimethoate	60-51-5	0.2 ppm
Ethoprophos	13194-48-4	0.2 ppm
Etofenprox	80844-07-1	0.4 ppm
Etoxazole	153233-91-1	0.2 ppm
Fenoxycarb	72490-01-8	0.2 ppm
Fenpyroximate	134098-61-6	0.4 ppm

Fipronil	120068-37-3	0.4 ppm
Flonicamid	158062-67-0	1.0 ppm
Fludioxonil	131341-86-1	0.4 ppm
Hexythiazox	78587-05-0	1.0 ppm
Imazalil	35554-44-0	0.2 ppm
Imidacloprid	138261-41-3	0.4 ppm
Kresoxim-methy	143390-89-0	0.4 ppm
Malathion	121-75-5	0.2 ppm
Metalaxyl	57837-19-1	0.2 ppm
Methiocarb	2032-65-7	0.2 ppm
Methomyl	16752-77-5	0.4 ppm
Methyl parathion	298-00-0	0.2 ppm
Myclobutanil	88671-89-0	0.2 ppm (prohibited at any concentration for inhalation)
Naled	300-76-5	0.5 ppm
Oxamyl	23135-22-0	1.0 ppm
Paclobutrazol	76738-62-0	0.4 ppm
Permethrins (measured as the cumulative residue of cis- and trans-isomers)	52645-531 (54774-45-7 and 51877-74-8)	0.2 ppm
Phosmet	732-11-6	0.2 ppm
Piperonyl butoxide	51-03-6	2.0 ppm
Prallethrin	23031-36-9	0.2 ppm
Propiconazole	60207-90-1	0.4 ppm
Propoxur	114-26-1	0.2 ppm
Pyrethrins (measured as the cumulative residue of pyrethrin 1, cinerin 1 and jasmolin 1)	8003-34-7(121-21-1, 25402-06-6 and 4466-14-2)	1.0 ppm
Pyridaben	96489-71-3	0.2 ppm
Spinosad	168316-95-8	0.2 ppm
Spiromesifen	283594-90-1	0.2 ppm
Spirotetramat	203313-25-1	0.2 ppm
Spiroxamine	118134-30-8	0.4 ppm
Tebuconazole	107534-96-3	0.4 ppm
Thiacloprid	111988-49-9	0.2 ppm
Thiamethoxam	153719-23-4	0.2 ppm
Trifloxystrobin	141517-21-7	0.2 ppm

5. Heavy metals:

- (i) Arsenic (≤ 0.4 ppm);
- (ii) Cadmium (≤ 0.4 ppm);
- (iii) Lead (≤ 1 ppm);
- (iv) Mercury (≤ 1.2 ppm);

6. Residual solvents and manufacturing chemicals:

Solvent or manufacturing chemical	CAS assigned number	Maximum allowable concentration (ppm)
Acetone	67-64-1	1,000 ppm
Benzene*	71-43-2	2 ppm
Butanes, (measured as the cumulative residue of n-butane and iso-butane),	106-97-8 and 75-28-5	1,000 ppm
Ethanol	64-17-5	1,000 ppm
Ethyl Acetate	141-78-6	1,000 ppm
Heptanes	142-82-5	1,000 ppm

Hexanes* (measured as the cumulative residue of n-hexane, 2-methylpentane, 3-methylpentane, 2,2-dimethylbutane, and 2,3-dimethylbutane)	110-54-3, 107-83-5 and 79-29-8	60 ppm
Methanol*	67-56-1	600 ppm
Pentanes (measured as the cumulative residue of n-pentane, iso-pentane, and neo-pentane)	109-66-0, 78-78-4 and 463-82-1	1,000 ppm
2-Propanol (IPA)	67-63-0	1,000 ppm
Propane	74-98-6	1,000 ppm
Toluene*	108-88-3	180 ppm
Total Xylenes* (measured as the cumulative residue of 1,2-dimethylbenzene, 1,3-dimethylbenzene, and 1,4-dimethylbenzene, and the non-xylene, ethylbenzene)	1330-20-7 (95-47-6, 108-38-3 and 106-42-3 and 100-41-4)	430 ppm
Any other solvent not permitted for use		undetected
*These solvents are not individually approved for use. Due to their possible presence in other solvents that are approved for use, limits have been listed here for concentrations in final products.		

(b) Additional testing requirements for inhalable HDC products:

1. Microbial contaminants:

- (i) Aspergillus A. fumigatus (undetectable in at least one gram);
- (ii) Aspergillus A. flavus (undetectable in at least one gram);
- (iii) Aspergillus A. niger (undetectable in at least one gram);
- (iv) Aspergillus A. terreus (undetectable in at least one gram);

2. Heavy metals:

- (i) Arsenic (≤ 0.2 ppm);
- (ii) Cadmium (≤ 0.2 ppm);
- (iii) Lead (≤ 0.5 ppm);
- (iv) Mercury (≤ 0.1 ppm);

(3) Sampling. HDC product manufacturers must draw samples for testing that are representative of each batch.

(4) Testing.

(a) Third-party laboratories.

- 1. COAs required under this chapter may be supplied by a third-party laboratory provided the laboratory is registered with the department.
- 2. To register and to maintain registration with the department, a third-party laboratory applicant must:
 - (i) Complete in full an application for registration on forms provided by the department;
 - (ii) Host and notify the department of one landing page for retrieval of all COAs issued by the laboratory through use of quick reference (QR) codes;
 - (iii) For any test method conducted pursuant to this rule, be fully accredited to standards established under International Organization for Standardization (ISO)

17025 by an International Laboratory Accreditation Cooperation recognized accreditation body;

- (iv) Maintain ISO 17025 accreditation;
 - (v) Test and report analyte(s) using limits of detection and quantitation no greater than the respective tolerance(s) under this chapter for the tested analyte(s);
 - (vi) Test and report hemp-derived cannabinoids under this chapter using a limit of quantitation ≤ 1 mg/g;
 - (vii) Perform and report component testing as detailed under this rule;
 - (viii) Store all samples in a secure manner that reasonably protects them from degradation, contamination, and tampering; and, prior to its disposal, render all sample material unusable;
 - (ix) If available, produce reserve sample material to the department upon request; and,
 - (x) Provide other information as required by the department.
3. Failure to adhere to these requirements or requirements for issuance of COAs under this rule is grounds for denial or revocation of any registration or authorization issued by the department.

(b) COAs.

1. Third-party laboratories must include at a minimum the following on each COA issued:
 - (i) The laboratory's name and address as it is registered with the department;
 - (ii) The HDC product manufacturer's name and address;
 - (iii) The batch number of HDC product represented by the sample;
 - (iv) Unique identifying information for the sample, if applicable;
 - (v) Sample history including date received and date range of each test conducted on the sample;
 - (vi) Analytical methods, limits of detection, limits of quantitation, and test results for each analyte evaluated for the sample, regardless of whether the testing conducted is required by this rule; and,
 - (vii) A collective "pass"/"fail" assessment for the entire batch that accounts for either passage of all or failure of any one test conducted on the sample.
2. When reporting quantitative results, third-party laboratories must include in the COA the corresponding units of measurement as required for tolerances under this rule, as well as measurement uncertainties.
3. A result of "< LOQ" for any analyte detected below the limit of quantification (LOQ).
4. A result of "ND" for any analyte that was tested for and not detected.

(c) Failed testing.

1. Retesting. Any sample failure may be re-submitted as follows for confirmation of testing failure.

- (i) If a reserve sample was retained by the same third-party registered laboratory that produced the COA exhibiting a test failure, that laboratory may re-test the reserve sample following the failed test in order to confirm component compliance.
- (ii) If the re-tested sample passes for the suspect component(s), a new sample from the same batch must be drawn and submitted to a second third-party registered laboratory for complete re-testing of all components listed under this rule. If the second re-testing conforms to all required tolerances, the batch is deemed compliant with testing requirements and may be transported and distributed in commerce.
- (iii) If a reserve sample is not available from the initial third-party registered laboratory or if a sample fails either of the re-tests, the batch is deemed nonconforming with regulatory requirements.

2. Remedy.

- (i) Microbial contaminants. An HDC supplier is prohibited from transporting or allowing transport of a batch that has failed microbial contaminant testing unless:
 - (I) The batch is further processed by a method that effectively sterilizes the batch, is re-tested, and those test results show conformance with required tolerances;
 - (II) The supplier submits a corrective action plan for effective sterilization of the batch by another licensed HDC supplier, receives written approval of the plan from the department, and places the batch under immediate transport to the approved HDC supplier; or,
 - (III) The batch is rendered unusable.
- (ii) Over-concentrated product. An HDC product manufacturer is prohibited from transporting or allowing transport of a batch that has failed THC concentration testing unless:
 - (I) The batch is further processed by a method that effectively dilutes the batch, is retested, and those results show conformance with required tolerances;
 - (II) The manufacturer submits a corrective action plan for effective dilution of the batch by another licensed HDC supplier, receives written approval of the plan from the department, and places the batch under immediate transport to the approved HDC supplier; or,
 - (III) The batch is rendered unusable.
- (iii) For all other component testing failures, an HDC product manufacturer must render the batch unusable prior to disposition.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.06 Labels.

- (1) HDC product manufacturers must, in addition to labeling requirements under the Act, label each HDC product with the following:

- (a) Batch number;
 - (b) Name and address of the HDC product manufacturer or distributor;
 - (c) A list of all ingredients, ordered by weight, including direct and indirect additives;
 - (d) A separate allergen statement, stating common name of allergen, if product contains any of the following ingredients: eggs; fish; milk; tree nuts; peanuts; sesame; shellfish; soy; or wheat;
 - (e) A QR code that when scanned links the viewer to COA testing results conducted under this chapter. A QR code that does not link to the landing page designated by the testing laboratory as registered with the department shall be considered invalid and a violation of this rule;
 - (f) Serving size of the product and the total number of servings per package of the product (applicable only for ingestible HDC products); and,
 - (g) The numerical count, net weight, or net volume of the product per package. Net weight and net volume must be reported in both standard and metric measurements.
- (2) Warning statements. HDC product manufacturers must include the following warning statement(s), printed in at least six-point, easily legible font on the label panel of associated HDC products, and shall be conspicuous and in distinct contrast (e.g. by typography, layout, color, or embossing) to other information on the package.
- (a) For all HDC products,
 - 1. "Warning: Keep out of reach of children. Must be 21 or older to possess or consume. May be harmful to those who are pregnant or breastfeeding. May impair ability to drive or operate machinery. May contain unidentified substances that are harmful or toxic. This product is not approved by FDA for cure, mitigation, treatment, or prevention of any disease."
 - 2. The word "Warning" must be printed in bold font, all capital letters.
 - (b) Additional warning statement for inhalable HDC products,
 - 1. "Warning: Inhalation of cannabis smoke has been associated with lung injury."
 - 2. The word "Warning" must be printed in bold font, all capital letters.
- (3) A person shall not manufacture or distribute any HDC product labeled as a dietary supplement.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.07 Transportation.

- (1) In addition to transportation requirements under the Act, HDC supplier licensees must make immediately available upon request COAs for any HDC product, including raw product, that is transported in commerce.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.08 Records.

- (1) For each batch of HDC product manufactured or distributed, HDC supplier licensees shall maintain the following for two years:

- (a) COAs, copies of which shall be submitted to all immediate downstream purchasers of the product;
 - (b) A current copy of safety data sheets for all solvents used in manufacturing the HDC product; and,
 - (c) Invoices and bills of lading for all HDC product distribution conducted by the HDC supplier licensee.
- (2) For any HDC product rendered unusable or disposed pursuant to this chapter, HDC supplier licensees must maintain documentation of the following for two years following disposal:
- (a) Date(s) and manner(s) in which the product was rendered unusable and disposed;
 - (b) Batch number; and,
 - (c) Total volume of product that was disposed.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.09 Inspections.

- (1) Scope. The department may enter any licensed premises or conveyance during normal business hours for purposes of inspecting and sampling any cannabis, HDC product, product lists and labels, or other material and copying records necessary to determine compliance with the Act and this chapter.
- (2) Frequency. The department may conduct inspections as often as necessary to determine compliance with the Act and this chapter.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-02-.10 Violations.

- (1) In addition to other requirements of the Act and this chapter, persons subject to this chapter must:
- (a) Maintain areas and vehicles where HDC products are manufactured or distributed so as to be readily accessible for inspection;
 - (b) Provide adequate lighting necessary for inspection of all HDC products manufactured or distributed;
 - (c) Provide full access to facilities, inventory, records, and invoices necessary to departmental inspection;
 - (d) Give full information as to the source of any cannabis or HDC product currently or previously held in their possession;
 - (e) Consent to sampling of all HDC product manufactured or distributed by the licensee; and,
 - (f) Consent to recall of all associated HDC product batches when subsequent testing of HDC product in commerce indicates a failure of testing requirements under this chapter, or a foodborne outbreak or other illness is causally linked by federal authorities or the department of health to particular HDC product batches.
- (2) In addition to other requirements of the Act and this chapter, persons subject to this chapter must not:
- (a) Manufacture or distribute HDC products without first securing a license from the department;

- (b) Manufacture or distribute HDC products that do not meet manufacturing and testing requirements under this chapter;
 - (c) Transport or allow transport of HDC products without a COA issued by a third-party laboratory registered with the department;
 - (d) Interfere with an authorized representative of the department in performance of their duties;
 - (e) Violate any federal or state quarantine of plants, regulated articles, or other material;
 - (f) Sell, offer for sale, move, or allow movement of any apparently infested material; or,
 - (g) Violate any departmental order issued under the Act or this chapter, including but not limited to orders for embargo or destruction of HDC product.
- (3) Violation of any workplace safety or environmental protection standard enforced by state or federal authorities is grounds for denial of program inspection and denial or revocation of any license issued by the department.
- (4) A person is responsible for violations of the Act or this chapter when committed by either the person or their agent.
- (5) Each violation of the Act or this chapter is grounds for issuance of embargo or destruction orders for any HDC product held by the violator or their agent, denial or revocation of any license or registration issued by the department, actions for injunction, imposition of civil penalties and/or pursuit of criminal charges against the violator.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

CHAPTER 0080-10-03
RETAIL SALE OF HEMP-DERIVED CANNABINOID PRODUCTS

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0080-10-03-.01 Scope.

- (1) This chapter applies to any person who sells or offers to sell at retail any HDC product.
- (2) Persons who sell or offer to sell HDC products are subject to all requirements and regulatory authority applicable to the type of product sold, including but not limited to regulation under the Act and this chapter, and T.C.A. title 53, chapter 8, and title 39, chapter 17, part 15, and Tenn. Comp. R. & Regs. 0080-04-09. HDC products are excluded from all regulatory exemptions including but not limited to those afforded under the Food Freedom Act at T.C.A. § 53-1-118.
- (3) The department shall not refund fees for early termination of any license issued under this chapter.
- (4) Licenses under this chapter are not transferable from person to person or location to location.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.02 Definitions.

- (1) Terms in this chapter share those meanings of terms in T.C.A. title 43, chapter 27, parts 1 and 2.
- (2) When used in this chapter, unless the context requires otherwise:
 - (a) Act means T.C.A. § 43-27-201, et seq.;
 - (b) Batch, in addition to its definition under the Act, means an individual production lot of manufactured product;
 - (c) Business for which entry is limited to persons twenty-one (21) years of age or older means a legal establishment that affirmatively restricts access to its buildings or facilities at all times to persons who are twenty-one (21) years of age or older by requiring each person who attempts to gain entry to those buildings or facilities to submit for inspection an acceptable form of identification demonstrating by proof of age that the person is twenty-one (21) years of age or older;
 - (d) Cannabis means any plant or any part of a plant of the genera Cannabis and includes hemp;
 - (e) Certificate of Analysis (COA) means a written document from a laboratory approved by the department for testing samples under Tenn. Comp R. & Regs. 0080-10-02, and which communicates the results of those tests performed;
 - (f) Commerce or similar words mean involving payment for an item or payment for services incident to production of the item;
 - (g) Counter means a physical barrier that necessitates the seller's assistance in order to access product prior to its sale;
 - (h) Food means articles used for food or drink for humans or other animals; chewing gum; and articles used for components of food or drink or chewing gum;

- (i) HDC product means a product that contains or that is labeled to contain a hemp-derived cannabinoid and that is produced, marketed, or otherwise intended to be consumed orally ("ingestible"), inhaled ("inhalable"), or absorbed through the skin ("transdermal"). HDC products also include intermediate products intended for subsequent use as a component in a later finished ingestible, inhalable, or transdermal HDC product. Topical products mean products solely intended to be applied to the skin or hair and are not intended to be absorbed through transdermal application; topical products are not included within the definition of HDC product even if they contain a hemp-derived cannabinoid;
- (j) In a manner similarly reliable to post-decarboxylation means a manner sufficient to quantify by percentage the resulting THC of a sample if carboxyl groups are removed from all molecules containing THC within the sample. A manner similarly reliable to post-decarboxylation is shown by a post-decarboxylation THC value equal to the sum of the sample's THC percentage plus the product of its delta-9 tetrahydrocannabinolic acid (THCa) percentage and 0.877;
- (k) Manufacture, in addition to its definition under the Act, includes any action that transforms cannabis physically or chemically beyond its principal form as a farm product or filters, cleans, or trims that product to isolate any of its particular parts or components;
- (l) Move, transport, or similar words mean to relocate in any manner an item from one real property to another;
- (m) Person means an individual, partnership, corporation, or any other form of legal entity;
- (n) Proof of age means a driver license or other generally accepted means of identification that describes the individual, indicates his or her age, contains a photograph or other likeness of the individual, and appears on its face to be valid. In the case of sales by mail or online orders, proof of age is satisfied by a written, affirmative statement from the addressee that he or she is at least 21 years of age; and.
- (o) Sample means to take material or the material taken from a location where HDC products are sold or offered for sale at retail.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-03 License Application and Fees.

- (1) An HDC retail license is required per person per location for any person who sells or offers for sale an HDC product at retail. Licensed locations must be fixed address facilities but may include temporary locations such as fairs, flea markets, and farmers markets, provided that license fees for temporary locations cannot be prorated on the basis of temporary use. HDC retail licenses are not required for common carriers and delivery services, provided the carrier or service provider is facilitating just-in-time order transactions and is not carrying existing inventory by which to facilitate prospective sales.
- (2) Applicants for an HDC retail license must submit required information on forms provided by the department, which may include:
 - (a) Name of the applicant;
 - (b) Date of birth of any applicant who is an individual or a partner in a general partnership;
 - (c) Proof of registration in its state of incorporation for any applicant that is a formalized business entity;
 - (d) Proof of registration with the Tennessee Department of Revenue;

- (e) Contact information for applicant, to include name of person legally responsible for applicant's operations, telephone number, email address, and address of principal place of business;
 - (f) Address of location to be licensed;
 - (g) Identification of nearest school serving any grades K-12 and the distance from that school to the location to be licensed, in feet measured as a straight line along the shortest route;
 - (h) A nationwide criminal background check, facilitated through the Tennessee Bureau of Investigation, for the person identified as legally responsible for applicant's operations; and,
 - (i) Other information as required by the department.
- (3) Licensees must notify the department of any changes to the contents of their application on file within 30 days after the change takes place, including any change of contact information;
 - (4) Payment of an annual HDC retail license fee of \$250 shall be due upon approval of an application and must be paid in full prior to a license being issued. The license fee may be prorated in the initial year of licensure at the rate of \$25 per each full calendar month remaining in the license period, provided the total fee not exceed \$250. License fees shall not be prorated for any person licensed in the previous licensure year. The HDC retail license fee is waived for any person who also holds an HDC supplier license.
 - (5) HDC retail licenses expire on June 30 of the licensing cycle for which they are issued. Applicants for renewal must submit to the department on or before the following July 1 the HDC retail license fee and an updated criminal background check for the licensee.
 - (6) The department may deny any application for licensure that is not completed in full or that is not completed in conformance with this rule.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.04 Manner of Sale.

- (1) HDC retail licensees shall not sell an HDC product to a purchaser unless the purchaser has provided proof of age showing the purchaser to be at least 21 years of age.
- (2) HDC retail licensees may not offer HDC products for sale through use of vending machines or unstaffed kiosks.
- (3) HDC retail licensees may offer HDC products for sale only if the product is maintained behind the counter, i.e. in a location or manner such that physical assistance from the licensee is necessary in order for the customer to access the product. Behind the counter restrictions do not apply to retail licensees that are businesses for which entry is limited to persons twenty-one (21) years of age or older.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.05 Records.

- (1) For each HDC product offered for sale, HDC retail licensees shall maintain for two years and readily produce upon request:
 - (a) COAs received from their immediate upstream seller of the product; and,
 - (b) Invoices and bills of lading for the licensee's purchase or receipt of the product.

(2) For any HDC product rendered unusable or disposed pursuant to this chapter, HDC retail licensees must maintain documentation of the following for two years following disposal:

(a) Date(s) and manner(s) in which the product was rendered unusable or disposed;

(b) Batch number; and,

(c) Total volume of product that was disposed.

Authority: T.C.A. §§ 4-3-203 and 43-27-104.

0080-10-03-.06 Inspections and Testing.

(1) Scope. The department may enter any licensed premises during normal business hours for purposes of inspecting and sampling any cannabis, HDC product, or other material, examining and copying records, and conducting random checks for manner of sale of HDC products as necessary to determine compliance with the Act and this chapter.

(2) Frequency. The department may conduct inspections as often as necessary to determine compliance with the Act and this chapter.

(3) Product testing.

(a) Upon purchase of HDC products offered for retail sale, the department may sample and test or cause to be sampled and tested the product for compliance with the Act and Tenn. Comp. R. & Regs. 0080-10-02-.04 and .05. Any test result exceeding allowable limits is grounds for embargo, recall, remediation pursuant to provisions applicable under Tenn. Comp. R. & Regs. 0080-10-02-.05, and/or destruction of the batch of HDC product represented by the sample.

(b) A sample collected and tested according to departmental protocols is deemed representative of the HDC product batch from which the sample was obtained.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

0080-10-03-.07 Violations.

(1) In addition to other requirements of the Act and this chapter, persons subject to this chapter must:

(a) Maintain areas where HDC products are sold, offered for sale, or held for inventory so as to be readily accessible for inspection;

(b) Provide adequate lighting necessary for inspection of all HDC products offered or held for retail sale;

(c) Provide full access to facilities, inventory, records, and invoices necessary to departmental inspection;

(d) Give full information as to the source of any cannabis or HDC product currently or previously held in their possession during the previous two years;

(e) Consent to sampling of all HDC product offered or held for retail sale by the licensee; and,

(f) Consent to recall of all associated HDC product batches when testing of the product indicates a failure under Tenn. Comp. R. & Regs. 0080-10-02-.04 or .05 or a foodborne outbreak or other illness is causally linked by federal authorities or the department of health to particular HDC product batches.

- (2) In addition to other requirements of the Act and this chapter, persons subject to this chapter must not:
- (a) Sell or offer for sale HDC products at retail without first securing a license from the department;
 - (b) Sell or offer for sale HDC products at retail, including raw products, unless they meet manufacturing, labeling, and testing requirements under Tenn. Comp. R. & Regs. 0080-10-02;
 - (c) Interfere with an authorized representative of the department in performance of their duties;
 - (d) Violate any federal or state quarantine of plants, regulated articles, or other material; or,
 - (e) Violate any departmental order issued under the Act or this chapter, including but not limited to orders to hold or dispose of HDC product.
- (3) Violation of any workplace safety or environmental protection standard enforced by state or federal authorities is grounds for denial of program inspection and denial or revocation of any license issued by the department.
- (4) A person is responsible for violations of the Act or this chapter when committed by either the person or their agent.
- (5) Each violation of the Act or this chapter is grounds for issuance of hold or destruction orders for any HDC product held by the violator or their agent, denial or revocation of any license or registration issued by the department, actions for injunction, imposition of civil penalties and/or pursuit of criminal charges against the violator.

Authority: T.C.A. §§ 4-3-203 and 43-27-211.

Amendments

Chapter 0080-04-09 Retail Food Store Sanitation

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0080-04-09-.04 Equipment, Utensils, and Linens	0080-04-09-.08 Compliance and Enforcement

Rule 0080-04-09-.01 Definitions is amended by inserting the following as a newly captioned paragraph (56); renumbering all subsequent paragraphs of the rule such that the rule contains 122 paragraphs; correcting captioning of newly numbered subparagraph 98(b) such that its parts are numbered 1-5 and not (i)-(v); and correcting caption reference of newly numbered subparagraph (111)(b) such that it references 0080-04-09-.04(1)(a) and not 0080-04-09-.04-(1)(a).

(56) "Hemp-derived cannabinoid" has the same meaning as provided under T.C.A. § 43-27-202.

(567) "Hermetically sealed container" means a container that is designed and intended to be secure against the entry of microorganisms and, in the case of low acid canned foods, to maintain the commercial sterility of its contents after processing.

(578) "Highly susceptible population" means persons who are more likely than other people in the general population to experience foodborne disease because they are:

- (a) Immunocompromised; preschool age children, or older adults; and
- (b) Obtaining food at a facility that provides services such as custodial care, health care, or assisted living, such as a child or adult day care center, kidney dialysis center, hospital or nursing home, or nutritional or socialization services such as a senior center.

(589) "Imminent health hazard" means any condition, deficiency, or practice that, if not corrected, is very likely to result in illness, injury, or loss of life to any person.

(5960) "Injected" means manipulating meat to which a solution has been introduced into its interior by processes that are referred to as "injecting," "pump marinating," or "stitch pumping."

(601) Juice.

- (a) "Juice" means the aqueous liquid expressed or extracted from one or more fruits or vegetables, purées of the edible portions of one or more fruits or vegetables, or any concentrates of such liquid or purée.
- (b) "Juice" does not include, for purposes of HACCP, liquids, purées, or concentrates that are not used as beverages or ingredients of beverages.

(612) "Kitchenware" means food preparation and storage utensils.

(623) "Law" means applicable local, state, and federal statutes, regulations, and ordinances.

(634) "Linens" means fabric items such as cloth hampers, cloth napkins, table cloths, wiping cloths, and work garments including cloth gloves.

(645) Major Food Allergen.

- (a) "Major food allergen" means:

1. Milk, egg, fish (such as bass, flounder, cod, and including crustacean shellfish such as crab, lobster, or shrimp), tree nuts (such as almonds, pecans, or walnuts), wheat, peanuts, and soybeans; or
 2. A food ingredient that contains protein derived from a food, as specified in part (a)1 of this definition.
- (b) "Major food allergen" does not include:
1. Any highly refined oil derived from a food specified in part (a)1 of this definition and any ingredient derived from such highly refined oil; or
 2. Any ingredient that is exempt under the petition or notification process specified in the Food Allergen Labeling and Consumer Protection Act of 2004 (Public Law 108-282).
- (656) "Meat" means the flesh of animals used as food including the dressed flesh of cattle, swine, sheep, or goat, other edible animals except fish, poultry, and wild game animals as specified under 0080-04-09-.03(2)(a)7(i)(III), (IV).
- (667) Mechanically Tenderized.
- (a) "Mechanically tenderized" means manipulating meat with deep penetration by processes which may be referred to as "blade tenderizing," "jaccarding," "pinning," "needling," or using blades, pins, needles or any mechanical device.
 - (b) "Mechanically tenderized" does not include processes by which solutions are injected into meat.
- (678) "mg/L" means milligrams per liter, which is the metric equivalent of parts per million (ppm).
- (689) "Mobile food unit" means a food establishment designed to be readily moved and vend food.
- (6970) "Molluscan shellfish" means any edible species of fresh or frozen oysters, clams, mussels, and scallops or edible portions thereof, except when the scallop product consists only of the shucked adductor muscle.
- (701) Non-Continuous Cooking.
- (a) "Non-continuous cooking" means the cooking of food in a food establishment using a process in which the initial heating of the food is intentionally halted so that it may be cooled and held for complete cooking at a later time prior to sale or service.
 - (b) "Non-continuous cooking" does not include cooking procedures that only involve temporarily interrupting or slowing an otherwise continuous cooking process.
- (712) Packaged.
- (a) "Packaged" means bottled, canned, cartoned, securely bagged, or securely wrapped, whether packaged in a food establishment or a food processing plant.
 - (b) "Packaged" does not include a wrapper, carry-out box, or other nondurable container used to containerize food with the purpose of facilitating food protection during service and receipt of the food by the consumer.
- (723) "Permit" means the document issued by the department that authorizes a person to operate a food establishment.
- (734) "Permit holder" means the entity that:
- (a) Is legally responsible for the operation of the food establishment such as the owner, the owner's agent, or other person; and

- (b) Possesses a valid permit to operate a food establishment.
- (745) "Person" means any individual, partnership, firm, corporation, agency, municipality, state or political subdivision, or the federal government and its agencies and departments.
- (756) "Person in charge" means an individual present at a food establishment who is responsible for the operation at the time of inspection. A person in charge shall be present at the establishment during food preparation and handling, and may put instructions in place for cleaning and preparing the establishment prior to the preparation of any food or beverage.
- (767) Personal Care Items.
- (a) "Personal care items" means items or substances that may be poisonous, toxic, or a source of contamination and are used to maintain or enhance a person's health, hygiene, or appearance.
- (b) "Personal care items" include items such as medicines; first aid supplies; and other items such as cosmetics, and toiletries such as toothpaste and mouthwash.
- (778) "pH" means the symbol for the negative logarithm of the hydrogen ion concentration, which is a measure of the degree of acidity or alkalinity of a solution. Values between 0 and 7 indicate acidity and values between 7 and 14 indicate alkalinity. The value for pure distilled water is 7, which is considered neutral.
- (789) "Physical facilities" means the structure and interior surfaces of a food establishment including accessories such as soap and towel dispensers and attachments such as light fixtures and heating or air conditioning system vents.
- (7980) "Plumbing fixture" means a receptacle or device that:
- (a) Is permanently or temporarily connected to the water distribution system of the premises and demands a supply of water from the system; or
- (b) Discharges used water, waste materials, or sewage directly or indirectly to the drainage system of the premises.
- (801) "Plumbing system" means the water supply and distribution pipes; plumbing fixtures and traps; soil, waste, and vent pipes; sanitary and storm sewers and building drains, including their respective connections, devices, and appurtenances within the premises; and water-treating equipment.
- (842) "Poisonous or toxic materials" means substances that are not intended for ingestion and are included in four categories:
- (a) Cleaners and sanitizers, which include cleaning and sanitizing agents and agents such as caustics, acids, drying agents, polishes, and other chemicals;
- (b) Pesticides, except sanitizers, which include substances such as insecticides and rodenticides;
- (c) Substances necessary for the operation and maintenance of the establishment such as nonfood grade lubricants and personal care items that may be deleterious to health; and
- (d) Substances that are not necessary for the operation and maintenance of the establishment and are on the premises for retail sale, such as petroleum products and paints.
- (823) "Poultry" means:
- (a) Any domesticated bird (chickens, turkeys, ducks, geese, guineas, ratites, or squabs), whether live or dead, as defined in 9 CFR 381.1 Poultry Products Inspection Regulations Definitions, Poultry, and
- (b) Any migratory waterfowl or game bird, pheasant, partridge, quail, grouse, or pigeon, whether live or dead, as defined in 9 CFR 362.1 Voluntary Poultry Inspection Regulations, Definitions.

(834) "Premises" means:

- (a) The physical facility, its contents, and the contiguous land or property under the control of the permit holder; or
- (b) The physical facility, its contents, and the land or property not described in subparagraph (a) of this definition if its facilities and contents are under the control of the permit holder and may impact food establishment personnel, facilities, or operations, and a food establishment is only one component of a larger operation such as a health care facility, hotel, motel, school, recreational camp, or prison.

(845) "Primal cut" means a basic major cut into which carcasses and sides of meat are separated, such as a beef round, pork loin, lamb flank, or veal breast.

(856) Priority Item.

- (a) "Priority item" means a provision in this chapter whose application contributes directly to the elimination, prevention or reduction to an acceptable level, hazards associated with foodborne illness or injury and there is no other provision that more directly controls the hazard.
- (b) "Priority item" includes items with a quantifiable measure to show control of hazards such as cooking, reheating, cooling, handwashing; and
- (c) "Priority item" is an item that is denoted in this chapter with (P).

(867) Priority Foundation Item.

- (a) "Priority foundation item" means a provision in this chapter whose application supports, facilitates or enables one or more priority items.
- (b) "Priority foundation item" includes an item that requires the purposeful incorporation of specific actions, equipment or procedures by industry management to attain control of risk factors that contribute to foodborne illness or injury such as personnel training, infrastructure or necessary equipment, HACCP plans, documentation or record keeping, and labeling; and
- (c) "Priority foundation item" is an item that is denoted in this chapter with (Pf).

(878) "Public water system" has the meaning stated in 40 CFR 141 National Primary Drinking Water Regulations.

(889) "Ratite" means a flightless bird such as an emu, ostrich, or rhea.

(8990) "Ready-to-Eat-Food" means food that:

- (a) Is in a form that is edible without additional preparation to achieve food safety, as specified under one of the following 0080-04-09-.03(4)(a)1(i) or (ii), 0080-04-09-.03(4)(a)2, or 0080-04-09-.03(4)(b)1 or as specified in 0080-04-09-.03(4)(a)1(iii); or
- (b) Is a raw or partially cooked animal food and the consumer is advised as specified in 0080-04-09-.03(4)(a)1(iv)(I) and (III); or
- (c) Is prepared in accordance with a variance that is granted as specified in 0080-04-09-.03(4)(a)1(iv)(IV); and
- (d) May receive additional preparation for palatability or aesthetic, epicurean, gastronomic, or culinary purposes.
- (e) "Ready-to-eat food" includes:

1. Raw animal food that is cooked as specified under 0080-04-09-.03(4)(a), or frozen as specified under 0080-04-09-.03(4)(b);
2. Raw fruits and vegetables that are washed as specified under 0080-04-09-.03(3)(b)5;
3. Fruits and vegetables that are cooked for hot holding, as specified under 0080-04-09-.03(4)(a)3;
4. All time/temperature control for safety food that is cooked to the temperature and time required for the specific food under 0080-04-09-.03(4) and cooled as specified under 0080-04-09-.03(5)(a)4;
5. Plant food for which further washing, cooking, or other processing is not required for food safety, and from which rinds, peels, husks, or shells, if naturally present are removed;
6. Substances derived from plants such as spices, seasonings, and sugar;
7. A bakery item such as bread, cakes, pies, fillings, or icing for which further cooking is not required for food safety;
8. The following products that are produced in accordance with USDA guidelines and that have received a lethality treatment for pathogens: dry, fermented sausages, such as dry salami or pepperoni; salt-cured meat and poultry products, such as prosciutto ham, country cured ham, and Parma ham; and dried meat and poultry products, such as jerky or beef sticks; and
9. Food manufactured as specified in 21 CFR Part 113, Thermally Processed Low-Acid Foods Packaged in Hermetically Sealed Containers.

(901) Reduced Oxygen Packaging.

(a) "Reduced oxygen packaging" means:

1. The reduction of the amount of oxygen in a package by removing oxygen; displacing oxygen and replacing it with another gas or combination of gases; or otherwise controlling the oxygen content to a level below that normally found in the atmosphere (approximately 21% at sea level); and
2. A process as specified in part (a)(1) of this definition that involves a food for which the hazards *Clostridium botulinum* or *Listeria monocytogenes* require control in the final packaged form.

(b) "Reduced oxygen packaging" includes:

1. Vacuum packing, in which air is removed from a package of food and the package is hermetically sealed so that a vacuum remains inside the package;
2. Modified atmosphere packaging, in which the atmosphere of a package of food is modified so that its composition is different from air but the atmosphere may change over time due to the permeability of the packaging material or the respiration of the food. Modified atmosphere packaging includes reduction in the proportion of oxygen, total replacement of oxygen, or an increase in the proportion of other gases such as carbon dioxide or nitrogen;
3. Controlled atmosphere packaging, in which the atmosphere of a package of food is modified so that until the package is opened, its composition is different from air, and continuous control of that atmosphere is maintained, such as by using oxygen scavengers or a combination of total replacement of oxygen, nonrespiring food, and impermeable packaging material;

4. Cook chill packaging, in which cooked food is hot filled into impermeable bags that have the air expelled and are then sealed or crimped closed. The bagged food is rapidly chilled and refrigerated at temperatures that inhibit the growth of psychrotrophic pathogens; or
5. Sous vide packaging, in which raw or partially cooked food is placed in a hermetically sealed, impermeable bag, cooked in the bag, rapidly chilled, and refrigerated at temperatures that inhibit the growth of psychrotrophic pathogens.

(942) "Refuse" means solid waste not carried by water through the sewage system.

(923) "Reminder" means a written statement concerning the health risk of consuming animal food raw, undercooked, or without otherwise being processed to eliminate pathogens.

(934) "Re-service" means the transfer of food that is unused and returned by a consumer after being served or sold and in the possession of the consumer, to another person.

(945) "Restrict" means to limit the activities of a food employee so that there is no risk of transmitting a disease that is transmissible through food and the food employee does not work with exposed food, clean equipment, utensils, linens, or unwrapped single-service or single-use articles.

(956) "Restricted egg" means any check, dirty egg, incubator reject, inedible, leaker, or loss as defined in 9 CFR 590.

(967) "Restricted use pesticide" means a pesticide product that contains the active ingredients specified in 40 CFR 152.175 Pesticides classified for restricted use, and that is limited to use by or under the direct supervision of a certified applicator.

(978) Retail food store.

(a) "Retail food store" means any establishment or a section of an establishment where food and food products are offered to the consumer and intended for off-premise consumption;

(b) "Retail food store" does not include:

- (i)1. Establishments that handle only prepackaged, non-time/temperature control for safety food, as defined by department rules and regulations;
- (ii)2. Roadside markets that offer only fresh fruits and fresh vegetables;
- (iii)3. Food and beverage vending machines;
- (iv)4. Food service establishments not located within a retail food store; or
- (v)5. A person who makes infrequent casual sales of honey or who packs or sells less than one hundred fifty gallons (150 gals.) of honey per year.

(989) "Risk" means the likelihood that an adverse health effect will occur within a population as a result of a hazard in a food.

(99100) "Safe material" means:

- (a) An article manufactured from or composed of materials that may not reasonably be expected to result, directly or indirectly, in their becoming a component or otherwise affecting the characteristics of any food;
- (b) An additive that is used as specified in § 409 of the Federal Food, Drug, and Cosmetic Act; or
- (c) Other materials that are not additives and that are used in conformity with applicable regulations of the Food and Drug Administration.

- (1001) "Sanitization" means the application of cumulative heat or chemicals on cleaned food-contact surfaces that, when evaluated for efficacy, is sufficient to yield a reduction of 5 logs, which is equal to a 99.999% reduction, of representative disease microorganisms of public health importance.
- (1042) "Sealed" means free of cracks or other openings that allow the entry or passage of moisture.
- (1023) "Service animal" means an animal such as a guide dog, signal dog, or other animal individually trained to provide assistance to an individual with a disability.
- (1034) "Servicing area" means an operating base location to which a mobile food establishment or transportation vehicle returns regularly for such things as vehicle and equipment cleaning, discharging liquid or solid wastes, refilling water tanks and ice bins, and boarding food.
- (1045) "Sewage" means liquid waste containing animal or vegetable matter in suspension or solution and may include liquids containing chemicals in solution.
- (1056) "Shellfish control authority" means a state, federal, foreign, tribal, or other government entity legally responsible for administering a program that includes certification of molluscan shellfish harvesters and dealers for interstate commerce.
- (1067) "Shellstock" means raw, in-shell molluscan shellfish.
- (1078) "Shiga toxin-producing *Escherichia coli* (STEC)" means any *E. coli* capable of producing Shiga toxins (also called verocytotoxins or "Shiga-like" toxins). Examples of serotypes of STEC include both O157 and non-O157 *E. coli*. Also see Enterohemorrhagic *Escherichia coli*.
- (1089) "Shucked shellfish" means molluscan shellfish that have one or both shells removed.
- (10910) "Single-service articles" means tableware, carry-out utensils, and other items such as bags, containers, placemats, stirrers, straws, toothpicks, and wrappers that are designed and constructed for one time, one person use after which they are intended for discard.
- (1101) Single-Use Articles.
- (a) "Single-use articles" means utensils and bulk food containers designed and constructed to be used once and discarded.
- (b) "Single-use articles" includes items such as wax paper, butcher paper, plastic wrap, formed aluminum food containers, jars, plastic tubs or buckets, bread wrappers, pickle barrels, ketchup bottles, and number 10 cans which do not meet the materials, durability, strength, and cleanability specifications under 0080-04-09-.04-(1)(a), (2)(a), (b) for multiuse utensils.
- (1142) "Slacking" means the process of moderating the temperature of a food such as allowing a food to gradually increase from a temperature of -23°C (-10°F) to -4°C (25°F) in preparation for deep-fat frying or to facilitate even heat penetration during the cooking of previously block-frozen food such as shrimp.
- (1123) "Smooth" means:
- (a) A food-contact surface having a surface free of pits and inclusions with a cleanability equal to or exceeding that of (100 grit) number 3 stainless steel;
- (b) A nonfood-contact surface of equipment having a surface equal to that of commercial grade hot-rolled steel free of visible scale; and
- (c) A floor, wall, or ceiling having an even or level surface with no roughness or projections that render it difficult to clean.
- (1134) "Tableware" means eating, drinking, and serving utensils for table use such as flatware including forks, knives, and spoons; hollowware including bowls, cups, serving dishes, and tumblers; and plates.

- (1145) "Temperature measuring device" means a thermometer, thermocouple, thermistor, or other device that indicates the temperature of food, air, or water.
- (1156) "Temporary food establishment" means a food establishment that operates at a fixed location in conjunction with an organized temporary event for more than one (1) day and not more than fourteen (14) consecutive days.
- (1167) Time/Temperature Control for Safety Food.
- (a) "Time/temperature control for safety food" means a food that requires time/temperature control for safety (TCS) to limit pathogenic microorganism growth or toxin formation.
- (b) "Time/temperature control for safety food" includes:
1. An animal food that is raw or heat-treated; a plant food that is heat-treated or consists of raw seed sprouts, cut melons, cut leafy greens, cut tomatoes or mixtures of cut tomatoes that are not modified in a way so that they are unable to support pathogenic microorganism growth or toxin formation, or garlic-in-oil mixtures that are not modified in a way so that they are unable to support pathogenic microorganism growth or toxin formation; and
 2. Except as specified in subpart 3(iv) of this definition, a food that because of the interaction of its A_w and pH values is designated as Product Assessment Required (PA) in Table A or B of this definition:

Table A. Interaction of PH and A_w for control of spores in food heat-treated to destroy vegetative cells and subsequently packaged			
A_w values	PH values		
	4.6 or less	> 4.6 - 5.6	> 5.6
≤ 0.92	non-TCS FOOD*	non-TCS FOOD	non-TCS FOOD
> 0.92 - .95	non-TCS FOOD	non-TCS FOOD	PA**
> 0.95	non-TCS FOOD	PA	PA
* TCS FOOD means TIME/TEMPERATURE CONTROL FOR SAFETY FOOD			
** PA means Product Assessment required			

Table B. Interaction of pH and A_w for control of vegetative cells and spores in food not heat-treated or heat-treated but not packaged				
A_w values	pH values			
	< 4.2	4.2 - 4.6	> 4.6 - 5.0	> 5.0
< 0.88	non-TCS food*	non-TCS food	non-TCS food	non-TCS food
0.88 – 0.90	non-TCS food	non-TCS food	non-TCS food	PA**
> 0.90 – 0.92	non-TCS food	non-TCS food	PA	PA
> 0.92	non-TCS food	PA	PA	PA
* TCS FOOD means TIME/TEMPERATURE CONTROL FOR SAFETY FOOD				
** PA means Product Assessment required				

3. "Time/temperature control for safety food" does not include:

- (i) An air-cooled hard-boiled egg with shell intact, or an egg with shell intact that is not hard boiled, but has been pasteurized to destroy all viable salmonellae;
- (ii) A food in an unopened hermetically sealed container that is commercially processed to achieve and maintain commercial sterility under conditions of non-refrigerated storage and distribution;
- (iii) A food that because of its pH or A_w value, or interaction of A_w and pH values, is designated as a non TCS food in Table A or B of this definition;
- (iv) A food that is designated as Product Assessment Required (PA) in Table A or B of this definition and has undergone a Product Assessment showing that the growth or toxin formation of pathogenic microorganisms that are reasonably likely to occur in that food is precluded due to:
 - (I) Intrinsic factors including added or natural characteristics of the food such as preservatives, antimicrobials, humectants, acidulants, or nutrients,
 - (II) Extrinsic factors including environmental or operational factors that affect the food such as packaging, modified atmosphere such as reduced oxygen packaging, shelf life and use, or temperature range of storage and use, or
 - (III) A combination of intrinsic and extrinsic factors; or
- (v) A food that does not support the growth or toxin formation of pathogenic microorganisms in accordance with one of the subparts 3(i) – 3(iv) of this definition even though the food may contain a pathogenic microorganism or

chemical or physical contaminant at a level sufficient to cause illness or injury.

(1178) "USDA" means the U.S. Department of Agriculture.

(1189) "Utensil" means a food contact implement or container used in the storage, preparation, transportation, dispensing, sale, or service of food, such as kitchenware or tableware that is multiuse, single-service, or single use, gloves used in contact with food; temperature sensing probes of food temperature measuring devices; and probe-type price or identification tags used in contact with food.

(14920) "Variance" means a written document issued by the commissioner that authorizes a modification or waiver of one or more requirements of this chapter if, in the opinion of the commissioner, a health hazard or nuisance will not result from the modification or waiver.

(1201) "Warewashing" means the cleaning and sanitizing of utensils sanitizing of utensils and food-contact surfaces of equipment.

(1242) "Whole-muscle, intact beef" means whole muscle beef that is not injected, mechanically tenderized, reconstructed, or scored and marinated, from which beef steaks may be cut.

Authority: T.C.A. §§ 4-3-203 and 53-8-2104.

Subparagraph 0080-04-09-.03(2)(a) Sources is amended by adding the following as a new part.

8. Hemp. In addition to requirements under this chapter of rules, any person who sells or offers for sale at retail any food product labeled to contain or containing a hemp-derived cannabinoid shall also comply with regulations under Tenn. R. & Regs. 0080-10-03.

Authority: T.C.A. §§ 4-3-203 and 53-8-204104.

Chapter 0080-04-13 Food Manufacturers and Warehouses

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0080-04-13-.04 Certificates of Free Sale	

Paragraph 0080-04-13-.02(2) is amended by deleting subparagraphs (f)-(g) and inserting the following language:

~~(f) — Food means those articles as defined under the Act and includes dietary supplements; and~~

~~(g) — Potentially hazardous food has the same meaning as T.C.A. § 53-1-104(1)(D).~~

(f) — Food means those articles as defined under the Act and includes dietary supplements;

(g) — Hemp-derived cannabinoid has the same meaning as provided under T.C.A. § 43-27-202; and

(h) — Potentially hazardous food has the same meaning as T.C.A. § 53-1-104(1)(D).

Authority: T.C.A. §§ 4-3-203 and 53-1-207202.

Rule 0080-04-13-.05 Standards for Manufacturing and Processing is amended by adding the following as a new

paragraph.

(6) Hemp. In addition to requirements under this chapter of rules, any person who manufactures, processes, packs, holds, or transports for introduction in commerce any food product labeled to contain or containing a hemp-derived cannabinoid shall also comply with regulations under Tenn. R. & Regs. 0080-10-02.

Authority: T.C.A. §§ 4-3-203 and 53-1-~~207~~202.

Repeal

Chapter 0080-06-28
Hemp

Chapter 0080-06-28 Hemp is repealed in its entirety.

~~0080-06-28-.01 Scope.~~

~~(1) — This chapter applies to any person who:~~

- ~~(a) — Grows rooted hemp;~~
- ~~(b) — Possesses rooted hemp; or~~
- ~~(c) — Possesses harvested hemp for transportation to anyone who treats or transforms it for distribution in commerce.~~

Authority: T.C.A. §§ 4-3-203, ~~43-26-103~~, ~~43-26-103(e)~~, and 43-27-104.

~~0080-06-28-.02 Definitions.~~

~~(1) — Terms in this chapter share those meanings of terms in T.C.A. §§ 43-27-101 et seq.~~

~~(2) — When used in this chapter, unless the context requires otherwise:~~

- ~~(a) — Act means T.C.A. §§ 43-27-101 et seq.;~~
- ~~(b) — Cannabis plant means any plant or any part of a plant of the genera Cannabis and includes hemp;~~
- ~~(c) — Culpable mental state greater than negligence means to act intentionally, knowingly, willfully, or recklessly;~~
- ~~(d) — Disposal means an activity that transitions non-compliant hemp into a non-retrievable or non-ingestible form. Such activities include, but are not limited to plowing, tilling, or disking plant material into the soil; mulching, composting, chopping or bush mowing plant material into green manure; or burying plant material into the earth and covering with soil;~~
- ~~(e) — Grow means to cultivate plants with attached roots;~~
- ~~(f) — Growing area means any contiguous land area licensed for the growth of hemp. Bifurcation of a growing area by roads, fencing, or the like shall not render the area non-contiguous under this definition;~~
- ~~(g) — Hemp producer means a person that produces hemp for harvest;~~
- ~~(h) — Hemp broker means a person that purchases and sells hemp plants grown by others;~~
- ~~(i) — Hemp propagator means a person that produces clones or seedlings for retail sale;~~
- ~~(j) — Key participant means a sole proprietor, a partner in a partnership, or a person with executive managerial control in a corporation such as, a chief executive officer, chief operating officer, or chief financial officer;~~
- ~~(k) — Lot means a contiguous area in a field, greenhouse, or indoor growing structure containing the same variety or strain of cannabis plant throughout the area;~~

- (l) — Move, distribute, transport, or similar words mean to relocate in any manner an item from one real property to another;
- (m) — Negligence means failure to exercise the level of care that a reasonably prudent person would exercise in complying with the Act or this chapter;
- (n) — Person means an individual, partnership, corporation, or any other form of legal entity;
- (o) — Remediation means the process of rendering non-compliant cannabis, compliant by removing and destroying flower material, while retaining stalk, stems, leaf material, and seeds. Remediation can occur by shredding the entire plant into a biomass like material, then re-testing the shredded biomass material for compliance;
- (p) — Sample means to take material, or the material taken from a location licensed by the department;
- (q) — Stop movement order means a written directive issued by the department to prohibit or limit the movement of plants or plant parts;
- (r) — THC means total delta-9 tetrahydrocannabinol; and,
- (s) — USDA means United States Department of Agriculture.

Authority: T.C.A. §§ 4-3-203, 43-26-103, 43-26-103(e), and 43-27-104.

~~0080-06-28-.03 License Application and Fees.~~

- (1) — ~~A hemp license is required to possess rooted hemp and is issued to each person for each physical address where the person grows or possesses rooted hemp.~~
- (2) — ~~Application for a license shall be made on forms provided by the department, which shall be completed in full and shall include:~~
 - (a) — ~~Name of applicant;~~
 - (b) — ~~Date of birth of any key participant;~~
 - (c) — ~~Proof of one of the following for any applicant that is not an individual or a general partnership:~~
 - 1. — ~~Applicant's registration in its state of incorporation; or,~~
 - 2. — ~~Applicant's business license issued by a local governmental authority;~~
 - (d) — ~~Contact information for applicant, to include name of key participants, telephone number, email address, and address of the principal place of business;~~
 - (e) — ~~Address of the location to be licensed for growth of hemp and description of all growing areas at the location, including total number of growing acres and Global Positioning System (GPS) coordinates from the areas' central most points; and~~
 - (f) — ~~Criminal history report for key participants in the form of the Federal Bureau of Investigation's Identity History Summary.~~
 - (g) — ~~Other information as required by the department.~~
- (3) — ~~Licensees shall notify the department of any changes to contact information of an application within 30 days after the change takes place.~~
- (4) — ~~The department will not refund fees for early termination of any license issued under this chapter.~~

- (5) — Licenses issued under this chapter are not transferable from person to person or location to location.
- (6) — The annual fee for a hemp producer license is assessed under T.C.A. § 43-1-703(f) and is determined according to the total size of growing area(s) at the licensed address:
 - (a) — Less than 5 acres: Tier 6 fee;
 - (b) — 5 acres to 20 acres: Tier 7 fee;
 - (c) — More than 20 acres: Tier 8 fee.
- (7) — The annual fee for a hemp broker license is assessed under T.C.A. § 43-1-703(f) and is a Tier 7 fee.
- (8) — The annual fee for a hemp propagator license is assessed under T.C.A. § 43-1-703(f) and is a Tier 7 fee.
- (9) — The annual fee for any combination of a hemp producer, broker, or propagator license is a single fee equal to the highest amount of the license for which the applicant requests.
- (10) — License applicants shall submit an application and license fee to the department on or before July 1 of each year. The annual license fee shall be waived for any institute of higher education that offers programs of study in agricultural sciences seeking licensure for a growing area on university property. Licenses expire on June 30 following their issuance.
- (11) — The department may deny any application for licensure that is not completed in accordance with this rule.
- (12) — Any person who materially falsifies any information in their application shall be ineligible to participate in the program.
- (13) — A person convicted of any drug-related felony offense in any state or federal jurisdiction within the previous ten (10) years shall not participate in the program or grow hemp for ten (10) years from the date of the conviction. An exception applies to a person who was lawfully growing hemp under section 7606 of the Agricultural Act of 2014 (7 U.S.C. 5940) before December 20, 2018, and whose conviction also occurred before that date.

Authority: T.C.A. §§ 4-3-203, 43-26-103, 43-26-103(e), and 43-27-104.

0080-06-28-.04 USDA Reports.

- (1) — All producers shall report hemp crop acreage to the USDA Farm Service Agency within 30 days of obtaining a license and shall provide the following information:
 - (a) — Street address and the GPS location of the lot, greenhouse, building, or site hemp will be grown.
 - (b) — Acreage dedicated to the production of hemp, or greenhouse or indoor square footage dedicated to the production of hemp.
 - (c) — The hemp license number.

Authority: T.C.A. §§ 4-3-203, 43-26-103, 43-26-103(e), and 43-27-104.

0080-06-28-.05 Movement Permits.

- (1) — Licensees shall not move rooted hemp plants without a valid movement permit issued by the department. Licensees shall not move any hemp to anyone who treats or transforms harvested hemp for distribution in commerce without a valid movement permit issued by the department.

- (2) — Hemp movement permits are required per vehicle per day. To receive a movement permit, the licensee shall submit a movement permit request on forms provided by the department, which may require:
- (a) — The hemp license number of the person requesting the permit;
 - (b) — Origin and destination of movement;
 - (c) — Date of intended movement;
 - (d) — Weight, volume, or number of units of material to be moved.
- (3) — The department may deny any application for a movement permit that is not completed in accordance with this rule.

Authority: T.C.A. §§ 4-3-203, ~~43-26-103~~, ~~43-26-103(e)~~, and 43-27-104.

~~0080-06-28-.06 Sampling and Inspections.~~

- (1) — The department or a designated representative may enter during normal business hours any location, licensed by the department, for purposes of inspecting any cannabis plant, record, or other material as necessary for the efficient enforcement of the Act and this chapter.
- (2) — Sampling.
- (a) — The department or a designated representative, trained and approved by the department, may conduct sampling of any cannabis plant or other material at a location licensed by the department.
 - (b) — A sample collected according to uniform protocols approved by the commissioner shall be deemed representative of the location, growing area, or lot from which the sample was obtained.
 - (c) — Within 30 days prior to the anticipated harvest the department or a designated representative shall collect samples from the flower material for THC level testing.
 - (d) — During a scheduled sample collection, the producer or an authorized representative shall be present at the growing site.
 - (e) — A producer shall not harvest the hemp crop prior to samples being taken.
 - (f) — Samples from different lots shall not be comingled.
- (3) — The protocols employed by the Tennessee Department of Agriculture define the preparation and analysis of hemp samples for the quantitative determination of cannabinoids, including delta-9-THC, on a dry weight basis and is conducted in a manner similarly reliable to post-decarboxylation.
- (4) — The department and growers may utilize private laboratories for testing official samples, if the laboratory meets the standards set by USDA for such work and the sample is sent directly to the laboratory by the sampler. The department's laboratory shall serve as the reference laboratory for all samples.
- (5) — Any sample test result higher than 0.3% THC concentration on a dry mass basis shall be conclusive evidence that one or more cannabis plants from the area sampled contains a THC concentration in excess of that allowed under the Act and shall be grounds for destruction or remediation.
- (6) — Licensees shall pay a Tier 4 laboratory analysis fee under T.C.A. § 43-1-703(f) for each sample tested by the department.

Authority: T.C.A. §§ 4-3-203, ~~43-26-103~~, and 43-27-104.

0080-06-28-07 Violations.

- (1) — Violations shall include, but are not limited to:
 - (a) — Failure to provide a legal description of land on which the producer produces hemp;
 - (b) — Failure to obtain a license;
 - (c) — Production of cannabis at a THC concentration exceeding the acceptable limits;
 - (d) — Possess or grow rooted hemp outside a licensed growing area unless it is under immediate transport to a licensed growing area;
 - (e) — Failure to provide full and accurate information regarding the person's acquisition, cultivation, and distribution of hemp when requested by the department;
 - (f) — Cultivate, move, or distribute cannabis plants other than hemp;
 - (g) — Interfere with an authorized representative of the department in the performance of his duties;
 - (h) — Market or represent hemp or hemp products to be marijuana or any illicit substance in any form;
 - (i) — Failure to destroy or remediate non-compliant hemp;
 - (j) — Failure to comply with a stop movement order;
 - (k) — Violate any state or federal quarantine or order issued by the department.
- (2) — All violations are committed with negligence or with a culpable mental state greater than negligence.
- (3) — All negligent violations shall be corrected using a corrective action plan and shall, at a minimum, include the following items:
 - (a) — A reasonable date by which the producer shall correct the negligent act;
 - (b) — That the producer will periodically report to the department progress in correcting the violation; and
 - (c) — The department shall conduct an inspection to determine if the action plan has been implemented.
- (4) — Hemp producers do not commit a negligent violation under this paragraph if they make reasonable efforts to grow compliant hemp and it does not have a THC concentration of more than 1% on a dry-weight basis.
- (5) — A producer that negligently violates the Act or this chapter three (3) times within a five (5) year period shall be ineligible to produce hemp for five (5) years beginning on the date of the third violation.
- (6) — Culpable violations shall be reported to the U.S. Attorney General and the chief law enforcement of the state.
- (7) — A person is responsible for violations of the Act or this chapter when committed by either the person or his agent.

Authority: T.C.A. §§ 4-3-203, ~~43-26-103~~, and 43-27-104.

~~0080-06-28-08 Repealed.~~

Authority: T.C.A. §§ 4-3-203 and ~~43-26-103~~43-27-104.

~~0080-06-28-09 Repealed.~~

Authority: T.C.A. §§ 4-3-203 and ~~43-26-103~~43-27-104.

Last Name (consistent format)		Full Name (Do NOT change)	Initials	County	Email Address (consistent format)	Telephone Number (consistent format)	Comment Channel	Given Before, During, or After Public	Template Comment Letter	THCa / Changes Definition of Hemp	Impact to Small Business	Impact on TN Growers	Fentanyl Use / Black Market / Need Access to Safe Hemp	Medicinal Uses	Lessens Alcohol / Opioid / Pharmaceutical Abuse	CBD	Marijuana Should be Legal / Taking Away Legal Marijuana	Government Overreach	Tax Revenue	Total THC	Will push market to other states	Other	Notes
			NC	Unknown			Email	During	X					Sleep.	Alcohol is worse yet access to alcohol is unlimited. Cannabis replaces Rx medications.					Changes legal definition of hemp.			
			BWB	Hamilton			Written Comment		X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well being.				Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.			
			ND	Unknown			Written Comment												Definition does not account for the loss in weight of other cannabinoids through the use of decarboxylation during testing; could lead to legal inaccurate legal classifications.		Rules will impede research efforts.		
			CF	Unknown			Written Comment		X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well being.				Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.			
			JD	Unknown			Written Comment							Anxiety, PTSD, Maintain healthy appetite.									
			AH	Hamilton			Written Comment		X	Legislature intended to promote cultivation and sale of THCa, limiting THC content goes against this.	Will destroy hemp industry.		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Anxiety, depression. Relaxation and sleep aid. Is as essential for sleep regimen as melatonin.				Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.			
			HK	Hamilton			Written Comment		X	Legislature intended to promote cultivation and sale of THCa, limiting THC content goes against this.	Will destroy hemp industry.		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Therapist: clients do better with opioid addiction, anxiety, depression, insomnia, physical pain, and ADHD.				Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.			
			AA	Washington			Voicecall							Pain relief.			Cannabis is natural substance.	Financially supports pharmaceutical companies over the needs of Tennesseeans. Hemp industry being punished for making too much money.	Tennessee economy will collapse.	Bans flower.			
			AA	Washington			Voicecall					Banning hemp hurts farmers.		Pain relief.			Financially supports pharmaceutical companies over the needs of Tennesseeans.	Tennessee economy will collapse.	Bans flower.				
			A	Hamilton			Voicecall										SB/NS statute is a "trash law".			x	Slurred speech difficult to understand.		
			PA	Hamilton			Email					Will push consumers to illegal drug dealers, which will increase risk of overdoses and exposure to fentanyl, methamphetamines, and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated THCa and other hemp products. THCa flower from a legal dispensary is better than going to a drug dealer. TN residents predisposed to smoke marijuana should have legal and regulated THCa flower because it's safer.		Legal THCa flower provides a safe alternative to alcohol and results in decreases in alcohol consumption.									
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to the rulemaking topic.		
			A	Hamilton			Voicecall											x			Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to the rulemaking topic.		
			A	Hamilton			Voicecall														Voicecall from same phone number, message blank.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to the rulemaking topic, e.g. college basketball, NBA basketball.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to the rulemaking topic, e.g. pool graduation ceremony violence and arrests.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to the rulemaking topic, e.g. diversity, equity, and inclusion and Chinese products in United States.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. childhood basketball stories.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. MLB baseball.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. NBA basketball.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. humming/unging.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. NBA basketball.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. diversity/ equity, and inclusion, speech dialects, and Mitch McConnell.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. NBA basketball.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. abolition is racism.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. religion and racism.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. religion and gender identity.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. religion and currency.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. gender identity and correction/parole.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. gender identity.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. food communication to department of agricultur		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. Medicaid double billing in other states.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. CIA.		
			A	Hamilton			Voicecall														Slurred speech unintelligible.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. CIA operations in other states.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. attempting to contact mayor of Nashville.		
			A	Hamilton			Voicecall														Slurred speech unintelligible. Comment immaterial to rulemaking topic, e.g. NFL football and NBA basketball.		
			RN	Unknown			Written Comment						Legal THCa keeps people from dangerous street drugs.	PTSD.									

RS	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
AU	Unknown	Written Comment					HDC products used to relax and have fun, and bring joy to a grey world.	Good, taxable products that help the state.		Handwritten comment, spelling of surname difficult to decipher.	
RS	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
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DH	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being. Takes away my chronic back pain without side effects.	Regulations limiting THc content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THc.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
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RS	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
AC	Blount	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
MG	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being. Takes away my chronic pain and restore movement to my body without side effects. All natural products helps me avoid use of chemicals.	Regulations limiting THc content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THc.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	Hand written comment; first and surname difficult to decipher.
WO	Bradley	Written Comment	X	Legislature intended to promote cultivation and sale of THCa. The use of THCa flower means a lot to me.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins. Legal HDC products allow me to go to a store and not some dangerous street corner to get my THCa flower.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THc content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THc.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	Legal HDC products reduce crime.
WS	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being. Changed my life for the better.	Terrible law.	Regulations limiting THc content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THc.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
AS	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Depression, anxiety, chronic pain. Traditional medicine has adverse side effects.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
CS	McMinn	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being. My wife's seizures are better with use of THCa because it helps calm her muscle spasms, shakes, body aches, and gives her a better quality of life. Helps appetite.	Regulations limiting THc content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THc.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	

BW	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being. THCa helps me manage scoliosis and major depression. Quality of life will quickly decline without products.	HDC products replace prescription medications which are expensive and have side effects.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
OF	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
BB	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Chronic pain. THCa flower helps more than any pharmaceutical drug.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
BL	Dickson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
MS	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being. Retired RN. No medications on the market reduce nausea and vomiting that compare with THC- it's a miracle drug. THC immediately relieves and stops seizures. THC helps those with anxiety and depression.	Lost a child to fentanyl crisis. THC gets people off narcotics.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
CM	Lewis	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
CH	Knob	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
NS	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.		Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
CP	Shelby	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Grief, arthritis, anxiety, ischemia, pain.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
CP	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.		Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
CT	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
JE	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.		Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
DE	Unknown	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.		Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
DL	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.		Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
KL	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.		Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
CO	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.		Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.

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MM	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
DP	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
DS	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
KM	Hamilton	Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.
SG	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
TL	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
YL	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
AH	Rutherford	Email	X	Rules change definition of hemp inconsistent with statute and federal law. Rules undo statutory intent to create a safe and scalable market for hemp products.		Wants safe access to hemp. Will push consumers back to black market.	Tennessee is one of only 12 states that do not have a medicinal or recreational cannabis program.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Total THC standard makes it impossible for plants to test compliant for CBD and other hemp derived cannabinoids after harvest. Total THC standard effectively bans flower.	
CP	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
AW	Cooke	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
BC	Sevier	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
CO	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
CS	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
CT	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.

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	AW	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	RZ	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	BW	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	JW	Anderson		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	NR	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	JE	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	DW	Hamblen		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	AE	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	MT	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	HD	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	NB	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	KC	KNOX		Written Comment	X	Legislature intended to promote cultivation and sale of THCa.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	THCa and CBD flower are vital to my health and well-being.	Regulations limiting THC content will starve TN of millions in tax revenue.	Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
	JM	Cheatham		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Physical and mental health, generally.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
	KL	Lewis		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Pain.	Bans CBD flower.	Government should be concerned with bigger issues like dangerous drugs rather than regulating THCa and CBD that are actually helping people.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	TN	Sewer		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry. Commenter recommends higher licensing fee, e.g. \$5,000, to dissuade untrusted pop-up shop retailers.	
		KNOX		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
	MK	Davidson		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	

[illegible]

	BB	Davidson	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Chronic pain. THCa flower helps more than any pharmaceutical drug.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	RS	Know	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	PD	Unknown	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	FB		Email			Safety and wellbeing of people is more important than loss of jobs and tax revenue.		Supports a ban on CBD, vapes, and other smokable products.	Safety and wellbeing of people is more important than loss of jobs and tax revenue.	Supports a ban on CBD, vapes, and other smokable products.	Against vapes or chemicals like CBD in youths' lungs. It's also not good for pregnant women.
	CH	Unknown	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
	SL	Hamilton	Email		Rules misinterpret 2023 state statute. Bans hemp flower.	Tennesseeans want safe access to flower and cannabis products that are tested and grown locally.	Chronic pain, anxiety, depression, arthritis, Parkinson's, cancer. Cannabis is non-addictive and a safe and effective alternative to opioids as a pain reliever.				Has lived in 4 states with medicinal and recreational Cannabis programs and sees the value bring to communities and state revenue.
	JF	Know	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
	CW	Unknown	Email						Decision to regulate cannabis is based on personal feelings of government officials and not the will of the people.		
	HW	Unknown	Email						Decision to regulate cannabis is based on personal feelings of government officials and not the will of the people.		
	MM	Lawrence	Email			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins.	Reduces inflammation and pain; helps with anxiety.				
	CT	Davidson	Email			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins.					
	DW	Unknown	Email				Sleep; relief from arthritis	Bans CBD flower.			
	CW	Unknown	Email				Sleep; relief from arthritis	Bans CBD flower.			
	AR	Unknown	Email			Support natural hemp grown by Tennessee farmers	Misinterpretation of the law is going to force people back to the dangerous black market. Natural medicine that relieves and sometimes cures diseases.		Decision to regulate is taking a step backwards.	Bans THCa flower, vapes, and concentrates.	
	KB	Unknown	Email		Rules misinterpret 2023 state statute and create a new standard for industrial hemp and is unconstitutional.					THC means Delta-9 tetrahydrocannabinol. Go back to how it was written in law as actual dry weight basis and not some "potential" or "hypothetical."	
	BW	Davidson	Email		Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Relief from chronic pain, anxiety, and depression.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
	JJ	Wayne	Email			Allowing safe, legal access to HDC products prevents addicts from turning to the black market and the temptation of illegal drugs.	HDC products save people from addiction to methamphetamine and opiates.				
	JC	Hamilton	Email		Keeping THCa flower legal will allow TN hemp businesses to thrive and keep communities safer.	Will push consumers back to black market, which will increase exposure to unknown toxins.	Cannabis flower helps people avoid prescription medications.		Right of Americans to decide what's in their own interest. Tennesseeans want access to non-toxic or chemically altered hemp flower.		
	NBV	Davidson	Email			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Relieves symptoms of PTSD.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	
	MT	Unknown	Email			CBD/hemp stores are clean and well run. Prohibition on THCa/THCa/CBD products will devastate businesses and their customers.	Relieves symptoms of Rheumatoid Arthritis; has calming, relaxing effects; sleeping aid. Safe alternatives to pharmaceuticals.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	

CK	Hamilton	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products. Tennessee should regulate all forms of hemp flower as agricultural product.	TN businesses dedicated to HDC products are great TN entrepreneurs and leaders in hemp production and commerce. Tennessee is rich in producers of world class small batch cured flower.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.	Psychoactive hemp is on par with consuming alcohol and coffee.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.
SS	Hamilton	Email				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Sleep aid and arthritis relief.	CBD should remain legal.	
KE	Davidson	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.
IQ	Davidson	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.
JW	Davidson	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.
DF	Unknown	Email				Relaxation.	Marijuana should be legal.	Citizens should be able make their own choices regarding products they consume instead of the government choosing for them.	
JL	Unknown	Email		Growing and selling should be subject to same regulations.			Products should be regulated the same way in every state, instead of having to cross a state line to get products.		Making marijuana illegal means TN loses tax dollars.
JS	Unknown	Email				Medical marijuana should be legal. THC and CBD have medical benefits versus alcohol which is legal and offers none.	Marijuana should be legal.		
TB	Unknown	Email				THCa offers many benefits and is a healthier alternative to pharmaceuticals and opioids.	Marijuana is just a plant and should never have been made illegal.	Allow people to choose for themselves what products they want to use.	Bans THCa.
JH	Unknown	Email					Marijuana should be legal. TN is going backwards while the rest of the country is moving forwards.	Allow people to choose for themselves what products they want to use.	Bans THCa.
C	Unknown	Email		Changes definition of hemp from 2018 Farm Bill.		Marijuana should be legal, safe, and accessible.	Marijuana and cannabis products should be legal.	Based lobbyists pushing for regulation of these products keep people addicted to alcohol and cigarettes.	Bans THCa. Total THC shuts down possibility of working with hemp.
RG	Unknown	Email		THCa was already effectively outlawed by the 2019 Farm Bill. These regulations are only following the federal law.			Marijuana should be legal.		THCa has been illegal for 5 years. This definition only enforces that.
JJ	Unknown	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.
PC	Hamilton	Email		Interpretation of the law is anti-cannabis.		Cannabis products have medicinal uses.		Recategorizes cannabis plants as Schedule I controlled substance. Banning products is moving TN backwards.	Tax revenue could potentially benefit all the citizens of Tennessee, its roads, schools, and hospitals.
PC	Hamilton	Email		Interpretation of the law is anti-cannabis.		Cannabis products have medicinal uses.		Recategorizes cannabis plants as Schedule I controlled substance. Banning products is moving TN backwards.	Tax revenue could potentially benefit all the citizens of Tennessee, its roads, schools, and hospitals.
A	Unknown	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Marijuana should be legal. Legal cannabis puts drug dealers out of business and puts safe products in the hands of citizens.		Bans THCa and will open the door for new research chemicals that are untested and questionably legal to enter the market.
A	Unknown	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Marijuana should be legal. Legal cannabis puts drug dealers out of business and puts safe products in the hands of citizens.		Bans THCa and will open the door for new research chemicals that are untested and questionably legal to enter the market.
AP	Unknown	Email		Keep THCa legal.		Treats ADHD better than Ritalin, without side effects.	Healthier and safer pharmaceuticals, methamphetamines, and alcohol.		
PC	Hamilton	Email		Interpretation of the law is anti-cannabis.		Cannabis products have medicinal uses.		Recategorizes cannabis plants as Schedule I controlled substance. Banning products is moving TN backwards.	Tax revenue could potentially benefit all the citizens of Tennessee, its roads, schools, and hospitals.
PC	Hamilton	Email		Interpretation of the law is anti-cannabis.		Cannabis products have medicinal uses.		Recategorizes cannabis plants as Schedule I controlled substance. Banning products is moving TN backwards.	Tax revenue could potentially benefit all the citizens of Tennessee, its roads, schools, and hospitals.
DVD	Unknown	Email		Reinterprets the farm bill and subjects TDA to legal action.			Hemp products have become a significant part of many Tennesseean's lives.	Moving the regulatory goalpost is wrong and irresponsible.	The 6% privilege tax is a meaningful revenue generator for a state in desperate need of funds.
JS	Hamilton	Email		Banning products leads to job losses.		Banning products will create underground market and increase in illicit activities and the crime rate.			Banning products leads to a decline in revenue.
TDD	Unknown	Letter							Definition is consistent with federal 2018 Farm Bill. Total THC is standard testing protocol for determining legality of cannabis products.
JW	Unknown	Email		Keep hemp flower legal.		Alleviates anxiety, helps with sleep.	Keep CBD flower legal.		
ND	Unknown	Email		Keep hemp flower legal.		Alleviates anxiety, helps with sleep.	Keep CBD flower legal.		
ND	Unknown	Email		Keep hemp flower legal.					
CB	Unknown	Email				HDC products are as effective as legal medical marijuana.		Medical marijuana should be legal.	Fake marijuana hemp products, such as Delta and THCa, should all be banned.
JD	Unknown	Email						Tax from THCa and HDC products bring in millions in tax revenue for the state.	If banned in TN, will obtain products from states where are legal.
WG	Unknown	Email		Bans THCa.		THCa products help with chemotherapy side effects, such as nausea and loss of appetite.	Marijuana replaces opioid and pharmaceutical use without creating dependency or side effects.	People should be able to decide what they want to consume instead of being pushed to pharmaceutical industry.	Bans THCa.

CM	Unknown		Email								Ban all hemp products.
BB	Hamilton		Email		Bans all hemp products.	Keep local retailers open.	Allow farming of hemp products in state.	Chronic pain. Replaces opioids and pharmaceuticals.	Bans CBD products.	Keep revenue from these products in the state, and use revenue to benefit the state's roads, infrastructure, etc.	Bans THCa and other hemp products.
NLT	Rutherford		Email						Marijuana should be legal. Rules take away access to legal marijuana.		
CH	Davidson	X	Email		Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.				Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
CH	Davidson	X	Email		Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.				Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
SL	Hamilton		Email		Rules misinterpret 2023 state statute. Bans hemp flower.		Tennesseans want safe access to flower and cannabis products that are tested and grown locally.	Chronic pain, anxiety, depression, arthritis, Parkinson's, cancer. Cannabis is non-addictive and a safe alternative to opioids as a pain reliever.			Has lived in 4 states with medicinal and recreational Cannabis programs and sees the value bring to communities and state revenue.
SL	Hamilton		Email		Rules misinterpret 2023 state statute. Bans hemp flower.		Tennesseans want safe access to flower and cannabis products that are tested and grown locally.	Chronic pain, anxiety, depression, arthritis, Parkinson's, cancer. Cannabis is non-addictive and a safe alternative to opioids as a pain reliever.			Has lived in 4 states with medicinal and recreational Cannabis programs and sees the value bring to communities and state revenue.
SR	Unknown	X	Email		Bans THCa flower.				Bans CBD flower.		
BW	Unknown	X	Email		Bans THCa flower.				Bans CBD flower.	Cannabis market supports economic and agricultural growth.	Takes Thn backwards when neighboring states and most of the country has legalized cannabis.
CM	Unknown	X	Email		Bans THCa flower.				Bans CBD flower.		
YD	Davidson	X	Email		Bans THCa flower.			Alleviates symptoms of chronic illness, and controls anxiety.	Bans CBD flower.		
GW	Unknown		Email					Products are safe and healthy. Tennesseans need safe and regulated access to these products.	Marijuana should be legal.	Taking away these products is government overreach.	
CD	Shelby	X	Email		Bans THCa flower.			Products assist with coping with everyday life.	Bans CBD flower.		
HG	Unknown		Email					Nurse who has seen the long list of ailments hemp products help, such as chronic pain, anxiety, depression, anorexia, seizures	Marijuana should be legal.		
PB	Knox	X	Email		Bans THCa flower.			Treats pain without having to resort to opioids.	Bans CBD flower.		
MM	Lawrence	X	Email		Bans THCa flower.			Treats anxiety and reduces pain from inflammation.	Bans CBD flower.		
MM	Lawrence	X	Email		Bans THCa flower.			Treats anxiety and reduces pain from inflammation.	Bans CBD flower.		

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BC	Unknown	Email		Except for Delta-9, legislature did not place a limit on THCa or any other cannabinoid identified in the Statute. Legislature was clearly aware of THCa as a cannabinoid. Had it intended to limit THCa content, it would have done so.		People will still have the right to possess THCa in any form. Rules do not stop internet or out of state purchases and those products will not be subject to TN's safety and testing standards.			Conflicts with statute. Hemp Statute places a concentration limit on hemp-derived cannabinoids containing delta-9 based on their delta-9 content alone, while the Proposed Rules attempt to expand the reach of the Hemp Statute by instituting a maximum allowable concentration of the sum of a product's delta-9 and THCa content.	
ZI	Unknown	Email	X		Banning products will result in job losses in all related industries.	Tax revenue generated from products will be return to underground, unregulated black market. Will increase crime rates and burden on judicial system.			Will negatively affect TN's tax revenue.	
CT	Davidson	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Physical and mental health, generally.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
JC	Knox	Email			Will hurt small, local businesses that contribute to rural communities.	HDC products have been crucial in transitioning elderly off prescription pain killers and are cost-saving compared to using prescribed controlled drugs. Sleep; relief from arthritis. Sleep; relief from arthritis.	These products keep people off opioids and communities safer.	Appearance of legislation and regulations is to further the interests of private pharma and continue the proliferation of opioids to rural communities.	Removing such a sustainable form of tax revenue for a community, especially in these economically challenged times, seems contradicting to proper fiscal policy.	
DW	Hamilton	Email						Bans CBD flower.		
CW	Hamilton	Email						Bans CBD flower.		
IS	Davidson	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Reduces severity of Tourette's Syndrome.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
TA	Davidson	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Cannabis treats migraine pain.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
ZW	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	THCa treats neurological pain and deficits caused by stroke.	Bans CBD flower.	TN moving backwards.	Bans THCa flower, vapes, and concentrates.
AR	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Natural hemp grown by good hearted farmers is the only way to go.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Hemp products treat and can cure diseases.	TN known for agriculture and commerce- its hemp laws are moving state backwards.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	
TS	Unknown	Email					Marijuana safer than alcohol and does not cause overdose deaths.	Marijuana should be legal.	Revenue from legal marijuana could be used to evaluate and create appropriate regulations.	
AR	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Natural hemp grown by good hearted farmers is the only way to go.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Hemp products treat and can cure diseases.	TN known for agriculture and commerce- its hemp laws are moving state backwards.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	
TD	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Total THC standard imposes burdensome requirements on businesses and will result in significant job losses.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Physical and mental health, generally.	Bans CBD flower.	Industry brought in \$3.6 million from July November 2023 in tax revenue. Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
KB	Unknown	Email		Rules misinterpret 2023 state statute and create a new standard for industrial hemp and is unconstitutional.	Former hemp producer. Under these rules, "the very same genetic that I grew and sold legally in this state of Tennessee you would now interpret as negligent and it would be a strike against me with nothing more done than you trying to interpret me into criminality."					THC means Delta-9 tetrahydrocannabinol. Go back to how it was written in law as actual dry weight basis and not some "potential" or "hypothetical."
BW	Davidson	Email		Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Relief from chronic pain, anxiety, and depression.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
JJ	Wayne	Email				Allowing safe, legal access to HDC products prevents addicts from turning to the black market and the temptation of illegal drugs.	HDC products save people from addiction to methamphetamine and opiates.			
JJ	Wayne	Email				Allowing safe, legal access to HDC products prevents addicts from turning to the black market and the temptation of illegal drugs.	HDC products save people from addiction to methamphetamine and opiates.			
AE	Cheatham	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	THCa alleviates back and neck pain, General Anxiety Disorder, ADHD and high stress levels. Sleep aid.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.

BV	Davidson	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	THCa alleviates anxiety and depression. Sleep aid.	Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.			
JC	Hamilton	Email			Keeping THCa flower legal will allow TN hemp businesses to thrive and keep communities safer.		Will push consumers back to black market, which will increase exposure to unknown toxins.	Cannabis flower helps people avoid prescription medications.			Right of Americans to decide what's in own interest. Tennesseans want access to non-toxic or chemically altered hemp flower.				
ARL	Unknown	Email									Current hemp laws attract residents, diversify state's economy, and increase tax revenues.				
WS	Knox	Email			New hemp laws anti-small business.	New hemp laws detrimental to hemp farmers.	Wants safe access to regulated hemp products.		New hemp laws limit people's access to natural products and leaves addictive opioids as alternative.	Bans CBD flower.	Increases government control over people's choices.	Bans THCa flower, vapes, and concentrates.			
SC	Unknown	Email					Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.			Bans CBD flower.	Takes away legal marijuana.	Bans THCa flower, vapes, and concentrates.			
NBY	Davidson	Email					Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Relieves symptoms of PTSD.		Bans CBD flower.		Bans THCa flower, vapes, and concentrates.			
RE	Unknown	Letter			Legal cannabis provides jobs and stimulates local economies.	Legal cannabis fosters innovation in agriculture.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Treats PTSD, anxiety, depression, insomnia, and opioid addiction in U.S. troops and veterans. Treats seizures and epilepsy in children—studies show 80% decrease in epileptic seizures in children. Treats pain, arthritis, insomnia, cancer in elderly and prevents use of opioids.	Legal cannabis in other states has reduced opioid deaths by 25%, and hospital opioid overdose emergencies by 7.6% in first six months of being legal.	Bans CBD flower.	Keep cannabis legal. Rules attempt to criminalize cannabis products.	Keeping cannabis legal aligns with principles of personal freedom and autonomy, and the right to choose own healthcare treatments and choices about what consume.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
RE	Unknown	Email			Legal cannabis provides jobs and stimulates local economies.	Legal cannabis fosters innovation in agriculture.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Treats PTSD, anxiety, depression, insomnia, and opioid addiction in U.S. troops and veterans. Treats seizures and epilepsy in children—studies show 80% decrease in epileptic seizures in children. Treats pain, arthritis, insomnia, cancer in elderly and prevents use of opioids.	Legal cannabis in other states has reduced opioid deaths by 25%, and hospital opioid overdose emergencies by 7.6% in first six months of being legal.	Bans CBD flower.	Keep cannabis legal. Rules attempt to criminalize cannabis products.	Keeping cannabis legal aligns with principles of personal freedom and autonomy, and the right to choose own healthcare treatments and choices about what consume.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
MW	Unknown	Email	x		Will regulate retailers out of business.	Will have an impact to farmers that are growing THCa flower and force them into bankruptcy.	Consumers will pursue THCa and CBD flower, whether they are legal or not.	CBD treats carpal tunnel and arthritis. Sleep aid. Seniors take it for sleep, pain, and mobility.	Replaces opioids and pharmaceuticals.		TN legislators are going backwards. Elected officials are trying to take an individual's power to decide what they want to consume and how to treat their ailments.	Tax revenue from products will go to other states.	Consumers will cross state lines to buy legal marijuana or purchase HDC products online.	Form letter has misinformation: "They are overriding the federal bill, and changing (limiting) the amount of CBD that we can sell in gummies form. This is NON Psychoactive, THC FREE CBD."	
MW	Unknown	Email	x		Will regulate retailers out of business.	Will have an impact to farmers that are growing THCa flower and force them into bankruptcy.	Consumers will pursue THCa and CBD flower, whether they are legal or not.	CBD treats carpal tunnel and arthritis. Sleep aid. Seniors take it for sleep, pain, and mobility.	Replaces opioids and pharmaceuticals.		TN legislators are going backwards. Elected officials are trying to take an individual's power to decide what they want to consume and how to treat their ailments.	Tax revenue from products will go to other states.	Consumers will cross state lines to buy legal marijuana or purchase HDC products online.	Form letter has misinformation: "They are overriding the federal bill, and changing (limiting) the amount of CBD that we can sell in gummies form. This is NON Psychoactive, THC FREE CBD."	
SR	Knox	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.	Mental illness, stress, developmental disability.	THCa helps with opioid addiction and psychiatric medications that worsened mental health.	Bans CBD flower.	Because THC is federally illegal, THCa is the only safe, legal substance available.	Regulation of THCa is a farcist attack on plants.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
DK	Hamilton	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.			Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
YL	Knox	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.			Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
RB	Unknown	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg. retailers, and consumers could be arrested for selling or possessing these products.			Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	

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[illegible]

KG	Knox		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bipolar disorder.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
NM	Davidson		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Cutting off retail availability to sell hemp products hurts Tennessee farmers.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	PTSD.	Bans CBD flower.	Hemp products are medicinal in other states.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
CM	Lewis		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
CS	Davidson		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
CP	Davidson		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
PH	Davidson		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Current delta strands are not as strong as traditional THC strands, which allows for a perfect medium for medical and recreational use for Tennesseans. Products pose no real difference to use of alcohol. THC is illegal in this state because of historical policy that does not reflect current voter sentiment.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
EF	Knox		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Nausea, abdominal pain, gastrointestinal illness.	Bans CBD flower.	Cannabis use fully supported by doctors for treatment of gastrointestinal illness.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
BL	Dickson		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
TL	Unknown		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
IM	Rutherford		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	PTSD. Hemp and THCa products are only option that alleviate symptoms.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
OW	Williamson		Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban unsmokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize unsmokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
A	Davidson		Email		Will eliminate Tennessee jobs.	THCa products are safe	Will push consumers back to black market. Driving consumers to black market increases risk of exposure to dangerous products.	THCa products are safe and medicinal. These products are as close as it gets to a legitimate medical marijuana program for the state.	Significant loss of sales tax revenue.	Will push consumers to purchase cannabis products out of state.	Over half of other states have legalized medical or recreational marijuana. Purchase of cannabis products is legal over the internet. Why should it be illegal to purchase cannabis in a store?		

	OF	Davidson	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	JM	Cheatham	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Physical and mental health, generally.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	CH	Knax	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	AH	Rutherford	Email	x	Rules change definition of hemp inconsistent with statute and federal law. Rules undo statutory intent to create a safe and scalable market for hemp products.	Wants safe access to hemp. Will push consumers back to black market. Black market increases crime and risk of exposure to fentanyl and other toxins.	Tennessee is one of only 12 states that do not have a medicinal or recreational cannabis program.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Total THC standard makes it impossible for plants to test compliant for CBD and other hemp derived cannabinoids after harvest. Total THC standard effectively bans flower.	
	AH	Rutherford	Email	x	Rules change definition of hemp inconsistent with statute and federal law. Rules undo statutory intent to create a safe and scalable market for hemp products.	Wants safe access to hemp. Will push consumers back to black market. Black market increases crime and risk of exposure to fentanyl and other toxins.	Tennessee is one of only 12 states that do not have a medicinal or recreational cannabis program.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Total THC standard makes it impossible for plants to test compliant for CBD and other hemp derived cannabinoids after harvest. Total THC standard effectively bans flower.	
	KB	Unknown	Email		Rules misinterpret 2023 state statute and create a new standard for industrial hemp and is unconstitutional.				THC means Delta-9 tetrahydrocannabinol. Go back to how it was written in law as actual dry weight basis and not some "potential" or "hypothetical."	Same genetics grown under TN hemp program before 2020 would fall under the proposed rules and be considered illegal.
	DK	Unknown	Email							Wishing the department well.
	HS	Davidson	Email	x		Wants safe access to hemp in a regulated market. Will push consumers back to the illicit market, which increases crime and risk of exposure to fentanyl and other toxins.	THCa allows me to obtain marijuana (or the equivalent of illicit market product) in a safe, legal way.		Remove any provisions that ban smokable hemp, THCa flower, CBD flower, concentrates, and vapes.	Email sent to TDA CS Director following up on their phone conversation. Shares a link to posts/chat on Reddit re: department's rulemaking.
	MC	Unknown	Email				Anxiety, chronic joint pain.			
						Chronic back pain and PTSD.	Hemp products provide pain relief without opioid.			
	BS	Knax	Email	x	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
	JQ	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	
	JQ	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	
	JW	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	
	JW	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	
	JS	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	
	MP	Davidson	Email			Wants safe access to regulated hemp products.	Anxiety.		Bans THCa flower, vapes, and concentrates.	
	WL	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Migraines, PTSD, anxiety.	Bans CBD flower.	Bans THCa flower, vapes, and concentrates.	
	HS	Davidson	Email	x		Wants safe access to hemp in a regulated market. Will push consumers back to the illicit market, which increases crime and risk of exposure to fentanyl and other toxins.	THCa allows me to obtain marijuana (or the equivalent of illicit market product) in a safe, legal way.		Remove any provisions that ban smokable hemp, THCa flower, CBD flower, concentrates, and vapes.	

WL	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Migraines, PTSD, anxiety.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.		
MC	Unknown	Email				Chronic back pain and PTSD.	Hemp products provide pain relief without opioids.				
MC	Unknown	Email				Chronic back pain and PTSD.	Hemp products provide pain relief without opioids.				
JS	Unknown	Email				Arthritis, anxiety, pain.	THCa gets you high.	Medical research shows cannabis does not harm anybody or anything.		Cannabis is important to the demographic and to the ecosystem. Cannabis is part of God's plan. Cannabis is not a drug; it is a plant. Negative issues with THC and THCa lie not in the cannabinoids but in the way they are used and marketed to the public.	
RS	Knex	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
JQ	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.		Bans CBD flower.		Bans THCa flower, vapes, and concentrates.		
JQ	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.		Bans CBD flower.		Bans THCa flower, vapes, and concentrates.		
JW	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.		Bans CBD flower.		Bans THCa flower, vapes, and concentrates.		
WL	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Migraines, PTSD, anxiety.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.		
JW	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.		Bans CBD flower.		Bans THCa flower, vapes, and concentrates.		
JD	Rutherford	Email			Pain arising from multiple, system orthopedic issues. THCa is needed in TN to be independent from big pharma. Individuals should be in control of their own pain management. Use THCa and Delta 9 to manage pain.	Was prescribed > 2,000 opioid pills per year. Family members on fixed income prescribed opioids at \$800 cost per month. Alcohol is regulated less than cannabis, yet does more damage to a person than does THCa.		Tax revenue from cannabis sales is needed in TN.	Will make flower and edibles unavailable in the market.		
AA	Unknown	Email			Rheumatoid Arthritis, pain.	Pharmaceutical medicines do not help rheumatoid arthritis, and they have horrible side effects.	Medical use of cannabis does not have side effects. It is not an issue of getting high, it is an issue of relieving pain so that persons can sleep, work, and function in society.		Makes THCa illegal.		
PW	Houston	Email			Cannabis has medicinal uses which pharmaceuticals cannot address.		Marijuana should be legal. Cannabis is legal federally and TN is taking away access to legal marijuana.	Tennessee citizens want legal access to cannabis and government trying to take it away.			
AG	Unknown	Email			People will still purchase and use these products whether legal in TN or not, even if buying from illegal drug dealers.	Ban on hemp products only benefits Big Pharma.	Bans CBD flower.	Marijuana should be legal while the rest of the country moves forward by legalizing marijuana.	TN is losing out on millions in revenue by not legalizing marijuana. Will lose out on millions more by banning HOC products.	Bans THCa flower.	
TJ	Davidson	Email	X		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Treats chronic pain and migraines.	Cannabis great alternative to opioid without side effects or risk of addiction and overdose.	Bans CBD flower.	Tax revenue could be reinvested into improving for Tennessee for all its citizens.	Bans THCa flower, vapes, and concentrates.	
JG	Unknown	Email		Restricts ability for TN hemp industry to move forward.	Will restrict growers. Tennessee is regarded as one of the best places in America for all forms of hemp cultivation with our fertile soil and agreeable climate.		Marijuana should be legal.	TN is choosing to restrict taxes and ignore boon of full legalization experienced by other states. Current laws should not be changed.			
ED	Unknown	Email			Hemp is an agricultural commodity with many uses and benefits.			TN should tax the products and regulate for safety but otherwise let citizens have freedom to choose what they consume.			
TV	Unknown	Email				Pain management.	HOC products provide an option to avoid pharmaceuticals and addiction.				
AQ	Unknown	Email		Effectively bans THCa and THC.		Helps with symptoms of endometriosis and improves quality of life.		Keep THC legal.			
CK	Hamilton	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	TN businesses dedicated to HOC products are great TN entrepreneurs and leaders in hemp production and commerce. Tennessee is rich in producers of world-class small-batch cured flower.	THCa and CBD flower help manage mental health.	Bans CBD flower.	Psychoactive hemp is on par with consuming alcohol and coffee.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.

CK	Hamilton	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	TN businesses dedicated to HDC products are great TN entrepreneurs and leaders in hemp production and commerce. Tennessee is rich in producers of world-class small-batch cured flower.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	THCa and CBD flower help manage mental health.	Bans CBD flower.	Psychoactive hemp is on par with consuming alcohol and coffee.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
CK	Hamilton	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	TN businesses dedicated to HDC products are great TN entrepreneurs and leaders in hemp production and commerce. Tennessee is rich in producers of world-class small-batch cured flower.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	THCa and CBD flower help manage mental health.	Bans CBD flower.	Psychoactive hemp is on par with consuming alcohol and coffee.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
ER	Davidson	Email				Wants safe access to regulated hemp products.	THCa and CBD flower help manage mental health.	Bans CBD flower.			Bans THCa flower, vapes, and concentrates.	
HL	Unknown	Email				Will push consumers back to black market, which will increase exposure to other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	THCa good for pain management. Treats arthritis.	THCa allows people to avoid use of opioids and other narcotics.	Keep THCa legal.			Changes to law would disproportionately affect veterans who use these products.
RK	Unknown	Email				Don't change the laws. Instead provide safe regulation of products, including how they are marketed and distributed.	HDC products are a safe alternative to pharmaceuticals and opioids, addiction, and potential overdose.	Medical marijuana should be legal and is a viable alternative to reducing THC in products people have access to.	Adults should have freedom of choice as to whether to consume cannabis. TN is moving backwards.			Identifies as a "master breeder" in TN and volunteers to be called upon by TDA to lead a resolution to regulate cannabis as commenter suggested.
RK	Unknown	Email				Don't change the laws. Instead provide safe regulation of products, including how they are marketed and distributed.	HDC products are a safe alternative to pharmaceuticals and opioids, addiction, and potential overdose.	Medical marijuana should be legal and is a viable alternative to reducing THC in products people have access to.	Adults should have freedom of choice as to whether to consume cannabis. TN is moving backwards.			Identifies as a "master breeder" in TN and volunteers to be called upon by TDA to lead a resolution to regulate cannabis as commenter suggested.
ML	Wilson	Email			Bans THCa.	New laws throw an established legal part of the local economy and will push consumers back to black market, which will increase exposure to other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Hemp products are safer than alcohol, which is legally available everywhere.	Bans CBD flower.	Cannabis should be legalized in a safe, regulated, tested, and traced way that can benefit the Tennessee residents that work in the industry, consume the product.	Adults should have freedom of choice as to whether to consume cannabis. TN is moving backwards.	Bans THCa flower, vapes, and concentrates.	Consumers will just cross state lines to legally obtain products.
MB	Davidson	Email			Don't include THCa when calculating the total THC and an HDC product.							
AH	Davidson	Email			Rules will lead to significant economic losses for local businesses.	HDC products are safe and effective medication alternatives for pain management, anxiety, and other health issues, including chronic issues.	Hemp products are widely recognized as safer than alcohol, which is legally available everywhere, and are not associated with aggressive behavior or fatal overdoses.	CBD significantly reduces chronic inflammation and pain.	National trend is to legalize hemp and marijuana products, not create stricter policy.	Rules will lead to significant economic losses for state economy.		Valuable law enforcement and legislative resources would be diverted to enforcement of rules instead of focusing on significant public health and safety risks.
SB	Hamilton	Email				CBD relieves arthritis and is a sleep aid.						Changes to law would disproportionately affect seniors who use these products.
JH	Blount	Email				Personal testimony that cannabinoid products attributed to no longer needing a cane/walker, oxygen, inhalers, and 15 different medications.	Cannabinoids a safe and effective alternative to pharmaceuticals; can treat ailments conventional medicines cannot.		Medical marijuana should be legal.			
DC	Unknown	Email			Businesses have invested thousands of dollars in reliance on current laws.				TN legislature is moving backwards with new laws.			
DC	Unknown	Email			Businesses have invested thousands of dollars in reliance on current laws.				TN legislature is moving backwards with new laws.			
KO	Davidson	Email	X	Legislature intended to promote cultivation and sale of THCa, limiting THC content goes against this.	Will destroy hemp industry.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Therapist: Cannabinoids help clients with opioid addiction, anxiety, depression, insomnia, chronic pain, PTSD, and ADHD.	Bans CBD flower.	Regulations limiting THC content will starve TN of millions in tax revenue.	Bans THCa flower, vapes, and concentrates. Will eliminate access to safe and essential medicines; remove Total THC.	Rules will push hemp-based economic activity, business growth, and job creation to other states where THCa and CBD is legal.	
AJ	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	THCa flower effective anxiety treatment.	Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
SW	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Hemp industry plays crucial role in providing jobs, supports local businesses.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	THCa flower effective anxiety treatment.	Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
JD	Rutherford	Email				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Consumers could be arrested for using these products.	CBD and THCa avoid dependency on pharmaceutical industry. Alcohol is not regulated as strictly and it causes far more damage.	Bans CBD flower.	Medical marijuana should be legal.	TN residents should have freedom to choose what products consume and how they treat themselves medically.	Hemp products a great source of tax revenue for various state-funded projects.	Bans THCa flower, vapes, and concentrates.
CDD	Davidson	Email				Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Consumers could be arrested for using these products.	Compared to alcohol, THCa and cannabis in various forms is safer than alcohol and does not pose risk of alcohol-related harms.	Bans CBD flower.	New law is regressive.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Substantial number of Tennesseans would be affected by no longer having access to hemp products.
CC	Unknown	Email			Keep THCa legal and available.	THCa treats pain more effectively than pharmaceuticals and allows those with chronic pain and/or disability to live productive lives.			New law moves TN backwards while rest of the country moves forward. Citizens should be able to choose between natural medicines and the country's outdated healthcare system.			
PM	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
HW	Davidson	Email				Wants safe access to regulated hemp products.	Chronic pain reliever.	Bans CBD flower.			Bans THCa flower, vapes, and concentrates.	Banning products would be a major detriment to community and state's citizens.

AMT	Davidson	Email				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.		Bans CBS flower.			Bans THCa flower, vapes, and concentrates.	Banning products would be a major detriment to community and state's citizens.	
ER	Unknown	Email						Bans CBS flower.	In the best interest of the state to make marijuana legal.	Majority of Tennesseans support hemp and cannabis products. Banning or restricting opposes will of the people and moves state backwards.	Tax revenue could fund schools.	Bans THCa flower, vapes, and concentrates.	
JD	Rutherford	Email				CBD and THCa avoid dependency on pharmaceutical industry. Alcohol is not regulated as strictly and it causes far more damage.	CBD and THCa treat chronic pain.	Bans CBD flower.	Medical marijuana should be legal.	TN residents should have freedom to choose what products consume and how they treat themselves medically.	Hemp products a great source of tax revenue for various state funded projects.	Bans THCa flower, vapes, and concentrates.	
JD	Rutherford	Email				CBD and THCa avoid dependency on pharmaceutical industry. Alcohol is not regulated as strictly and it causes far more damage.	CBD and THCa treat chronic pain.	Bans CBD flower.	Medical marijuana should be legal.	TN residents should have freedom to choose what products consume and how they treat themselves medically.	Hemp products a great source of tax revenue for various state funded projects.	Bans THCa flower, vapes, and concentrates.	
WC	Davidson	Email										Supports a ban on everything and all products being made illegal.	
LD	Unknown	Email								This is government overreach into people's lives by making decisions that will negatively affect them. Law is neither for the people nor the best interests of the state. Bigger issues at hand need attention than cannabis.			
KP	Unknown	Email				Wants safe access to regulated hemp.		Bans CBD flower.	Keep cannabis products legal.			Bans THCa flower, vapes, and concentrates.	
AA	Unknown	Email			Businesses built in reliance on the current law will be forced to close or relocate to another state.		Treats rheumatoid arthritis.	Pharmaceuticals are ineffective, have side effects, and are prohibitively expensive.	Medical marijuana should be legal.	Change the laws as the people want.			
MC	Unknown	Email			THCa is the safest of all the cannabinoids because unlike the other HDC products, THCa is just a plant.			THCa is safer than alcohol.		Current law were working. New laws take away right of individuals 21+ to decide what to purchase or consume. Alcohol is far more dangerous and it's available everywhere.		Bans THCa and will result in new cannabinoids being developed to get around the law.	
MK	Knox	Email	X		Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	A ban on THCa flower will reduce good paying jobs in local communities.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Epilepsy. Reduces dependence on anticonvulsant medications that have negative side effects.	Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
AC	Hamilton	Email			Total THC standard changes practical definition of hemp without changing the law. Law is .3% delta 9 on a dry weight basis.	Total THC standard will devastate TN ability to grow quality hemp. Hemp that is sold in TN should be grown in TN.		Total THC standard precludes ability to grow hemp producing any of the major cannabinoids (CBG, CBN, CBDV, etc.)				Total THC standards will allow out-of-state hemp to flood TN market because good hemp will not be able to be grown locally.	
MR	Unknown	Email			Misinterprets allowable THC. Law is .3% delta-9 THC.	Total THC will preclude growers ability to grow hemp.	Relief for side effects of chemotherapy.					Rules should increase access and safety to THCa hemp flower, not reverse it.	
EG	Unknown	Email				Farmers do not support retail being allowed to sell THCa flower if growers are not allowed to grow it because of a Total THC standard. If retailers are allowed to sell THCa flower while growers are held to a Total THC standard, growers will file suit against state.				THCa is delta 9 THC. Once THCa decarboxylates, it converts to THC. No THCa flower when tested after decarboxylation will pass a THC limit. Growers do not want a Total THC standard but if there is one, it needs to apply to growers and retailers.	Retailers currently selling THCa flower are already buying their product from out of state and are presenting false Certificates of Analysis.	If THCa is sold in the state, it should be grown in the state under traceability and accountability. Growers need the department to protect growers' place in the hemp commercial chain because the hemp industry is not protecting TN growers.	
AU	Unknown	Email								TN economy and global supply chain need hemp. TN could benefit if on the forefront of hemp growth.		Hemp is versatile, useful, and productive. Department should be developing its use and production. People want hemp; department should not be lumping hemp in with other drug issues/concerns.	
LC	Unknown	Email					Pain, PTSD.	Hemp products provide relief where other prescriptions have not.				Hemp should be used as paper and wood replacement.	
TR	Knox	Email	X		Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
GR	Unknown	Email	X				THCa is a sleep aid.		Taking away these products will be a major detriment to state's citizens.			Bans THCa flower, vapes, and concentrates.	
RG	Hamilton	Email	X		Rules misinterpret 2023 statute. Rules redefine hemp.		Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.					Bans all natural and organic flower.	A ban on flower is not what Tennesseans want.
ME	Unknown	Email			(1) Create an exemption for cbd oil processors to purchase food grade ethanol without a "drink tax". The additional costs creates a barrier to organic, kosher, natural methodology. 150 proof Denatured alcohol with 5% heptane or pentane is 17.7-500gal. Food grade ethanol 200 proof is +\$50. (2) Specify that all cannabinoid products are derived from non-gmo plant sources. This is important: gmo yeasts and algae are capable of producing cannabinoids. This would eliminate the agricultural role within cannabinoid industries.						1% total THC is necessary to remain a relevant crop for growers. Whether pre-harvest. 3% total thc remains, 1% dry post harvest is necessary for biomass to remain compliant material in storage. Under 1% is not a viable THC or THCa product.	Attached PowerPoint with an "overview of your solution for communication between supply chain stakeholders and regulators."	
FP	Hawkins	Email	X			Want safe access to hemp. Rules should remove provisions that restrict safe access to hemp.	Many individuals depend on benefits of hemp products.						
ES	Unknown	Email			Ban of products will lead to job losses in HDC businesses and associated communities.		Prohibition measures result in unintended consequences. Will push consumers back to black market, which will increase crime rates and a burden on the judicial system. Consumers will pursue THCa and CBD flower, whether they are legal or not. Balance public health goals with the potential harm that prohibition can bring to individuals and communities.			Will have negative consequences on TN economy.		Bans HDC products.	
AR	Unknown	Email			Will severely damage TN hemp industry. Total THC standard will remove all legal THC products from TN, cripple hundreds of businesses and affect farmers, processors, retailers, and their employees.	Will push consumers back to black market, which will increase risk of exposure to unsafe products and unknown contaminants.			TN has positioned itself as a leader in the national hemp market. Banning THCa will reverse that progress, drive investments down and jobs out of state and will inhibit economic growth.		Bans THCa. Total THC standard based on THCa's natural conversion to THC is misguided because THCa is non-psychoactive; is legal under federal law; and is naturally occurring in many legitimate agricultural products.	Urge public opposition to a THCa ban; advocacy for testing regulations that differentiate between naturally occurring THCa and synthetic THC; education of legislators about scientific merits of THCa; sensible regulations of THCa that protect businesses, consumers, and economic progress.	

	BB	Unknown	Email				Do not restrict hemp growers.	THC is a sleep aid.		Instead of moving forward with surrounding states, TN is moving backwards.	Consumers will still purchase and use products whether legal or not- they will cross state lines to do it.		
	OV	Unknown	Email			A ban on hemp is in direct opposition to federally protected Farm Bill.		A ban on hemp alienates people who find relief with hemp products.		A ban on hemp represents Tennessee lawmakers under undue influence from big pharma.	Oppose regulations that ban hemp.		
	GC	Unknown	Email					Hemp products have helped coping with pharmaceutical and street drug addiction. Without hemp products recovering addicts are prone to relapse and may face dire results with street drugs.					
	MK	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	A ban on THCa flower will reduce good paying jobs in local communities.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Epilepsy. Reduces dependence on anticonvulsant medications that have negative side effects.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
	MK	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	A ban on THCa flower will reduce good paying jobs in local communities.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Epilepsy. Reduces dependence on anticonvulsant medications that have negative side effects.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
	A	Unknown	Email					Hemp is an effective substitute for Xanax. Hemp is legal and more reasonably priced than Xanax.	Alcohol and prescription drugs kill people. Hemp is legal and non-addictive.				
	DW	Unknown	Email						Bans CBD flower.	Keep HDC products legal under current law. Legalize marijuana.	Lawmakers should not take away a person's right to decide what to consume.	Bans THCa flower, vapes, and concentrates.	
	AC	Hamilton	Email		Total THC standard changes practical definition of hemp without changing the law. Law is .3% delta 9 on a dry weight basis.	Total THC standard will devastate TN ability to grow quality hemp. Hemp that is sold in TN should be grown in TN.			Total THC standard precludes ability to grow hemp producing any of the major cannabinoids (CBD, CBG, CBDV, etc.)		Total THC standards will allow out-of-state hemp to flood TN market because good hemp will not be able to be grown locally.		
	JW	Cumberland	Email				Will push consumers back to black market, which will increase exposure to unknown substances. Consumers will pursue THCa and CBD flower, whether they are legal or not.					TN hemp sales are already flooded with out-of-state product.	Commenter was one of the first licensed growers in TN in 2015 and has grown hemp every year since. Stopped growing because TN regulations in this industry change every year. Regulatory uncertainty hampers businesses and sets them up to fail.
	JS	Williamson	Email			Removing total THC standard would allow Tennessee farmers to grow legal, profitable hemp crops. Farmers only have 40 seasons and sometimes only break even; TN should change its laws to support farmers getting more out of this time and save family farms.		Sleep aid and pain reliever.	Marijuana and medical marijuana should be legal.	New laws help the drug cartels, not farmers. Tennessee is years behind other states.			
	MI	Unknown	Email		Misinterprets allowable THC. Law is .3% delta-9 THC.	Total THC will preclude growers ability to grow hemp.		Relief for side effects of chemotherapy.		Banning hemp is government overreach inconsistent with TN policy.		Rules should increase access and safety to THCa hemp flower, not reverse it.	Maintaining the status quo on hemp retail sales is fiscally responsible and stabilizes the market for entrepreneurs and job creators.
	BN	Davidson	Email			A ban on hemp will bankrupt established legal entities.						Sales and their corresponding tax revenue will go out-of-state.	
	ES	Unknown	Email				Will push consumers back to black market, which will increase exposure to unknown substances. Consumers will pursue THCa and CBD flower, whether they are legal or not.			TN citizens want these products to be legal; banning is not following the will of the people.			
	JM	Unknown	Email					Manages fibromyalgia symptoms.		TN is backtracking while rest of the country is moving forward. Hemp is grown naturally and therefore is outside of man's jurisdiction. New laws unlawful and unconstitutional.			
	MB	Unknown	Email							Hemp is grown naturally and therefore is outside of man's jurisdiction. New laws unlawful and unconstitutional.			
	DR	Unknown	Email		Regulates industry to death and local economies and citizens will suffer.	Regulates industry to death.			Recreational and medical marijuana should be legal.	New laws are anti-business, anti-tourist, and un-American.			
	DB	Unknown	Email						Keep these products legal.	Lawmakers work for the people and the new laws are not what the people want.			
	TD	Unknown	Email				Hemp products are better and safer pain relievers than any pharmaceutical, particularly for people who have kidney or other issues which limit or restrict their ability to take even OTC pain medications. New laws will away the only pain relief (and other medical benefits) that some people have available to them.					Will disproportionately negatively affect veterans.	
	EG	Unknown	Email		THCa is Delta 9THC. Once decarboxylated (lit) it converts to D9THC. Hemp farmers in TN have been held to total THC standard and so have been left out of profitable hemp product industry in TN.	Hemp farmers in TN not allowed to grow THCa while retail has been allowed to purchase it from out of state and sell it in TN. If TN wants THCa, then it should be grown in the state where it's safe and there is traceability and accountability.			If hemp farmers are not allowed to grow THCa, but rest of hemp industry is allowed to sell it, farmers will sue the state.		Either everyone involved in TN hemp industry should be held to Total THC standard- growers, manufacturers & distributors, and retailers- or remove standard for everyone. Without growers, there is no commodity.	Cannabis/Hemp is a commodity crop and TN should protect its farmers by equal application of the same laws.	
	SB	Unknown	Email			Rules will put small business owners out of business.		Parkinsons, arthritis, PTSD, pain, and anxiety. Other illnesses that are treated by opioids but may be relieved by hemp products.	Hemp products used to wean people off of opioids.			Will disproportionately negatively affect veterans.	
	EG	Unknown	Email		THCa is Delta 9THC. Once decarboxylated (lit) it converts to D9THC. Hemp farmers in TN have been held to total THC standard and so have been left out of profitable hemp product industry in TN.	Hemp farmers in TN not allowed to grow THCa while retail has been allowed to purchase it from out of state and sell it in TN. If TN wants THCa, then it should be grown in the state where it's safe and there is traceability and accountability.			If hemp farmers are not allowed to grow THCa, but rest of hemp industry is allowed to sell it, farmers will sue the state.		Either everyone involved in TN hemp industry should be held to Total THC standard- growers, manufacturers & distributors, and retailers- or remove standard for everyone. Without growers, there is no commodity.	Cannabis/Hemp is a commodity crop and TN should protect its farmers by equal application of the same laws.	
	RS	Hamilton	Email				Consumers will pursue THCa and CBD flower, whether they are legal or not. Either means the black market, which isn't safe, or will go out of state. Neither option supports TN businesses and economy.	Treats chronic pain.		Overrides federal regulations by restricting products. TN is taking steps backwards with new laws.			
	JC	Unknown	Email			Rules would further hinder hemp cultivation by further complicating cultivation of hemp and hemp derived products. This only hurts the farmers and pushes them away from a potentially profitable crop.						Recommend expanding definition/authorizations under DOBB 10-02-.05 to accept USDA registered laboratories as also TDA registered labs for purposes of sampling/testing requirements. Recommend manufacturers should be required to provide only batch potency testing instead of full panel testing where resulting COA would have potency testing from TDA registered laboratories, backed by full panel testing from supplier(s) USDA laboratories.	
	DL	Unknown	Email							People deserve the freedom to choose for themselves whether to use hemp and THC products.	Hemp and THC products bring money for the state.	Rules are a ban on hemp and THC products.	
	JR	Davidson	Email		Hemp and THC products bring jobs for the state.								Drug abuse is devastating. Commenter's rescue organization regularly hears court testimony that addicts start path to addiction using alcohol, tobacco, or marijuana. Comments in favor of THCa are doing so with a profit motive that disregards the real effects of drug addiction. There seem to be countless retail locations selling both legal and illegal products. Psychoactive products from hemp should not be made or available to the public.
	DS	Jefferson	Email		Total THC standard is appropriate because delta 9 and THCa achieve the same psychoactive end result.	Job security and financial impact of selling THCa is not enough to justify damage that marijuana/THC drug addiction can cause to community.				Supports regulations that preclude both psychoactive and potentially psychoactive products from entering the marketplace.			
	JB	Unknown	Email				Illegal marijuana is risk to health because do not know what is in it. Consumers will pursue CBD flower whether it is legal or not.	CBD flower stimulates appetite for HIV patients. Without CBD flower weight may drop to unhealthy levels.	Bans CBD flower.				
	JR	Unknown	Email		Banning THCa flower would result in huge revenue loss to businesses.	Banning THCa flower would result in huge revenue loss to farmers.	Being able to buy THCa flower from a store (now) ensures that proper testing has been done on the flower and that it is clean.	Insomnia, appetite stimulator for cancer patients, pain.					
	C	Unknown	Email							Rules represent dumb law put forward by Baby Boomer generation.			

SS	Unknown	Email	x	Rules misinterpret 2023 statute. Rules redefine hemp.	Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins.			Bans all natural and organic flower.	A ban on flower is not what Tennesseans want.			
AD	Unknown	Email	x	Rules misinterpret 2023 statute. Rules redefine hemp.	Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins.			Bans all natural and organic flower.	A ban on flower is not what Tennesseans want.			
LO	Unknown	Email			Chronic orthopedic pain, Polycystic Ovary Syndrome, insomnia, anxiety. THC gives users a sense of self and independence that no other medications do.			Bans THCa. Bans delta 8.				
RM	Unknown	Email	x	Rules misinterpret 2023 statute. Rules redefine hemp.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Research shows that cannabis treats Huntington Disease.	Keep CBD flower legal for adults 21+.	Recreational and medical marijuana should be legal. TN one of only 12 states without some form of legalized cannabis.	Tax dollars generated go back to communities to provide additional funding for schools, parks, social services, infrastructure, and much more.	Keep THCa flower legal for adults 21+. Total THC definition makes it impossible for plants to test compliant for CBD and other hemp derived cannabinoids after harvest.		
JD	Unknown	Email		Hemp supports small business and the community.	Hemp products keep people from buying marijuana, which keeps crime rates down.			Hemp benefits the state with tax revenue.	Bans hemp.	Hemp is a young industry that needs support.		
KS	Davidson	Email			Cannabis is a natural plant medicine.			Hemp generates crucial tax revenue.	Bans hemp products in TN.			
WS	Davidson	Email			Cannabis is a natural plant medicine.			All forms of cannabis should be legal.	TN is moving backwards with the new hemp laws.			
WS	Davidson	Email			Focus should be on addressing use of and addiction to dangerous drugs in state, such as Meth and Opioids, and not on Cannabis.			All forms of cannabis should be legal.	TN is moving backwards with the new hemp laws.			
	Unknown	Email			Focus should be on addressing use of and addiction to dangerous drugs in state, such as Meth and Opioids, and not on Cannabis.			All forms of cannabis should be legal.	TN lawmakers are moving backwards with the new hemp laws and do not have the state's interests at heart.	Tax dollars generated could go back to communities to provide additional funding for schools, parks, social services, infrastructure, and much more.		
SG	Unknown	Email			Focus should be on addressing use of and addiction to dangerous drugs in state, such as Meth and Opioids, and not on Cannabis.			All forms of cannabis should be legal.				
SG	Unknown	Email			Focus should be on addressing use of and addiction to dangerous drugs in state, such as Meth and Opioids, and not on Cannabis.			All forms of cannabis should be legal.				
EE	Knox	Email		New laws are going to destroy hemp-based businesses in state and lose their livelihoods.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.					Bans flower products.	Customers will simply go across state lines and those states will benefit from tax revenue instead of TN.	
RD	Unknown	Email					Bans CBD flower.	New laws taking away legal marijuana.	TN legislature is moving state backwards with the new hemp laws.	Bans THCa.		
TP	Granger	Email		Cannabis industry increases jobs.	Will push consumers back to unregulated black market. Wants safe and legal market for cannabis.	Pain, nausea, anxiety. Cannabis industry is a net benefit to public health. Cannabis allows thousands of people to function normally in society. Cannabis helps more than any pharmaceutical.			Rules overstep TDA authority for rulemaking.	Cannabis industry increases tax revenue.	Total THC standard will make it impossible for Tennesseans to access safe cannabis.	Access to cannabis is a civil right.
CL	Unknown	Email			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	THCa is beneficial in many ways.				Cannabis industry increases tax revenue.		Customers will simply go across state lines and those states will benefit from tax revenue instead of TN.
OP	Unknown	Email				Cancer patient appetite stimulant and pain reliever.			Lessens need for anti-inflammatory that strain liver and kidneys.			
L	Knox	Email							There is no justifiable reason for taking hemp products away from consumers.	Bans hemp products.		No comment within email but appears to be an email generated by an online template. Signed within email by the commenter with a personal email address in the signature line, but return email address on email was: <user@votenoise.net>
LC	Unknown	Email			Wants safe access to regulated hemp products.	People use marijuana to treat pain and illness.		Medical marijuana should be legal. Taking away these products would be detrimental to TN's citizens and the state.		Bans THCa and other smokeables.		
LC	Unknown	Email			Wants safe access to regulated hemp products.	People use marijuana to treat pain and illness.		Medical marijuana should be legal. Taking away these products would be detrimental to TN's citizens and the state.		Bans THCa and other smokeables.		
	Unknown	Email				Cannabis is safer than many other legal substances.		Marijuana should be legal.	Legislation stifles personal choice and personal freedom, and moves TN backwards. Legislators and lawmakers not serving best interests of citizens of TN.	if TN chose to legalize and tax cannabis, it would be a huge boon for the state. Money could be invested back into infrastructure and education.		Banning products will negatively impact the entire state, many businesses, and state's citizens.
ML	Davidson	Email	x	Rules misinterpret 2023 statute. Rules redefine hemp.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Sleep aid and helps manage effects of trauma.	Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.		Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
MA	Davidson	Email	x	Rules misinterpret 2023 statute. Rules redefine hemp.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	THCa helps treat mental disorders.	Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.		Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
MD	Davidson	Email	x	Rules misinterpret 2023 statute. Rules redefine hemp.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Relaxation and pain management.	Bans CBD flower.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.		Rules were written as ill-conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.

KL	Hamilton	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp. Definition makes it impossible to test the product in flower form, making all flower forms of THCA and CBD illegal.	Hemp grower running a hemp business which employs 30 individuals and serves 20,000 customers annually.	Grows own hemp for hemp products business.	Tennesseeans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseeans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.			Bans all natural and organic flower. Flower makes up 90% of sales. Definition of acceptable testing methods is a poison pill inserted to kill the effects of a positive bill for our industry. Will be a death knell to industry.	A ban on flower is not what Tennesseeans want. Since 2013, family business has maintained state and federal compliance while navigating the numerous changes that have been put before us within the program.		
KL	Hamilton	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp. Definition makes it impossible to test the product in flower form, making all flower forms of THCA and CBD illegal.	Hemp grower running a hemp business which employs 30 individuals and serves 20,000 customers annually.	Grows own hemp for hemp products business.	Tennesseeans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseeans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.			Bans all natural and organic flower. Flower makes up 90% of sales. Definition of acceptable testing methods is a poison pill inserted to kill the effects of a positive bill for our industry. Will be a death knell to industry.	A ban on flower is not what Tennesseeans want. Since 2013, family business has maintained state and federal compliance while navigating the numerous changes that have been put before us within the program.		
JC	Unknown	Email					Life depends on THCa. Treats PTSD, very severe treatment-resistant depression, chronic insomnia/possible non24, anxiety, movement issues from childhood poisoning.	Cannabis helps reduce more harmful drug use such as, but not limited to, opioids and alcohol to very dangerous and effectively legal drugs.	Marijuana and medical marijuana should be legal. Far safer than HOC products/edibles.	Decision to continue to ban marijuana is outdated and not what people want.	Will ban THCa flower which is natural and safe. Won't ban any Delta edibles, including Delta 9, but will practically remove every single vape and smokeable product, resulting in serious harm to people who use smokeables medically.	Edibles and Delta products (except Delta 9) are stronger and more harmful than THCa and Delta 9. Edible products are mislabeled and fraudulent. In favor of regulating for safety.	
AH	Wilson	Email	X	Rules misinterpret 2023 statute. Creates outright ban on smokeable hemp products.			Tennesseeans want safe access to flower and cannabis that is tested and grown locally. Consumers will pursue THCa and CBD flower, whether they are legal or not. Rules force Tennesseeans to the black market where products are not tested and are sprayed with fentanyl and other toxins.	Cannabis has been scientifically proven to improve health and life longevity. Safely regulated hemp products improves focus, anxiety/depression, and enhances productivity.	Marijuana should be legal.	Restricting products will cause millions of dollars to be lost that could have been allocated as the "Tennessee Cannabis Tax" to use for other government spending. Tax revenue generated by hemp products could be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	Would eliminate THCa and CBD flower, vapes, and concentrates. Bans rather than safely regulates hemp products.	People will just cross state lines for marijuana/hemp products.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
AH	Wilson	Email	X	Rules misinterpret 2023 statute. Creates outright ban on smokeable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Cannabis has been scientifically proven to improve health and life longevity. Safely regulated hemp products improves focus, anxiety/depression, and enhances productivity.	Marijuana should be legal.	Restricting products will cause millions of dollars to be lost that could have been allocated as the "Tennessee Cannabis Tax" to use for other government spending. Tax revenue generated by hemp products could be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	Would eliminate THCa and CBD flower, vapes, and concentrates. Bans rather than safely regulates hemp products.	People will just cross state lines for marijuana/hemp products.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
AH	Wilson	Email	X	Rules misinterpret 2023 statute. Creates outright ban on smokeable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Cannabis has been scientifically proven to improve health and life longevity. Safely regulated hemp products improves focus, anxiety/depression, and enhances productivity.	Marijuana should be legal.	Restricting products will cause millions of dollars to be lost that could have been allocated as the "Tennessee Cannabis Tax" to use for other government spending. Tax revenue generated by hemp products could be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	Would eliminate THCa and CBD flower, vapes, and concentrates. Bans rather than safely regulates hemp products.	People will just cross state lines for marijuana/hemp products.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
BJ	Unknown	Email					Effective pain manager.	Better and safer pain reliever than opioids.	Legislature should formally legalize both recreational and medical cannabis. Instead of restricting products, should either legalize them or criminalize them. Rule allowable THC levels to 5%-10%.	Tennessee state government needs to be brought out of the 1800's.			Many of our veterans suffer badly and we really could use some better relief than opioids.
EC	Unknown	Email								Legalize marijuana and add 15% tax.	Supports keeping THCa flower legal.		
DA	Unknown	Email								Either legalize it or criminalize it. No restrictions.	Add 15% tax.	Raise the level to 5%-10% and everyone wins.	
P	Unknown	Email					Hemp products safer than pharmaceuticals.	Hemp successfully gets people off fentanyl and other hard drugs.	Medical marijuana should be legal.	Instead of caring about Tennesseeans and their health, new laws seem like government wants to control TN citizens.			
DS	Sullivan	Email					Hemp products are used for recreational purposes, mood and health management, pain management, sleep, stroke issues, Postural Orthostatic Tachycardia Syndrome, epileptic seizures, and PTSD.	Hemp and hemp derived products provide relief for many, many people suffering from various physical and mental health issues.	Consumers and businesses are exhausted and beyond frustrated with the ever changing landscape in hemp product legislation and regulation.	Hemp products bring \$200M in taxable revenue (according to CBD-USA family of companies)			Commenter submitted a petition questionnaire of purportedly 431 other people's comments. 8.3% of responders report being US military veterans and use hemp products for pain management and to curb symptoms of depression, anxiety, and PTSD.
JB	Davidson	Email								New laws are regressive and a huge step backwards.	Keeping products legal could provide hundreds of millions in tax revenue for the state.		
DM	Knob	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokeable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
EC	Unknown	Email								So many other states have legalized. New laws taking Tennessee backwards.			Hemp products are safer than alcohol.
CB	Hamilton	Email		Rules misinterpret 2023 statute. Rules redefine hemp.			Treats arthritis symptoms. Relaxation and anti-anxiety aid.	Assists with recovery from alcohol abuse. Effective and safer alternative to benzodiazepines.			Total THC standard will eliminate entire legal cbd hemp business. Keep testing standard as it is stated: > 3% DELTA 9 THC		
CB	Hamilton	Email		Rules misinterpret 2023 statute. Rules redefine hemp.		Will destroy hemp industry.	Treats arthritis symptoms. Relaxation and anti-anxiety aid.	Assists with recovery from alcohol abuse and addiction. Effective and safer alternative to benzodiazepines.			Total THC standard will eliminate entire legal cbd hemp business. Keep testing standard as it is stated: > 3% DELTA 9 THC		
CM	Unknown	Email					Will push consumers back to black market, which will increase risk of exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	THC is a pain reliever and sleep aid for insomniacs. Marijuana slows growth of tumors.	Hemp products effective alternative to pain medications that can damage liver and kidneys.	Bans CBD flower.	Bans CBD, THCa flower, vapes, and concentrates.	Banning products will disproportionately affect the disabled and those with chronic diseases.	
MS	Unknown	Email		THCa is federally legal.					Legalization of marijuana and hemp products is inevitable. Tennessee would benefit from an early start to setting up a thriving hemp market that will provide income and reduce crime surrounding the drugs.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure, and keep community safe, healthy, and happy.		Fuels gangs to start selling these drugs illegally, and causing more gang violence as a result.	
CR	McMinn	Email					Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins.	Sleep aid.	Pharmaceutical sleep aids are detrimental.	Marijuana in all forms should be legal.	Tennesseeans want freedom to make own choices and not have governmental organizations disallow a product that grows in the ground.	Eliminates all smokeable products.	Per recent Gallup poll, 70% of Americans want cannabis to be legalized.
CS	Unknown	Email		Keep THCa legal.								Bans THCa flower, vapes, and concentrates.	
CS	Unknown	Email		Keep THCa legal.								Bans THCa flower, vapes, and concentrates.	
MP	Unknown	Email			Will potentially put hardworking business owners and their employees out of work.	Farmers have worked diligently to comply with the regulations over the years and will now potentially be out of work.				Will not support elected representatives who align with archaic and draconian restrictions.	State will lose millions that TN has depended on for roads and schools.		

MS	Unknown	Email
TC	Unknown	Email
GP	Unknown	Email
BO	Rutherford	Email
PA	Hamilton	Email
TD	Unknown	Email
GH	Unknown	Email
CC	Unknown	Email
AK	Unknown	Email
EC	Unknown	Email
JB	Davidson	Email
AR	Knox	Email
AR	Knox	Email
RB	Unknown	Email
CS	Shelby	Email
NW	Unknown	Email
GR	Unknown	Email
KS	Cheatham	Email
KO	Davidson	Email
BL	Unknown	Email
KW	Unknown	Email
LA	Unknown	Email

			Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Assists with recovery from alcohol abuse and addiction. Effective and safer alternative to benzodiazepines.		New laws take TN backwards.	Bans THCa flower, vapes, and concentrates.	THCa is a natural plant and should remain legal. Different than cannabis-derived alternatives, such as Delta 8.	
			Rules do not seem to care about small business owners. Proposed rules provide no possible way to make money.	Rules do not seem to care about small business owners/growers. Proposed rules provide no possible way to make money.					
			Robs people of their livelihood.	Robs people of their livelihood.	Cannabis has medicinal properties that help countless individuals.	People drink less alcohol when cannabis is available.	New laws outdated and arbitrary, and not for the people.	Current legal products generate millions in tax revenue.	
					Cannabis manages chronic pain.	Cannabis provides natural and safe alternative to pharmaceutical pain medications that can damage liver and kidneys.			Maintain status quo and keep everything legal.
					Will push consumers to illegal drug dealers, which will increase risk of overdoses and exposure to fentanyl, methamphetamines, and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated THCa and other hemp products. THCa flower from a legal dispensary is better than going to a drug dealer. TN residents predisposed to smoke marijuana should have legal and regulated THCa flower because it's safer.	Legal THCa flower provides a safe alternative to alcohol and results in decreases in alcohol consumption.			
					Controls chronic pain. Helps manage muscular dystrophy.	Cannabis provides natural and safe alternative to pharmaceutical pain medications that can damage liver and kidneys.	Medical marijuana should be legalized.	Why would Tennessee allow CBD products to be sold and then decide to regulate the industry after the fact? TN needs to implement laws and regulations that allow citizens personal choice to treat diseases and chronic pain that works for the individual.	
					Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.		New laws limit adult Tennesseeans' freedom to buy and use cannabis products safely.	Banning products will drive potential tax revenue from TN to other states.	
			TN has rich soil and is an amazing environment to grow hemp and cannabis. Hemp farmers should be supported and allowed to grow THCa.	Wants safe access to regulated hemp products.	Cannabis access can prevent people from getting addicted to opioids.	Bans CBD flower which is natural plant product, but does not ban synthetic HDCCs.	New laws do not represent the values of Americans nor Tennesseeans. Hemp plants and products were used and consumed by founding fathers. Nation was designed so that citizens can pressure their states, who can then pressure the federal government to make decisions that benefit the people.	Tax revenue from legalizing THCa can benefit schools and roads.	Bans THCa which is natural plant product, but does not ban synthetic HDCCs.
			Banning THC and THCa flower will disrupt hundreds of small TN businesses.	Will push consumers, including those who use products medically, back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.					If rules are banning synthesized compounds being created and sprayed onto hemp flower, please pursue the ban. Our people need a legitimate cannabis and hemp market.
					Hemp products help people and are safer than alcohol.			Hemp sales generate a lot of tax revenue.	
					Sleep aid and pain reliever.	THCa is a more effective alternative to pharmaceuticals without the side effects.			Changes to law would disproportionately affect veterans who use these products.
X			Rules misinterpret 2023 statute. Rules redefine hemp.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
X			Rules misinterpret 2023 statute. Rules redefine hemp.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
			Would be taking away people's livelihoods and jobs.	Will push consumers back to black market, which will increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.			Revenue will go to drug cartels instead of TN where it could be put to good use.	New laws go against the national trend regarding cannabis legalization.	
				Complicates the cultivation of hemp and hemp derived products. Hurts the farmers and pushes them away from a potentially profitable crop.	Cannabis helps with symptoms of restless legs syndrome.	Without legal marijuana, people have to resort to opiates.	Medical marijuana should be legal.		Keep THC/THCa/CBD products legal.
					Hemp has a positive effect on physical and mental health.				Maintain the status quo and keep everything legal.
				Will push consumers back to black market, which will increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.					Maintain the status quo and keep everything legal.
X			Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	THCa is a pain reliever.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
X			Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Treats mental health issues stemming from PTSD, depression, anxiety, trauma, OCD, chronic pain, nightmares, and mood disorders.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
				Wants safe access to regulated hemp products.	Treats anxiety, PTSD, sleep disorders.	Delta 9 and THCa are better than pharmaceuticals and without side effects.	Increase taxes on products instead of banning them.	Keep THCa legal.	Changes to law would disproportionately affect veterans who use these products.
				Wants safe access to regulated hemp products.	Has medicinal uses.	Keep CBD flower legal.	Please don't change the rules in the middle of the game. Majority of Tennesseeans want safe, legal access to cannabis/hemp products.	Keep THCa legal.	Keep hemp products legal.
				Wants safe access to regulated hemp products.	Has medicinal uses and improves quality of life for those who take products medically.				

MS	Unknown		Email		Keep THCa legal.		Keep THCa in the farm to med products.		Wants safe access to regulated hemp products.	Has medicinal uses and improves quality of life for those who take products medicinally.									
AI	Davidson		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Treats anxiety.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.						
MS	Shelby		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Helps with PTSD and improves quality of life.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.						
MS	Shelby		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Helps with PTSD and improves quality of life.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.						
PP	Hamblen		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
AL	Blount		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
AH	Loudon		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules will kill a legal market that employs hundreds of workers.	Rules do not support agriculture.		Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.		Bans CBD flower.	New laws contradict TN's goals to promote agriculture and commerce, and hinder citizens' right to pursue liberty and happiness.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
AA	Unknown		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Commenter provided Indiana address. Comment submitted via: user@votervoice.net	
AC	Knox		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
CC	Knox		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
CO	Clatsop		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
CO	Washington		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
DF	Sullivan		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Treats epilepsy without side effects of traditional pharmaceuticals.	Bans CBD flower.	Tax revenue and employment opportunities from a regulated market will be lost.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Consumers will take business to neighboring states that are pro-cannabis/hemp.	Keep CBD and THCa flower legal.				
DC	Knox		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
DB	Unknown		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Commenter provided an Illinois address. Comment submitted via: user@votervoice.net	
DE	Unknown		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Commenter provided Wisconsin address. Comment submitted via: user@votervoice.net	
DP	Knox		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
DS	Unknown		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Commenter provided Texas address. Comment submitted via: user@votervoice.net	
DC	Maricopa		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
GH	Anderson		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.					
HP	Sullivan		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.				Comment submitted via: user@votervoice.net	
HP	Knox		Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.					Bans CBD flower.		Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal.					
JW	Knox																		

PP	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Comment submitted via: user@votevoice.net				
SP	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Commenter provided Georgia address. Comment submitted via: user@votevoice.net				
SA	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Commenter provided Indiana address. Comment submitted via: user@votevoice.net				
SF	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Comment submitted via: user@votevoice.net				
SP	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Commenter provided Georgia address. Comment submitted via: user@votevoice.net				
UP	Knox	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Comment submitted via: user@votevoice.net				
VC	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Commenter provided Indiana address. Comment submitted via: user@votevoice.net				
YP	Blount	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	Comment submitted via: user@votevoice.net				
KW	Union	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Rules do not support hemp businesses or economic opportunities for hemp products.	Bans CBD flower.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.					
DF	Sullivan	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Hemp businesses provide jobs and economic opportunities in local communities.	Wants safe access to regulated hemp products.	Treats epilepsy and anxiety without side effects of traditional pharmaceuticals.	Tax revenue could benefit TN's education system.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Consumers will take business to neighboring states that are pro-cannabis/hemp.	Keep CBD and THCA flower legal.		
AM	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	CBD flower treats joint pain and anxiety without side effects of pharmaceuticals.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	CBD is an organic plant. Keep CBD and THCA flower legal.			
AM	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	CBD flower treats joint pain and anxiety without side effects of pharmaceuticals.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	CBD is an organic plant. Keep CBD and THCA flower legal.			
ZB	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Wants safe access to regulated products.	THCa is a pain reliever without side effects of pharmaceuticals. Helps manage depression and bipolar disorder.	Bans CBD flower.	Bans THCa flower, vapes, and concentrates.		Keep CBD and THCA flower legal.			
ZB	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Wants safe access to regulated products.	THCa is a pain reliever without side effects of pharmaceuticals. Helps manage depression and bipolar disorder.	Bans CBD flower.	Bans THCa flower, vapes, and concentrates.		Keep CBD and THCA flower legal.			
AB	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	THCa and CBD flower are relaxation aids.	Alternative to alcohol for relaxation.	Bans CBD flower.	Bans THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.			
TK	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Wants safe access to regulated products.	THCa treats chronic pain.	Bans CBD flower.	Will ban THCa flower, vapes, and concentrates.		Keep CBD and THCA flower legal.			
AJ	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Wants safe access to regulated products.	THCa is a sleep aid, relieves anxiety, and treats depression.	Alternative to pharmaceutical antidepressants.	Bans CBD flower.	Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.			
CG	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Wants safe access to regulated products.	Treats chronic pain, ADHD, anxiety, and major depressive disorder without side effects of prescribed pharmaceuticals.	Alternative to pharmaceutical antidepressants and antianxiety medications.	Bans CBD flower.	Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.			
EG	Unknown	Email		Apply same standards for hemp to retail industry that is applied to farmers.	Hemp was given back to help agriculture & farmers, not retail.			Same standard should be applied to hemp producers/farmers and to manufacturers, distributors, and retailers of HOC products. Same standard should be applied to hemp producers/farmers and to manufacturers, distributors, and retailers of HOC products.					
EG	Unknown	Email		Apply same standards for hemp to retail industry that is applied to farmers.	Hemp was given back to help agriculture & farmers, not retail.								
M	Unknown	Email				THCa and CBD help with anxiety, stress, PTSD, and those going through end-stage cancer.	Safer than alcohol and also has beneficial use/effects.	Bans CBD flower.	Keep THC legal.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.		
BM	Davidson	Email				Wants safe access to regulated products.	Bans CBD flower.	Will ban THCa flower, vapes, and concentrates.		Keep CBD and THCA flower legal.			
DW	Unknown	Email				Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	People will seek mind-altering substances and/or substances to relax. Better to regulate and provide safe access to taxable products. Hemp products are safer than alcohol, opioids, and pharmaceuticals.	Bans CBD flower.	Taking away a federally legal product.	Other states have legalized all hemp and cannabis products.	Keep products legal and raise tax to 35%. Use tax revenue to help fight prevalence of the most harmful of drugs, heroin, fentanyl and methamphetamine; fund long-term rehabilitation to drug addicts.	Bans THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.
TS	Davidson	Email				Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Treats anxiety and is a sleep aid.	Replaces prescription sleep aids.	Bans CBD flower.	Keep all products legal under status quo.	Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	
JW	Hamilton	Email				Natural remedy that helps people.	Hemp products are natural and replace pharmaceuticals.	Bans CBD flower.	New laws would send state backwards. Lawmakers are servants of the people and people want these products to remain legal.	TN will lose millions in tax revenue.	Total THC standard exceeds TN law. Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal.	
BM	Unknown	Email			Rules will be harmful to hemp businesses and their customers.	Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	THCa helps manage PTSD, anxiety, and stress.	Bans CBD flower.	New laws will negatively affect Tennesseans.	Will negatively affect the state's economy.	Will ban THCa flower, vapes, and concentrates. No legal or social benefit to cracking down on THCA.	Keep CBD and THCA flower legal.	Comment submitted via: user@votevoice.net
C	Unknown	Email				Wants safe access to regulated hemp products.	People rely on hemp products for their health and wellness. Products improve overall quality of life.	Bans CBD flower.	New laws should best serves the interests of all Tennesseans. Which is freedom of choice and freedom to support local businesses. Let alone the additional tax income that helps all Tennesseans across the entire state.		Will ban THCa flower, vapes, and concentrates.	Keep CBD and THCA flower legal and regulated.	
KS	Hamilton	Email	X		Negative consequences on economy. Job losses.	Banning hemp fosters underground market and strains law enforcement resources. Increases crime rates and burdens judicial system. It's essential to balance public health goals with potential harm that prohibition can bring to individuals and communities.		Less tax revenue.	Bans hemp products.				

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NK	Unknown	Email					Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Current laws allows people to legally acquire hemp products for medicinal needs.	Bans CBD flower.	Marijuana should be legalized.	TN should be striving for legalization, not moving in the opposite direction of progress.	Bans THCa flower, vapes, and concentrates.	Keep CBD and THCa flower legal. Proposed laws could have a detrimental impact on the state's economy and the safety of its residents
ZD	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	People have invested life savings in creating hemp businesses.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.		Bans CBD flower.			Bans THCa flower, vapes, and concentrates. THCa is safe and clean. Banning THCa will send young adults to synthetically, chemically derived, unsafe products.	
DF	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.				Bans CBD flower.	Proposed rules impose burdensome requirements on businesses, seemingly with the intent to shut down the entire hemp industry.		Bans THCa flower, vapes, and concentrates.	
KG	Unknown	Email			Keeping products legal would support small business without government interference. Growing industry would provide jobs and promote financial investment.	Keeping products legal would support agriculture without government interference. Growing industry would provide jobs and promote financial investment.	Wants safe access to regulated products.		Marijuana in all forms should be legal.	Consider a voluntary and flat sales tax for goods and services. Consumers would rather pay higher taxes on products to keep products legal. Tax revenue would fund public infrastructure projects like roads and schools.			Cannabis has bipartisan support from the voters of Tennessee. As an alternative to banning products, consider increased testing frequencies to control the supply, purity, and concentration of products.
JD	Knob	Email			Regulation of cannabis, not prohibition, will generate jobs.		Regulation of cannabis, not prohibition, will reduce crime rates.		Laws and rules that prohibit hemp, THC, and marijuana do not add value to communities. They result in waste of resources prosecuting, imprisoning, and opposing productive members of the community. Cannabis regulation should follow the regulatory scheme employed for alcohol and tobacco, both of which are more harmful to Tennesseans.		Regulation and taxation of cannabis is the best path forward.		Regulation of cannabis, not prohibition, will better protect children.
JB	Granger	Email											Commenter worked in Colorado Marijuana Enforcement Division for 5 years as a compliance investigator. In Colorado, post legalization of marijuana, crime, suicides, drug use, and adolescent marijuana use have all increased. Most states that have legalized THC are now working to limit or re-regulate its products. THC products are extremely harmful to children whose brains do not fully develop until age 25. Commenter is aware personally of at least one case where a man is addicted to delta 8 and has endured personality change surrounding the addiction; he is no longer able to hold a job due to combative personality and that family moved from Oregon to TN to get away from THC. 11 states are currently working to totally ban THC products.
LC	Unknown	Email					Wants current access to hemp products to remain.		Supports legislation of all THC with same restrictions as alcohol.				
KR	Unknown	Email					Insomnia, cancer, MS, autism patients all may function a little more normally through use of hemp and THCa products.		Taxes from hemp and THCa sales could finance scholarships, charities, community needs similar to other cannabis legal states and the TN lottery system.			Bans hemp and THCa products.	
JQ	Davidson	Email					Wants clean and safe outlet to access hemp and cannabis products.	Cancer.	Hemp helps people quit harder drugs prescribed by doctors.	Cannabis is not as bad as people say it is.			
KH	Knob	Email			Support agriculture, as in on the state seal, and allow farmers to grow higher-THC hemp and put them back to work.		Will push consumers back to black market, which will increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Cannabis has many medicinal benefits.	Cannabis replaces pharmaceuticals and without the side effects.	Government is making laws without being familiar with the subject matter.	Tax derived from these products could support the infrastructure that Tennessee so desperately needs, among other needs.	Consumers will just cross state lines if THCa gets banned.	Hemp is a sacred plant and has been around since the beginning of time. They believe the oil that Jesus and John the Baptist anointed with was cannabis oil.
AV	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Mig, retailers, and consumers could be arrested for selling or possessing these products.	Anxiety.	Bans CBD flower.			Bans THCa flower, vapes, and concentrates.	
RM	Unknown	Email		Federal regulations that legalize hemp products are already in place and are effective and safe.	TN is a leader in the hemp industry. Leave the law as is because it supports industry growth.		Cannabinoids block viral replication of COVID and all emerging variants, and have anti-viral effects.	Cannabinoids prevent addiction.	Marijuana should be legal.	We the people have had enough propaganda and we want the State to support this industry 100% rather than us repeatedly having to try and convince the State from road blocking this amazing industry. Do the will of the voters.	The revenue already generated in taxes is nothing in comparison to what it can be in the coming years, potentially life changing for so many Tennesseans.		Comments "aim to align Tennessee's hemp industry with international standards, ensure product safety, and avoid unintended negative impacts on the industry." 1. Amendment to Solvent Regulation (0080-10-02-.043)(a)): The current draft states that certain solvents are excluded from the prohibition on solvent use in HDC product manufacturing. While this is a step in the right direction, I propose a more comprehensive and internationally aligned approach: Proposed Revision: "A person shall only manufacture or distribute an HDC product in which USP <667>-approved solvents were used." This amendment would align our industry with the United States Pharmacopeia (USP) <667>-standards, which are not only accepted by the US FDA but also by 28 countries under the European Pharmacopeia (Ph. Eur. 5.4). This change would ensure that our products meet globally recognized safety standards, enhancing consumer trust and marketability. Alternative Proposal: If the above proposal is deemed too permissive, I suggest an alternative that includes a broader range of solvents while still maintaining safety: "A person shall not manufacture or distribute an HDC product in which solvents were used in its manufacture. Use of the following substances is excluded from this requirement: acetone, animal fats, butane, carbon dioxide, ethanol, ethyl acetate, heptane, isopropanol, methanol, methylene chloride, pentane, propane, vegetable glycerin, vegetable oils, and water."
JS	Sullivan	Email											
AG	Unknown	Email			Will be forced to close a location, lay off employees, and change out most of the products on shelves. Excessive paperwork and hurdles required will crush businesses.		Chemotherapy patients, veterans, senior citizens, people from all walks of life use cannabis products medically. Good sleep aid, relieves anxiety, relaxation and calming aid.	Will push consumers further into the prescription drugs that many are trying to get away from.	Rules are overreaching and not in the spirit of good business, consumer choice, or a better Tennessee. Keep law as is.	Hemp products/businesses are tremendous source of tax revenue for the state.		Will send consumers out of state to purchase recreational marijuana products, thus giving another state revenues, and making our residents law breakers, as they drive home with these illegal products that are now in their possession.	The rules that would make sense would be things like removing hemp derived cannabinoid products from gas stations, convenience stores, liquor stores, smoke shops, and nicotine vape stores. Keep it to dispensary style retailers who focus on the products, the knowledge, the research, etc. Doing that would fix a lot of the consumer safety issues and grow the industry in a much healthier way.
AG	Unknown	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products.		Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mig and retailers cannot sell but will still be legal for consumers to possess.		Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CH9	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mig and retailers cannot sell but will still be legal for consumers to possess.		Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	

DS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
JH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
JH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
SV	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
VC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
TL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
KW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
JB	Obion	Email		Eliminates THCa as a retail product.	Small business owner. Employees 14 staff members in a small town that struggles to make ends meet. Without hemp sales and profits, would have to eliminate 1/3 of staff.	Wants safe access to regulated hemp products.	Bans CBD flower.			Bans THCa flower, vapes, and concentrates.	Has sold hemp legally since the beginning of the farm bill.
AW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AA	Unknown	Email				Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.		TN's neighbors are already legalizing cannabis, medicinal and recreationally. TN is behind the times and it is causing dismay among our community.	Tax revenue could be used to bolster education, infrastructure, make positive change for Tennessees.	Bans THCa flower, vapes, and concentrates.	Keep revenue in TN, not hands of another state.
AR	Unknown	Email			Will severely damage TN hemp industry. Total THC standard will remove all legal THC products from TN, cripple hundreds of businesses and affect farmers, processors, retailers, and their employees.	Will push consumers back to black market, which will increase risk of exposure to unsafe products and unknown contaminants.		TN has positioned itself as a leader in the national hemp market. Banning THCa will reverse that progress, drive investments down and jobs out of state and will inhibit economic growth.		Bans THCa. Total THC standard based on THCa's natural conversion to THC is misguided because THCa is non-psychoactive, is legal under federal law, and is naturally occurring in many legitimate agricultural products.	Urge public opposition to a THCa ban; advocacy for testing regulations that differentiate between naturally occurring THCa and synthetic THC; education of legislators about scientific merits of THCa, sensible regulations of THCa that protect businesses, consumers, and economic progress.
AR	Unknown	Email			Will severely damage TN hemp industry. Total THC standard will remove all legal THC products from TN, cripple hundreds of businesses and affect farmers, processors, retailers, and their employees.	Will push consumers back to black market, which will increase risk of exposure to unsafe products and unknown contaminants.		TN has positioned itself as a leader in the national hemp market. Banning THCa will reverse that progress, drive investments down and jobs out of state and will inhibit economic growth.		Bans THCa. Total THC standard based on THCa's natural conversion to THC is misguided because THCa is non-psychoactive, is legal under federal law, and is naturally occurring in many legitimate agricultural products.	Urge public opposition to a THCa ban; advocacy for testing regulations that differentiate between naturally occurring THCa and synthetic THC; education of legislators about scientific merits of THCa, sensible regulations of THCa that protect businesses, consumers, and economic progress.
AL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AJ	Unknown	Email						Stop infringing on personal right to medicine. Stop ignoring the science.			Keep law as is.
NM	Unknown	Email		Rules change how THC is defined.	Businesses producing and selling hemp products are following the standards previously put in place by the state. Citizens across the state have invested their lives in TN hemp industry and the market reflects there is a demand for their products. The rules will kill these job opportunities.						Commenter supports testing and labeling provisions of rules and protections against sales to minors, but not Total THC standard.
JR	Unknown	Email			Stricter rules re hemp will destroy TN hemp industry.	Will push consumers back to black market, which allows for access to more harmful drugs, e.g. opioids and fentanyl.			Will nullify gains by the 6% tax to be levied on hemp products.		
JW	Williamson	Email					TN economy would grow exponentially if cannabis industry were allowed to flourish.		TN hemp industry supports economy of our state.	Bans all hemp products. TN hemp industry currently supplies countless products and medicines to people.	Freedom to choose hemp use is appropriate for a free country.
AC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AO	Shelby	Email				Relies on THCa for medicinal needs. Insurance will not cover medical THC while it is still illegal in TN.	Bans CBD flower.			Bans THCa flower, vapes, and concentrates.	Would destroy people's lives to ban THCa.
JG	Davidson	Email				Severe Obsessive Compulsive Disorder. THCa is the only medication that eases symptoms.				Bans hemp products and THCa.	Who is a hemp product ban helping? A ban only helps alcohol companies, pharmaceuticals companies, and illegal drug traffickers. Commenter offers comments relative to the statute, not the rules.
TT	Unknown	Email						Ban on THC or hemp products is not consistent with conservative state policy to protect personal freedoms.			Commenter offers comments relative to the statute, not the rules.
AO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AC	Unknown	Email				Wants safe access to regulated hemp products.	THCa is a pain reliever without side effects.	THCa prevents use of opioids, and risk of addiction or overdose. Pharmaceuticals and alcohol kill people everyday while cannabis helps people medicoly without adverse effects or extreme addiction.		Bans THCa flower, vapes, and concentrates.	Keep THCa legal.
AF	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
MT	Rutherford	Email	X	Rules change definition of hemp inconsistent with statute and federal law. Rules under statutory intent to create a safe and scalable market for hemp products.		Wants safe access to hemp. Will push consumers back to black market.	Tennessee is one of only 12 states that do not have a medicinal or recreational cannabis program.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Total THC standard makes it impossible for plants to test compliant for CBD and other hemp derived cannabinoids after harvest. Total THC standard effectively bans flower.		
AL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
AE	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	

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BR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BT	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
BW	Unknown	Email			Rely on hemp industry for livelihood. Do everything to remain compliant and operate within parameters. Countless jobs and entire businesses would be lost.			Proposed rules would be a dramatic step backwards in hemp industry.	Industry offers multiple job opportunities and tax benefits.	
EG	Unknown	Email			Farmers do not support retail being allowed to sell THCa flower if growers are not allowed to grow it because of a Total THC standard. If retailers are allowed to sell THCa flower while growers are held to a Total THC standard, growers will file suit against state.					THCa is delta 9 THC. Once THCa decarboxylates, it converts to THC. No THCa flower when tested after decarboxylation will pass a THC limit. Growers do not want a Total THC standard but if there is one, it needs to apply to growers and retailers.
CG	Unknown	Email							Hemp industry increases state tax revenue that could be used for schools if TN rejected federal aid for education.	Growth of the TN hemp industry represents progress.
AJ	Unknown	Email	X		Negative consequences on economy. Job losses.				Less tax revenue.	Bans hemp products.
KC	Williamson	Email			Total THC standard eliminates small business, personal freedom, and jobs.	Total THC standard will drive consumers back to illegal products.	Hemp products support communal health and well-being.	Banning hemp products is inconsistent with TN policy that is built on freedom and personal liberty.	Total THC standard eliminates tax revenue.	Rules effectively eliminate hemp products in the state.
GR	Davidson	Email	X				THCa is a sleep aid.	Taking away these products will be a major detriment to state's citizens.		Bans THCa flower, vapes, and concentrates.
BN	Davidson	Email			A ban on hemp will bankrupt established legal entities.			Banning hemp is government overreach inconsistent with TN policy.		Sales and their corresponding tax revenue will go out-of-state.
FP	Hawkins	Email	X			Wants safe access to hemp. Rules should remove provisions that restrict safe access to hemp.	Many individuals depend on benefits of hemp products.			
A	Unknown	Voicemail			TN growers should be able to grow what TN retailers are able to sell.			Marijuana in all forms should be legal.	No government agency ever had the right to tell citizens what they can put into their own bodies.	Not legalizing marijuana deprives TN citizens of hundreds of millions of dollars in tax revenue that over half of US states are receiving.
NK	Unknown	Email			Total THC standard will cripple TN hemp industry.	Pain, THCa and smokeable hemp are only non-opioid treatments that provide relief.			Total THC standard will dramatically reduce tax revenue in both sales tax and the 8% hemp product tax passed in 2023. Tax revenue could be used to fund treatment centers for opioid crisis or public education.	
ES	Unknown	Email								Appreciation for department receiving the voice of farmers on this issue.
MA	Unknown	Email							THCa supports TN tax revenue.	Rest of the country is moving towards legalization of marijuana.
CB	Hamilton	Email		Rules misinterpret 2023 statute. Rules redefine hemp.		Severe depression, suicidal ideation.	Treats arthritis symptoms, swelling, and gain. Reduces anti-anxiety aid.	Assists with recovery from alcohol abuse. Effective and safer alternative to benzodiazepines.		Total THC standard will eliminate entire legal cbd hemp business. Keep testing standard as it is stated - 3% DELTA 9 THC
CS	Shelby	Email				Cannabis helps with symptoms of restless legs syndrome.	Without legal marijuana, people have to resort to opiates.	Medical marijuana should be legal.		Bans all THCa products.
KS	Chatham	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokeable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdose and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not.	Recreational use.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.
KO	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokeable hemp products.			Will push consumers back to black market, which will increase crime rates, increase risk of overdose and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not.	Treats mental health issues stemming from PTSD, depression, anxiety, trauma, OCD, chronic pain, nightmares, and mood disorders.		Bans THCa flower, vapes, and concentrates.
CH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CDO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.

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CW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CJ	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CJ	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CD	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
PD	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CF	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will kill businesses making livelihoods off industry and result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Treats anxiety and PTSD more effectively than prescription medications.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption. Killing small businesses that are currently making their living off of selling these products is simply, in my opinion, un-American. Please, do the right thing and hear our voices.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
RB	Unknown	Email				Hemp is better for pain management than opioids.	Hemp gives people freedom from pharmaceuticals.	TN citizens want freedom of choice to choose the medication that works best for him/herself.		
CM	Hamilton	Email				Tennesseans need safe access to safe hemp products.		Keep hemp products legal.		
CM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will kill businesses making livelihoods off industry and result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Treats anxiety and PTSD more effectively than prescription medications.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption. Killing small businesses that are currently making their living off of selling these products is simply, in my opinion, un-American. Please, do the right thing and hear our voices.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
SB	Sevier	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.		Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.				Bans all natural and organic flower.
WS	Davidson	Email				Cannabis is a natural plant medicine.	All forms of cannabis should be legal.	TN is moving backwards with the new hemp laws.		A ban on flower is not what Tennesseans want.
SG	Unknown	Email				Using marijuana is better than being addicted to narcotics.	Marijuana should be legalized.			
CC	Unknown	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.		Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.				Bans all natural and organic flower.
CC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
CC	Unknown	Email				Wants safe access to regulated hemp products. Having safe access to cannabis allows people to live productive lives. THCa flower treats pain more efficiently than pain killers, is more affordable, and more accessible than the health care system.		Interpreting in proposed rules will serve no material purpose other than to criminalize everyday folk. Look at the lives that will be affected by the regulations. Weigh hemp products against the problems, crime, police raids, and state violence created by prohibition. Don't take our state two steps back while the rest of the country moves forward.		
SG	Unknown	Email				Using marijuana is better than being addicted to narcotics.	Marijuana should be legalized.			
KL	Hamilton	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp to contain total of .3% or less of more than 60 cannabinoids found in any given plant. Definition makes it impossible to test the product in flower form, making all flower forms of THCa and CBD illegal.	Hemp grower running a hemp business which employs 30 individuals and serves 30,000 customers annually.	Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.				Bans all natural and organic flower. Flower makes up 90% of sales. Definition of acceptable testing methods is a poison pill inserted to kill the effects of a positive bill for our industry. Will be a death knell to industry.

TD	Davidson	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	Email is addressed "Dear Honorable Legislator".
DET	Davidson	Email			Smokable THCa is grown in Tennessee, sold in Tennessee and is a win, win, win for TN economy.	Commenter comes from a family of farmer and is proud product and product use supports TN farmers.	Wants safe access to regulated hemp products. If smokable THCa is not available in TN, consumers will seek it out through illicit channels where there is increased risk for fentanyl exposure and overdose.	Support for recovering from alcohol addiction. Treats major depression disorder and chronic anxiety.	Alcohol destroys people's lives. THCa does not carry side effects of other prescription medications.	Industry is a huge benefit to TN economy.	Keep THCa legal.	Written comment summarizing the power of hearing others' oral arguments offered at hearing 2/06/2024. Reiterates commenter's own oral comment offered at the hearing.
DR	Unknown	Email			Tennessee Hemp growers will no longer be able to produce a viable crop in this state causing a loss of significant state revenues and loss of jobs. Growers are facing an L.L.E. (Distinction Level Event) event with these latest proposed regulations.				TN Dept of Agriculture is greatly exceeding current Federal regulations and pulling the rug out from under a growing industry.		Dismantling the growing TN hemp industry will not affect comparable out of state product currently sold in Tennessee. If these regulations are enacted the ONLY products that will be available will be from out of state sources.	
CG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CRT	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CM	Rutherford	Email			TN Dept of Agriculture refusal to follow federal interpretations of 2018 Farm Bill have caused TN farmers to stop production hemp in TN. TN hemp industry had thousands of licenses and are now discouraged by these rules from creating what could be a lucrative industry.		Chronic pain without harm from opioids and pharmaceuticals		Tax revenue will decline for hemp product sales and other states will receive that revenue.		Bans THCa flower in the market.	Hemp growers and retailers are exhausted and frustrated with ever changing regulatory landscape around hemp and hemp products. Commenter suspects aim of rules the HOC industry while prohibiting TN producers is to prevent sale of marijuana as THCa flower and suggests that the concern is met in the statute by chain of custody requirements, showing origin and dragging manifest from a USDA licensed hemp farm.
MD	Unknown	Email					Black market benefits from a ban on THCa products.		THCa products are federally legal.	THCa products provide tax revenue to the state.		Tennessee citizens support legalization of THCa products. THCa products are different from illegal marijuana, which under current law may still be prosecuted separate from THCa.
DET	Davidson	Email	X		Smokable THCa does/could support TN growers.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products.	Chronic anxiety and major depression disorder.	Smokable THCa helped treat alcohol addiction.			
CS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
CJ	Marion	Email			Hemp businesses pay taxes, support local economy, support other small businesses, donate to charitable causes, and create livelihoods. Legal THCa is significant portion of sales--if banned, livelihoods in danger.		Wants safe access to regulated hemp products.	Legal cannabis products tried pain and anxiety and allow people to live their best quality of life.	Cannabis allows people to get off of prescription drugs for pain or anxiety.		Keep THCa legal.	
CC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DM	Madison	Email	X				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	CBD helped eliminate need for selective Serotonin Reuptake Inhibitors. Back pain.			Bans THCa flower, vapes, and concentrates.	
TH	Lawrence	Email	X				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.				Bans THCa flower, vapes, and concentrates.	
RT	Davidson	Email	X				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	ADHD, anxiety.			Bans THCa flower, vapes, and concentrates.	
CO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
BJ	Davidson	Email	X				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.				Bans THCa flower, vapes, and concentrates.	
CP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
JM	Bedford	Email	X				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Uses marijuana for anxiety and depression. Switched to THCa flower in order not to have to go to black market for sales.			Bans THCa flower, vapes, and concentrates.	Supports adult use only for THCa.
CP	Shelby	Email	X				Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Stomach issues, digestion.			Bans THCa flower, vapes, and concentrates.	
CP	Unknown	Email					THCa is a pain reliever.	Hemp saves people's lives by preventing or ending addiction to and/or overdose of opioids.			Bans THCa flower, vapes, and concentrates.	Keep THCa legal. This plant is a miracle plant and should be legal to help those who need it.

CS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
DL	Davidson	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Anxiety, insomnia. Muscle aches and body sores.	Smokable THCa is safer than drinking.	Bans CBD flower.	Bans THCa flower, vapes, and concentrates.		
	Hamilton	Email			Total THC will cause job cuts.	Total THC will cause farmers to relocate.	Total THC will push consumers to black market. Wants safe access to cannabis.	PTSD, severe psoriatic arthritis, autoimmune gastritis. Inflammation, cancer. MS, colitis, arthritis, anxiety, depression, and nausea.	Total THC increase risk of prescription addiction, e.g. hydrocodone. Why is alcohol legal if THC is banned? Alcohol has zero health benefits, helps no one, increases driving risk, and destroys lives.	Total THC will result in loss of state tax revenue.	Total THC will push consumers to other states to buy.	Total THC standard will result in no hemp products that anyone actually wants to purchase. TN needs to decide if it actually wants to support and grow a hemp industry or ban hemp all together. Business are exhausted with inconsistency in regulatory landscape and will eventually close for lack of predictable legal understanding re their business. Who benefits from a Total THC ban? If Tennessee cannot find its compassion and keeps finding excuses to be cold and indifferent to the suffering of its people, the people will simply leave the state.
CS	Unknown	Email			Thousands of employers and employees in hemp stores, glass shops, gas stations will surely go out of business due to this ban, all who also pay taxes to the state.		Bans CBD flower.		There was a couple million in profit, made and paid, to the state in last year alone that was specifically derived from hemp products and THCa sales. There is already an extra tax businesses have to charge on all products containing hemp, as well as the normal 12 percent sales tax.	Bans THCa flower, vapes, and concentrates.	Keep THCa, CBD flower, and other hemp products legal.	
CF	Unknown	Email		Testing rules will effectively make these life saving products illegal for consumers and patients to access in the state.		Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rule criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	THC and THCa treats PTSD and Lupus. Without access to hemp products people with these conditions would have to be on narcotics and chemo drugs, along with other medications. People depend on products for their health.	Replaces narcotics, chemotherapy, and dangerous pharmaceuticals for treatment of some health conditions.	In 2018 federal government legalised low THC cannabis in the form of hemp. Hemp is cannabis. The distinction between marijuana and hemp is a legal distinction not a botanical one. It's the same plant.		Founder of the Tennessee Cannabis Coalition, founded this organization as a patient advocate and has heard from thousands of patients whose lives were saved by cannabis.	
NC	Unknown	Email		Total THC changes definition of hemp.		Total THC will push consumers back to black market, which will increase exposure to pesticide laden product, fentanyl, and other toxins. Criminalizes legal products.	Sleep.	Alcohol is worst yet access to alcohol is unlimited. Cannabis replaces Rx medications.	Majority of Tennesseans support full marijuana legalization.	THCa increases state tax revenue.	Total THC divergents true intent of HDC statute--which was to test for safety not for THCa concentrations.	
CL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
JA	Hamilton	Email				Total THC will push consumers and producers to black market.	PTSD, digestion.	Total THC makes it impossible to grow for CBD.		Total THC will push consumers and producers to move out of state.		
CH	Sequatchie	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.		Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.				Bans all natural and organic flower.	A ban on flower is not what Tennesseans want.	
BB	Davidson	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Tourist's syndrome. THCa is only remedy that has lessened symptoms.		Bans CBD flower.	Bans THCa flower, vapes, and concentrates.		
CM	Unknown		X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
MH	Davidson	Email	X			Wants safe, regulated access to THCa products.	Chronic back pain, inflammation.		Bans CBD flower.	Bans THCa flower, concentrates, and vapes.		
CT	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
CL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
IQ	Davidson	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Rheumatoid arthritis. Hemp products are more natural, affordable, and effective for treatment.		Bans CBD flower.	Bans THCa flower, vapes, and concentrates.		
CB	Unknown		X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
MB	Unknown	Email		Rules as proposed change definition of hemp.		Total THC pushes consumers back to black market.	PTSD, stress, anxiety, insomnia.	CBD helps thousands of people and should not be banned.	Rules as proposed indicate lack of care for citizens. Rules as proposed only benefit risk demographics.	total THC will decrease state tax revenue through lost sales.		
CH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
CC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
CV	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
WT	Davidson	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.			Sales lost to black market will decrease state tax revenue.	Bans THCa flower, vapes, and concentrates.		
	Unknown		X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
	Unknown		X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
CL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
CL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
CR	Unknown		X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		
CR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.		

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DS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DF	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
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DZ	Unknown	Email			People's livelihoods will be destroyed.			The citizens of Tennessee should be allowed to choose what they ingest and allow the citizens of Tennessee to choose healthier alternatives when it comes to cannabis.			*Commenter doesn't distinguish between the statute and proposed rules. "It is unfair that people are being targeted before this has even passed into law and people's livelihoods are being destroyed. People who were on board with regulations beforehand and supported safer regulations who are now instead being punished for following the rules but had no idea of this last minute change to the rules. The way things have been running up until now has been perfectly fine and many citizens of Tennessee have expressed happiness that they can buy hemp legally instead of something that may be harmful." *Commenter claims lack of notice or rulemaking: "These regulations should not be hidden and the general population should be able to hear about this publicly so that everyone in Tennessee is aware of the law that is trying to be passed under the peoples noses without their knowledge. At the very least you should allow citizens and businesses time to adjust for new regulations so that everyone can be compliant in their efforts of safe and legal cannabis in the state of Tennessee."
DH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	Commenter emphasizes use of template was for convenience and clarity and that is a real person making genuine comment.
DV	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
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MJ	Hamilton	Email			THCa flower is grown locally in TN and without pesticides or dangerous chemicals sprayed on it.	Will push consumers back to black market, where safety of products is uncertain.	Pain, insomnia.			Bans THCa flower.	Will push consumers to purchase THCa flower and/or marijuana out of state.
CM	Unknown	Email			Total THC standard will destroy businesses and jobs.	Total THC will push consumers to purchase marijuana.	Marijuana prohibition is laughable for verifiable reasons (that commenter does not name).	THCa sales generate state tax revenue.	THCa sales are compliant with federal government.		Constituent expects comment will not be read or responded to. Who does a Total THC standard serve? There is no problem with allowing THCa sales.
AH	Hamilton	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.	Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.					Bans all natural and organic flower.	A ban on flower is not what Tennesseans want.
EC	Hamilton	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.	Tennesseans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseans to the black market where products are not tested and are served with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.					Bans all natural and organic flower.	A ban on flower is not what Tennesseans want.
AC	Unknown	Email			Will push consumers to purchase alternate products from black market that put those consumers in danger, e.g. Increased risk of fentanyl exposure. Buying cannabis from dispenser ensures safe products are being sold. Total THC will cause hundreds of people to die.	Uses marijuana to medicate issues that doctors have failed to aid.	Bans CBD. Anyone wishing to ban it is only because it is considered a "gateway drug".	Banning marijuana is taking away personal freedom.			Who does banning marijuana serve? Banning CBD
DB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DB	Unknown	Email			Cannabis helps social anxiety and relief from pain. Is a sleep aid. Cancer patients use for nausea and pain. Helps with mobility for those with fibromyalgia. THCa treats pain and anxiety without dependence.	When cannabis use not feasible due to employment drug tests, people risk addiction to opioids to manage pain. NSAIDs can damage GI system.		Look at the big picture and please stop trying to fix something that isn't broken. Of all the substances causing problems in this great State, as well as the entire Nation, I assure you Hemp Derived Cannabis products are the absolute least of our worries.			Millions of people can function on small doses of THC, and harmful overdose is practically scientifically impossible. Cannabis helps people recover their lives after addition to opioids and/or physical suffering because pharmaceuticals don't help. Banning products will disproportionately affect those who use and depend on products medically.
DF	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
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DW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DV	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	

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DR	Unknown	Email			Total THC will push retailers out of state. Stores will not be able to afford testing requirements or keep up. Will go out of business and employees will lose jobs. Consumers will lose access to products want and/or need.	Commenter is former hemp farmer who says left industry because of total THC rule imposed on growers. TN has pushed majority of farmers to quit.	Need safe access to regulated products.	People use hemp medicinally.	Without hemp, consumers will be forced back to pharmaceuticals, and former drug addicts will turn back to drugs.	Not representing the public's wishes.	State will lose tax revenue if businesses are forced to close.	Total THC will push retailers out of state. Standard already forced majority of hemp farmers out of the industry.	Retail locations should not have to test products- all product testing requirements should be done at manufacturing stage. Redundant and waste of time for both to have testing requirements.	Implies TDA was the one who imposed Total THC requirement on hemp producers.
DF	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Bans CBD flower.		Lost wife to breast cancer in 2018. Years of chemotherapy and cancer drugs. One of her only reliefs was flower cannabis.		Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
DR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.				
DR	Unknown	Email												Why is Alcohol legal and you trying to make THCa illegal?
														Why is tobacco legal and hemp illegal?
														Why is hemp incidences are not even on the scale ... and we have multiple laws against both?
														Why can we drink but not smoke as adults?
MA	Unknown	Email						If TN cannot support medical marijuana program, it should at least unshibit hemp product use. Medical marijuana should at least be authorized for veterans.	Total THC takes away individual rights.					
DC	Unknown	Email						Hemp rules should not change unless/until cannabis is legalized in TN.						
RB	Davidson	Email					THC is a non-addictive pain reliever.	Opioids are addictive; THC is an alternative.						
HR	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.			Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
AP	Davidson	Email	X			Wants safe and regulated access to THCa products. Will push consumers to black market, which will increase crime rates and exposure to dangerous products.	Bans CBD flower.	Inflammation			Bans THCa flower, vapes, and concentrates.			
BM	Wilson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.			Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.		
JG	Davidson	Email				Wants safe and regulated access to THCa products.		Severe Obsessive Compulsive Disorder. THCa is the only medication that eases symptoms.			Bans hemp products and THCa.			
DK	Davidson	Email						Cannabis has medical upside. Soft drinks, whiskey, cigarettes, and double-stuffed cookies do not.	Department of Agriculture is interfering with individual choice/freedom to choose cannabis.					
KM	Unknown	Email				Will push consumers to black market to purchase THC products instead of regulated THCa products.		Chronic pain. Natural pain reliever without risk of addiction or overdose.	THCa alternative lessens likelihood of opioid addiction, which is at epidemic levels.	THCa allows consumers to purchase cannabis in a legal way.	Keep THCa legal.			
MR	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Bans CBD flower.				Bans THCa flower, vapes, and concentrates.			
RS	Hamilton	Email				Pain, spasticity, and walking debilitation from spinal cord injury. Prescription medicines have some palliative effect but not on par with THC, THCa, and CBD as alternative medicines.				Medical cannabis should be legalized.			Medical marijuana is legal in Georgia and has no known negative impacts.	
						Benefits of THC, THCa, and CBD outweigh any other concerns with the substances.								
EA	Unknown	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.		Tennesseeans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseeans to the black market where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis.					Bans all natural and organic flower.		A ban on flower is not what Tennesseeans want.	
DR	Unknown	Email							The People have Spoken, this is a safe legal regulated product no different from alcohol!					
	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.				
ML	Unknown	Email				Stress, pain, tremors. THCa is the only remedy that helps.		THCa is closest equivalent available to marijuana legalization.	Politics of cannabis regulation is compromising citizen health.					
MS	Unknown	Email		Total THC is misinterpretation of HDC statute.		Wants safe and regulated access to cannabis products. Will push consumers to black market.		Recreational marijuana should be legalized in TN.		Total THC will result in decline in state tax revenue.		Will push market to other states.		
SC	Unknown	Email				Arthritis pain, insomnia. Prefers using natural product for relief rather than a chemically derived pharmaceutical.	Bans CBD.				Bans hemp products.			
DA	Davidson	Email		Total THC standard exceeds departmental authority under TN law.			Bans CBD flower, which is legal in Tennessee.				Bans THCa flower, which is legal in Tennessee.		Labeling requirements are unreasonable and may cause market confusion re consumer education. Department should support hemp businesses and economic opportunities for hemp products.	

SR	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Major depression, severe acid reflux, insomnia.	Cannabis may alleviate alcohol-induced suicide ideation and/or alcoholism.	Bans CBD flower.		Bans THCa flower, vapes, and concentrates.	
ED	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Anxiety.	Hemp products are better aid for anxiety than alcohol.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry. Hemp products help commenter grow philosophically and creatively, while improving her quality of life.
DW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
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DS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DF	Unknown	Email					THCa is a replacement for pharmaceuticals without the side effects. THCa replaces THC and helps people stay clean.				Banning THCa will negatively impact people who rely on it for medicinal uses.
SL	Hamilton	Email	X	Rules misinterpret 2023 statute. Rules redefine hemp.	Tennesseeans want safe access to flower and cannabis that is tested and grown locally. Rules force Tennesseeans to the black market, which increases crime rates, and where products are not tested and are sprayed with fentanyl and other toxins. The black market is the thing that is most unsafe about cannabis. Fentanyl cases are on the rise.	Pain, anxiety, depression, arthritis, Parkinson's Disease, cancer.	Opiod crisis is real, but cannabis provides a safe alternative for pain relief. Unlike opiods, cannabis is non-addictive and does not kill the consumer.	Medicinal and recreational cannabis programs bring great benefits to states that run them.	Legalized marijuana program could fund schools and parks.	Bans all natural and organic flower.	A ban on flower is not what Tennesseeans want.
DW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
AR	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Natural hemp grown by good hearted farmers is the only way to go.		Hemp products treat and can cure diseases. Hemp is an alternative to pharmaceutical drugs.	All cannabis should be legalized.	TN known for agriculture and commerce- its hemp laws are moving state backwards.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Existing hemp laws are sufficient to protect consumers. Humans have been using hemp for thousands of years. There is not one thing wrong with hemp; it's a natural plant.
DO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
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DK	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DN	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DN	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
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DL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
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CJ	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.
DG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.

GW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
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D	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DB	Unknown	Email					Marijuana should be legal. What is legal should stay legal." With all the effort and rules that have been followed to make THC available for everyone has been a struggle and a long journey just to get it out there has been a marvelous feat."	What to grow should be an individual choice, not the government's. Seems as though hemp laws are just for the government to make money.		Pesticides and chemicals that cause serious health issues are allowed in/on food, but it seems anything that takes money away from pharmaceutical companies is not allowed.	
	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
VB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
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GS	Davidson	Email		Rules misinterpret 2023 statute and conflict with federal law. Rules redefine hemp.	Testing for THCa concentration in locally grown hemp plants would essential kill the legal hemp industry in Tennessee.	Hemp products are widely recognized as medicine that are now irreplaceable to thousands of community members and millions of United States citizens who utilize the legal hemp industry in place of pharmaceutical giants.	Medical marijuana should be legal.	Hemp sales have been legal for 5 years now. New laws take TN backwards not forwards. To benefit the state, legal hemp products accessible to those that use for medicinal purposes.			
AR	Knob	Email	X			Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products.	Bans CBD flower.			Bans THCa flower, vapes, and concentrates.	
FP	Hawkins	Email	X			Want safe access to hemp. Rules should remove provisions that restrict safe access to hemp.	Many individuals depend on benefits of hemp products.				
DP	Warren	Email			THCa, CBD flower, concentrates, and vapes have economic potential.	It is vital to strike a balance that ensures safety and regulation while also respecting the rights of consumers and the potential of the hemp industry.	Anxiety, seizure disorder. Significantly improves quality of life.	Rules pose total ban on edible hemp products, which was not the intent of the law to create a legitimate, safe, and well-regulated marketplace for hemp products.			
CK	Davidson	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokeable hemp products.		Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokeable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Quality of life.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as ill conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.	
DP	Unknown	Email				Hemp products are naturopathic holistic treatments for medical diagnoses.	Medical marijuana should be legal.	Tennessee's regressive decisions pertaining to naturopathic holistic treatments is a tragedy to the health care field at large. Tennessee NEEDS to recognize scientific data over public ignorance.		Banning hemp products will negatively impact people who use and rely on them medically.	
	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
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DC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
DH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
EC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
ES	Unknown	Email			Licensed hemp grower. From a business standpoint, proposed changes from TDA will simply cripple an already struggling industry. As a grower, we are already behind times in keeping up with our neighboring states and states across the nation. The revenue we are losing as a business is astronomical. Furthermore, as an employer, adding and keeping jobs readily available is hard enough in this day's economic climate. Changing laws as proposed will end in businesses having to shut down and families losing income in an already jobless and difficult economy.	Cancer-manages pain while still being alert mentally as opposed to the effects of prescription drugs.	Medical marijuana should be legal.	These laws are a step in the wrong direction when TN should be moving forwards.		All the surrounding states will receive revenue instead. Case in point, the same thing happened to Ohio when Michigan changed their laws to prosper while Ohio residents went across the state to take advantage of said laws.	*Financial experts are warning the federal government and states of an impending implosion of our economy and here we are as a state looking to strangle an industry that has a bright and upcoming future for everyone involved. I understand that this is not an easy subject as I am conservative in my political beliefs. I have had to wrestle with my thoughts but in the end see the big picture overall. please reconsider and use common sense in the rules put forth.
	Unknown	Email				Alcohol does more damage.		In other states, THCa is outpacing legal cannabis markets in term of generating economic growth.		THCa should be regulated like alcohol, not made illegal.	
ES	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	

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NS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
NS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
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N	Unknown	Email			THCa is a sleep and anti-anxiety aid.					Keep THCa legal.
SB	Unknown	Email		Banning THCa will destroy the industry (retail, wholesale and agricultural).	Wants safe access to regulated hemp products through reputable retailers. Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not.	Keep CBD flower legal.		Banning THCa will cut out a huge portion of revenue.	Keep THCa legal.	
MB	Unknown	Email			Wants safe access to regulated hemp products through reputable retailers. Will push consumers back to black market. Consumers will pursue THCa and CBD flower, whether they are legal or not.	CBD helps tens of thousands of Americans dealing with multiple health problems. PTSD, stress anxiety, sleep.	New Data are evidence the government does not care about Americans. Need to consider all Americans not just those with money and influence.	Turning to black market for products will reduce tax revenue for state.	Keep THCa legal.	Will negatively affect consumers who use and rely on products medicinally.
MN	Unknown	Letter		Exceeds current federal and state law.	Wants safe access to regulated hemp products through reputable retailers. Will not protect public health but will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins via untested and mislabeled high potency products. Consumers will pursue THCa and CBD flower, whether they are legal or not.		Is a return to Prohibitionist policy which does not work. Would restrict legal commerce and empower an illegal market.	Will reduce millions in tax revenue. Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Would ban products for which there is a high customer demand.	Businesses will contemplate relocating to more business-friendly states. Illicit market targets marketing to youth, which will undo the purpose of the statute.
LV	Unknown	Letter		Conflicts with state law.	Dispensary that employs 26 people and has 18,000 active customers in 3 states. Banning THCa would impact sales and business viability.	Wants safe access to regulated hemp products and is committed to self-regulation and compliance with 2018 Farm Bill.	Chronic pain, sleep disorders, anxiety, and neurological conditions.	Will significantly reduce tax revenue. In 2023, TN sales were \$6.2M and firm paid \$700K in state taxes.	Will give an advantage to out of state retailers not subject to state's restrictions.	Businesses are imbedded in local economies and contribute to regional business ecosystem. Serve a genuine need in communities.
AL	Unknown	Letter		Statute defines "THC" as "delta-9 tetrahydrocannabinol" and specifically places its concentration limit of not more than 0.3% on a dry weight basis on "delta-9 tetrahydrocannabinol [THC]" only.	Total THC standard will cause significant economic disruption, job loss, and a decline in tax revenue.			Will result in drastic decline in tax revenue.	Will cause significant economic disruption, job loss, and a decline in tax revenue. THCa is a significant component of many hemp products and represents a large segment of the total market. THCa products will not be regulated or taxable.	2. 0880-10-02-.02(2)(i). The draft rules overstep the Department's statutory authority by imposing the 0.3% delta-9 THC concentration limit on intermediate products. State law explicitly allows for hemp concentrates to have up to 3% delta-9 THC concentration, acknowledging that the manufacturing process dilutes these concentrates to legal limits for final consumer products. The Department's rule does not reflect this statutory allowance and could inadvertently criminalize lawful conduct that is a standard industry practice. To rectify this issue, we suggest that the draft rules be amended to delete the sentence related to intermediate products. 3. 0880-10-02-.02(2)(i). Definition of "intermediate products" as "THC products" serves no necessary purpose because these products are not consumed. It is not necessary to apply a 0.3% delta-9 THC limit to intermediate products, especially given the statutory provisions that accommodate higher concentrations for manufacturing purposes. The current rule does not account for practical aspects of product formulation and could 1. 0880-10-02-.02(2)(i). The draft rules overstep the Department's statutory authority by imposing the 0.3% delta-9 THC concentration limit on intermediate products. State law explicitly allows for hemp concentrates to have up to 3% delta-9 THC concentration, acknowledging that the manufacturing process dilutes these concentrates to legal limits for final consumer products. The Department's rule does not reflect this statutory allowance and could inadvertently criminalize lawful conduct that is a standard industry practice. To rectify this issue, we suggest that the draft rules be amended to delete the sentence related to intermediate products.
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BC	Davidson	Letter		Conflicts with state statute and subject to legal challenge. Under 43-27-102) hemp definition, hemp measured solely by Delta-9 content and applies to plant and all constituent parts and derivatives. Part 2 defines HDC products and imposes limitations only as to HDC products containing Delta-9 = 0.3%. THCa does not contain Delta-9 so no limit, but rules expand allowable concentration of a product's Delta-9 AND THCa content.	Businesses will suffer and be forced to close.		TN will lose millions in tax revenue.	Retailers won't be allowed to sell but still legal to possess under federal and state law. Citizens could still purchase elsewhere and use, and bring back into TN.	Consumers will still purchase and use THCa--will just go to neighboring states to get it.	0bo Cultivate Tennessee

BC	Davidson	Email		Conflicts with state statute and subject to legal challenge. Under 43-27-101 hemp definition, hemp measured solely by Delta-9 content and applies to plant and all constituent parts and derivatives. Part 2 defines HHC products and imposes limitations only as to HHC products containing Delta 9 + 0.3%. THCa does not contain Delta 9 so no limit, but rules expand allowable concentration of a product's Delta-9 AND THCa content.	Businesses will suffer and be forced to close.		TN will lose millions in tax revenue.	Retailers won't be allowed to sell but still legal to possess under federal and state law. Citizens could still purchase elsewhere and use, and bring back into TN.	Consumers will still purchase and use THCa--will just go to neighboring states to get it.	abo Cultivate Tennessee	
MN	Unknown	Letter		Exceeds current federal and state law.	Would have a devastating impact on the state's hemp industry. Would ban most hemp-based products from the legal market and force businesses out of state.	Wants safe access to regulated hemp products through reputable retailers. Will not protect public health but will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins via untested and mislabeled high potency products. Consumers will pursue THCa and CBD flower, whether they are legal or not.	Is a return to Prohibitionist policy which does not work. Would restrict legal commerce and empower an illegal market.	Will reduce millions in tax revenue. Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Would ban products for which there is a high customer demand.	Businesses will contemplate relocating to more business-friendly states.	Elicit market targets marketing to youth, which will undo the purpose of the statute.
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LD	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.		Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
LC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.		Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
LB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.		Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
LP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.		Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
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LS	Unknown	Email				Consumers do not overdose on hemp and THCa products.	Stress, anxiety, insomnia, eating disorders, depression.				Hemp and THCa products at retail provide a convenience for the community. Hemp and THCa are legal in all other states.
LB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.		Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
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LH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.		Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
LH	Unknown	Email				Consumers will still seek products whether legal or not.	Arthritis and inflammation.	Bans CBD.	Will lower tax revenues for TN.	Will push consumers to buy out-of-state. Tax revenue will then go to another state.	Commenter agrees hemp industry needs regulation and formulary rules, but products should not be taken away.
	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.		Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
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[illegible]

[illegible]

[illegible]

MP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		THCa helps migraines so people don't have to resort to taking too much medication.		The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	
NB	Unknown	Email										
NO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
OA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
OP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
M	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.				Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them		
OC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.				Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them		
AB	Unknown	Email					THCa helps with anxiety and staying focused.					
T	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
PS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
PZ	Unknown	Email			It's a very important herb and if you block it how will these websites up charge the price? THc A is sold in every bodega every smoke shop and this online bodegas are just that bodegas veterans grown aneta flame train are riding a high they never thought would come down now reality has set in this marijuana even if you call it hemp so it doesn't matter if it's illegal only this janky THc A websites							
PM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
PM	Unknown	Email			The industry currently provides a high value avenue for job growth that did not exist before, and these jobs create safe, natural, and medically valuable products for the enjoyment and health of our communities.		The legalization of cannabis recreationally is proven to decrease abuse of the dangerous narcotics that plague our country today.		Besides the extremely high potential tax revenue for our state, which could be directed towards crucial infrastructure such as roads and education, which are much needed in both rural and urban population centers.			
PD	Unknown	Email			Going forward with this ban is a bad idea, it hurts businesses in the community, it hurts people who can't exactly treat their ailments with traditional medicine and it brings people together.		THcA helps with anxiety.				You're taking away something that's legal in other states and for what? You're only putting more people at risk by forcing them to go to the black market with this ban	
PD	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
MS	Rutherford	Email		One of the pivotal issues revolves around the definition of hemp. Under the federal law and our state's law, hemp is recognized as a cannabis plant that has less than 0.3% Delta 9 THC. However, the TDA's proposed redefinition factors in non-psychotropic cannabinoids like THcA, which, despite being distinct from Delta 9 THC, still get lumped under the same banner. It's worth noting that THcA or any other cannabinoids exempting DP THC require a considerable level of manipulation to convert into an illegal THC variant.		The proposed amendments make it nearly impossible for me and my fellow seed producers to justify any form of crop investment, given the challenging likelihood of breaching the proposed rules, or run the risk of not meeting the required compliance by TDA, as most crops could fall for insurance purposes under these new guidelines. It is important to mention that the state has produced various agricultural products due to the unavailability of compliant seeds can have dire consequences on many small businesses and farming communities across the state.			Proper implementation and enforcement of taxation and compliance with hemp-derived products can not only stabilize our state's economic situation but also enhance the understanding and acceptance of this crop among all stakeholders.			
RD	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
RG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
RM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
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R	Unknown	Email					People like me use hemp which has some THC in it. Helps with depression and anxiety.					
RD	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.			Baris CBD flower.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.	
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[illegible]

[illegible]

[illegible]

TC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
MF	Unknown	Email				I am a firm believer that hemp and the help with THCa help with my RA. The inflammation and pain that goes with it. Medicine can go so far before one's body get used to it.					
MP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
TD	Unknown	Email				THCa is invaluable to recovery and pain management after surgery					
MS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
MH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	
MK	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
TL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
MM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
NB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
NW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
NH	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
NM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
OF	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.
PO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Wants safe access to regulated hemp products. Mfg and retailers cannot sell but will still be legal for consumers to possess.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
SB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
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SC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
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SF	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
	Unknown	Email				Hemp and THCa has helped commentor's life tremendously.		Short sighted and uninformed if ban products.		Keep THCa legal.	
SB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
TCW	Hamilton	Email			Would cripple the growing tourism industry that Nashville and Chattanooga (and Clarksville to an extent) have created. Both of those cities have seen major upticks in tourism and travel since they became RoadPoints in the hemp marketplace nationwide	People use products rationally.	The state has allowed a legal/grey recreational marijuana market now for about 5-7 years (really a decade if being technical). The rest of the nation is not repealing this marketplace from the farmbill.	You're choosing that rather than just creating a state controlled marketplace that you can adjust to the state govt's liking to a variety of ways from THCa to pricing to who can grow what and where and sell what and where. I encourage you to rethink this decision for your constituents sake.	There are at minimum a few hundred to a thousand tourists who visit Nashville and Chattanooga every single weekend due to the hemp marketplace. The way the proposed regulation is being done by the state will kill your own local economy.	Keep THCa legal.	
MN	Unknown	Letter		Exceeds current federal and state law.	Would have a devastating impact on the state's hemp industry. Would ban most hemp-based products from the legal market and force businesses out of state.	Wants safe access to regulated hemp products through reputable retailers. Will not protect public health but will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins via untested and mislabeled high potency products. Consumers will pursue THCa and CBD flower, whether they are legal or not.	GA/SC/AL/MS are not going to repeal the law or outlaw hemp derived THCa. GA is closer to a legal marketplace than repealing THCa, same with SC/AL and MS. I'm sure you're aware of this however.	Is a return to Prohibitionist policy which does not work. Would restrict local commerce and empower an illegal market.	Will reduce millions in tax revenue. Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Would ban products for which there is a high customer demand.	Businesses will contemplate relocating to more business-friendly states. Elicit market targets marketing to youth, which will undue the purpose of the statute.

MN		Letter	Exceeds current federal and state law.	Would have a devastating impact on the state's hemp industry. Would ban most hemp-based products from the legal market and force businesses out of state.	Wants safe access to regulated hemp products through reputable retailers. Will not protect public health but will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins via untended and mislabeled high potency products. Consumers will pursue THCa and CBD flower, whether they are legal or not.	If you repeal the farm bill writing now, it won't have the results you're intending. Usage won't go down, arrest and crime rates will stay exactly the same, and local industries will suffer. The hemp companies suffer, the hotels suffer, the restaurants and bars suffer, the aquarium suffers, the parks with venues for events suffer. It's a chain reaction you are going to cause with this one horrible decision.	Is a return to Prohibitionist policy which does not work. Would restrict legal commerce and empower an illegal market.	Will reduce millions in tax revenue. Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Would ban products for which there is a high customer demand.	Businesses will contemplate relocating to more business-friendly states.	Illicit market targets marketing to youth, which will undue the purpose of the statute.	
MN		Email	Exceeds current federal and state law.	Would have a devastating impact on the state's hemp industry. Would ban most hemp-based products from the legal market and force businesses out of state.	Wants safe access to regulated hemp products through reputable retailers. Will not protect public health but will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins via untended and mislabeled high potency products. Consumers will pursue THCa and CBD flower, whether they are legal or not.		Is a return to Prohibitionist policy which does not work. Would restrict legal commerce and empower an illegal market.	Will reduce millions in tax revenue. Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Would ban products for which there is a high customer demand.	Businesses will contemplate relocating to more business-friendly states.	Illicit market targets marketing to youth, which will undue the purpose of the statute.	
WH	Hamilton	Letter	Department has adopted and implemented new formula to change definition of allowable hemp products simply because products may be smoked. Federally preempted. Exceeds state law.	Businesses relied on the state to invest in their business and sell products to earn livelihoods.	Rules as written will drive consumers and products back to black market at equal or greater level than marijuana.	Bans CBD flower.	Psychoactive effect of smokable CBD and THCa flower is less than medical marijuana.	Intent of legislation to allow hemp products to be marketed, controlled, and sold subject to sales tax and take off black market. Should be consumer's choice whether to consume THCa.	70-80% of current retail products are flower products. Ban would harm retailers and reduce tax revenue.	Bans THCa flower. HDCs with Delta-9 concentration below 0.3% is permissible, but is not permissible with other HDC products that do not contain Delta-9.	Rule 0080-10-01-.06(4) references pursuit of criminal charges but T.C.A. 43-27-203 does not.	Represents a hemp farm and manufacturer. Discusses legislative history of new statute. Rule referenced in "other" is a hemp grower rule.
WH	Hamilton	Email	Department has adopted and implemented new formula to change definition of allowable hemp products simply because products may be smoked. Federally preempted. Exceeds state law.	Businesses relied on the state to invest in their business and sell products to earn livelihoods.	Rules as written will drive consumers and products back to black market at equal or greater level than marijuana.	Bans CBD flower.	Psychoactive effect of smokable CBD and THCa flower is less than medical marijuana.	Intent of legislation to allow hemp products to be marketed, controlled, and sold subject to sales tax and take off black market. Should be consumer's choice whether to consume THCa.	70-80% of current retail products are flower products. Ban would harm retailers and reduce tax revenue.	Bans THCa flower. HDCs with Delta-9 concentration below 0.3% is permissible, but is not permissible with other HDC products that do not contain Delta-9.	Rule 0080-10-01-.06(4) references pursuit of criminal charges but T.C.A. 43-27-203 does not.	Represents a hemp farm and manufacturer. Discusses legislative history of new statute. Rule referenced in "other" is a hemp grower rule.
PS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
PU	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
PC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
PMB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
PT	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.		
PS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.		
QR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
RA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.		Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach.	From a school email account, with disclaimer at the bottom beginning with "This email and any attachment to it are confidential and is for the intended recipient only..."	
RW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
RF	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
RO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute.	Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.	Bans CBD flower.	Proposed rule's divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
SA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans hemp flower, several vape, and concentrate products.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
TZ	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
TM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
TP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
TA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		
TO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.		

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ALB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent. THCa is clearly allowed in the bill.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community. Responsible business owners will ensure safe products are sold in Tennessee.	Encourages black market business that is dangerous AND hurts small business owners.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.	Will result in drastic decline in tax revenue.	Bans THCa flower, vapes, and concentrates. If rules passed as written, THCa products will not be regulated or taxable. Total THC standard bans sales but does not prevent people from possessing or consuming THCa products. Total THC standard goes against efforts to authorize sales of delta-8 and delta-10 as well as THCa.	Changes to the rules must be made with transparency and in consultation with industry. Changes to the rules must be made in a fair and balanced approach. Will take this to the Supreme Court and you will lose after costing a lot of people.	
JC	Unknown	Email						Prescribed medicines have more side effects and cost factors, especially on limited income people.					
ZS	Unknown	Email										Adopting USP <232> within regulations would not only elevate our safety protocols for Heavy Metal Analysis in HOC and Inhalable HOC products but also align our standards with those that are broadly recognized and enforced both federally and internationally.	
JA	Unknown	Email						Alternative treatment for anxiety, migraines, and other ailments.					
JB	Unknown	Email	X			Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.							
DET	Unknown	Email				Wants safe access to regulated hemp products. Mig and retailers cannot sell but will still be legal for consumers to possess.			Bans CBD flower.			Smokeable THCa's benefit TN's economy and supports local products made in here in TN.	
						Will drive consumers back to the illicit market, undermining the progress made by licensed and regulated hemp product retailers in TN. Forcing people to resort to the illicit market not only heightens the risk of criminal activity but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.							
DG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Total THC will push consumers and producers to black market with all the toxins the black market carelessly poisons people with.			THCa and CBD flower, vapes, and concentrates.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue. 6% tax revenue generated by hemp products can be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
JM	Hamilton	Email				If the bill changes to 0.3% total THC, that would make it impossible to even grow CBD.			Total THC makes it impossible to grow for CBD.			Changing limit on THCa would make businesses and consumers pack up and leave TN.	
WS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.				Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	
NP	Davidson	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Forcing people to resort to the illicit market not only heightens the risk of criminal activity but also exposes individuals to potentially harmful substances like fentanyl and other toxins.			THCa and CBD flower, vapes, and concentrates.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	
CL	Davidson	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Forcing people to resort to the illicit market not only heightens the risk of criminal activity but also exposes individuals to potentially harmful substances like fentanyl and other toxins.			THCa and CBD flower, vapes, and concentrates.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	The approved 6% tax revenue generated by hemp products can be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.
MJ	Hamilton	Email						Pain relief and insomnia.				Bans THCa flower.	I buy locally from FarmToMed is grown locally and without pesticides or other dangerous chemicals sprayed on it. It is a very clean product and it helps me tremendously with . By taking this flower away from the citizens of Tennessee, it is driving the consumer back to the black market. The black market is a strange place. You never know what you're getting or where it comes from.
CM	Unknown	Email		Hemp products federally legal. TN is creating problems where there don't need to be problems.	Hemp industry creates businesses, jobs, and tax revenue. Ban would kill businesses.	People will still seek and consume products whether legal or not.	People use and enjoy products.		Marijuana prohibition is a joke, for many reasons.	Commenter expresses anger with government and states politicians ignore the will of the people who vote them in. TN needs to move forward and listen to its voters.		Tennesseans will just buy from other states and smuggle products in.	Commenter drafted an original email instead of using a template because commenter did not think anyone would read a "copy pasted" email, and voices skepticism the original email will be read.
AH	Hamilton	Email				Forcing Tennesseans to the Black Market where products are not tested and sprayed with fentanyl and other toxins. The Black Market is unsafe for Tennesseans and the most dangerous thing about the cannabis plant.							The Black Market is the most dangerous thing about the cannabis plant.
PM	Unknown	Email							Marijuana (both medical and recreational) should be legal.	Why are some of our elected officials hellbent on moving TN backwards at a time when the rest of the country is reaping the tax benefits of legalized marijuana? The proposed rule changes are nothing but a waste of time, and an example of government overreach at its most extreme. Stop impeding progress and the wishes of your constituents, marijuana (both medical and recreational) is such a non-issue, it almost feels like this is an email I'd be writing 10 years ago.			
JH	Unknown	Email			Bans THC and THCa.				Bans CBD flower.	New hemp laws are a charade.		Bans THC and THCa flower.	Keep THC and hemp products legal.
E	Hamilton	Email				Wants safe access to regulated hemp products.	For those diagnosed with stage three Hodgkin's Lymphoma and undergoing intensive chemotherapy regimens, hemp products mean a great deal. High quality flower greatly aids feelings of nausea, helps people sleep, and helps with physical pain.						
EP	Johnson	Email					CBD helps with neuropathy from strokes and diabetes.	Traditional medications mess with people's organs, and most neuropathy medications don't help.					My dog has been using CBD for his bad leg for a couple years now. Prescription meds were very expensive and damages his organs. The CBD controls his pain and he sleeps easier while using it. I don't know what we would have done without it.
AM	Unknown	Email			Having a safe and regulated industry would provide jobs and quality products for TN.	People will still seek and use products whether legal or not. Banning products would stimulate the black market. Wants safe regulated access to hemp products.	Uses THC to relax, similar to how alcohol is used.	Common sense solution is to regulate this industry, the same way we do with alcohol, and make sure all products are safe and enjoyable for the consumers.		Prohibition does not work-just look at the failure of Prohibition and the problems it caused. People will just break the rules to get the products if they want them.	Banning would reduce tax dollars for the state. A safe and regulated industry would provide tax dollars to fund state programs.		
JT	Unknown	Email						THC as a healthier and safer option than alcohol as a recreational drug.	THCa and CBD flower				
LL	Unknown	Email											
BM	Wilson	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.				Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	
SD	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.				Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.

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	QP	Unknown		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower.			
	SB	Davidson		Email				Having safe and regulated access to these products is so important for our community, and the newly proposed rules would be a major detriment to myself and countless others around the state.	Pain, inflammation, and stress reliever.	Bans CBD flower.	Banning smokable farm products would do a great disservice to people who use products medicinally.	Bans THCa flower, concentrates, and vapes.	
	SB	Davidson		Email				Having safe and regulated access to these products is so important for our community, and the newly proposed rules would be a major detriment to myself and countless others around the state.	Pain, inflammation, and stress reliever.	Bans CBD flower.	Banning smokable farm products would do a great disservice to people who use products medicinally.	Bans THCa flower, concentrates, and vapes.	
	SB	Davidson		Email				Having safe and regulated access to these products is so important for our community, and the newly proposed rules would be a major detriment to myself and countless others around the state.	Pain, inflammation, and stress reliever.	Bans CBD flower.	Banning smokable farm products would do a great disservice to people who use products medicinally.	Bans THCa flower, concentrates, and vapes.	
	SR	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Used for depression and acid reflux.	Bans CBD flower.			
	WC	Davidson		Email		X	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Used for ADHD, depression, and insomnia.	Bans CBD flower.			
	KH	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower.			
	CL	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower.			
	BRO	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Anxiety.	Bans CBD flower.			
	MR	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Anxiety.	Bans CBD flower.			
	BM	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Anxiety.	Bans CBD flower.			
	BM	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Anxiety.	Bans CBD flower.			
	MM	Davidson		Email		X			Used for anxiety and chronic pain.	Bans CBD flower, vapes, and concentrates			
	JW	Sumner		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Cannot use typical medications due effects on heart.	Products provide relief for people who cannot take traditional medications.	Bans CBD flower, vapes, and concentrates		
	JR	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Used for mental health after cancer.	Bans CBD flower, vapes, and concentrates			
	WT	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower, vapes, and concentrates			
	BE	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Helps with pain and keeping off of alcohol.	Helps remain off of alcohol.	Bans CBD flower, vapes, and concentrates		
	BE	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Helps with pain and keeping off of alcohol.	Helps remain off of alcohol.	Bans CBD flower, vapes, and concentrates		
	RG	Davidson		Email		X			Nerve pain for diabetes	Bans CBD flower, vapes, and concentrates			
	LC	Unknown		Email			Owns two CBD and hemp stores. Regulations will force Commenter to close her businesses and lose her life savings.	Black market may be laced with fentanyl					
	DL	Unknown		Email					Used for clinical depression and chronic pain				
	CC	Unknown		Email					Uses for chronic pain from injuries				
	ED	Unknown		Email					Uses for nausea, sleep, and physical pain				
	DW	Unknown		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower, vapes, and concentrates			
	JG	Cheatham		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower, vapes, and concentrates			
	DC	Unknown		Email						Do not change hemp rules in TN until cannabis is legalized.			
	AB	Unknown		Email					People need access to THCa to recover and heal in a lot of different ways. It's a pain reliever.	If alcohol is legal, then THC is the least of anyone's worries. THC helps addicts recover.	Legalize THCa.	Hemp is a natural plant and a natural cure.	
								Commenter sees the positive mental and physical effects of hemp, including THCa, on a daily basis. I realize that both regular THC and THCa look the same and can be difficult to distinguish. However, many adults who use THCa flower choose this form of usage because it begins working faster. In many cases, the speed is helpful when in pain or experiencing a panic attack etc.					
	JH	Unknown		Email			Banning THCa will have an impact on small businesses and their employees. Jobs will be lost, revenue will be lost, and many businesses will struggle to keep their doors open.	Regulate in a safe manner. The only thing banning THCa will accomplish is that people will go to the streets for its illegal counterpart which poses many risks for individuals who just need a non pharmaceutical and non opioi option for their pain relief.		Putting forth the effort into keeping THCa legal and regulating it in a safe manner will pay off in a positive manner in the lives of the majority.	A vast amount of tax money is generated from the CBD and hemp industry.	THCa is a top seller and likewise a top contributor of said tax money. Banning THCa will just send millions of these tax dollars into other states.	
	RA	Unknown		Email		X			Uses for chronic muscle pain.	Bans CBD flower, vapes, and concentrates.			
	RM	Unknown		Email							Don't go backwards on this issue while the majority of the country moves forward!		
	SD	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Uses it for anxiety, depression.	Great alternative to alcohol.	Bans CBD flower, vapes, and concentrates.		
	TH	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower, vapes, and concentrates.			
	TK	Unknown		Email					Uses for disc degeneration and pain.				
	ST	Davidson		Email		X		Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.		Bans CBD flower, vapes, and concentrates.			

BM	Wilson	Email	X			Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Bans CBD flower, vapes, and concentrates.			
JG	Davidson	Email	X			Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Bans CBD flower, vapes, and concentrates.			
DC	Unknown	Email						Regulating these products is overreach. Product should be legitized and taxed.	Revenue would go a long way for TN.	Enforcing THCa legal would alleviate the burden on our public service workers who are forced to enforce these silly restrictions.
SM	Unknown	Email	X			Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Bans CBD flower, vapes, and concentrates.			
LM	Davidson	Email	X			Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Bans CBD flower, vapes, and concentrates.			
TH	Rutherford	Email	X			Forces people to resort to the illicit market and exposes individuals to potentially harmful substances like fentanyl and other toxins.	Bans CBD flower, vapes, and concentrates.			
DF	Unknown	Email				Supports businesses who want to sell THCa.	Supports growers who want to produce THCa.			
MDM	Williamson	Email				Supports proprietors who want to sell product to boost their bottom line while also believing they are doing good works for good people.	Supports growers who want to sell product to boost their bottom line while also believing they are doing good works for good people.			
RJ	Unknown	Email	X							
DK	Unknown	Email								
JM	Unknown	Email								
JP	Unknown	Email	X							
AW	Williamson	Email	X							
NS	Knob	Email				THCa should be grown and sold in TN.	THCa should be grown and sold in TN. This state exists because of agriculture. Let's keep that legacy alive.			Failure to keep THCa legal in TN will send customers and businesses out of state.
CC	Cannon	Email								
KD	Sevier	Email				Total THC standard would make businesses consider moving out of state. Would mean loss of livelihoods for employees. Aligning standard with state statute, instead, would support businesses and reflect the needs and preferences of Tennesseans.				
PMB	Unknown	Email	X			Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			
MA	Unknown	Email								
RN	Unknown	Email								
TG	Unknown	Email								
	Unknown	Email				If you take away THCa, businesses who have been open for years will fail, including commentor's. Business owners have mortgages and employees they won't be able to pay. Support local. TN businesses and keep THCa legal.				
KM	Unknown	Email								
MR	Unknown	Email	X							
MG	Davidson	Email	X							
RS	Unknown	Email								
SP	Unknown	Email								

AY	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute. As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	With long term use of CBD flower, people are able to get off all prescription mental health and pain medications - which have awful side effects I would not wish on anyone. CBD flower may be used medicinally for joint pain and crippling anxiety. Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
AB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute. As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	With long term use of CBD flower, people are able to get off all prescription mental health and pain medications - which have awful side effects I would not wish on anyone. CBD flower may be used medicinally for joint pain and crippling anxiety. Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
CH	Unknown	Email				Please do not make THCa illegal. I believe it is a giant step backwards in hemp law. The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.		Keep THCa legal.
TP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute. As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.		Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them. It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
MW	Unknown	Email			We have nurses, doctors, teachers, seniors, average people - taking these daily for anxiety, pain and insomnia. We have many local physicians sending their patients to us to purchase these gummies. Total delta 8 in the gummies is .25mg which is a normal dose of delta 8. I've been told with the changes made in the regulations, these gummies will be illegal. I'm so confused about this. We don't have any other gummies to sell if these are illegal.			
BK	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCa allows people to sleep and relax better. For people with crippling anxiety, THCa is a blessing to keep them calm and functioning properly.			
ED	Davidson	Email		If the rules are finalized as is, it will drive consumers back to the illicit market, undermining the progress made by licensed and regulated hemp product retailers in TN. Forcing people to resort to the illicit market not only heightens the risk of criminal activity but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	Hemp products make a positive difference in quality of life. These safe and legal products ease the anxiety that comes with living in today's world in a much more preferable way compared to consuming alcohol. Is much better alternative to using alcohol to cope with anxiety.			
RK	Davidson	Email			Delta 9 gummies reduce anxiety. Remove any provisions that could ban smokable hemp products like THCa and CBD flower, concentrates, and vapes.			Remove any provisions that could ban smokable hemp products like THCa and CBD flower, concentrates, and vapes.
MM	Lawrence	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	CBD and THCa help people with anxiety issues and reduces pain from inflammation.			
JR	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	CBD helps people's mental health while dealing with cancer.			
CT	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.				
BV	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	PTSD. Allows people with PTSD to be actively involved in the community.			Consider the Costs vs. Benefits when compared to other substances, such as alcohol, which have caused much greater harm to public health. I believe there is a lot of risk involved in removing this legal status of this product since having it legal and regulated means adequate product testing for contaminants. If the product was deemed illegal, testing may cease entirely.
SS	Hamilton	Email			CBD products nightly help seniors sleep and relieve arthritis .			
T	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	Anxiety.			
AKJ	Davidson	Email		Having safe and regulated access is important for TN communities.	THCa manages PTSD symptoms. THCa helps countless others in TN. Bans CBD flower.			Bans THCa flower, vapes, and concentrates.

	LD	Unknown	Email	The department of Ag is banning all flower with the current set of rules.	Tennesseans want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally.	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans	This is NOT what Tennesseans want or what the bill was intended to accomplish.	
	CR	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	BM	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	AD	Unknown			X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	DA	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	CR	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	LD	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	SS	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	BM	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	SA	Unknown	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
		Unknown	Email				No more Bams Support THCA Sales for Tennessee.	
	KO	Davidson	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		
						THCA & CBD products help those with chronic pain from scoliosis, and mental health issues resulting from PTSD. Commenter is a psychotherapist in Nashville and sees many patients that use these products for a host of issues where traditional therapies have not worked. Some of these issues are depression, anxiety, trauma, OCD, chronic pain, nightmares, and mood disorders. States, "Without these remedies, many of my patients would cease to function normally."	is an effective alternative for conditions where traditional therapies and treatments don't work.	
	KO	Davidson	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans		This bill regulates the sale and distribution of products containing hemp-derived cannabinoids. The bill includes the selling of cannabinoids including THCA, that is clearly listed in the allowable list of HDC. The TN Dept of Ag is misinterpreting the law, and the department is trying to redefine hemp in the rule making process. This will ban all natural and organic flower for Tennesseans to be able to use as they wish. The department of Ag is banning all flower with the current set of rules. This is NOT what Tennesseans want or what the bill was intended to accomplish. We want safe access to flower and hemp derived cannabis products that are properly tested and ideally grown locally
	M	Shelby	Email		X	With these rules, you are forcing Tennesseans to the illicit market where products are not tested and potentially sprayed with fentanyl and other toxins. The illicit market is unsafe for Tennesseans	THCA and CBD improve quality of life for those suffering from PTSD.	
	M	Unknown	Email			THCA and CBD significantly help with anxiety and stress levels, PTSD, and people dying of breast cancer. Doctors advise cancer patients to take THCA/THC as well as CBD.		
	BM	Davidson	Email		X	Having safe and regulated access to these products is so important for our community, and the newly proposed rules would be a major detriment to myself and countless others around the state.	CBD and THCA smokeables are good for mental health and pain management.	With these products, people can get off all prescription anxiety medication and pain pills, all of which have horrible side effects.
	AM	Davidson	Email		X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	Anxiety, pain.	CBD and THCA smokeables help people get off of prescription anxiety and pain medications.
	CO	Davidson	Email		X	I find it that the laws have allowed people to pour their life savings into creating businesses to support their families! Because of lawmakers deciding to change this law which allows safe products available for the consumers!		Bars THCA flower, concentrates, and vapes.
	KB	Unknown	Email		X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bars CBD flower.
							The draft Rule creating a "Total THCa" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.
							THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.

BM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.	It is imperative that any amendments or rule changes are made transparently and in consultation with stakeholders from the hemp industry, ensuring a fair and balanced approach that supports responsible businesses.
JB	Williamson	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.					This resource is healthier and less damaging than many pharmacological solutions for mental health and physical rehabilitation, and this legislation is a misguided attempt at prohibition and vilification of a holistic, healthy, and natural resource.
DM	Madison	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	CBD helps people eliminate need for opioids, and it solves back pain issues.				
AM	Davidson	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	CBD and THCa smokeables help people get off of prescription anxiety and pain medications.	Bans CBD flower.		Bans THCa flower, concentrates, and vapes.	Keep THCa legal.
TH	Lawrence	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.					
RZ	Davidson	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	CBD and THCa manages anxiety/depression as well as the aches and pains of aging.				God given plant.
JV	Davidson	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	Recovery from excessive alcohol consumption and leading a much healthier life by consuming THCa, instead.	THCa helps people get over excessive alcohol consumption and is a much healthier alternative.			
BI	Davidson	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.					
JM	Bedford	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	THCa is a legal alternative to marijuana for coping with anxiety and depression. Legal THCa flower means people don't have to go to the black market anymore.	Tennessee has no other options for people with anxiety and depression so please do not make THCa flower illegal in Tennessee. Please keep it for adult use only.		Keep THCa flower legal.	
JMG	Davidson	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	For myself, this plant has completely changed my life. The relief of using a product along with the joy of its depth and breadth has been a beautiful gift of wellness. For mind, body and soul, it's a rich commodity that Tennesseeans should be allowed to experience.		Beyond the immediate impact on consumers, regulated programs have demonstrated broader societal benefits. The approved 6% tax revenue generated by hemp products can be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.		
CP	Shelby	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	For me personally THCa and CBD smokeables have helped tremendously with my stomach issues and digestion!				
MK	Davidson	Email	X		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.	For me personally Hemp and THCa have been a lifesaver.				
SH	Unknown	Email				If this bill is continued to pass, I will no longer be able to legally purchase the only medicine that has seemed to help with my symptoms, and gives me the ability to stop taking all pharmaceuticals that I previously required to function properly in society				
JM	Hamilton	Email			Total THC will push consumers and producers to black market with all the toxins the black market carelessly poisons people with.	PTSD. Digestive issues.	Total THC makes it impossible to grow for CBD.		Changing limit on THCa would make businesses and consumers pack up and leave TN.	
OH	Sequitrie	Email	X		We want safe access to flower and cannabis products that are tested and grown locally. You are forcing Tennesseeans to the Black Market where products are not tested and sprayed with fentanyl and other toxins. The Black Market is unsafe for Tennesseeans and the most dangerous thing about the cannabis plant.					

[illegible]

[illegible]

	BV	Unknown	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses. If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCA helps manage anxiety.			
	MR	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	Hemp and THCA products are truly life saving for people who have anxiety. It's crucial we have access to this safe and multi beneficial plant.			
	BV	Unknown	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCA helps manage anxiety.			
	BV	Unknown	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCA helps manage anxiety.			
	MR	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	Hemp and THCA products are truly life saving for people who have anxiety. It's crucial we have access to this safe and multi beneficial plant.			
	MM	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.				
	MM	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.				
	KD	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCA significantly decreases anxiety, OCD, and ADHD symptoms.			
	SB	Davidson	Email		Having safe and regulated access to these products is so important for our community, and the newly proposed rule would be a major detriment to myself and countless others around the state.	Pain, inflammation, and stress reliever.	Bans CBD flower.	Banning smokable farm products would do a great disservice to people who use products medicinally.	Bans THCa flower, concentrates, and vapes.

SR	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	cannabis. My father committed suicide years ago, as he struggled greatly with alcoholism. If he turned to cannabis, he'd still be alive. This rules in my family depression and alcoholism. When I found cannabis, my life turned around. I no longer turn to alcohol. I out on Broadway. I no longer struggle to fall asleep and stay asleep. I no longer walk around needing to dry-heave or vomit. I finally have found a substance that solves so many problems in a safe way. "Thank you, thank you," I struggle with major depression and severe acid reflux, both put at ease with simply cannabis. My father committed suicide years ago, as he struggled greatly with alcoholism. If he turned to cannabis, he'd still be alive. This rules in my family depression and alcoholism. When I found cannabis, my life turned around. I no longer turn to alcohol. I out on Broadway. I no longer struggle to fall asleep and stay asleep. I no longer walk around needing to dry-heave or vomit. I finally have found a substance that solves so many problems in a safe way. Please do not take this	is a safe alternative for people to choose over alcohol/recover from alcohol addiction.
SR	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	cannabis. My father committed suicide years ago, as he struggled greatly with alcoholism. If he turned to cannabis, he'd still be alive. This rules in my family depression and alcoholism. When I found cannabis, my life turned around. I no longer turn to alcohol. I out on Broadway. I no longer struggle to fall asleep and stay asleep. I no longer walk around needing to dry-heave or vomit. I finally have found a substance that solves so many problems in a safe way. Please do not take this	is a safe alternative for people to choose over alcohol/recover from alcohol addiction.
BB	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	Tourette's syndrome. THCa helps lessen symptoms and tics, resulting in people with Tourette's being more comfortable working in an office environment.	
MH	Davidson	Email		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCa changes lives. Manages chronic back pain due to musculoskeletal issues and helps inflammation, allowing people to both get a night's rest as well as not sit in pain all day.	
BM	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCa and Delta 8 help with anxiety.	
BM	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCa and Delta 8 help with anxiety.	
RBO	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCa saves people from the side effects of dangerous medication used for mental health. Calms anxiety and eases chronic pain without making people feel high or buzzed. It has saved people's lives, and is important in various recoveries.	
RB	Unknown	Email		If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THC is a non-addictive pain reliever.	Opioids are addictive. THC is an alternative.
JF	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It is crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	For me personally, I lost my wife to breast cancer in 2016. She endured years of chemotherapy and cancer drugs. One of her only reliefs was cannabis. Fake pharmaceutical cannabis made her disoriented and I feel smoking the flower always helped her relax and feel better.	
KB	Davidson	Email	X	Having safe and regulated access to these products is so important for our community, and the newly proposed rules would be a major detriment to myself and countless others around the state.	CBG calms anxiety.	

	JP	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.			
	ED	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	Hemp products make a positive difference in quality of life. These safe and legal products ease the anxiety that comes with living in today's world in a much more preferable way compared to consuming alcohol.	Beyond the immediate impact on consumers, regulated programs have demonstrated broader societal benefits. The approved 6% tax revenue generated by hemp products can be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	
	MA	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCA significantly improves quality of life by helping treat my mental disorders.		
	LH		Email				If these businesses have to cut back or shut down, everybody in our state will lose. The business owners will lose. The customers will lose. Employees will lose their jobs. The recipients of the taxes collected will lose.	
	BJ	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.			
	CL	Davidson	Email	X	If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.		Beyond the immediate impact on consumers, regulated programs have demonstrated broader societal benefits. The approved 6% tax revenue generated by hemp products can be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	
	AP	Davidson	Email	X			Having safe and regulated access to these products is so important for our community, and the newly proposed rules would be a major detriment to myself and countless others around the state.	
	RM	Unknown	Email		Research has shown that cannabis helps slow the progression of Huntington's Disease through it's interaction with the endocannabinoid system. The major cannabinoids found in THC and CBD have been found to be effective at protecting the life of neurons in the brain.			
	RM	Unknown	Email		Research has shown that cannabis helps slow the progression of Huntington's Disease through it's interaction with the endocannabinoid system. The major cannabinoids found in THC and CBD have been found to be effective at protecting the life of neurons in the brain.			
	DM	Hamilton	Oral		By doing this rule you are sending my customers, our community members to an area of black market where they don't know what they are getting and they don't feel safe. I think safe access the key and you have the ability to make that happen.	Hemp products have helped customers cut back on opioid use, beat cancer, fight mental illness, and maintain pain relief.	Collected 500 comments from customers, Most of whom are 50+. Rules will set these individuals back. I think it should be regulated. I think we should grow it in state. And I think we should, you know, have safe access.	Retailer
MM	Rutherford	Oral				Total THC, the original bill House Rule 403 does implement the need or manifest from a USDA licensed hemp farm. And I understand the concern with wanting the review the list of goods from market. But I think mainly that would be covered by the bill that's already in place. So total THC on all products across the board is really just overkill.	I appreciate regulations to keep the industry and our seniors safe.	Cultivator since 2018. Retailer.
DG	Greene	Oral					When you take into consideration regular rules, please observe other industries like alcohol or dairy when promulgating the rules. It seems like it has been overlooked with intermediate products like taking a concentrate and putting them into a manufactured good that there has been some oversight. And has been viewed, from what I see in the rules package as a product. It could be a product from A to B from a business to another business an extractor, a dairy farm, for example, as producing whole milk and then shipping it off to a packer. It seems that it has been overlooked that there is a bulk ingredient that's being used as then going into a new product. So if you can take a look at other models in using a bulk oil going into diminished retail product that – and not define it as a product because that applies a whole new set of rules, different concentrations and things along those lines.	Manufacturer.

ZB	Davidson	Oral	Utilizes hemp products for wellbeing. Used products in place of opioids that had harsh side effects and reactions. Adding hemp products to therapy helped combat effects of depression and bipolar disorder.				
JM	Cumberland	Oral	Provides hemp products for those who utilize it for medicinal purposes. Everybody that I have anything to do with is elderly, a lot of them are Veterans, pretty decent people.	Commenter quotes Thomas Paine, "Man did not enter into society to have freedoms than he had before, but to have his freedoms better regulated and secure."		Licensed grower.	
KT	Laurence	Oral	Hemp derived cannabidiols help disabled individuals as well as children who cannot take opioids or other pain medication. Cannabidiols extracts are used by the body in all manner of ways, including maintaining the body's		There are 114 cannabidiols, we are only talking about one or two. Let's reduce that down to the margin of error and say that the one percent that we are shooting for in the world of THC delta-9 and THCA is for our bodies. It activates every single one of the receptors.	Formulator, grower, processor, propagator, broker, medical practitioner.	
ME	Davidson	Oral	Bill doesn't do anything to enhance access for patients.		I just wanted to speak to the total THC should be one percent decarboxylated. It's extremely limiting to have 3 involved in a total THC for decarboxylated raw product.	There are three different regulatory bodies involved in this. The history of communications between regulatory offices is weak. We already have the TB and the Cannabis Task Force operating independently of the Department of Agriculture and the Department of Revenue to oversee this. Without having any type of communication tools, you are headed towards litigation for sure. And in the past, that's cost the State millions of dollars in unlawful lit -- or unlawful arrests. I would see that to be a future as well because nobody is talking to anyone. The left hand doesn't know what the right hand is doing. And there is nothing in this bill that changes that.	
CB	Franklin	Oral	Rules will result in loss of 11 jobs, life savings, family business, and familial relationships.	Hemp products have astounding effects for people when pharmaceuticals fail. Rules turn good people seeking the natural, medicinal benefits of hemp into criminals.	These new laws and rules are being put in place simply to gain law enforcement revenue by turning good Tennesseans who are simply choosing good natural medicine into criminals.	Retailer	
CS	Wilson	Oral	They passed a wonderful law that was balanced and creates regulatory environment and also a taxation environment which we desperately need. The rule, though, that they are trying to pass now would totally destroy that.	Informal survey shows the rules would devastate the market. Within commentors world, they suggest losing 900 jobs, 300 being clients. 60 businesses would have to shut doors completely because the market has demanded that THCA, because of its effectiveness and its effectiveness and its efficacy has come to the forefront for surpassing CBD, CBG, CBN. Most people that I'm talking to and our current sales we are looking at 60 to 80 percent of the product involves THCA.		Retailer with approximately 300 retailers and small distributors.	
MC	Cumberland	Oral	Tennessee always said that they would follow federal law concerning cannabis, this is your opportunity to do that.	Regulations will gut the industry.	Clients share concerns that rules will result in individuals moving back towards the black market.	Grower, processor, and retailer.	
PC	Williamson	Oral	When the new rules went into effect, and everybody started selling THCA, as you know, no growers in the State can legally grow THCA. So I would just like to say if the rules do continue as they are, please include the growers. Allow us to produce this product that everybody wants and everybody is selling. We can have a safe industry here essentially when you start tracking things with the data. We don't have to rely on products to come from out of state. That is less money that leaves the state that we can keep right here to support people like me and all of these other people in state in this industry. When you do make your decision, whichever way it goes, just please make it across the board. Because as of now, I, as a grower, operate under the total THC limit. I've been doing that for two years now. So if we are going to go to this delta-9, please let the growers to follow those rules too just so we have consistency. And I can provide a product that I can resell because that's where -- we won't have business very soon if everything continues like this.		We could just allow our neighboring states to collect this much-needed revenue. Imagine how much would be in our coffers right now if we had implemented the tax in 2019 following the legislation. Our customers don't mind paying tax. They want safe legal product.	Owner, operator, and grower at Cowden Gemp Company.	
JM	Davidson	Oral	Realign rules to the federal guidelines.	Rules will decimate the industry.	Rules are going to drive consumers to the black market.	Rules are going to push consumers to other states for products.	Manufacturer
DT	Davidson	Oral			Hemp products help individuals struggling with substance abuse (e.g., alcohol, prescription medication, etc.).		
MR	Davidson	Oral				Have a conversation with these coalitions. Have a conversation with these people who are part of the industry so you can really see. All of these people in this room, we can come to a solution. We came to a solution to save the industry. We can come to a solution to continue to propel forward for what's coming around the mountain.	
DB	Sumner	Oral			Plant has medical benefits.	There are benefits to growing the plant, including soil enrichment to the COT (phonetic). "Let it grow, let it grow, however it want to grow, just let it grow." This plant was created on day three. We were created on day four I think, maybe seven.	
AP	Rutherford	Oral	Commenter feels safe that these businesses are growing daily in communities. There are little hemp shops popping up everywhere. So there are jobs just flourishing in all of the local communities. It would just break my heart to see some of them feel like they have lost the sense of hope from the -- when there was just this bright light coming through finally, and it might be kind of reduced or a little overregulated.			I've been so like taken back by seeing the growth in just the people that come in when they first come in versus weeks after when they come in. You see like a different glow about people. That they see like a sense of hope. That they have something that is a safe, legal product in their community where they don't feel like they have to drive state lines to go and try to find a product that essentially is putting them in a criminal-like situation.	
CF	Davidson	Oral	In 2018 Mitch McConnell and Donald Trump legalized low THC cannabis in the form of hemp only restricting one cannabiond out of hundreds in the plant.	Rules would devastate producers and retailers.	Hemp provides alternatives to narcotics, chemo drugs, PTSD medications, and other prescriptions. Rules would criminalize medical uses of hemp products and make products illegal.	The data, out of legal states, makes it clear there is no public health or safety justification for restricting cannabis.	Founder of Tennessee Cannabis Coalition as a patent advocate.
NM	Davidson	Oral				We accidentally created one of the best cannabis environments in the entire United States just from working together and the agents and everyone involved, between consumers, merchants and lawmakers as well, being able to have this specific grown cannabiond now at the forefront of everything eliminates these trace cannabionds that we don't really have a large study year data on.	
AB	Shelby	Oral	These rules are being released in direct opposition for what lawmakers intended for our state. And since we have to wait for them to make these laws, when our local departments work in direct opposition of this, it is extremely difficult to understand.		Pharmaceuticals almost destroyed my family and cannabis gave me my life back. Hemp products help mobility, PTSD, chronic pain, mental health, and curbing the use of opioids.	"I've had folks tell me that they know people in the double digits who have overdosed from opiates. And yet no one has ever died from cannabis flower."	Manufacturer in Memphis.
CG	Rutherford	Oral		One of the things people don't really see that you won't notice until you are on the ground is, how everyone from the black market started pulling their way into a retail ready-type cannabis scenario to the point where Tennessee was ranked number one in the United States for third quarter for cannabis sales. Ironically, And it was because we were able to dry up that black market, one of things I have seen just between all of it is: These people that are not having to drive to Illinois. A lot of times, people are going to do what they are going to do. And you are going to have people having to get incarcerated for using a cannabis			

[illegible]

	WG	Hamblen	Oral		People sunk life savings into hemp industry. You're going to destroy a lot of income for the State and you are going to destroy a lot of businesses.		Hemp products get people off opioids, improve appetite in cancer patients, offer pain relief, and removes pharmaceuticals.					If this law passes and the CBD is all these people can get, I feel sorry for them because it's not the CBD, the CBH that is helping these people. It's the THCA and all of the different strains of cannabinoids.
	KL	Hamilton	Oral		The Tennessee Department is interpreting the State bill to redefine the federal definition of law.	Forcing consumers back to the black market.	Doing away with flower is doing away with the medicine. Hemp helped manage symptoms of cancer and side effects of treatment. Helpful for the side effects of related illnesses, i.e., anxiety, sleep.					The new law is good, that bill is a good bill. And that's what we want. We want to protect the -- the protection of limiting the access of sale of hemp derived products to 21 years or older. It requires products to be tested. I love it.
	MR	Hamilton	Oral				Hemp products help cancer patients with appetites, sleep, pain, and nausea. Cannabis can improve mental health during stressful life events.		Total THC standard is regressive, anti-business and a step backwards for our state.			Research and experience show us that sensible regulation supports safe access.
	DO	Blount	Oral		I put everything into my shop as well. I have four children and we have staff with children and it would affect all of us dramatically if this is pushed the way it's going.		Hemp can be a natural medicine to replace pain medication.					TN is one of 12 states that does not have a program.
	NO	Robertson	Oral									
	MG		Email		Local retail stores will be forced to lay off employees and close locations, resulting in a loss of local taxes. There then is the loss of tax revenue for the state coffers. It feels like a solution looking for a problem.	Limiting the products that can be grown and sold in the state will hurt the farmers who have invested large amounts of capital, or incurred debt, to grow Hemp for THCA & CBD flower. It doesn't seem fair to change the rules after our local farmers have made the decision to invest in the Hemp industry.	People will still seek and consume THCA and CBD flower products-- they will just buy online. Law abiding citizens will be criminals if found to possess products.	Good for sore muscles. Improves sleep.	Replaces alcohol consumption with no detrimental effects on personal or professional life.	New 6% sales tax on Hemp products has brought in \$3.5 million in tax revenue in 2023 and is projected to grow.	People will just spend their money in other states to obtain products.	
	KK	Wilson	Email		Would restrict and prohibit established hemp companies from producing well-sourced hemp products, and negatively impact the livelihood of many Tennesseans who work in the hemp industry.							
		Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	States that legalize marijuana use see a substantial increase in tax revenue and employment, while seeing a reduction in crime and drug-related overdoses.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.		
	FS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Commenter asks, "Can we, for once, move forward along with the rest of the world?" and states politicians are "greedy and misinformed" if they support a ban. Adds, "Don't write your name on the wrong side of history. Do the right thing."	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.		
		Unknown	Email							Bans THCa.		
	HP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	LA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	BP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	JA	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	JB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	JC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	JGM	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	JP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	JB	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	JC	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	CL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			
	AR	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.			

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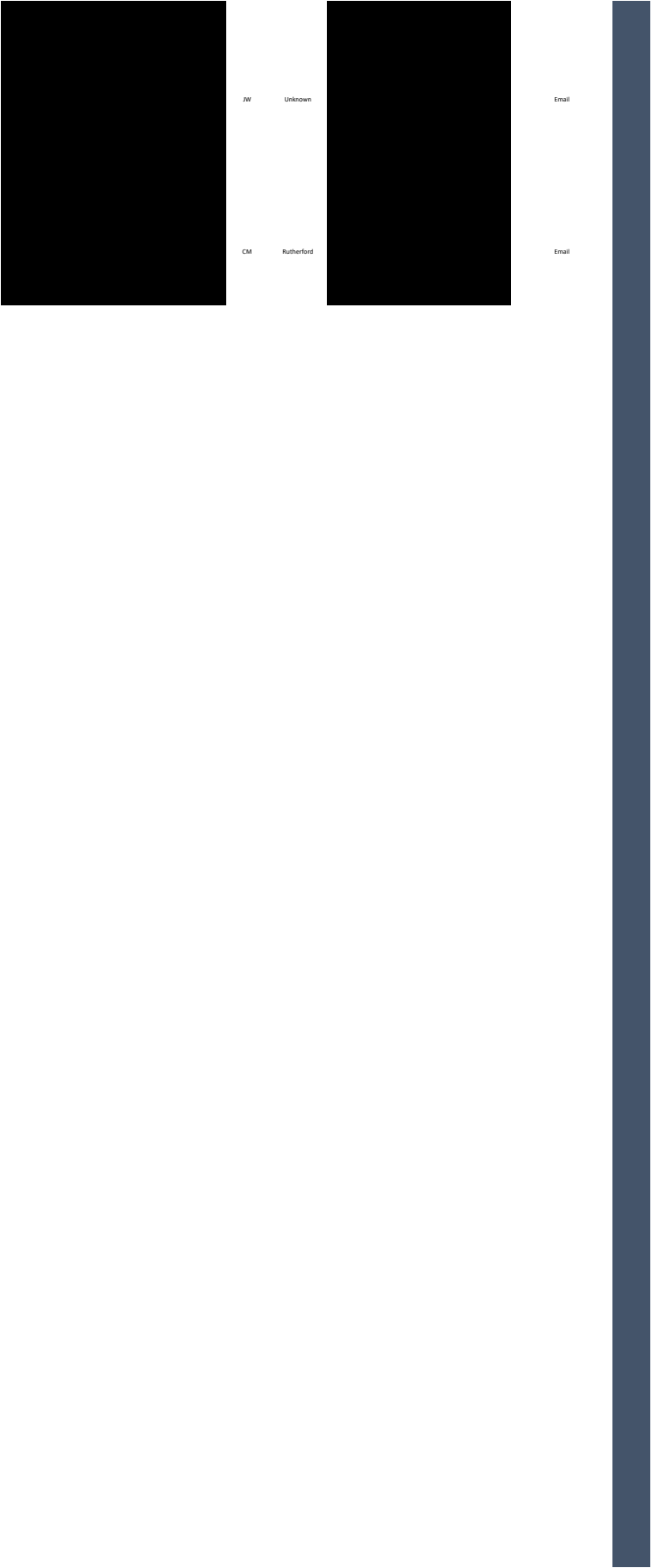
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CSG	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
GS	Davidson	Email				It will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.		It helps me sleep with less negative side effects like prescription or over the counter medication has. Improves happiness and productivity at work.		Please consider that these proposed rules could take away a safe, legal option that has already been legal for years. I would happily pay higher taxes for this option.
DG	Davidson	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
CW	Rutherford	Email				If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.		Helps manage panic disorder and pain. Helps people mentally make it through the day and live a normal life.	Products are an alternative to pharmaceuticals which don't work.	Will affect those who use products medicinally who cannot use traditional pharmaceuticals or pain relievers.
DP	Warren	Email			THCa, CBD flower, concentrates, and vapes have economic potential	It is vital to strike a balance that ensures safety and regulation while also respecting the rights of consumers and the potential of the hemp industry.		Anxiety, seizure disorder. Significantly improves quality of life.	Rules pose total ban on edible hemp products, which was not the intent of the law to create a legitimate, safe, and well-regulated marketplace for hemp products.	
NP	Davidson	Email				If the rules are finalized as is, it will drive consumers back to the illicit market, undermining the progress made by licensed and regulated hemp product retailers in TN. Forcing people to resort to the illicit market not only heightens the risk of criminal activity but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCa and CBD flower, concentrates, and vapes.		Beyond the immediate impact on consumers, regulated programs have demonstrated broader societal benefits. The approved 6% tax revenue generated by hemp products can be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	
CK	Davidson	Email				Forcing people to resort to the illicit market not only heightens the risk of criminal activity but also exposes individuals to potentially harmful substances like fentanyl and other toxins. It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses.	THCa and CBD flower, concentrates, and vapes.		The approved 6% tax revenue generated by hemp products can be reinvested into communities, supporting schools, parks, social services, infrastructure, and more.	
GA	Unknown	Email					THCa and CBD flower, concentrates, and vapes.			Please, hear your citizens. This alteration would negatively impact the state economy. Do not ban hemp products in Tennessee. Hear your citizens.
ZW	Unknown	Email			To regulate these businesses out it to do a disservice to the people of Tennessee:			Better pain relief than relying on opioid products.	Hemp products in Tennessee bring in a nice chunk of tax revenue.	
EC	Hamilton	Email	X	The TN Dept of AG is misinterpreting the law, and you are trying to redefine hemp in the rulemaking process.	Wants safe access to flower and cannabis products that are tested and grown locally.	Wants access to safe, regulated products. Forcing Tennesseans to the Black Market where products are not tested and sprayed with fentanyl and other toxins. The Black Market is unsafe for Tennesseans and the most dangerous thing about the cannabis plant.		This is NOT what Tennesseans want.		This will ban all natural and organic flower for Tennesseans to be able to use as they wish for all hemp derived products. You are banning all flower.
BM	Wilson	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
AL	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
BO	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
CJ	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
CW	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
JP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
RP	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
SA	Shelby	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
SS	Unknown	Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Baris CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
MP	Unknown	Email	X		As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.					
BK	Davidson	Email	X			Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Baris CBD flower.			
DS	Shelby	Email	X			Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Baris CBD flower.	Manages ASD symptoms.		

	DS	Shelby		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Manages ADO symptoms.	Bars CBD flower.			
	DS	Shelby		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Manages ADO symptoms.	Bars CBD flower.			
	DS	Shelby		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Manages ADO symptoms.	Bars CBD flower.			
	RS	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Sleep aid.	Bars CBD flower.			
	RS	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Sleep aid.	Bars CBD flower.			
	CO	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Manages myoclonus with cannabis.	Bars CBD flower.			
	RG	Davidson		Email				Manages nerve pain from Type 1 diabetes.	Bars CBD flower.			
	RG	Davidson		Email				Manages nerve pain from Type 1 diabetes.	Bars CBD flower.			
	BT	Davidson		Email	X		Wants access to safe, regulated products.	Treats anxiety.	Bars CBD flower.			
	ML	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Helps with sleep.	Bars CBD flower.			
	HR	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.		Bars CBD flower.			
	JS	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.		Bars CBD flower.			
	JJ	Davidson		Email			Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.		Bars CBD flower.			
	SB	Davidson		Email			Having safe and regulated access to these products is so important for our community, and the newly proposed rules would be a major detriment to myself and countless others around the state.	Pain, inflammation, and stress reliever.	Bars CBD flower.	Banning smokable farm products would do a great disservice to people who use products medicinally.	Bars THCa flower, concentrates, and vapes.	Will negatively impact those who use products medicinally.
	DC	Stewart		Email	X	Seems like a major setback.	It's crucial to recognize that people will seek out these products, legal or not, and restricting legal avenues may inadvertently contribute to increased crime rates and unintentional overdoses. Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Pain reliever. Makes pain caused by various conditions tolerable.				
	SL	Unknown		Email			Forcing people to black market where products are not tested and sprayed with fentanyl and other toxins.		Bars CBD flower.			
	SL	Unknown		Email			Forcing people to black market where products are not tested and sprayed with fentanyl and other toxins.		Bars CBD flower.			
	AR	Knob		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.					
	KS	Cheatham		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Uses for pain relief from hip replacement.	Bars CBD flower.			
	GS	Unknown		Email		Would kill the legal full scale of legal hemp industry.				Overlap by TDA regarding testing for THCa concentration in locally grown hemp plants would kill the legal full scale of legal hemp industry.		
	DA	Unknown		Email		TDA is misinterpreting the law and trying to redefine hemp in the rulemaking process.			Will ban all natural and organic flower.		Will ban all natural and organic flower.	
	MO	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Relaxation and pain management.	Bars CBD flower.			
	CM	Hamilton		Email			Wants safe access to regulated products.			Please do not take hemp away from Tennesseans.	Keep products legal.	
	ZB	Davidson		Email				Help with surgery and recovery. Treats depression and bipolar disorder.	Bars CBD flower.			
	ZB	Davidson		Email				Help with surgery and recovery. Treats depression and bipolar disorder.	Bars CBD flower.			
	BC	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bars CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
		Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bars CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
	MM	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bars CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
	NS	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bars CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.
	DT	Davidson		Email	X		Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Manages ADO symptoms with these products.	Bars CBD flower.			
	SW	Davidson		Email	X			Treats anxiety and depression.	Bars CBD flower.			
	JB	Davidson		Email			Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.		Bars CBD flower.			
	WC	Davidson		Email	X	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Does not suffer from reactions to pesticides when using safe products.	Bars CBD flower.			

	WC	Davidson		Email	X	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Does not suffer from reactions to pesticides when using safe products.	Bans CBD flower.					
	WC	Davidson		Email	X	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.	Will force engagement with bad actors in black market who provide untested and potentially adulterated products laced with fentanyl or other toxins.	Does not suffer from reactions to pesticides when using safe products.	Bans CBD flower.					
	SC	Unknown		Email				THCa is a pain reliever that is a game-changer in treating chronic pain. Strongly believes in the importance of recognizing the medical potential of THCa and ensuring it remains accessible for those who genuinely benefit from its therapeutic properties.	THCa is a natural pain reliever without side effects of traditional medicine.	Disheartening to think that such a beneficial substance could be outlawed.				
	SK	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.		
	WP	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.		
	ZK	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	"Total THC" standard places limits on THCa that directly conflict with the statute. Divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.		
	PC	Hamilton		Email						Prohibition.	Consider how prohibition itself is an ineffective means of substance control and how proper allocation of tax revenue could potentially benefit all the citizens of Tennessee, our roads, our schools, our hospitals.	As a medicinal user of full-spectrum cannabis products, particularly in raw smokable flowers, this bill threatens my own personal well-being and honestassi. As a tax payer I am extremely disappointed in Tennessee's failure to see the potential benefits of an established hemp industry, from a financial and medical standpoints. You don't need to look far to see how cannabis has positively impacted states with medical/adult use bills. I say this not just as a personal user, but also as a Farm Bill compliant certified industry professional whose livelihood is being threatened.		
	AR	Knox		Email			If the rules are to be finalized as written, it will drive consumers back to the illicit market, which undermines the steps we have all taken for the sake of safety and health. Forcing people to resort to the illicit market not only raises the risk of criminal activity, but also exposes individuals to potentially harmful substances like fentanyl and other toxins.							
	KS	Cheatham		Email				THCa is pain reliever, without which significant pain makes daily activity difficult.	THCa and CBD flower, concentrates and vapes.					
	JS	Cheatham		Email		Strongly recommends removing "Total THC" entirely from the final version of the regulations to prevent these extensive economic and social repercussions, ensuring alignment with the Agricultural Improvement Act of 2018.	Rules as written could foreseeably strip nearly half a billion dollars in revenue and displace almost 6,500 Tennesseans from their jobs.			According to the 2023 National Cannabisoid Report (page 4): "The current demand for hemp-derived cannabinoids surpasses \$29 billion, supporting 128,000 jobs and generating \$13 billion in wages. The overall economic contributor of the hemp-derived cannabinoids industry to the U.S. economy exceeds \$79 billion." Commenter states these figures are considered conservative, as they exclude contributions from gas stations, grocery, and convenience stores. Commenter adds conservative annual revenue projection for the Tennessee hemp industry, as reported, is \$661,213,360 (page 17 of report), employing approximately 6,495 individuals (page 27 of report).	States are potential discrepancies in the definitions of "Hemp-Derived Cannabinoids". This oversight might not fully capture the economic ramifications, particularly if THCa products are considered. States observation was shared with Colorado but was overlooked by state lawmakers, causing businesses to relocate to other states. Commenter urges TN to consider the "local multiplier effect," which operates as follows: 1.Initial Spending: This begins with expenditures at local establishments, boosting their revenue. 2.Recirculation of Money: A significant portion of this revenue remains within the local economy, used for wages, rent, or purchases from local suppliers. 3.Further Spending: This income is then spent locally by employees and businesses, further fueling the local economy. 4.Multiplier Effect: The re-spending of this money within the local economy amplifies its impact, supporting additional economic activities. 5.Enhanced Economic Stability and Growth: This cycle fosters local job creation, broadens the range of services and products available locally, and retains wealth within the community.	Commenter is Lab Manager, iL Processing. Attached to email Beau Whitney's economic analysis from Whitney Economics for TDA's "detailed examination."		
	KG	Rutherford		Email								1. Testing Lab Approval: We urge reconsideration of the mandatory use of state-approved testing labs. Our experience indicates that the current turn times and accuracy of Tennessee labs do not align with industry standards, potentially driving reputable companies out of the state. 2. Full Panel Testing: Requiring full-panel testing for every extract, intermediate, and finished good poses a significant financial burden. We propose limiting this requirement to the finished product to ensure sustainability for businesses like ours. 3. Chapter 08B0-10-02, 04 - Solvents: The current exclusion of certain solvents raises concerns about the flexibility required for innovative technologies. We recommend adopting language aligned with the FDA's classification of solvents as Generally Recognized as Safe (GRAS). r. Warning Labels: While we appreciate the necessity of enhanced warning labels, we request a grace period for implementation, considering the significant investments already made by companies in pre-existing packaging.		
	MB	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute, its legislative intent, and the regulatory scheme crafted in the statute.	As a concerned citizen, I urge the Department of Agriculture to reconsider and rectify this situation immediately. The hemp industry plays a crucial role in our state's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of our community.		Bans CBD flower.	The draft Rule creating a "Total THC" standard places limits on THCa that directly conflict with the statute. Its divergence from state law also likely subjects it to federal preemption.	Will result in drastic decline in tax revenue.	THCa products will not be regulated or taxable, retailers cannot sell them, but it will remain legal for individuals to possess and consume them.		
	ML	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.		
	PI	Unknown		Email				Commenter has used hemp in his path to recovery from alcoholism.						
	RS	Davidson		Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.		
	ML	Unknown		Email	X	Standard places limits on THCa that directly conflict with the statute and its legislative intent.	Total THC standard will shut down the entire TN hemp industry. Imposes burdensome requirements on businesses. Will result in significant job loss. Industry plays a crucial role in TN's economy, providing jobs, supporting local businesses, and contributing to the overall well-being of its community.			Proposed rule's divergence from state law also likely subjects it to federal preemption. Purpose of the law was to regulate hemp-derived THC to protect consumers and particularly children from intoxicating products. Total THC standard is built upon only one, single line of the statute.		Bans THCa flower, vapes, and concentrates.		
	DA	Davidson		Email	X	The proposed regulations exceed current Tennessee law by implementing a total THC standard.		If finalized, the proposed regulations will effectively ban products like CBD and THCa flower that are legal in Tennessee.				If finalized, the proposed regulations will effectively ban products like CBD and THCa flower that are legal in Tennessee.	The required language on packaging is a stretch and potentially causes market confusion.	Looks like a template email, but there was not an existing pattern for this.
	DF	Sullivan, Hawkins		Email	X	The proposed regulations exceed current Tennessee law by implementing a total THC standard.		If finalized, the proposed regulations will effectively ban products like CBD and THCa flower that are legal in Tennessee.				If finalized, the proposed regulations will effectively ban products like CBD and THCa flower that are legal in Tennessee.		Email in signature is alistel@charter.net
	JC	Knox		Email	X	The proposed regulations exceed current Tennessee law by implementing a total THC standard.		If finalized, the proposed regulations will effectively ban products like CBD and THCa flower that are legal in Tennessee.				If finalized, the proposed regulations will effectively ban products like CBD and THCa flower that are legal in Tennessee.		

MC	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	Rules were written as if conceived solution to simplify TDA regulation of hemp industry. Should instead be written for effective regulation of burgeoning industry.
MJ	Hamilton	Email		It sounds to me like the TN Dept of Agriculture is trying to take away all cannabis flower containing THCa.	By taking this flower away from the citizens of Tennessee, it is driving the consumer back to the black market.	THCa flower relieves pain and insomnia.		I know friends who drive to Illinois just to purchase legal cannabis.	
CL	Unknown	Email			Wants safe access to quality, regulated products so that people are not buying it off the street.	Medical marijuana should be legal.			Has lived in CT where cannabis products were legal. Quality of THCa in TN not as good. Believes in safe, medical grade products.
EC	Hamilton	Email		The TN Dept of AG is misinterpreting the law, and you are trying to redefine hemp in the rulemaking process.	You are forcing Tennesseans to the Black Market where products are not tested and sprayed with fentanyl and other toxins.	This will ban all natural and organic flower for Tennesseans to be able to use as they wish for all hemp derived products. You are banning all flower.			
CH	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
CH	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
CH	Unknown	Email	X	Rules misinterpret 2023 state statute. Legislative intent was to create a safe, regulated marketplace and not ban smokable hemp products.	Will push consumers back to black market, which will increase crime rates, increase risk of overdoses and exposure to fentanyl and other toxins. Consumers will pursue THCa and CBD flower, whether they are legal or not. Wants safe access to regulated hemp products. Rules criminalize smokable hemp products. Mfg, retailers, and consumers could be arrested for selling or possessing these products.	Bans CBD flower.	Tax revenue from a regulated market can support Tennessee schools, parks, social services, and infrastructure.	Bans THCa flower, vapes, and concentrates.	
BL	Unknown	Email			THCa eliminates night terrors for veterans.	Marijuana should be legal.	TN's laws are backwards. Commenter is deeply disappointed in TN Republicans who seem to want Big Government.		Keep THCa legal. Seems like laws are to make something illegal to justify law enforcement over a harmless plant. Guns are more dangerous than the oxygen produced by the plant. Banning products will negatively impact veterans who use products medicinally.
BL	Unknown	Email			THCa eliminates night terrors for veterans.	Marijuana should be legal.	TN's laws are backwards. Commenter is deeply disappointed in TN Republicans who seem to want Big Government.		Keep THCa legal. Seems like laws are to make something illegal to justify law enforcement over a harmless plant. Guns are more dangerous than the oxygen produced by the plant. Banning products will negatively impact veterans who use products medicinally.
MC	Unknown	Email			Helps 84 year old grandmother after her chemo treatments.				Wants to leave hemp laws as they stand.
GH	Unknown	Email			THCa provides irreplaceable pain relief.	Replaces pharmaceuticals and opioids.			Will negatively affect those who use products medicinally.
MS	Unknown	Email		Department of Agriculture is misinterpreting the law.	Wants safe access to regulated products. People will resort to black market for purchase if not legal.		Mising out on important tax dollars and a chance to provide citizens with Cannabis.	People will just ship product in from other states.	Legalize all cannabis products.
BB	Unknown	Email			Therapeutic benefits, reducing inflammation, pain, and nausea with no side effects.	Marijuana should be legalized to capture tax dollars.			
TS	Unknown	Email		Trying to make laws to hurt the crop industry and local businesses.	Legalize THCa so people don't buy drugs off the street that could contain fentanyl.				
MN	Unknown	Letter	X	Bans products which are in high demand with customers. Exceeds state and federal law.	Wants safe, regulated products. Rules empower an illegal market that targets children. Consumers want and will pursue THCa whether legal or not. Would push consumers back to black market, exposing to fentanyl and other toxins, as well as increased criminal activity.	Is a return to Prohibition which didn't work.	Will eliminate millions in tax revenue. Money could be used towards infrastructure, schools, etc.	Goal of the Hemp Industry and lawmakers was to establish a legitimate, safe, and well-regulated marketplace, not to impose an outright ban on hemp products such as CBD, Delta-8, Delta-9, and THCa which are currently legal in the state as well as federally.	Template language combined with invidual comments.
KL	Hamilton	Email	X	Misinterpretation of the bill that redefines the federal definition of hemp and hinder interstate commerce.	Commenter states has a farm that employses 30 individuals and serves 20,000 customers annually. Claims family "cannot sell the plant we are permitted to grow that has been tested and certified to be legal by the state of Tennessee Department of Agriculture."	Bans CBD flower.		Bans hemp flower.	Email to Senator Watson that was forwarded to TDA. Template language with individual comments added. Commenter characterizes post-decarboxylation as method placed in TDA's rules as opposed to requirement written into legislation.
MN	Unknown	Letter	X	Bans products which are in high demand with customers. Exceeds state and federal law.	Wants safe, regulated products. Rules empower an illegal market that targets children. Consumers want and will pursue THCa whether legal or not. Would push consumers back to black market, exposing to fentanyl and other toxins, as well as increased criminal activity.	Is a return to Prohibition which didn't work.	Will eliminate millions in tax revenue. Money could be used towards infrastructure, schools, etc.	Goal of the Hemp Industry and lawmakers was to establish a legitimate, safe, and well-regulated marketplace, not to impose an outright ban on hemp products such as CBD, Delta-8, Delta-9, and THCa which are currently legal in the state as well as federally.	Template language combined with invidual comments.
WL	Unknown	Email			Helps people make it through the day. Products don't hurt anyone.		Government wants to take something away as soon as people enjoy something. TN has started to "ban virtually anything and everything. People should be allowed to choose what products they consume.	Keep products legal.	
CS	Hamilton	Letter	X	Misinterpretation of the bill that redefines the federal definition of hemp and hinder interstate commerce.	Commenter states was one of first 24 permitted hemp farmers in TN and has a farm that employes 30 individuals and sves 20,000 customers annually. Claims family "cannot sell the plant we are permitted to grow that has been tested and certified to be legal by the state of Tennessee Department of Agriculture."	Bans CBD flower.		Bans hemp flower.	Letter addressed to Governor Lee that was forwarded to TDA. Template language with individual comments added. Commenter characterizes post-decarboxylation as method placed in TDA's rules as opposed to requirement written into legislation.



JW

Unknown

Email

CM

Rutherford

Email

1. The requirement for licensing would require a license for each employee. At most retail locations, this would simply be impossible. 2. Requirement to list all HDC products including trade name on application (pg 20). This requirement would be extremely burdensome and difficult to track for most retailers. Given the evolving nature of the market, how can retailers be expected to update every thirty days? 3. Requirements for vapes are too strict (pg 10 and 11). The restrictions on vapes are very specific and limited. How can this be reconciled with the free market capitalist economy established by the Tennessee legislature?

Suspects concerns with statute are that are that marijuana is being sold illegally as THCa flower. These concerns are resolved by what is already in house SB 405, enforcing Chain of Custody by stating that all goods must have a point of origin and shipping manifest that verify authenticity from a USDA licensed hemp farm. This language alone is enough to prevent any suspected illegal activities from permeating Tennessee commerce.

Owners of local hemp business since 2020.

Licensed hemp producers since 2018. States, "Since becoming licensed hemp growers and operators in 2018, we have endured a rollercoaster of policy change that has made growing hemp that is compliant with TCA guidelines in 2024 nearly impossible. The TCA's unwillingness to fall in line with federal regulations defined by the 2018 Farm Bill has caused many Tennessee farmers to discontinue paying for licensing and growing hemp altogether. A program that started out by issuing thousands of licenses has devolved to overnight discouraging many volunteers from participating in what could be a very lucrative and successful industry for Tennesseans by passing unsuitable rules."

Wants safe access to regulated hemp products.

Chronic pain.

Opioids and pharmaceuticals cause bodily and personal harm.

People who currently buy their hemp products in the state would be forced to shop out-of-state and buy online from out-of-state operators, taking millions in taxable retail sales away from Tennessee.

Enforcing a total THC guideline on all products will inhibit more than THCa flower in the market. It does not make THCa illegal but restricts Tennesseans from producing and manufacturing the products in state. The most recent rules proposed would effectively permit out-of-state operators to commandeer the hemp-derived cannabinoid industry, while prohibiting native Tennesseans from participation.

The department of agriculture has not paved a path for businesses to succeed under this program. The multimillion-dollar market would cease to exist within a year of implementation of these rules.

Standard that applies a pre-harvest growing test to a final product. The effect is that most hemp flower will be non-compliant. What is the justification for this standard?

1. Restriction on growing more than one variety per growing area (pg. 7). The restriction on growing varieties will severely limit the ability to grow drought resistant crops, research crop types, and prevent cross pollination. How does this rule reconcile with the existing hemp program? 2. No mention of culpable mental state (included in prior rules). 3. The burden of having to keep two years of records seems stricter than many other retail industries. How can businesses reasonable track every sale without having to spend a lot of money on software? 4. No free transportation to other facilities unless it's your own (pg. 23). The transportation restrictions do not seem to take into account the existing industry. How can wholesalers and manufacturers be expected to move products reasonably with these restrictions? The rules have intentionally excluded a culpable mental state. What is the purpose of deleting this rule? 5. Failed testing procedures are too strict and burdensome (pg 15). This rule would require entire batches and many compliant products to be destroyed if one product is not maintained properly? How can this be reconciled with the existing market and program? Why is this more strict than regular food safety laws? Having to calculate and list the distance to school on applications (pg 20). Why are retailers burdened with tracking the distance to each school in their area? What constitutes a school? How can retailers be expected to determine what constitutes a school without a clear definition or list?

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